# Shifting Cultural Frontiers in Late Antiquity





Edited by
**David Brakke,**
**Deborah Deliyannis**
and **Edward Watts**



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*Edited by*
DAVID BRAKKE, DEBORAH DELIYANNIS
AND EDWARD WATTS
*Indiana University, Bloomington, USA*

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# Introduction

David Brakke

*Shifting Cultural Frontiers in Late Antiquity* explores the transformation of classical culture in late antiquity by studying cultures at the borders—the borders of empires, of social classes, of public and private spaces, of literary genres, of linguistic communities—and of the modern disciplines that study antiquity. Although such canonical figures of late ancient studies as Augustine and Ammianus Marcellinus appear in its pages, this book shifts our perspective from the center to the side or the margins. The chapters consider, for example, the ordinary Christians whom Augustine addressed, the border regions of Mesopotamia and Vandal Africa, "popular" or "legendary" literature, and athletes. And although traditional philology rightly underlies the work that these chapters do, the authors draw from and combine a range of disciplines and perspectives, including art history, religion, and social history. By looking away from the core and toward the periphery, whether spatially or intellectually, we gain fresh insights into how ancient patterns of thinking and creating became reconfigured into the diverse cultures of the "medieval." The book's five parts address these shifting cultural frontiers from different vantage points.

Part I, "Shared Intellectual Space," focuses on a single region, Mesopotamia, which exemplifies two kinds of borders, one between linguistic cultures (Greek and Aramaic) and one between empires (Roman and Persian). The chapters in this part address how cultural interaction between speakers of Aramaic and the larger cultural complexes of "Hellenism" and Roman imperial ideology shaped and was shaped by intellectuals in a hybrid space. Ephrem the Syrian's hymns used poetic biblical dialogue to comprehend the threat of a rival empire to the city of Nisibis, and Bardaisan negotiated between the local and the universal in his attempt to articulate a concept of natural law. Philoxenos of Mabbug combined Greek and Syriac modes of exegesis with scripturally based contemplation in his reflections on the role of the translator. Rabbinic terminology for uncultured persons participated in a new Roman ideology that constructed the "pagan" as the outsider, that is, the non-Christian or the non-observant Jew. Together these chapters demonstrate how Mesopotamia functioned as an intellectual space in which Christian and Jewish sages received and transformed cultural materials from the past and from non-Aramaic cultures.

The movement between cultural settings is the subject of Part II as well, but here the border in question is that between "high" and "low" cultures. Recent critical theory, particularly cultural studies, has interrogated and often dissolved

the distinction between high and low cultures, and even earlier anthropologically and sociologically informed studies of late ancient religion questioned a strong contrast between the religion of the elites and that of "the masses." Yet there can be no doubt that in late antiquity there were literary works that were more or less sophisticated in their composition and more or less accessible to a wide range of readers, who in turn made up a small percentage of the population. The chapters in this part examine particular genres and sites where "high" and "low" culture met. We find that even a popular "legend," that of the true cross, could address in creative ways skeptical questions that the learned might pose, and that Ammianus Marcellinus brought the most refined literary conventions of the classical past to bear on what he saw as the debased political culture of the present. In contrast to the refined and sober historical sensibility of Ammianus, the author of the *Historia Augusta* did not hesitate to include trivial and even vulgar details about his subjects or to write in a less elevated style: both functioned as tactics to commend the extent of his curiosity-driven research and the veracity of his "historical fiction." One might think that the imperial court would have been a primary site for the rhetoric and decorum of high culture, but when the emperor himself came from a lower, less sophisticated social class, the court became the arena for a new mapping of insiders and outsiders in terms of courtly etiquette. The barbarians were indeed within the gate.

In Part III, "Literary Culture," skilled Christian rhetoricians, among the best practitioners of the ancient art of the spoken and written word, tackle the divisions between themselves and others who do not share their intellectual gifts or religious commitments—schismatics, pagans, the less educated. From the get-go Christian leaders presented their movement as inclusive of all people, and thus bishops preached to a range of hearers, attempted to rein in heretics and schismatics, and translated philosophical concepts into striking visual and literary images. Augustine's model Christian, "the ant of God," gathered for herself bits of wisdom from the readings and sermons in church and wove them into her own meaning. Augustine himself adapted an epistolary form from earlier days, the *epistula pacifica*, to impose his own interpretation of more recent events on the schismatic Donatists. Pagan and Christian elements coexist peacefully and elegantly in the classicizing poetry of Dioscoros of Aphrodito, who adduces pagan mythological figures as models of virtue whom his Christian subject surpasses. Athanasius of Alexandria and other Christian theologians blurred the boundaries between text and image as they sought to form a culture that was not only Christian, but also "orthodox." The chapters in this part demonstrate that the frontiers of what may be termed "literary culture" shifted as learned authors transformed genres and wove together pagan and Christian mythologies, persons at a variety of educational levels took what they could from literary performances, and visualization became an increasingly important means of communication.

Part IV builds on this last point as it moves out of the realm of literature into the spatial environment of material culture and the city. The chapters here invite us to consider changing social mores and values in later antiquity: domestic

architecture made the *cubiculum* a more private space and reflected a new sense of shame, and athletes, once honored figures in society, lost prestige and became associated with entertainment rather than civic glory. Even ceramic lamps could be the site for the assertion of local particularity in the face of an empire-wide cultural "mainstream." If we enlarge our field of vision to include the public spaces of the city, we discover that the fora of many cities, rather than going into decline, became increasingly crowded with continuing commemorative statues and inscriptions, some now reflecting Christian identities, and that a ceremonial column could broadcast imperial power and Christian concord simultaneously, while also containing a whimsical touch of self-referentiality. The spaces that late ancient people physically inhabited and the items that they held and used participated in the shifts in late ancient culture as much as literary products.

Finally, Part V turns to the literal frontiers of the empire and to peoples who negotiated with the Romans the borders of their political and cultural identities. As they took control of North Africa, the Arian Vandals adopted rebaptism, a practice of Donatist North Africans, and so integrated North Africans into their culture by means of a ritual that North Africans themselves had used to differentiate themselves from Catholic Christianity. In fifth-century Gaul, Roman political elites and the "barbarian" Visigoths both viewed the Visigoths not as alien invaders, but as a force allied with a legitimate Roman imperial authority. And in the Caucasus Mountains of the sixth century, the Suanians virtually invented themselves as a people in their complex negotiations between two imperial powers, Rome and Persia. In these cases, although we can make out the existences of frontiers or borders between cultures, they shift and blur the closer that we examine them, revealing the hybrid nature of Roman and other ethnicities.

Despite the diversity of their subject matters and their scholarly approaches, the chapters in this book coalesce around a small number of key themes in the study of late antiquity: the ambiguous effects of "Christianization," the creation of new literary and visual forms from earlier models, the interaction of and spread of ideals between social classes, and the negotiation of ethnic and imperial identities in the contact between "Romans" and "barbarians." The book makes a unique contribution to scholarship on these topics by keeping "culture" at the center of its analysis: the interest here is in the aesthetics of social and political change, as that emerges in literature, visual arts, the design of objects and built spaces, and ritual. By examining specific cases that lie along cultural margins or borders, the chapters that follow shed new light on the wider reconfigurations of late ancient culture and thus the emergence of new cultures, new identities, and new histories.

# PART I
# Shared Intellectual Space

# Chapter 1
# "It Is Not the Custom of Our Syriac Language … ": Reconsidering the Role of Translation in the Polemics of Philoxenos of Mabbug

David A. Michelson

## Introduction

The chapters in this volume examine the period of late antiquity by turning our attention to the peripheries of its intellectual, social, and literary domains. This exploration of the margins and borderlands of culture can offer a new perspective on the cultural transformations of the late ancient world, in part by allowing a glimpse of how boundaries were circumnavigated or even redrawn.[1] This present chapter considers one such linguistic and geographic boundary, the divide between Greek and Syriac cultures in late antiquity. Between the Aramaic cultures of Mesopotamia and the Greek world of the Eastern Mediterranean, a new hybrid Syriac intellectual community developed west of the Euphrates in the fourth through seventh centuries.[2] Fergus Millar, Dan King and others have argued that

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[1] While an attention to the boundaries of culture is new, discussion of cultural transformation is now a standard narrative in scholarship on late antiquity, prima facie evidence being the title of the conference series which produced this volume, "Shifting Frontiers," or the similarly-titled monograph series by the University of California Press, "The Transformation of the Classical Heritage."

[2] The overlap of Greek and Syriac intellectual discourse (or of "Syrians in Greek intellectual dress" and vice-versa) has recently become the focus of scholarly attention in part due to larger debates over bilingualism in the ancient world. See the following recent works: Daniel King, "New Evidence on the Philoxenian Versions of the New Testament and Nicene Creed," *Hugoye* 13.1 (2010), 9-30; idem, *The Syriac Versions of the Writings of Cyril of Alexandria: A Study in Translation Technique* (Leuven, 2008); Fergus Millar, "Theodoret of Cyrus: a Syrian in Greek Dress?" in Hagit Amirav and Bas ter Haar Romney (eds), *From Rome to Constantinople: Studies in Honor of Averil Cameron* (Leuven, 2007), 105-26; idem, *A Greek Roman Empire: Power and Belief under Theodosius II 408-50* (Berkeley, 2006), 93-116; Bas ter Haar Romeny, "A Philoxenian-Harclean Tradition? Biblical Quotations in Syriac Translations from Greek," in W.J. Van Bekkum et al. (eds), *Syriac Polemics: Studies in Honour of Gerrit Jan Reinink* (Leuven, 2007), 59-76; G.W. Bowersock, "The Syriac Life of Rabbula and Syrian Hellenism," in Thomas Hägg and Philip Rousseau (eds), *Greek Biography and Panegyric in Late Antiquity* (Berkeley, 2000),

this new west Syrian intellectual community should be properly understood as the product of the mixing of Christian, Greek, and regional Semitic cultures of the Roman Near East.[3] The cultural hybridity of the nascent west Syrian community is particularly evident in its ecclesiastical literature, which proliferated and became increasingly Hellenized in the fifth through seventh centuries. By the time this process of Hellenization reached its apex, west Syrian authors had developed an elaborate system of "mirror-style of translation" which was used not only to translate Greek texts into Syriac but also to allow the literal reproduction in Syriac of Greek philosophical and theological concepts and syntax.[4]

Recent scholarly attention has turned to the questions of why this "mirror-style" developed and what its development can tell us about the relationship between Syriac and Greek cultures in late antiquity.[5] Some evidence can be found in the work of the miaphysite Bishop Philoxenos of Mabbug (d. 523), a productive Syriac author who sponsored translation projects from Greek to Syriac including a revision of the Nicene Creed and the New Testament. Philoxenos, who has long been noted as a representative midpoint in the development of this "mirror-style," is a useful entry point into an examination of the Hellenization of west Syrian literature because he provides some of the earliest comments in defense and explanation of the development. Accordingly, this chapter inquires into Philoxenos' own attitudes with regard to crossing between the linguistic domains of Greek and Syriac. Specifically, this chapter poses a new question: what was Philoxenos' attitude toward translation as an intellectual endeavor? The answer, as I will argue below, is an ironic and surprising one. Although Philoxenos was an ardent—even polemical—promoter of the need for new translation techniques and of the use of new translations, his own attitude toward translation per se was in fact ambivalent and even in a certain sense negative. This begs the question, given Philoxenos' hostility to commentary and translation, what did he intend his readers to do with his revision of the New Testament? An investigation of his intentions and of his ironic ambivalence can shed further light on a pivotal moment in the history of Syriac/Greek translation and give us a glimpse into late-antique awareness of cultural transfer and its limitations.

In pursuit of Philoxenos' understanding of translation, this chapter will cross several domains of his thought and theology. Beginning with a biographical *précis*, it turns to consider Philoxenos' sponsorship of revision and retranslation

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255-71; Bas ter Haar Romeny, *A Syrian in Greek Dress: The Use of Greek, Hebrew, and Syriac Biblical Texts in Eusebius of Emesa's Commentary on Genesis* (Louvain, 1997); and Sebastian Brock, "From Antagonism to Assimilation: Syriac Attitudes to Greek Learning," in Nina G. Garsoïan (ed.), *East of Byzantium: Syria and Armenia in the Formative Period* (Washington D.C., 1982), 17-34.

[3] See King, *The Syriac Versions*, 360-88 and Millar, "Theodoret,"108.

[4] This term is from King, *The Syriac Versions*.

[5] See the literature in footnote 2, especially Romeny, "A Philoxenian-Harclean Tradition?" and King, *The Syriac Versions*.

projects, particularly his revised Syriac New Testament, with a focus on what he thought the use of Scripture in contemplative practice should be. Lastly from that perspective, that is from the *Sitz im Leben* of Philoxenos' translation projects, this chapter concludes with some broader observations about the role of translation in Philoxenos' polemics and other writings.

## Biography

In spite of his influence in his own lifetime, Philoxenos of Mabbug is not sufficiently well known to scholars.[6] Born to Syriac-speaking parents in Persia in the mid 400s and dying under imperial exile in Thrace in 523, Philoxenos' life spanned remarkably varied geographic, political, and religious environments. Perhaps trained as a dyophysite in the School of Edessa, Philoxenos eventually adopted the miaphysite Christology and became a monastic organizer and agitator in Antioch during the Patriarchal squabbles of the 470s. During the brief miaphysite ascendency under Zeno and Anastasius, Philoxenos' dedication to the one nature theological party was rewarded by appointment to the metropolitan see of Mabbug/Heirapolis in Euphratensis. Strategically positioned on the Euphrates, Philoxenos was involved in ecclesiastical politics in both Persia and Antioch and even before his elevation had occasion to travel to Constantinople to plead the miaphysite cause. Indeed in his collaborations with Severus, Patriarch of Antioch, and his missionary interests in Arabia and Perse-Armenia, Philoxenos saw himself as part of the broad swath of late-antique Christianity stretching from north Africa to east of the Tigris.

In his role as senior leader of the opposition to Chalcedon in Syria and Mesopotamia, Philoxenos became a prolific author. Besides monastic sermons and letters, Philoxenos wrote or sponsored lengthy works of Christological polemic, including miaphysite creedal statements. Of particular note for the present study are Philoxenos' revised version of the Nicene Creed in Syriac, his gospel commentaries on Matthew, Luke and the prologue of John, and perhaps most importantly, his sponsored revision of the Syriac New Testament (the version now referred to as the Philoxenian).[7]

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[6] See the issue dedicated to Philoxenos in *Hugoye* 13.1 and 2 (2010); David A. Michelson, *Orthodoxy and the Spiritual Struggle in the World of Philoxenos of Mabbug (470-523)* (diss. Princeton Univ., 2007); and André De Halleux, *Philoxène de Mabbog: Sa vie, ses écrits, sa theologie* (Louvain, 1963).

[7] For an introduction see Sebastian Brock, "The Resolution of the Philoxenian/Harclean Problem," in E.J. Epp and G.D. Fee (eds), *New Testament Textual Criticism: Its Significance for Exegesis. Chapters in Honor of Bruce M. Metzger* (Oxford, 1981), 325-43. There is little evidence that Philoxenos commissioned a revision of the Old Testament; see R.G. Jenkins, *The Old Testament Quotations of Philoxenus of Mabbug* (Leuven, 1989) and Romeny, "A Philoxenian-Harclean Tradition?" 59-76.

**Philoxenian Translation Projects**

Philoxenos' translation projects developed out of his involvement in Christological disputes. Over time he had begun to distance himself from traditional Syriac terminology for the incarnation, including the expressions of Ephrem and the earlier Peshitta translation of the New Testament, because of imprecision and "Nestorian" tendencies. In order to supersede these two pillars of Syriac theology, Philoxenos assembled a scriptorium of sorts in Mabbug in the early 500s.[8] As De Halleux has shown, Philoxenos' efforts to import Greek theological idioms into Syriac most likely began with his commissioning of a retranslation of the Nicene and Constantinopolitan creeds (the Antiochene Synodicon) into a more literal rendering and then moved to a re-translation of the New Testament.[9]

The New Testament revision, the work of certain Polycarp, a chorepiscopus of Mabbug, was finished in 507/508. Writing perhaps just before that moment, Philoxenos gave this brief justification of the project in his *Commentary on the Prologue to the Gospel of John*:

> Those of old who translated (ܬܪܓܡ) these scriptures erred in many things, whether willfully or out of ignorance. These errors were not only in what is taught about the oikonomia which is in the flesh, but also in the rest of what is written about other doctrines. For this reason we have now taken the trouble to have the holy scriptures of the New Testament translated (ܐܬܬܪܓܡ) anew from Greek into Syriac.[10]

This new translation, like the Philoxenian revision of the Creed, sought to mirror the Greek text even to the extent of abandoning traditional Syriac idioms.

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[8] At least three surviving manuscripts can be reliably dated to Mabbug in Philoxenos' time and are most likely from this scriptorium. They are: BL Ms. Add. 14,534 (Philoxenos' *Commentary on the Prologue of John*), BL Ms. Add. 17,126 (fragments of Philoxenos' Commentary on Matthew and Luke), and part of BL Ms. Add. 14,528 (a Syriac translation of a Greek synodicon, dated to Mabbug in 501).

[9] De Halleux suggests the following three examples from the Nicene Creed for understanding Philoxenos' interests: ὁμοούσιον, which was previously rendered ܕܝ ܟ݂ܝܢܐ, was translated ܕܝ ܡܗܘܬܐ; σαρκωθέντα, which was previously rendered ܐܬܓܫܡ, was translated as ܐܬܒܣܪ; and ἐνανθρωπήσαντα, which was previously rendered ܕܐܬܐ ܒܪܢܫܐ, was translated as ܐܬܒܝܐ. See André De Halleux, "La philoxénienne du symbole," *OCA* 205 (1978), 302-3.

[10] ...ܡܢ ܩܕܡ ܐܢܫ ܕܐܬܪܓܡ ܗܠܝܢ: ܟ݂ ܕ ܫܓܝ̈ܐ ܡܢ ܥܠ ܒ ܠܐ ܒܠܚܘܕ [ܐܠܐ] ܒܡܠܝ̈ܐ. ܠܐ ܒܠܚܘܕ ܕܝ̈ܢ ܐܢܫ ܕܐ ܒܕܝ̈ܢ ܥܠ ܒܪ̈ܝ̈ܬܐ ܕܒܣܪ̈ܐ ܐ݂ܠܐ ܟ݂ ܒܡܠ ܐܝ̈ܢ ܕܟ݂ ܒ ܡܢ ܫܐܪ ܟ݂ ܟ݂ܬܝ̈ܒ. ܥܠ ܗܢ ܥܠܬ ܐ݂ܦ ܚܢ ܗܫܐ ܕ ܡܢ ܫܘܐ ܐܬܬܪܓܡ ܐܬ ܟ݂ ܐ݂ܝ̈ܢ ܕ ܟ݂ ܐ݂ܬ ܒ ܐ݂ܬ ܕ ܒ ܐ݂ܬ ܕ ܒ ܐ݂ܬ ܕ

Scholarly accounts of Philoxenos' translation projects, such as those of Brock and Van Rompay, have summed up Philoxenos' stance on Greek versus Syriac by pointing to a series of retrospective comments made very near the end of his life in 523.[11] There Philoxenos distanced himself from even the most revered of Syriac fathers, Ephrem, lamenting the imprecise language used by Ephrem and others (such as speaking of mixing): " … it is not the custom of our Syriac language to express itself in the strict phrases which are spoken among the Greeks concerning the divine inhomination and the incomprehensible union."[12] As Brock has aptly put it, this sentiment is exemplary of a broader shift from "antagonism to assimilation" in Syriac attitudes toward Greek learning.[13]

Philoxenos' role in this larger shift has been treated most recently in a detailed study by King.[14] King traces the development of the mechanical "mirror-style" translation from Greek which over three centuries came to dominate Syriac translation-texts. King notes that over time translation from Greek became "*the* principal input mechanism for Syriac theology and for the inner development of Syriac religion and culture."[15] King situates Philoxenos chronologically as a midway point of this trend, a "vital period of development" at the beginning of the sixth century.[16] The push toward philological accuracy intensified across the sixth century as Syriac translators produced even more literal translations into the early seventh century, eventually producing the Harclean New Testament. Aland and others have characterized this movement as a broad "Philoxenian-Harclean translation tradition."[17] While the contribution of the Philoxenian to the

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[11] See Lucas Van Rompay, "Mallpânâ dilan Suryâyâ. Ephrem in the Works of Philoxenus of Mabbog: Respect and Distance," *Hugoye* 7.1 (2004) http://syrcom.cua.edu/Hugoye/Vol7No1/HV7N1VanRompay.html and Brock, "From Antagonism to Assimilation," 20.

[12] ܐܠܐ ܠܐ ܗܘܐ ܕܟܢ ܠܫܘܢܢ ܣܘܪܝܝܐ ܕܐܡܪܝܢ ܥܠ ܐܠܗܘܬܐ ܩܕܝܫܬܐ ܘܥܠ ܐܚܕܘܬܐ ܕܠܐ ܡܫܬܘܬܦ: Philoxenos, *Letter to the Monks of Senun* (*CSCO* 231), 51.

[13] Brock, "From Antagonism to Assimilation," 20.

[14] Daniel King, *The Syriac Versions of the Writings of Cyril of Alexandria: A Study in Translation Technique* (Leuven, 2008), 2.

[15] King, *Syriac Versions*, 25.

[16] King, *Syriac Versions*, 359. King has subsequently stressed that Philoxenos' should not be seen as the instigator or starting point of this trend in translation technique. More likely, Philoxenos was following a pattern which had already been in play with the translations of Cyril into Syriac in the earlier part of the fifth century. See Daniel King, "New Evidence on the Philoxenian Versions of the New Testament and Nicene Creed in the Context of the History of Graeco-Syriac Translations," *Hugoye* 13.1 (2010), 9-30. Accordingly it is more appropriate to consider Philoxenos as emblematic of the development or as one of many promoters of the new style rather than its catalyst.

[17] See Barbara Aland, "Monophysitismus und Schriftauslegung: Der Kommentar zum Matthäus- und Lukasevangelium des Philoxenus von Mabbug," in P. Hauptmann (ed.), *Unser ganzes Leben Christus unserm Gott überantworten: Studien zur ostkirchlichen*

development of the mirror-style translation tradition is readily apparent, Aland has also rightly pointed out that Philoxenos' desire for philological accuracy is an insufficient explanation of his sponsorship of the new translation.[18]

Aland's study provides an apt entry point for inquiry into Philoxenos' understanding of translation as an intellectual endeavor. Aland is certainly right that too narrow a focus on Philoxenos' role in the development of mirror-style technique (especially if Philoxenos is merely seen as a transition stage toward the final goal of accurate rendering of the Greek in Syriac for all forms of Greek literature—from theology to Aristotelian philosophy) risks misunderstanding Philoxenos' particular *Sitz-im-Leben*. Aland herself offers some further observations which serve as a point of departure.

The first motivation for a new translation, one already mentioned above, was that the traditional Peshitta text was proving to be a deficit for the miaphysites in debate. Thus Aland and Brock note an example from Philoxenos' comments on the phrase from Hebrews 5:7 ("ἐν ταῖς ἡμέραις τῆς σαρκὸς αὐτοῦ"): " … in place of this they translated (ܒܟܝܢ) 'when he was clothed in the flesh,' and instead of Paul, they inclined to the position of Nestorius who cast the body onto the Word as one does a garment onto an ordinary body, or as purple is put on kings."[19] In this passage, polemical needs drive Philoxenos' call for a new translation, yet Aland is right to note that one should not stop there, but delve even deeper into Philoxenos' interest in translation via the epistemic framework which drove such Christological concerns.

Philoxenos' primary concern was with access to God through the scriptures.[20] His theology was oriented around a vision of the Christian life as pursuit of divine knowledge, an outlook deeply indebted to the contemplative system of Evagrius Ponticus (*c*.345-99).[21] Specifically, it was through Evagrius that Philoxenos understood the relationship between practice and knowledge of God. He adopted Evagrius' twofold system of spiritual progress. For Evagrius, the monk began

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*Spiritualität: Fairy v. Lilienfeld zum 65. Geburtstag* (Göttingen, 1982), 142-66 and idem, "Die philoxenianisch-harklensische Übersetzungstradition: Ergebnisse einer Untersuchung der neutestamentlichen Zitate in der syrischen Literatur," *Le Muséon* 94 (1981), 321-83.

[18] Aland, "Die philoxenianisch-harklensische Übersetzungstradition," 347.

[19] Philoxenos is assuming Pauline authorship of Hebrews. This translation is adapted from that in Brock, "Philoxenian/Harclean Problem," 329. ܡܢ ܕܠܐ ܫܠܡ ܡܢ ܒܟܝܢ ܡ ܕܐܡ ܒܟܝܢ ܠܒܫܥ ܡܢ. ܐܠܐ ܠܒܫܘܠܘܢ. ܟܐܢ ܘ ܠܡܠ ܕܐ ܕܡ ܕܡ ܕܠ ܒܫ ܕܡ ܕܠ ܒ ܕ ܐ ܕ ܕ ܕ

with ascetic practice (πρακτική/ܦܪܟܛܝܩܐ) and used it to subdue the passions and demons which troubled his soul. Once a state of stillness had been reached, the monk then turned away from bodily practice to spiritual knowing. The monk then proceeded in spiritual contemplation (θεωρία/ܬܐܘܪܝܐ) until his soul was no longer relying on any physical intermediaries and was directly receiving spiritual knowledge of God in a divine vision.

This path to divine knowledge as laid out in the Evagrian paradigm of practice and theory was foundational for Philoxenos' ascetic theology. It was also exactly this divine access point which Philoxenos saw as imperiled by the Christological controversies. If true knowledge of the Divine was ineffable, then the dyophysite explanation of the incarnation was misguided. Even worse, from a Philoxenian standpoint, its tendency toward speculation, inquiry, and debate about natures (dyophysite vs. miaphysite) threatened to distract and derail the monk from the path of Evagrian contemplation. Against his dyophysite opponents, Philoxenos took an apophatic tack and argued that correct practices would lead directly to *theoria* (spiritual knowledge through contemplation), culminating in infinite and ineffable knowledge of the divine. This approach did not leave room for discussion of Christology, a convenient result given Philoxenos' polemical aims.

As Aland notes, this apophatic element in Philoxenos' Evagrian system was operative in his New Testament revision as well.[22] Philoxenos wanted the translators to stick to a literal translation so as to avoid opportunities for human speculation or inquiry:

> For we desire to shame the one who translated [the older Peshitta translation] with this: that more than the truth which was written, he put the words which he thought were appropriate for the Syriac language or which he thought proper for God—as if he knew better than him which words were appropriate for him![23]

As an alternative, Philoxenos envisioned the right use of his New Testament translation this way:

> It is well known that life follows faith, if that faith follows scripture in a straight manner and does not change in any way either the reading of the word, or its force, or its interpretation (ܦܫܪܐ). And, just as the senses are accustomed to follow after sensory things, and also thoughts after intellectual things, so it is right for faith to agree in everything with scripture, lest it turn astray to the right or the left … Thus its foot is able to bypass every evil path which leads to erroneous doctrine and to proceed without error on the king's highway upon

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22 Aland, "Monophysitismus," 150, 163, et passim.

23 ܟܠܡ ܕܠܐ ܫܟܝܚ ܠܢ ܕܫܒܚ ܐܢܫ ܗܢܐ ܕܬܫܒܚ ܒܗ ܡܢ ܕܟܬܝܒ ܐܠܐ ܕܐܦ ܠܫܘܢܐ ܕܣܘܪܝܝܐ ܐܘ ܠܐܠܗܐ ܕܣܒܪ ܠܗ ܐܢ ܡܠܝܢ ܐܝܢ ܕܢܬܐܡܪ ܠܗ ܠܗ ܕܝܕܥ ܐܢ ܡܠܝܢ ܐܝܢ ܕܢܬܐܡܪ ܠܗ. Philoxenos, *Commentary on the Prologue of John* (*CSCO* 380), 47, see also 42, 43, 46, 50-51, 53.

> which the holy statements of the prophets, apostles, and evangelists are placed as mile markers and road signs.[24]

Scripture was the guide of faith, but its power to guide was threatened by misinterpretation under the guise of translation.[25] Philoxenos sought to safeguard the power of scripture with his new "straightforward" translation. As Aland notes, in this regard the new Bible translation was not merely an aid to lexical understanding, but a "step toward protecting the *theoria* of the Bible."[26]

## Ambivalences in Philoxenos' Attitude toward Translation

Through the work of King, Brock, and Aland, scholarship on the Philoxenian New Testament has reached a fairly robust understanding of Philoxenos' place within the larger Syriac translation tradition. For Philoxenos, scripture was a direct means to divine knowledge, hence the need for a new clear and accurate translation unobscured by human interpretation. At this point, however, there are some complications which arise at the crossroads of Philoxenos' Evagrian epistemology and his promotion of mirror-style translation from Greek. The first is (ironically!) a lexical ambiguity which Philoxenos saw little need to clarify and indeed profited from rhetorically. The second is a theological tension in Philoxenos' thought, perhaps even an antagonism which seems to be at odds with his desire for a new translation of the scriptures.

In his comments on the Peshitta translation Philoxenos not only criticized the deformations of the Biblical text, but also the way in which faulty human interpretation was able to masquerade as reliable translation. He complained: " … thus it can everywhere be recognized that they [the Peshitta translators] have not translated (ܬܥܡ) the words of the Apostle, but introduced their own opinion into

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[24] ܠܡܢܐ ܐܠܐ ܡܫܠ...ܪ,ܢ,ܐ ܕܠܐ ܫܪ. ܪ ܡܐ ܕܗܝ ܓܪ,ܫ ܒܪܫ ܪܐ ܡܢ ܐܠܐ ܕܗܝ ܣܝܡ. ܐܠܐ ܒܥܝܠ ܕܐ ܒ ܩܘܠܐ. ܪܐ ܕ,ܢ ܡ ܪܒܠܐ. ܪܐ ܫ,ܠ ܪܐ ܩܘܥ ܐ,ܣ ܒ ܒ,ܪ ,ܢ ܕ,ܢ ܐ ܕ,ܢ ܠ,ܡ ܐ ܕ,ܢ ܐ ܕ,ܢ ܐ ,ܢ ܐ ,ܢ ܐ

their translations (ܬܦܣܝܪ̈ܐ ܕܝܘܢ̈ܢ).”[27] This is the same criticism which Philoxenos applied to dyophysite Biblical commentators in the tradition of Theodore of Mopsuestia accusing them of “sending forth blasphemy against him (Christ), under the pretext of interpretation (ܦܫܩܢܐ).”[28] In fact, it becomes difficult at times to tell in Philoxenos' polemics which target he has in mind (translators or commentators), since the term in Syriac ܦܫܩ, is employed for both and enjoys a wide semantic range from “translate” to “interpret” to “comment.”[29]

Blurring the two senses of ܦܫܩܢܐ (translation and commentary) was, of course, a rhetorical aid to Philoxenos' polemical charge of dyophysite corruptions in the text of the Peshitta. From an Evagrian standpoint, Philoxenos considered speculative interpretation a danger to contemplation. For example, in his *Commentary on the Prologue of John*, Philoxenos explained:

> It is not permitted to ask how it was that he was when he had not yet become, nor how he became although he was not changed. For the act of inhomination is a wonder and it is not the custom of a wonder to be inquired after or commented upon (ܡܬܦܫܩ) … For every wonder is either above nature, or not in nature, or apart from nature, or contrary to nature. And because it is thus, it is not permitted to ask about it, nor to judge it, nor to seek it out.[30]

In this light, Philoxenos repudiated the endeavor of commentary on the incarnation altogether. Interestingly, this same rejection seems to apply to ܦܫܩܢܐ in the sense of translation as well. In his critique of the Peshitta translators, Philoxenos remarked:

> It would have been right for them to know that it is not for them to choose which words suit each of the languages. It is right for the one who is being careful to translate (ܦܫܩ) the truth to choose instead to seek those words and names which were spoke by God and by his Spirit through the prophets and apostles.[31]

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[27] ܐܡܪܬ ܐܢܐ ܒܝܢ ܠܐܝ ܟܬܒ: ܕܠܐ ܝܢ ܕ̈ܐ ܡܢ ܗܘ ܗ ܠ. ܟܕ ܝܕܥ ܠ ܡܫܬܝ ܕ̈ ܐܡܪ: ܡ ܕܬܪ̈ ܕܡܫܬܢ ̈ ܥܡ ̈ ܡ ܕܬܪ̈ ܒ: ܐܡܪ ̈ ܕܬܪ ̈ ܐ ̈ ̈ ̈

In this argument are both the theological grounds for mirror-style translation and at the same time a seeming rejection of translation, at least in the sense of moving concepts between the idioms of two languages.

On the basis of passages such as this one, it seems the Philoxenos is hostile to translation as an intellectual endeavor. A lexical survey of his works confirms the point. The verb ܬܪܓܡ and its derivatives almost always have a negative connotation in Philoxenos' usage—with the exception of when he is referring to his own translation and commentary projects.[32] This seems, however, to be precisely the rhetorical point Philoxenos wanted to make. To coin a phrase, Philoxenos' "commentaries" on the gospels perhaps should be seen as "anti-commentaries." His rejection of commentary was put forward in stark terms in the *Commentary on the Prologue of John*, where Philoxenos repudiated the methods of Theodore and his followers:

> Worldly knowledge is usually found through readings, and words, and vocabulary (which are newly taught), and through disputation and proof which is gathered from every thing. But that knowledge which is above such knowledge is divine and of the Spirit. And it is not formed out of research, nor discussion, nor probing, nor by controversy—those things which are accustomed to be at motion in every one who inquires after words and nouns![33]

While such language is a bit surprising in a work claiming to be a commentary (and even more given the fact that Philoxenos was responsible for the introduction of new Christological vocabulary into Syriac), it makes sense in light of the Evagrian epistemology which anchored Philoxenos' theology. Philoxenos hoped to stem the tide of heresy by cutting off its source: inappropriate inquiry and interpretation concerning the ineffable mysteries of the divine. In place of Theodorean scriptural commentary (ܦܫܩܢܐ), Philoxenos' commentaries presented an alternative miaphysite hermeneutic on the Evagrian model.

This convergence of opposition to commentary and translation in Philoxenos' polemics raises the final point for consideration. Behind the lexical ambiguity of ܬܪܓܡ lies a theological tension or even a theological rejection of translation. This rejection begs the question, given Philoxenos' hostility to commentary and

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ܪܠܡܪ ܐܢ ܒܗ ܐܘܡ ܕܪ ܕܪ ܐܦܠ ܪܒܠܐ. Philoxenos, *Commentary on the Prologue of John* (*CSCO* 380), 52.

[32] This usage should strike the modern reader as ironic, given Philoxenos' appropriation of the term for his own work.

[33] ,ܪܫܒ ܡܢ ܪܫܒ: ܕܪ ܒ ܐ ܒ ܐ ܒ ܐ

translation, what did he intend his readers to do with his revision of the New Testament?

In his commentaries, Philoxenos did advocate a clear method for reading scripture. With regard to paradoxes of the incarnation, he called for a strict adherence to the immediate reading of the text:

> And let them not read one thing and interpret (ܦܫܪ) another. The expressions which are said about the faith [in scripture] do not allow interpretation (ܦܫܪܐ). Thus, 'God sent his Son and he became of a woman'—as it is written, so it is to be believed and it does not admit another meaning. 'The Word became flesh and came to dwell in us'—its interpretation (ܦܫܪܐ) is its reading and faith accepts the same.[34]

Faith (and not interpretation) was the key to approaching scripture. The reader was not allowed to pick and choose what to believe: "For it is not fitting for the one says he is a disciple of the scriptures to receive some of the words which are set in them and to reject others, to believe some and to doubt the rest."[35]

Indeed, Philoxenos took his apophatic Evagrian system even further to contend that words, even the words of Scripture, could not explain the mysteries of the incarnation; they could only transmit them.[36] How can one explain the ineffable? In his commentary on John, Philoxenos concluded that it is enough to state that such a transmission happens: "The scriptures were not given to teach these things [about the incarnation], rather they were given so that we might take faith in the mysteries from them."[37] In his letter to Patricius of Edessa, a work on Evagrian contemplation which Philoxenos wrote in perhaps the same period as his commentaries, Philoxenos even warns against reading the Bible too much!

> For the knowledge of Christ is not learned in questions of words, and is not captured from many readings … For it is known that many readings create many thoughts in the soul, because the meanings which are found in the readings are

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[34] ܘܠܐ ܢܩܪܘ ܚܕ ܘܦܫܪ ܠܗܘܢ ܕܐܡܝܢ ܗܢܘ ܕܐܡܪܝܢ ܥܠ ܗܝܡܢܘܬܐ ܕܠܐ ܡܫܬܘܩܠ ܦܫܪܐ. ܟܕܝ ܐܡܪ ܐܠܗܐ ܫܕܪ ܒܪܗ ܘܐܬܒܪܝ ܡܢ ܐܢܬܬܐ: ܐܝܟ ܕܟܬܝܒ ܗܟܝܠ ܢܗܝ ܠܡܗܝܡܢ ܘܠܐ ܡܩܒܠ ܐܚܪ. ܟܠܡܬܐ ܐܬܒܪܬ ܘܫܪܝܬ ܒܢ: ܦܫܪܗ ܗܝ ܩܪܝܢܗ ܘܡܩܒܠ ܗܝ ܩܪܝܢܗ ܘܡܗܝܡܢ ܗܝ. Philoxenos, *Commentary on Matthew and Luke* (*CSCO* 392), 78. English translation adapted from Philoxenos, *Commentary on Matthew and Luke* (*CSCO* 393), 67.

[35] ܠܐ ܫܦܝܪ ܠܡܢ ܕܡܬܠܡܕ ܗܘ ܒܥܢܝܢ ܡܠܝܢ ܕܡܢ ܡܠܝܢ ܩܠܝܠܐ ܢܩܒܠ ܘܢܫܕܐ ܡܢ ܗܢܘ ܕܒܗ ܡܫܬܘܩܠ ܘܠܐ ܡܫܬܘܩܠ ܠܡܗܝܡܢ. Philoxenos, *Commentary on the Prologue of John* (*CSCO* 380), 134.

[36] Philoxenos compared this transmission to that of Paul's preaching which is able to draw its hearers to faith without words of human wisdom. See Philoxenos, *Commentary on the Prologue of John* (*CSCO* 380), 188.

[37] ܐܠܐ ܡܫܬܘܩܠ ܐܝܟ ܕܟܬܝܒ ܗܘ: ܠܐ ܠܡܕܒ ܕܢܫܬܘ ܒܗ ܡܢ ܡܠܝܢ ܗܠܝܢ: Philoxenos, *Commentary on the Prologue of John* (*CSCO* 380), 116.

> variable … For this reason, I think, it is not necessary that the solitary continue in many readings. For they do not create stillness in him, but trouble. And they do not collect [his mind], but distract it.[38]

Of course Philoxenos was quick to explain that it was good to read the Bible in small amounts and in the right way. He explained what function scripture served:

> And if you say to me that it is written by one of the blessed ones [Evagrius], that readings of the scriptures collect the thoughts, I say that also this is true. It does collect the thoughts of he who answers the world or he who turns toward the world and of he whose whole self is apart from himself. Thus it is necessary for one to read in the scripture for a short time until one becomes conscious that one's thought has been collected and then one should turn from reading to purity of prayer lest in reading one seek the knowledge and interpretation (ܦܫܪܢܐ) of the words and fall again into the same state of distraction. Instead, one should seek the spiritual *theoria* of the words, for in that alone does the mind take delight.[39]

Here the role of scripture in directing contemplation was stressed, but even in this case, Philoxenos was much more concerned with steering Patricius away from the real dangers of scripture reading to monastic life.

Philoxenos elaborated these dangers in a passage which must reflect overtones of the monastic world Philoxenos knew. This was an asceticism overly troubled by theological controversy and by too many exegetes and interpreters (including Philoxenos himself?):

> For not everyone reads the scriptures well or with knowledge, so there is one who reads the scriptures in order to recite it, and another to memorize it, and another desires to learn interpretation (ܦܫܪܢܐ), and another to learn exercises of the knowledge of the soul, and another disputation with heretics, and another is moved by passion for learning—though to tell the truth it is

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[38] ܘܐܦ ܐܢ ܬܐܡܪ ܠܝ ܕܟܬܝܒ ܗܘ ܒܚܕ ܡܢ ܩܕܝܫܐ ܕܢܣ ܕܩܪܝܢ ܟܬܒܐ ܡܫܟܚ ܐܦ ܗܢ ܕܩܪܝܢ ܟܬܒܐ ܡܫܟܚ ܓܒ ܗܢ.... ܩܪܝܢ ܐܢ ܐܝܟ ܕܡܥܢܐ ܕܡܫܟܚ ܐܢ ܕܡܦܢܐ ܠܥܠܡܐ ܐܘ ܕܡܬܦܢܐ ܠܥܠܡܐ ܘܕܡܢ ܕܟܠܗ ܢܦܫܗ ܡܦܪܫ ܡܢ ܢܦܫܗ.... ܐܝܬ ܡܝܢ ܕܢܣ ܢܩܪܐ ܒܟܬܒܐ ܙܥܘܪܐ ܕܥܕ ܕܬܬܟܢܫ ܠܗ ܕܐܬܟܢܫ ܟܪܟ ܕܢܣ ܢܩܪܐ ܡܢ ܩܪܝܢ ܟܬܒܐ ܠܬܕܟܝܬܐ ܕܠܡܐ ܢܒܥܐ ܒܩܪܝܢ ܟܬܒܐ ܠܡܦܫܩ ܐܘ ܕܠܡܐ ܢܒܥܐ ܠܡܝܠܦ ܦܫܩܢܐ ܐܘ ܕܢܣ ܢܩܪܐ ܠܡܝܠܦ ܡܠܦܢܐ ܕܡܠܦܢܘܬܐ ܐܘ ܕܢܣ ܢܬܬܪܓܙ ܒܬܪܥܬܐ ܕܡܠܦܢܘܬܐ ܐܦ ܐܢ ܠܡܐ ܕܐܡܬ ܐܡܪ ܐܦ ܗܟܢ ܐܝܬ ܐܦ ܗܟܢ ܒܟܠ ܓܒ. ܠܐ ܟܠ ܐܢܫ ܩܪܐ ܟܬܒܐ ܒܫܦܝܪ ܐܘ ܒܥܪܘܬܐ ܐܦ ܠܐ ܟܠ ܡܢ ܕܩܪܐ ܟܬܒܐ ܠܡܦܫܩ ܐܘ ܠܡܐ ܢܒܥܐ ܠܡܝܠܦ ܦܫܩܢܐ ܐܘ ܠܡܐ ܢܬܬܪܓܙ ܒܬܪܥܬܐ ܕܡܠܦܢܘܬܐ. Philoxenos, *Letter to Patricius* (*PO* 30.5), 808, §61-812, §65.

[39] ܐܝܟ ܕܐܡܪ ܠܝ, ܡ, ܕܟܬܝܒ ܐܝܬ ܒܚܕ ܡܢ ܩܕܝܫܐ ܕܐܝ, ܕܟܬܒܐ ܕܩܪܝܢ ܟܬܒܐ ܡܫܟܚ ܐܦ ܐܢ ܐܡܪ ܐܢ ܕܐܦ ܗܢ ܕܩܪܝܢ ܟܬܒܐ ܡܫܟܚ ܐܢ ܕܡܥܢܐ ܕܡܫܟܚ ܐܢ ܕܡܦܢܐ ܠܥܠܡܐ ܐܘ ܕܡܬܦܢܐ ܠܥܠܡܐ ܘܕܡܢ ܕܟܠܗ ܢܦܫܗ ܡܦܪܫ ܡܢ ܢܦܫܗ. ܒܗܝ ܐܢ ܐܝܬ ܠܗ ܠܡܢ ܕܩܪܐ ܟܬܒܐ ܠܡܦܫܩ ܐܘ ܠܡܐ ܢܒܥܐ ܠܡܝܠܦ ܦܫܩܢܐ ܐܘ ܠܡܐ ܢܬܬܪܓܙ ܒܬܪܥܬܐ ܕܡܠܦܢܘܬܐ ܐܦ ܐܢ ܠܡܐ ܕܐܡܬ ܐܡܪ ܐܦ ܗܟܢ ܐܝܬ ܐܦ ܗܟܢ ܒܟܠ ܓܒ. ܠܐ ܟܠ ܐܢܫ ܩܪܐ ܟܬܒܐ ܒܫܦܝܪ ܐܘ ܒܥܪܘܬܐ ܐܦ ܠܐ ܟܠ ܡܢ ܕܩܪܐ ܟܬܒܐ ܠܡܦܫܩ ܐܘ ܠܡܐ ܢܒܥܐ ܠܡܝܠܦ ܦܫܩܢܐ ܐܘ ܠܡܐ ܢܬܬܪܓܙ ܒܬܪܥܬܐ ܕܡܠܦܢܘܬܐ. Philoxenos, *Letter to Patricius* (*PO* 30.5), 812, §65. See Philoxenos, *Commentary on the Prologue of John* (*CSCO* 380), 188.

> vainglory. And in any one of these goals or in all of them, the mind reads until it is looking outside [itself]. For what need does a solitary have for what the interpretation (ܦܫܪܢܐ) of a certain word is or for what the meaning of such-and-such phrase is? Walk the path before you and stand in the place of [spiritual] knowledge and you will have no need for questions about it [spiritual knowledge]. If then you do ask concerning it, it will be known that you stand outside of the place [of knowledge]. For the eye of the body does not ask but it sees the sun [directly], and the mind's eye does not investigate and then see spiritual knowledge, rather it [works] just the same as when the eye in the sun comes upon its sight and is illuminated by it … For it is sufficient for the solitary that he should only wonder at the expression of scripture. And if it is a commandment, he should keep it. And if it is a story, he should know who told it and for what reason. And if it is a parable, he should not allow himself the liberty to interpret it (ܠܡܦܫܪ). And if it is a mystery, it suffices for him to know it and not to reveal it … For we can take only a word on these things from the scriptures and not the knowledge about them; for all the words of the scriptures are given to the hearing of faith.[40]

This was as much as Philoxenos was willing say about how scripture should be used. For the Philoxenian monk, arriving at divine knowledge through scripture was both profoundly limiting and open to infinite ineffable possibilities. As Philoxenos explained in the *Commentary on the Prologue of John*:

> The nature of God is not enclosed in [earthly] natures, as if one might seek and find him in them or [even] in the Holy Scriptures. [Human] knowledge about him is put into the [earthly] natures and faith in him is put into the scriptures. Thus he is known by natures and believed through scripture. And we have only [human]

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[40] ܠܐ ܐܝܟ ܕܐܝܬ ܒܗܝܢ ܡܕܝܢܬܐ ܕܥܒܕ ܐܢܫ ܕܐܝܬ ܒܗܝܢ ܡܕܝܢܬܐ ܐܘ ܒܟܠܗܝܢ ܐܠܐ ܕܡܬܒܥ ܐܢܫ ܕܐܝܬ ܒܗ ܒܗܝܢ ܡܕܝܢܬܐ ܐܘ ܒܟܬܒ̈ܐ ܩܕܝܫ̈ܐ. ܐܠܐ ܒܗܝܢ ܡܕܝܢܬܐ ܣܝܡ ܐܢܫ ܕܐܝܬ ܒܗ ܒܗ ܡܕܝܢܬܐ ܐܘ ܒܟܬܒ̈ܐ ܩܕܝܫ̈ܐ ܐܝܬ ܒܗ ܡܕܝܢܬܐ ܐܠܐ ܕܡܬܒܥ ܐܢܫ ܕܐܝܬ ܒܗ ܒܗ ܡܕܝܢܬܐ ܐܘ ܒܟܬܒ̈ܐ ܩܕܝܫ̈ܐ. ܗܟܝܠ ܕܡܕܝܢܬܐ ܐܬܝܕܥ ܒܗ ܘܒܟܬܒ̈ܐ ܐܬܝܗܒ ܒܗ ܗܝܡܢܘܬܐ. ܘܒ̈ܗ ܐܢܚܢ ܠܚܘܕ ܐܝܬ ܠܢ ܒܗ ܐܠܐ ܡܕܝܢܬܐ ܘܟܬܒ̈ܐ ܩܕܝܫ̈ܐ. ܐܠܐ ܐܝܟ ܕܐܝܬ ܠܢ ܒܗ ܡܕܝܢܬܐ ܘܟܬܒ̈ܐ ܩܕܝܫ̈ܐ ܐܝܬ ܠܢ ܒܗ ܡܕܝܢܬܐ ܐܘ ܒܟܬܒ̈ܐ ܩܕܝܫ̈ܐ ܐܝܬ ܠܢ ܒܗ ܡܕܝܢܬܐ ܘ

> knowledge about him and faith. But he, himself, we leave to rest with his essence, above all silence.[41]

For Philoxenos, the vision of God was approachable in stillness, but not through human understanding of scripture. Thus the Philoxenian translation of the New Testament was not intended to augment human understanding. It was, when read properly, part of a longer apophatic path to a supernatural and direct revelation of God.

## Conclusions

By way of conclusion, we may now return briefly to the broader questions posed at the beginning of this chapter. We have seen that Philoxenos' attitude toward translation as an intellectual endeavor for transporting meaning across cultural divides was ambivalent, with Philoxenos disapproving of how a translation could distort the text through over-assimilation. In this light, we are obliged to reconsider the justification given by Philoxenos which we consulted earlier. He lamented " … it is not the custom of our Syriac language to express itself in the strict phrases which are spoken among the Greeks concerning the divine inhomination and the incomprehensible union."[42] Even in Philoxenos' most concise explanation of the need for a new mirror-style translation there are attendant ambiguities. In this sentence, Philoxenos proposes a neologism ("inhomination") and at the same time stresses that no terminology will be able to adequately explain "the incomprehensible union." This is the little noticed paradox of the role of translation in Philoxenos' polemics.[43] His place in the history of the Hellenization of Syriac theology is well-documented by his work as a Biblical commentator and translation sponsor. And yet, even in these endeavors, his Evagrian epistemology led him to oppose dynamic translation in the sense of interpretation and to warn against excessive scripture reading.

So how did Philoxenos conceptualize his new literal translation of the New Testament? It was a means to the direct revelation of God. The translation of the text from Greek into Syriac was important, but not for the sake of rendering the Greek text comprehensible. What Philoxenos desired was to provide Syriac readers with the same direct access to the paradoxical expressions of

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41 ܠܐ ܡܫܟ̈ܚ ܒܗܝ̈ܢ ܕ ܫܒ̈ܚ ܗ̈ܝ ܕ ܐܪܥܐ: ܐܝܟ̈ܢܐ ܕ ܟ ܒܗ ܒ̈ܢ ܕ ܫܘܬ̈ܦ̈ܐ: ܐܠܐ ܒܗ̈ܝ ܕ ܒ̈ܢ ܕ ܐ̈ܝ ܕ ܐ̈ܝ ܕ ܐ̈ܝ

the incarnation enjoyed by Greek readers. In this regard it was not a dynamic equivalency which was sought, but an automatic and mechanical rendering of the original which, in a sense, left the text in its original, and incomprehensible, state. The text was not destined for further elaboration but instead to serve its function as a direct conduit on the path of Evagrian *theoria*.

This understanding of the New Testament revision which Philoxenos promoted sheds new light on the development of the "mirror-style" technique. The Philoxenian New Testament should not be described as trying to bring the Greek text into a Syriac intellectual milieu. Philoxenos' endeavor moved in the opposite direction. From his perspective, the Philoxenian was a *revision* of the existing Syriac text which sought to bring the Syriac text (and by extension the Syriac reader) into the realm of Greek thought. The Philoxenian did not cater to the Syriac reader, its aim was to allow the Greek text to dictate its own linguistic terms. Indeed, Philoxenos was less interested in making the Greek text intelligible, his limited aim was to integrate the reader into the world of Greek incarnational vocabulary. In short, the translation was not designed to be an assimilation of a Greek text for Syriac readers but an assimilation of Syriac readers into the conceptual world created by Greek texts. In this regard, his attitude toward New Testament translation was something like the concept of interchangeable parts. Those who could not use the Greek text directly for contemplation could use a text which for all extents and purposes was the same thing, *incomprehensible statements and all*.

It is here in Philoxenos' vision for his translation that then we catch a glimpse of one of the many paradoxes which marked the hybrid culture of the west Syrian intellectual community in late antiquity. Living within the cultural margins of both Mesopotamia and the Eastern Mediterranean, Philoxenos wrote in Syriac for Syriac audiences but under the shadow of a body of Greek Christian literature (both biblical and patristic) which increasing held the high ground of tradition, cultural authority, and categorical sophistication.[44] It was for this reason that Philoxenos sought a translation which did not "translate" (i.e. interpret) and a Syriac text which was still conceptually and grammatically the Greek.

## Postscript

The legacies of this shared intellectual space cannot be treated further here, but it is interesting to note that even after the Christological controversies and Islamic

[44] He was, of course, not the only one whose thought was shaped by this shared intellectual space. For example, one of Philoxenos' protégés successfully employed a dialectical form of polemics against theological opponents to the east in Mesopotamia. Brock notes the success of Simeon of Beth Arsham as a dialectician and more importantly the role of Jacob of Edessa in the interaction of Greek and Syriac, see Brock, "From Antagonism to Assimilation," 21 et passim.

conquests had detached the west Syrian churches and monasteries from their Greek counterparts, the conventions of the "mirror-style" and the new Syriac terminology derived from Greek philosophy and theology continued to enjoy an authoritative status within West Syrian intellectual circles. In fact, it was these tools for navigating a hybrid environment which eventually came to play a prominent role in the transmission of Greek philosophy through Syriac into Arabic, a story which has been told elsewhere.[45]

[45] For this development see Brock, "From Antagonism to Assimilation," among others.

# Chapter 2
# Negotiations with Death: Ephrem's Control of Death in Dialogue

Ellen Muehlberger

Ephrem the Syrian, a writer whose life spanned the better part of the fourth century, spent that life on the most unstable of shifting frontiers: the West Asian border between the Roman and the Persian Empires. For the majority of the first six decades of his life, Ephrem resided in Roman Nisibis, a town besieged by the Persian leader Shapur II three times: in 338, 346, and 350. This border struggle involved the lives of many regular Romans, but even the emperor Julian came to clash with Shapur and died. His successor, Jovian, found the struggle too much, and resolved the conflict temporarily by ceding several towns to Persian rule. Nisibis was one of them, and some time after the relinquishment of Nisibis to Shapur in 363, Ephrem and other Nisibene Christians moved from that city, many of them eventually making their way to Roman Edessa, 100 miles to the west. Though Ephrem is the subject of an extensive Byzantine hagiography, his life, in a historical sense, is difficult to know beyond these bare sketches: the best resources that we have for determining the circumstances in which he lived are the texts, both hymns and metrical poems, that Ephrem left behind.

One collection of texts, known as the *Nisibene Hymns*, might allow us to draw some information about the events in Ephrem's life at the height of the conflict between Romans and Persians. The *Hymns* clearly have as their focus the experiences of Ephrem's community as it lived through the sieges and loss of Nisibis—details that could illumine Ephrem's theology as well as his community's later traditions. However, there are several reasons why the *Nisibene Hymns* remain unyielding as a historical source. First is the slight manuscript tradition: the collection exists in its fullest extant form in only one sixth-century manuscript, British Museum add. 14572. There are several excerpts from the collection available in other, primarily liturgical, manuscripts, but this is the only one that contains in order all those texts which are now classed as the *Nisibene Hymns*.[1] The second, and deeper, issue lies with the lack of coherence among the texts themselves. It was the first editor of Br. M. add. 14572, Gustav Bickell, who gave the collection its name, but even as he dubbed it "Carmina Nisibena," he noted that the unity of the works gathered in the

[1] See the introduction in E. Beck, *Des heiligen Ephraem des Syrers Carmina Nisibena: Ier Teil*, CSCO 218/Scriptores Syri 92 (Leuven, 1961), i-v, for a discussion of the MS history.

manuscript was less than obvious.[2] Scholars since Bickell have divided the *Hymns* into two portions, neither of which seems on the surface to have much to do with the other. The first section, often called the "historical" section, comprises *Hymns* 1-34; with the exception of four hymns, these all survive in Br. M. add. 14572. And though they have been called "historical," that tag suggests they are documentary, which they are not. Their author was primarily concerned with rendering a poetic and pathetic portrait of the destruction wrought by the multiple sieges of Nisibis, his border town, and he saw in those sieges a confirmation, or better, an expansion of biblical events. Thus, the trials of Nisibis recounted in this section of the *Hymns* are many, narrated without notice of dates or even historical causality. Ephrem was more intent upon rendering the depth of sadness and trouble the city experienced in the sieges than he was upon recording the details of the sieges for posterity. The texts in this section have an alternate aim, working together to praise the valor of the city of Nisibis, who speaks in many of the *Hymns*, and whose valor is matched by the valor of her Christian leaders.[3]

The second portion of the extant *Hymns* begins at *Hymn* 35 and continues through the end of the *Hymns* included in Br. M. add. 14572. These *Hymns* are even less directly connected to historical events than those of the first part. They are mostly dialogues between imagined characters and read like nothing so much as a script, presenting the musings of Satan and Death in conversation among other actors. The second editor of the *Nisibene Hymns*, Edmund Beck, called these latter *Hymns* the "poetic" or "literary" section, but the tag is problematic, for it obscures the fact that the second section is not the only part of the document with a poetic style. Indeed, both sections of the *Nisibene Hymns* have literary elements, and neither is a straightforward history. At the same time, however, both sections do have historical information to convey to a curious reader. What is more, though they seem to have little relationship to one another, these two parts of the text preserved in Br. M. add. 14572 do form a logical and literary whole.

To demonstrate the coherence of these two parts, I will enlist an unlikely ally—Julia Kristeva, the feminist theoretician, and specifically her work on a process she has called "abjection." In *Powers of Horror: An Essay on Abjection*, Kristeva lays out a suggestive description of humanity's instinct of repulsion and the role it plays in the development and maintenance of the self. She notices the instances when human beings are confronted with decomposition, decay, or dissolution of boundaries and react by pulling away: we avoid excrement, we stand speechless in the presence of a corpse, or in Kristeva's unique rendering, we gag at the sight of "that skin on the surface of milk—harmless, thin as a sheet of cigarette paper,

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[2] G. Bickell, *S. Ephraemi Syri Carmina Nisibena* (Leipzig, 1866), cited in Beck, *Carmina Nisibena*, i.

[3] The final eight hymns of this section address the situations of the cities of Edessa and Harran. Their poetic register is quite similar to the *Hymns* directly related to Nisibis.

pitiful as a nail paring."[4] As the example of the seemingly innocuous milk shows, the sense humanity has in these situations is different from mere disgust. It is something more, a response motivated by the human reliance on categorization and revulsion at those things which cannot fit. This, she says, is abjection. As Kristeva explains,

> It is thus not lack of cleanliness or health that causes abjection but what disturbs identity, system, order. What does not respect borders, positions, rules. The in-between, the ambiguous, the composite.[5]

Thus, when human beings encounter things that are not classified, which cannot be classified, we react with deep horror and seek to remove ourselves from that which is undifferentiated.

Though the examples above are physical, abjection is also a psychological process in Kristeva's conception. Within a psychoanalytic framework, she reasons that abjection is the process of casting off that which does not constitute the subject. How am I to compose myself except by expelling that which (sometimes quite literally) decomposes? Separating ourselves from what is found to be abject is how we create, and preserve, ourselves. What is more, the cycle of composing and decomposing is never quite finished. Opposed to the subject, the abject is unruly and unstable. As Kristeva warns, once cast out, "the abject does not cease to challenge its master" "from its place of banishment" (2). It continues to ask for readmittance, extends its reach back into the subject, and the state of abjection, Kristeva explains, is "at its height when the subject" finally "finds abjection in itself" (5). As a result, there is a rhythm to abjection. It does not happen once for all, but necessarily happens again and again. Any sustainable self must continually enact the process of abjection: surrounding and containing, then casting away and negating, that which threatens its existence. For Kristeva, the mode and method we have for understanding the role of the abject lies in a surprising trove. Instead of looking at a life narrative for moments of abjection, she looks at narrative itself. "The signifier of the abject is none but literature" (5). Thus, when Kristeva exemplifies the abject in ways that are not physical, she turns to the novelists of the European canon, watching in their character development and in their dialogues for signs of this unruly and dangerous double of the self.

Kristeva's idea of abjection was the lens that allowed me to discern a relationship between the two seemingly different parts of the *Nisibene Hymns*. The idea of abjection—that which compels us to set boundaries, to keep things in and keep things out, which concerns dissolution and destruction, and whose cast-off product returns again and again—gave me a way to see how the disparate parts of Br. M. add. 14572 could make a whole. The first section of the *Nisibene Hymns* displays

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[4] J. Kristeva, *Powers of Horror: An Essay on Abjection*, trans. L.S. Roudiez (New York, 1982), 2.

[5] Kristeva, *Powers of Horror*, 4.

the threat of destruction and loss, the heightened experiences of those Christians under siege in Roman Nisibis, in terms that focus on containment and borders. Ephrem worried over the integrity of the walls of the town, not surprisingly, but he also worried about the unity of the Christian community inside the walls. The *Hymns* about the besieged city are a portrait of a community confronted in stark terms with its own imminent dissolution, from within or from without. In the latter section of the work, Ephrem moved to the imagined discourses, and his was one of the first pieces of Christian literature to bring Death to life as a character, with his own intentions and perspectives.[6] In this way, Ephrem takes what could be termed "abject"—the unpredictable and disconcerting threat of death and the dissolution of the community—and transforms it into a subject, the character Death. In these dialogues, Death shows himself to be an overwhelming force, but he is fair and righteous. Respecting God, he conforms to the Christian narrative of the end times. For as a literary subject, Death even goes through a flawed, and fatal, process of abjection. In these last *Hymns*, Death comes to an end when he takes the dying Jesus into Sheol—a place of the dead that Ephrem alternately represents as Death's belly, womb, or gut. Jesus bursts forth, brings out all other dead with him, and leaves Death himself an empty shell. Thus, the *Nisibene Hymns* trace a history, from an indiscriminate death that threatens the community, to the docile character of Death, himself then torn and disintegrated by that which opposes him. Though this trajectory is expressed in poetic terms, Ephrem's artistic sketches allow us to observe his management of upheaval and destruction on the volatile border between Rome and Persia.

## Dissolution

The first section of the *Nisibene* Hymns centers on Ephrem's portrait of a community under siege, and Ephrem predictably focuses on the defenses of the city and the reinforcement of its walls. The *Hymns* in Br. M. add. 14572 open with a complex biblical allusion that centers on the importance of structural

[6] Cyril of Jerusalem came very close to treating death as a personified being in one of his catechetical lectures, saying in one portion that Jesus willingly went down not to death, like Jonah, but "to the idea of the whale of death" (τὸ νοητὸν τοῦ θανάτου κῆτος; *Cat.* 14.17) but also later attributed to death actions like "having fled" and "being disturbed" (*Cat.* 14.19). Though Cyril's version of death is not quite as well-rounded as a character compared to Ephrem's, it is important to note that Ephrem was not the sole fourth-century writer to personify death. Later Syriac writers also followed Ephrem's lead, creating other dialogues for Death and Satan. See G.J. Reinink's "Ein syrisches Streitgespräch zwischen Tod und Satan," 135-52, for these dialogues specifically, and the other essays in the same volume, Reinink and H.L.J. Vanstiphout (eds), *Dispute Poems and Dialogues in the Ancient and Mediaeval Near East: Forms and Types of Literary Debates in Semitic and Related Literatures* (Leuven, 1991), for the broad genre to which Ephrem's dialogues belong.

containment: the besieged city of Nisibis herself praises the God who promised Noah protection "from the rushing waters of the flood." Throughout the hymn, as the city pleads her case, she collapses biblical and contemporary time. Her walls are like the walls of Noah's ark, and both are threatened from the outside: Noah by the flood, Nisibis by Persian soldiers. Weak against the powers that threaten to inundate and overwhelm, both the ark and the city need protection, but the city has an even stronger case for desperation. While Noah only had water to fear, the city is surrounded by "siege mounds, arrows, *and* waves."[7] Thus the city prays that though "the flood attacks and rushes against our walls," the "hidden foundation of my confidence will bear up my walls" (1.8).

It is surprising, though, that Ephrem does not assume that containment is the equivalent of safety. The type of the besieged city, Noah's ark, creates in its hold a dangerous situation for Noah himself: according to Ephrem, Noah stands "between the mighty waves outside and the destroying mouths inside."[8] He must keep the ark intact to preserve himself and the animals from drowning but, as Ephrem notes, he is locked up in tight quarters with animals, some of them carnivorous. In an analogous way, the strong barrier between the inhabitants of the city and the army outside offers some protection, but it does not stop the force of death. Rather the hermetically sealed Nisibis, so long as her seal is preserved, is in a precarious situation: the seal around the city hastens death. Ephrem recounts, again in the voice of Nisibis, how the siege kills. Here, the city laments her state:

> Just like wax that melts in the fire, the bodies of my sons liquefy
> in the heat and in the thirst that resides in my fortresses …
> Their bodies melted, liquefied by the heat—
> The thirsty gave back, watering the earth with the putrefaction of their bodies.
> The fortress that killed its inhabitants with thirst
> came to drink the flow from the carcasses that melted from thirst.[9]

Both containment and dissolution come together here in a disturbing image: besieged, the city of Nisibis kills her inhabitants through lack of water, and yet their bodies dissolve to "water the earth." Those who have died of thirst are melting—they literally dissolve in the heat inside the city walls, where dead bodies should not be. Thus the impenetrability of the city, that quality which should make those inside its walls secure, causes it to hold death and decomposition instead.

The containment of Nisibis creates another problem: it is impossible to establish order, whether inside or outside the city, without the ability selectively to pass the boundary of the walls. Again speaking in the voice of the city in *Hymn* 9, Ephrem links the muddled state to the influence of Satan. The regular functioning of a city

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7 *Nisibene Hymns* 1.3 (ed. Beck [CSCO 218/Scriptores Syri 92], 2, emphasis mine).

8 *Nisibene Hymns* 1.10 (ed. Beck [CSCO 218/Scriptores Syri 92], 5).

9 *Nisibene Hymns* 10.3, 10, 11 (ed. Beck [CSCO 218/Scriptores Syri 92], 29).

is dependent on exchange, on importing and exporting, inclusion and exclusion. As the city is shut up for the siege, it should be pure, but remains defiled.

> The forests outside me—look, my Lord, how they have been mown down!
> My breasts within—see, Lord, how they are insufficient to sustain my beloved [children]!
> With blades they have clipped my outside wings, and the fire once again kindles within my breasts the incense of burnt offering.
> In the country, those who bow to the sun killed my sons,
> and in the fortified city, those who serve Baal sacrificed oxen—my sheep along with my children!
> In my fields, there is wailing; in my courts, lamentation; in my vineyards, there is terror; in my streets, confusion.
> Who will be enough for me?
> The Evil One, who contrived and perturbed with his words, made trouble within, so that my inward part is entirely like my outward part.[10]

From the perspective of the city, there is death and destruction outside her walls, in fields and vineyards, as is to be expected, but there is also destruction within, in courts and streets. That destruction has two aspects. She is unable to feed her inhabitants, and there are religious factions that introduce impurity to the "inward part" of the city, making it confused like the "outward part." Because of the impenetrable wall, none of these instances of mixing and confusion can be rectified. Ephrem's characterization of Nisibis is of a city disordered and disheveled, with no means of righting herself.

The first section offers a hopeful end to this situation, but it is an unexpected one. The *Hymns* have a positive description of the inevitable breach of the city walls. From what is written in *Hymn* 2, we can see that there does come a time when a break occurs, despite the city's efforts at holding off the siege. In Ephrem's poetic interpretation of the breach, the moment when soldiers and the citizens see one another is a moment of revelation.

> Who has recognized that the breach is like a mirror? Two sides looked at it; it served both those on the inside and those on the outside. They saw it as with their own eyes, the power of breaking and repairing—they saw him who breaks through and repents again. Those on the outside saw his force; they marched away and did not stay until evening. Those inside saw his help; they believed and did not come to an end.[11]

This suggests that a breach did finally occur and that both sides saw the other, metaphorically and perhaps literally, through that break in the walls. We can take

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[10] *Nisibene Hymns* 9.4-8 (ed. Beck [CSCO 218/Scriptores Syri 92], 26-7).

[11] *Nisibene Hymns* 2.17 (ed. Beck [CSCO 218/Scriptores Syri 92], 10).

this as a historical note, of course, but, in the terms of abjection, it is also more. A breach can kill, but this one saves the city, at least for the moment, allowing the demonstration of the power of God. In the exchange of glances between soldiers and citizens, the citizens gain the upper hand: they show themselves, and the soldiers retreat. Seeing the soldiers' retreat, those inside the city gain what they had been lacking—faith. Even without the end of the siege, there is hope, a theme which also colors Ephrem's estimation of the suffering the city is experiencing. All seems confused and mixed, Nisibis herself appears to trust that what is right will be revealed. She offers the following cryptic consolation in *Hymn* 4:

> A joy resides in hurt, grief lies buried in it;
> A grief resides in profit, it is a fount of joy in that new age.
> Woes lie buried in the good that my persecutor has acquired, and for this reason, I am merry!
> A good lies hidden for me in the woe I have acquired from him.[12]

In this way, the central worry of the first section of the *Hymns*—breaking a seal of integrity—actually comes to be the city's saving grace, a resolution of its struggle with threatening forces, both external and internal.

## Dialogue: Death and Satan

The tone and concerns of the second section of the *Nisibene Hymns*, that portion which multiple editors have labeled "poetic," are markedly different from those of the first section. In it, there are no references to sieges, to walls, to destruction, or to dissolution. Instead, one character already long extant in Christian discourse, namely Satan, is brought to have an extended dialogue with Death, whom Ephrem has made into its own entity. Over the course of this section, Death debates and defeats Satan with multiple lines of argumentation. Their conversations include a fair amount of one-upsmanship. For example, in *Hymn* 53, Death and Satan argue about who can claim to have killed more biblical figures. Bragging about numbers is one approach, but Death and Satan also come to argue for their own superiority to one another on the basis of their relationship to God. Satan taunts Death by pointing out that Death works on license from and with the power of God. Consequently, Satan reckons that he is superior to Death, because he must accomplish his tasks without this help (52.8). Satan is also quick to point out that those multitudes who serve him choose to do so, implying that his opponent Death works by necessity or coercion (52.9, 12-13). In Satan's mind, he is stronger than Death, for he works alone. As a freelancer, he succeeds or fails by his own initiative and skill.

Death, on the other hand, relishes his role as God's functionary; he is the one who embraces the truth and follows the rule, doing his work in the open (52.17).

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[12] *Nisibene Hymns* 4.13-14 (ed. Beck [CSCO 218/Scriptores Syri 92], 16).

His arguments for superiority depend on his alignment with God and the approval of God. Consider how Death responds to Satan in *Hymn* 55:

> Satan: All your persuasion is porous, tyrant Death! There is nothing pleasing to me in anything you have said.
>
> Death: When have you ever been pleased with the truth? There is a chasm between you and truth, you Liar. I am righteous all my days—I'm no repenter! I'm the one who rescues the children of humanity from you—me![13]

Death makes a two-pronged argument. First, he is fair, truthful, and righteous. Secondly, his work allows humanity to escape from Satan. Satan attempts to yoke the two back together, but Death reiterates his dominance over Death's work:

> Satan: I am aware, Death, that are half of me, and I am half of you. If half of me [wants to] repent, it repents, but I am immovable.
>
> Death: I am your partner in portion, but not in sin; the dead are mine, but the killers are yours—you made them sin!
>
> Satan: My cunning weeps for itself as I debate you; my skills mourn for me, since I have encountered you.
>
> Death: Diviners and augurers and magicians with all their faults: the fire that you kindled in the world, I have extinguished in Sheol.[14]

Ephrem portrays Death the character as the victor in these debates, and the cause of his victory is significant. Death wins because of his role as God's fixer; he is the one who cleans and contains the mess created by the independent Satan and his works. The subject who overcomes Satan does it by being docile in the face of order. In his study of this dialogue, Gary Anderson describes Death as "a just and faithful servant in the larger divine economy."[15] That is to say, Satan ultimately loses to Death because Death plays by the rules.

This does not mean that Death wins in the last moment. Though Death is just and bests Satan with his righteous action, he, too, is ultimately overcome by the same God whom he serves. Ephrem never hides the fact that Death will come to an end; there is no surprise ending to the *Hymns*. Even as Satan and Death go at one another,

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[13] *Nisibene Hymns* 55.4-6 (E. Beck, *Des heiligen Ephraem des Syrers Carmina Nisibena: IIer Teil*, CSCO 240/Scriptores Syri 102 [Leuven, 1963], 80). The identifications of the speakers, Satan and Death, are my own.

[14] *Nisibene Hymns* 55.10-13 (ed. Beck [CSCO 240/Scriptores Syri 102], 80-81).

[15] G. Anderson, "The Fall of Satan in the Thought of St. Ephrem and John Milton," *Hugoye* 3 (2000), paragraph 27.

Ephrem frames their dialogues with triumphant comments about their common frailty. You can see an example of his framing at the opening and close of *Hymn* 54:

> Listen, Freedom, to the quarrel of two slaves. They are each convicting the other with the fact they are weak … Their quarrel is a mirror for you; you will see that they are both just dust before your breath.
>
> Blessed is the just one who divided these, though they were of one accord; blessed be the good one who made us come into accord, though we were divided. I will overcome Satan in your forgiveness, all-merciful one, and I will overcome Death in your resurrection, life-giver![16]

Very similar framing comments encircle *Hymn* 58, which begins, "Behold! Death was premature in mocking Satan—he who was going to become a mockery at the end!" and ends "Our Lord brought both to an end, on both accounts: The evil one will be finished off now here, and Death later there."[17] While Death does prevail over Satan in their argument with one another, the reader is never left unaware that Death meets his own end as a result of his victory. The very system by which he is considered better than Satan also consumes him.

The way that Ephrem narrates the demise of Death is significant, for it signals the resolution of the concern regarding wholeness, integrity, and containment seen in the first section of the *Nisibene Hymns*. That is to say, if the first part of the *Nisibene Hymns* shows attention to dissolution and disintegration—of the city, of bodies, of community—if they are a portrait of abjection uncontained, the second section of the *Hymns* can be seen as a literary riposte to this threat. For, death, loosely represented in section one, comes to be its own character in section two, an entity that respects rules and only acts in ways that accord with Christian narrative. That is, the signs of abjection of the first section have been in the second section contained in a docile character. That character, though, has the same exact problem as other personifications—like the city—in that it can be besieged, infiltrated, and destroyed. Put in Kristeva's terms, Death, created by Ephrem as a subject, is liable for its own moment of abjection. The thing which threatens to destroy Death, and ultimately does destroy Death, is Jesus.

## Jesus at Death's Door

By the time of Ephrem's writing of the *Nisibene Hymns*, several Christian authors had written extensive descriptions of Jesus' triumphal entry into Hell at his own

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16 *Nisibene Hymns* 54.1, 21-2 (ed. Beck [CSCO 240/Scriptores Syri 102], 78-9).

17 *Nisibene Hymns* 58.1, 24 (ed. Beck [CSCO 240/Scriptores Syri 102], 87, 89).

death in order to free the souls held there.[18] Ephrem's particular vision of this event is distinct, as it is cast through the perspective of the character he has created. In the second section of the *Nisibene Hymns*, Death speaks of Sheol as his treasury, or storehouse, boasting of the number of people he has brought to that storehouse.

> I alone have harmed a great number … I have taken away prophets and priests and illustrious ones. I have harmed kings in their arrays, mighty men in their hunts, and righteous ones in their heroic acts. There are streams of bodies pouring into Sheol, and though they flow into her, she is thirsty.[19]

Though Death revels in the "streams of bodies" he provides to the storehouse, he is unprepared for the death of one particular person: Jesus. The moment when Jesus dies, Death's revelry turns to revulsion. Ephrem narrates how Jesus and his angels enter Death's domain in the middle of *Hymn* 36.

> The voice of our Lord resounded in Sheol and he called and burst open the graves one by one. Dizziness seized Death. Sheol, which had formerly been dark, glittered with the flashes of light from the watchers who entered and brought out the dead to meet the one who had been dead, but gives life to all.[20]

As in other retellings of Jesus' descent to Hell, the power of Death was broken by Jesus having overcome it himself, and all the formerly dead are to be taken away from Death's gloomy storehouse, Sheol. Ephrem's version of the story is novel for having Death speak directly about the way Jesus' descent affects him. Death moans:

> The death of Jesus is a torture for me. His life is better to me than his death! He is the dead person whose death—in truth!—is odious to me. I rejoice in the death of every other human being, but in *his* death, I am made ill.[21]

In this special aside, we are provided an account of the feelings of the character of Death. Jesus is odious to him, foul, and makes him distressed and "ill." The Syriac word I have translated as "ill" has a suggestive range of meanings: it can represent jealousy, grudging, grief, disheartenment; the adjective formed from the

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[18] See G. Frank, "Christ's Descent to the Underworld in Ancient Ritual and Legend," in R. Daly (ed.), *Apocalyptic Thought in Early Christianity* (Grand Rapids, MI, 2010), 211-26, and more generally R. Gounelle, *La descente du Christ aux enfers: institutionnalisation d'une croyance* (Paris, 2000).

[19] *Nisibene Hymns* 36.4 (ed. Beck[CSCO 240/Scriptores Syri 102], 10).

[20] *Nisibene Hymns* 36.11 (ed. Beck[CSCO 240/Scriptores Syri 102], 12).

[21] *Nisibene Hymns* 36.13 (ed. Beck[CSCO 240/Scriptores Syri 102], 13, emphasis mine).

same root can describe a shell emptied of its egg.[22] Like an encounter with that which is abject, Death's encounter with Jesus leave him feeling out of sorts, off, not himself—empty and fragile.

Ephrem employs a number of metaphors to mark the way Death comes to an end through Jesus' visitation. Many of these, too, call to mind Kristeva's physical examples of abjection in their pitiable and disconcerting nuances. Death is trampled by the corpses of the formerly dead, who used to lie in heaps in Sheol (36.12). Death has an unnatural womb—Sheol—that is torn open to bring out the formerly dead with Jesus (37.4). His body is broken and split by the resurrected dead. Death even develops sympathy pain for his former victims and their families:

> Now I have tasted the taste of the one who mourns for his loved one. Sheol loves the dead in this way. How lovely they were to their fathers, those limbs that I cut and gathered—now they are cut away from me and gathered up![23]

Death here appears to miss the formerly dead, those whom he had collected, as an amputee might miss a limb.

The starkest representation of the effect that Jesus' death has on Death, the subject, appears in *Hymn* 39. This piece depicts, at quite some length, those who had died in the Old Testament as having been eaten by Death. In these stories, Death is pained by those who preach righteousness and resurrection for obvious reasons, but he is comforted by the fact that these same people also send him more bodies by indicting and killing the evil and the guilty. Korach and the other rebels from Numbers 16 who die for their attempt at sacrifice are a "mighty feast" for Death. When in Numbers 25, Phineas kills an Israelite man and a Midianite woman by running them through while they are having sex, these are like "two fat oxen on a spear" presented to Death (39). Ephrem's images of Death eating the dead are suggestive and sensual. As Death continues to speak about those who have killed the guilty in the name of righteousness, he fairly smacks his lips about the feast that is to come.

> Because of the prayer of Asa and Hezekiah, I was fed on the dead. I dined on corpses! … Elijah killed the prophets of Baal and gave me those who had gorged on the bread of Jezebel.[24]

However, Jesus' visitation to Sheol causes a reversal. Death complains, "These just ones forced me to be a glutton, but Jesus forces me to vomit out all that I

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[22] J. Payne-Smith (ed.), *A Compendious Syriac Dictionary* (Winona Lake, 1998), 515-16.

[23] *Nisibene Hymns* 37.7 (ed. Beck [CSCO 240/Scriptores Syri 102], 17).

[24] *Nisibene Hymns* 39.18 (ed. Beck [CSCO 240/Scriptores Syri 102], 28).

have eaten!"[25] Ephrem suggests that though Death has periodically been forced to give up a dead person through the resurrections effected by Jesus while he was alive—say, Jairus' daughter, or Lazarus—this give-and-take with the world of the living had been manageable. Jesus' death and entry into Sheol, however, causes an eruption that wipes out Death once for all.

## The End of Death

There are several lessons to be learned by reading the *Nisibene Hymns* through the lens of Kristeva's idea of abjection. First, the collection of hymns preserved in Br. M. add. 14572, that which we call the *Nisibene Hymns*, has at least one legible structure, even though it is not immediately apparent. While its parts seem disparate in style and even subject, they are stages of a complex literary development. Those hymns at the start which concern themselves with the boundaries of the city of Nisibis and treat the threat of disintegration express a problem that is resolved and itself contained by the creation of a character in the latter part, namely Death. Ephrem's conjuring of this character—its composition, its conflict and triumph over Satan, and its eventual destruction—sets in motion a new exercise in boundary maintenance, one that breaks down and dissolves the force of death itself. That is to say, the multiple signs of abjection in the first part of the *Hymns* are distilled and composed through the creation of Death who, in the end, cannot contain and manage that which is abject to him, namely, the resurrected and resurrecting Jesus.

Becoming aware of this process can help us uncover the kinds of choices that authors make when composing characters and placing them in dialogue. This is simple enough to see when the character is a personified force, like Death, but it is easy for authors to obscure the narrative work they do when the character can be taken as a historical person: Justin's character of Trypho, for example, has been taken, at times, as a lens for viewing actual second-century Jews. It is even trickier when we watch an author deal with a character that can align with a historical person who is also represented in other sources. Here we should consider not just historical contexts but also literary structures of works like Ephrem's *Nisibene Hymns*. That is to say, we should note and worry the unstable border between character and history.

[25] *Nisibene Hymns* 39.18 (ed. Beck [CSCO 240/Scriptores Syri 102], 28).

# Chapter 3
# Nature, Law and Human Freedom in Bardaisan's *Book of the Laws of the Countries*

Kathleen Gibbons

In cross-cultural studies of late antiquity, one must sometimes be reminded that concepts of culture are themselves far from neutral. This has been illustrated with particular force by the postcolonial theorist Homi Bhabha, who has observed how colonial discourses attempt to understand cultural stereotypes as fixed and rigid:

> An important feature of colonial discourse is its dependence on the concept of 'fixity' in the ideological construction of otherness. Fixity, as the sign of cultural/historical/racial difference in the discourse of colonialism, is a paradoxical mode of representation: it connotes rigidity and an unchanging order as well as order, degeneracy, and daemonic repetition. Likewise the stereotype which is its major discursive strategy, is a form of knowledge and identification that vacillates between what is always 'in place', always known, and something that must be anxiously repeated.[1]

While Bhabha notes this as a characteristic of colonial discourse, this inscription of rigid stereotypes onto one's polemical opponents can often characterize discourse concerned with self-definition more generally construed. That these pre-occupations with self-definition often take ethnicity as a marker for dividing self and other has been observed by Johnson: "Christianity's others were always represented within the bounds of particular ethnic identities."[2]

Yet culture, and cultures, could also be defined within various arguments preoccupied with self-definition without employing this rigidity of stereotype. Indeed, in *The Book of the Laws of the Countries*, a dialogue recording the thought of the Syriac philosopher Bardaisan of Edessa (154-222), the very fluidity of culture is employed against the Marcionites and a certain strand of astrology

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[1] Homi Bhabha, *The Location of Culture*, 2nd edn (Routledge, 2004), 94-5.

[2] Aaron Johnson, *Ethnicity and Argument in Eusebius' "Praeparatio Evangelica"* (Oxford, 2006), 9.

committed to the idea that human action is determined.[3] Bardaisan's commitment to the impermanence of human culture helps him to distance himself from two opponents with whom he shares much in common; like Marcion, he seeks to understand the relevance of the commandments of the Hebrew scriptures, while like his astrological opponents, he is committed to a view that the movements of the superlunary spheres do in some way influence human life. In delineating his own commitments from these others, he embarks upon an ethnographic overview that distinguishes different cultural groups in terms of the lawfulness of their behavior—a lawfulness which relies on stereotype. In doing so, his particular apologetic aims motivate him to understand this lawfulness as a collective expression of autonomy and, therefore, as contingent and malleable.

*The Book of the Laws of the Countries* is the main source we have for Bardaisan's thought. While Bardaisan himself is believed to have produced a substantial corpus, Ephrem's later charge that his teachings corrupted the gospels with Greek philosophy,[4] and his accusation that Bardaisan was a source for Manichaeism,[5] resulted in the loss of his writings, with the exception of fragments quoted in heresiological texts.[6] Despite the loss of most of his works, the evidence we have for him illustrates the porous frontiers of the ancient period; he was a Syriac Christian student of Greek "pagan" philosophy and a source for both Greek-speaking Christians and anti-Christian polemicists like Porphyry.[7] In the *BLC* Bardaisan, at the behest of his followers, provided an *apologia* in defense of human autonomy in which he appropriated Peripatetic arguments to defend the claim that God is both good and just. Bardaisan's response to Marcion's claim, here voiced by the disciple Awida, that the commandments of the Hebrew Scriptures are too onerous to be performed by human beings without divine assistance is founded on a more general defense of human autonomy in the face of the various pressures that act against it. In his defense of the existence of the human freedom required for the possibility of moral responsibility, a theory of the relationship between nature and law emerged from Bardaisan's use

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[3] H.J.W. Drijvers, "Marcionism in Syria: Principles, Problems, Polemics," *Second Century* 6 (1987/88), 153-72; D. Bundy, "Marcion and the Marcionites in Early Syriac Apologetics," *Muséon* 101 (1988), 21-32. Ute Possekel has suggested that the notable absence of apocalyptic imagery in the *BLC* may be a strategic avoidance of motifs that may lend credence to Marcionite dualism ("Expectations of the End in Early Syriac Christianity," *Hugoye* 11 [2008]).

[4] Ephrem the Syrian, *Against Bardaisan's "Domnus."*

[5] Ephrem the Syrian, *Second Discourse to Hypatius* 8.

[6] Sebastian Brock, "The earliest Syriac Literature," in Frances Young, Lewis Ayres and Andrew Louth (eds), *The Cambridge History of Early Christian Literature* (Cambridge, 2004), 162.

[7] See Ilaria L.E. Ramelli, *Bardaisan of Edessa: A Reassessment of the Evidence and a New Interpretation*, (Piscataway, 2009); eadem, "Origen, Bardaisan, and the Origin of Universal Salvation," *HThR* 102 (2009), 135-68.

of Peripatetic moral philosophy to articulate how culture is itself an expression of the autonomy with which human beings are naturally bestowed.[8] Bardaisan illustrates how conceptualizing culture not only as fixed, but as fluid, could be used for apologetic ends in ancient ethnographies.

## Bardaisan's Peripatetic Account of Human Freedom

In defending his claim that human beings are free enough to be capable of upholding God's commandments, Bardaisan drew upon the conceptual apparatus provided by the discussions about the relationship between divine sovereignty and human responsibility that dominated Greco-Roman philosophy from the third century BC to the second century AD. The debates about divine providence and responsibility that shaped Hellenistic and post-Hellenistic moral philosophy derived in part from various reactions to Aristotle's discussion of what is "up to us" from *Nicomachean Ethics* III.1-5 and *Eudemian Ethics* II.6. In both these texts, Aristotle argues that human beings are only subject to praise and blame when they are the cause or *archê* of their own actions (*EE* 1223a8-13, *EN* 1113a). Whether Aristotle's concept of what depends on us required that he be committed to a view that human beings have the freedom to act against their characters has been a subject of debate.[9]

While Aristotle himself may not have had a concept of the freedom to do otherwise, a number of his followers developed such a concept in their efforts to refute Stoic compatibilism. Peripatetic philosophers such as Alexander of Aphrodisias, the Aristotelian commentator working at turn of the third century AD, took as their major opponents the Stoic philosophers who held that moral responsibility was compatible with a determinate universe, in which human beings, while themselves the causes of their actions, are not free to act against

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[8] One occasionally finds discussions of Bardaisan's defense of "free will" in the secondary literature. Here, however, I have deliberately rejected this locution in favor of in terms of "freedom" or "autonomy." Precisely when a concept of "will" as a distinct mental faculty developed in the philosophical tradition is a matter of debate among historians of philosophy.

[9] Richard Sorabji argues for reading Aristotle as committed to a view that human freedom requires that one be free to act otherwise (*Necessity, Cause, and Blame: Perspectives on Aristotle's Theory* [Ithaca, 1980]), while Stephen Everson, for instance, argues that Aristotle is, like the Stoics, a compatibilist ("Aristotle's Compatibilism in the Nicomachean Ethics," *Ancient Philosophy* 10 [1990], 81-103). Sarah Broadie, on the other hand, suggests that the question of human autonomy is not to be found in Aristotle's writings: "In this account, the human voluntary agent is argued to be a contingent cause merely on the ground that some events in the world are not pre-necessitated either to happen or not to happen, but fall in the way they do because so caused either way by a human voluntary agent; and the question of whether the operation of that agency is itself necessitated (e.g., by persuasion from others) is simply not raised" (*Ethics with Aristotle* [Oxford, 2001], 171).

the moral characters bestowed upon them by nature.[10,11] Against the Stoic view, Alexander noted three distinct influences on human behavior—nature, chance, and freedom—taking his understanding of the difference between nature and chance from Aristotle's *Physics* II. In *Physics* II, Aristotle attributed the regularities evident in the cosmos to the *phusis* of the created world and of the various species within it, while irregularities were understood as departures from this nature as a result of *tuchê* (198b). In *De Fato* and related writings, Alexander followed Aristotle's understanding of *phusis* as the cause of regular patterns among species (Alex. Aph. 170); while at the same time recognizing that certain events in the lives of individuals come about through *tuchê* (Alex. Aph. 171), Alexander's claims in *De Fato* reflected the Peripatetic denial of Stoic determinism on the basis that the ascription of responsibility presupposes the freedom to do otherwise; for if the Stoic position is true,

> How could Alexander [Paris] the son of Priam still be blamed for having done wrong concerning the rape of Helen? How could it be reasonable for Agamemnon to condemn himself saying "Not even I myself deny it"? For if indeed either Alexander had the power to ignore the circumstances that were then surrounding him and inviting him to the rape, or Menelaus the things that urged him to anger, or Agamemnon the things concerning which he criticizes himself as having done wrong, [then] it would be reasonable for them to be blamed. But if long beforehand, and even before that, and before any of them ever came to be in the first place, it was true to predict of each of them that thing which they are censured for having done, how could they still themselves be blamed for the actual things that came to be? (Alex. Aph. 187)[12]

Here Alexander argued against the Stoics that the ascription of blame to a person's actions depends upon the possibility of that person's being able to have done otherwise. Because Stoic determinism did not accommodate such a possibility, in Alexander's view it could not accord a place for moral responsibility.

As Dihle notes, in the views attributed to Bardaisan in the *BLC* we find an analysis of human behavior which borrowed heavily from Peripatetic philosophy, though within the context of a cosmology that was shaped by discussions of providence such as one finds in the Platonist revival.[13] Bardaisan's outline of the

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[10] Cicero, *De Fato*, 38-43

[11] For discussion, see Suzanne Bobzien, *Determinism and Freedom in Stoic Philosophy* (Oxford, 1999), A.A. Long, "Freedom and Determinism in the Stoic Theory of Human Action," in ibid (ed.), *Problems in Stoicism* (London, 1971), 173-99.

[12] Translation from R.W. Sharples (ed. and trans.), *Alexander of Aphrodisias on Fate* (London, 1983), 65.

[13] cf. Pseudo-Plutarch *De Fato* 570f, Alcinous *Didaskalikos* 26. Albrecht Dihle, *The Theory of Will in Classical Antiquity* (Berkeley, 1982), 109-10. On the compatibilism of the Platonist revival, see George Boys-Stones, "Middle Platonists on Fate and Human

forces that shape human behavior appears to have been influenced by a distinction between nature, chance, and freedom such as one finds in Alexander's writings. In his opposition to Marcion's contention that human beings are not capable of fulfilling the commandments of the Hebrew Scriptures, Bardaisan argued that external influences do not encroach upon the human freedom required for the attribution of praise and blame. Based on the testimony of the *BLC*, Bardaisan appropriated and reinterpreted Aristotelian arguments developed to oppose Stoic determinism in his response to both the Marcionite theology and the astrological fatalism prevalent in Edessan religious culture.

Bardaisan understood the regular patterns of a particular species' behavior as a reflection of its natural constitution. In explaining how this natural constitution shapes the behavior of human beings, he described how "the constitution of humanity is thus, to be born and to grow up, and to come into the bloom of youth, and to beget and to grow old, all the while eating and drinking and sleeping and waking, and then to die" (*BLC* 559).[14] Similar behaviors are common among humans and the lower animals and, to a lesser extent, plants (*BLC* 559). Because other animals, unlike human beings, do not have freedom, the behaviors exhibited among these various species are limited to the patterns that pertain to their natural constitution. Given that these constitutions are identical among different individuals of the same species, the behavior of those species of animals which lack freedom is homogeneous: "For the lion, from its constitution, eats flesh, and so all lions eat flesh. And the sheep eats grass, and so all sheep eat grass. And the bee makes honey to live on, and so all bees make honey. And the ant lays its store in summer in order to live on it in winter, and so all ants do thus" (*BLC* 559-60). While animals of various species all behave according to, and only according to, their natural constitution, and therefore all demonstrate behaviors similar to one another, human beings behave according to their natural constitution only with respect to the basic behaviors listed above. Because human beings, unlike other animals, act not only from their natural constitution but also from their freedom, human behavior is more diverse than that of the other animals:

> Human beings are not guided in such a way. Although in matters of the body they guard their constitutions as animals do, in matters of the mind they do what they wish as free and powerful beings, and as the image of God. Among them there are those who eat meat and avoid bread, and there are those who eat certain kinds of meat, and those who do not eat any meat from sentient creatures at all. (*BLC* 560)

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Autonomy," in Robert Sharples and Richard Sorabji (eds), *Greek and Roman Philosophy* 100 BC–AD 200 (London, 2007), 431-44.

[14] The edition I have used is H.W.J. Drijvers, *Book of the Laws of the Countries: Dialogue on Fate of Bardaisan of Edessa* (Assen, 1965). While I have consulted Drijvers's English rendition, the translations are my own except where noted.

This freedom is why human beings, unlike animals, have the kind of ownership over their actions necessary for the ascription of praise and blame. While the dialogue leaves the connection underdeveloped, Bardaisan relates responsibility and human freedom to rationality. In response to the theodicy question first posed, Bardaisan argues that if a human being were created to be incapable of sin,

> there would be nothing in his own soul; but he would be an instrument of the one who set him into motion. It is clear that the desire of the one who sets in motion as he desires was to set humanity in motion for either good or evil. Why, therefore, would a human being be different from a cither which is played by one person, or from a carriage which is driven by another? Praise and blame exist on account of the craftsman, as the cither does not know what is played upon it, nor the carriage whether it is drawn or driven well. For these are instruments made for the use of the one who has *ydwᶜtnwt'*. (*BLC* 544)

The ascription of moral responsibility, described elsewhere in the dialogue as dependent on human freedom, is here understood to follow from *ydwᶜtnwt'*, a Syriac term for knowledge or rational capacity. While much of human life is a product of natural constitution, the fact that human beings are rational means that praise and blame can be ascribed to their actions in a way that praise and blame cannot be with respect to the behaviors of the other animals. The underlying assumption is that human capacities for rational thought presuppose the freedom to deliberate, and it is this freedom in deliberation which provides the basis for the freedom to act in one way or another, a view he has in common with Alexander (Alex. Aph. 178; cf. *EN* III.3). This rational capacity is what distinguishes human beings from animals, and explains why human beings are autonomous enough to be held morally responsible for their actions. *Contra* the Marcionites, human beings are free enough to merit the praise and blame attributed to them.

## Bardaisan on Fate

The apologetic thrust of Bardaisan's defense of human freedom was not limited to Marcionism; his claim that human autonomy undermines the view that upholding divine commandments is impossible dovetailed with his rejection of astrological fatalism. While scholars are generally of the view that Bardaisan's understanding of astrology derives from practices in his native Edessa, the paucity of the evidence for this period renders it difficult to determine with a substantial degree of precision the dynamic between Near Eastern, Egyptian, and Greek influences at that time.[15] According to the *BLC*, Bardaisan attributed the astrological fatalism

[15] H.W.J. Drijvers points out these diverse influences in *Cults and Beliefs at Edessa* (Leiden, 1966) and "Bardaisan of Edessa and the Hermetica," in his *East of Antioch* (London, 1974), 190-210.

he claimed to have been raised in, and against which he offered his rebuttal, as that which he found in the "books of the Chaldeans" and the "books of the Egyptians" (*BLC* 580). What specifically these references were meant to refer to, or whether they can be taken at face-value, is a difficult question.[16]

While Bardaisan rejected the astrological determinism he confronted in Edessa, he nevertheless admitted that astrological forces impact human life—a position which would later earn Ephrem's castigation.[17] Bardaisan attributed certain kinds of irregularities found in nature, society, and human psychology to the movements of the Rulers and Guides, the stars and planets.

> Natural constitution commands that the elder judge the younger, and the wise the foolish, and that the strong rule the weak, and that the brave rule the cowardly. But fate makes it so that in times of misfortune youths rule the elders, the foolish rule the wise, the weak rule the strong, and the cowardly rule the brave. It is evident that whenever the constitution is disturbed from its perfection, fate is the cause of its confusion, because the Rulers and Guides, the changes which are called horoscopes, are opposed to each other. (*BLC* 576)

Here fate, the activity of the superlunary powers, is attributed with the ability to produce disorder within human society, insofar as the Rulers and Guides are capable of disrupting normal, and normative, human relations. These disruptions are caused by conflict between the malefic and benefic bodies.[18] Disruptions of the natural order were not portrayed in the *BLC* as random chance events, as they are by Aristotle in *Physics* II, but rather were attributed to a force described as actively working in opposition to nature. In addition to negatively influencing the organization of interpersonal relations, and more generally causing unfortunate human predicaments such as sickness, barrenness, and poverty (*BLC* 568), fate also can also cause the disruptions in internal moral psychology that derive from embodiment.

> From natural constitution comes the marriage of male and female, and rest of both people. From fate is the enmity and sundering of marriage, and all the

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[16] Drijvers suggests that Bardaisan's response to astrology might be taken as a response to non-Christian practices of Edessa ("The Persistence of Pagan Cults and Practices in Christian Syria," in Nina Garsoian et al. [eds], *East of Byzantium* [Washington, 1982], 35-42); see also idem, "Bardaisan von Edessa als Repräsentant des syrischen Synkretismus im 2. Hardhundert n. Chr.," *East of Antioch*, 109-22. F. Stanley Jones, however, raises the point that Christianity and astrology may not have been separated in Edessa at this time and points out the possibility that Bardaisan may have gotten some of his understandings of astrology from Elchasai ("The Astrological Trajectory in Ancient Syriac-Speaking [Elchasai, Bardaisan, and Mani]," in Luigi Cirillo and Alois van Tongerloo [eds], *Atti del Terzo Congresso Internazionale di Studi Manicheismo e Oriente Cristiano Antico* [Louvain, 1997], 183-200).

[17] Ephrem, *Hymns Against the Heretics*, 1.18.

[18] Tim Hegedus, *Early Christianity and Ancient Astrology* (New York, 2007), 265.

> defilement and licentiousness which humans beings, in their lust, do on account of intercourse … From natural constitution there is plenty for all bodies, but from fate is the lack of food and bodily suffering. And thus also from fate there is gluttony and excessive intemperance. (*BLC* 575)

In general, aberrations, both material and moral, are at least provoked by fate. The fact that fate can influence the particularities of a human being's life is a result of how that individual's preexistence spirit descends into the material world:

> For that which is called Fate, is really the order of the course given by God to the Rulers and the elements. According to this course and order the minds undergo changes while descending to the soul, and the souls while descending to the bodies. That which causes these changes is called fate and horoscope of that mixture which was mingled and is now being purified for the healing of that which, by the grace and goodness of God, was and will be healed until the end of all things. (*BLC* 572)

As the mind descends, and acquires soul and body, it becomes altered by its passage through the superlunary spheres., This process recalls the *Timaeus*. While most early Christian sources express at least a certain degree of ambivalence about human embodiment, Bardaisan's particularly negative views about human bodies brought about his marginalization in the Syriac tradition. According to the evidence preserved by Ephrem,[19] Bardaisan rejected the resurrection of the body on the basis that this body made the human person vulnerable to the influence of the stars and planets, which, though subject to the will of God, nevertheless negatively impacted human life.[20]

Yet despite fate's disordering impact on human life, it is not completely determining. While it may win the day in certain domains of life—healthy people will become ill, parents will be deprived of their children, and so forth—human autonomy can nevertheless overcome the morally corrupting influence of fate on

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[19] Ephrem the Syrian, *Fifth Discourse to Hypatius*, 146.

[20] Ute Possekel has noted that Bardaisan's denial of the resurrection is motivated by his commitment to freedom ("Bardaisan of Edessa on the Resurrection: Early Syriac Eschatology in its Religious-Historical Context," *OrChr* 88 [2004], 1-28). Because of these views, he was later identified by Hippolytus as a Valentinian (*Ref.* 6.30), an identification which influenced nineteenth century scholarship on Bardaisan. Scholars now generally follow Drijvers in rejecting this identification, mostly because Bardaisan, refuting Marcionite theology, repeatedly insisted that God is one—an indication that he did not ascribe to anything like Valentinian "dualism" (to use a problematic term). That being said, there are enough resonances between Bardaisan's thought and so-called Gnosticism for Drijvers to suggest speaking of, if not the Gnosticism of Bardaisan, at least the "gnosis" of Bardaisan ("Bardaisan of Edessa and the Hermetica," 200-201). Cf. Steven K. Ross, *Roman Edessa: Politics and Culture on the Eastern Fringes of the Roman Empire, 114-242 CE* (London, 2001), 123-31.

human psychology. Why Bardaisan believed he could claim that human beings have the autonomy to overcome fate in morally relevant circumstances will be explored in the section below.

## Second Nature and the Laws of the Countries

Having given this exposition of the various influences on human action, the dialogue presents Bardaisan offering a brief summary of how they interact with one another:

> As we have seen that fate troubles the constitution, so we are able to see as well that freedom applies force to fate and disturbs it, though not in everything, as fate also does not push the constitution in everything. So these three things, the constitution, fate, and freedom, keep to their own way until the course is finished and the measure and number are complete. This was decided by the one who decreed what the way of life and perfection of all creatures, and the condition of all beings and constitutions, would be. (*BLC* 579)

Despite the fact that these three causes are described as separate, I maintain that there is a sense in which the formulation of the relationship between human freedom and natural constitution suggests that a concept of second nature was operative in Bardaisan's understanding of human free agency; that is, that the human systems of law are themselves a consequence of the fact that what distinguishes human nature from that of the other animals is the human capacity for free action.[21]

While Aristotle understood human beings to be political by nature, as he argues in *Politics* I 1253a3-4 and elsewhere, the particular constitution a state adhered to was a matter of convention. For Bardaisan, the the conventional nature of the laws established among different peoples provides evidence for his claim that human behavior is not determined by cosmic influence:

> Now listen, and consider that all people over the whole earth do not together do that which the stars decree by their fate and in their sectors. For men have established laws in each country by that freedom which was given to them from God, for this gift counteracts the fate of the Rulers, who have taken something not given to them. (*BLC* 583)

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[21] I am not the first to suggest that Bardaisan considers human moral action as an expression of second nature. Drijvers points out that the root for "constitution," *kyn'*, is also the root for the adjective meaning "just," a comparison which Drijvers reports as Nau's basis for rendering "justice" as "second nature" (*Bardaisan of Edessa* [Assen, 1966], 76-7). I argue, however, for the presence of the concept in Bardaisan's thought on philosophical, rather than philological, grounds.

The conformity of human behavior to a certain set of established laws indicates that this adherence to law is not a consequence of the influence of fate; for different human beings within any given society are born under different horoscopes, and yet they are all capable of following the same cultural patterns. At the same time, however, the very contingency of law serves as a testament to the fact that particular systems of law are not a matter of natural constitution.

> Consider how many wise men set aside the laws of their countries, when they do not seem to be well-established, and how many laws are dissolved out of need. And consider how many kings, having they seized countries which are not their own, set aside the laws which are in place and establish the laws they wish. (*BLC* 603; cf Aristotle *Politics* V)

Because natural constitution is identical across the species, the fact that laws are variable at different times and in different places indicates that they cannot be a direct consequence of that constitution. If human obedience to conventional law is neither a result of natural constitution nor fate, it must be an expression of human free action. Bardaisan here introduced a sense of the malleability of human culture into his ethnographic discussion; his particular apologetic concerns led him to understand human culture as something contingent upon the free choices of those who live by it. This conformity to law among the various peoples is why Bardaisan believed he could substantiate his claim that human freedom can overcome the disordering and occasionally corrupting influence of the stars in rebuttal to both the astrological fatalist and the Marcionite.

At the same time, although the ability of human beings to live in an ordered manner is a reflection of the fact that their behavior is not determined by external forces, the adherence to conventional laws on a local level is suggestive of the universality that characterizes behavior belonging to natural constitution. Consider his descriptions of how certain behaviors are adhered to without exception among those living within particular cultures:

> The Seres [i.e., Chinese] have laws that they shall not kill, nor commit prostitution, nor worship idols. And among all the Seres there are no idols, no prostitution, and no one who kills or is killed, although they are born in all hours and on all days. (*BLC* 583)

> Again, among the Indians, the Brahmans, of whom a very many thousand exist, have a law, that they should not to kill, nor worship idols, nor engage in prostitution, nor eat meat or drink wine. And among them not one of these things occurs. See, then, how for thousands of years they have lived by the law they have established for themselves. And there is another law in India that those who are not from the lineage of the Brahmans, and who are not of their teachings, that

> they may worship idols, and may engage in prostitution, and may kill, and may do many other hateful things which the Brahmins do not find good. (*BLC* 584)[22]

> And likewise, the Persians have set for themselves laws that they should take their sisters and daughters and granddaughters as wives, and even go further by taking their mothers … and in every land and climate where they are, they live by the law established for their fathers. (*BLC* 587)

A comparison of Bardaisan's description of human obedience to social norms with that of animals to their constitution reveals a parallel between the homogeneity of behavior among members of a particular species with respect to natural constitution and the homogeneity of behavior among members of a particular human culture with respect to conventional law. In emphasizing the fact that obedience to law is an example of a sort of "localized universality," Bardaisan implied that adherence to conventional laws, although not a direct expression of natural constitution itself, nevertheless reflects the regularity of its teleologically-ordered behaviors. The fact that human society and culture are here portrayed as a consequence of how the autonomy inherent in human rationality conforms itself to the law-likeness of natural human constitution is an indication of the teleological naturalism Bardaisan understands to characterize human convention – a naturalism which reflects the fact that the cosmos is ultimately ordered by one providential God whose providence nevertheless does not impinge upon human freedom and the justice that requires it. While established laws are themselves contingent, the *capacity* to live according to law is an expression of the human natural constitution – human beings by nature are, to borrow Aristotle's locution, political animals. Here we find Bardaisan employing a concept of second nature against his opponents, in the implication that there is a sense in which there is something natural *about* law and the human capacity to obey it en masse. This naturalistic account of human law refutes both the astrological fatalist and the Marcionite who despairs at the human natural capacity to act according to norms, either human or divine.

The contingency of human law comes into play in Bardaisan's account of how Christians are free to act against the social norms of their particular societies with respect to those customs that define them as Christians. While fate will inform to some degree certain events of their lives, such as sickness and death, those behaviors that establish them as Christian fall within the sphere of autonomous behavior:

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[22] In conference, Aaron Johnson raised the objection that Bardaisan's descriptions of the various caste-systems seem to undermine the law-likeness of cultural behaviors argued for here. In reply, I suggest that the force of Bardaisan's argument with respect to the caste system is actually to demonstrate that different sets of conventions can exist in the same local area, thus further proving the case against astrological fatalism. Law-like behavior within different castes should be understood as further evidence for the autonomy of human beings as an expression of second nature.

> What shall we say of the new people (shrt') of us Christians, that the Messiah has caused to arise in every place and in all climates by his coming? For behold, we all, wherever we may be, are called Christians after the one name of the Messiah. And upon one day, the first of the week, we gather together and on the appointed days we abstain from food. And our brothers who live in Gaul do not marry with men, and they who live in Parthia do not marry two women, and in Judea they are not circumcised. Our sisters among the Geli and the Kushanians do not have intercourse with foreigners, and they who live in Persia do not marry their daughters. Those who live in Media do not flee away from their dead, nor bury them alive or throw them for food to the dogs. Those who live in Edessa do not kill their wives or sisters who have committed adultery, but have nothing more to do with them and leave them to the judgment of God. And those who live in Hatra do not stone thieves. But in whatever place they are and wherever they may find themselves, the local laws cannot force them to give up the law of their Messiah, nor does the Fate of the Guiding Signs force them to do things that are unclean for them. But sickness and health, wealth and poverty, that which does not depend on their freedom, comes over them wherever they are. (BLC 608 trans. Drijvers)

The Marcionite and the astrological fatalist are both refuted by the ability of Christians to act counter to their culture in their establishment of a new people. Although they have found themselves as minorities in their native lands, they have nevertheless demonstrated the capacity to exercise their own customs, again demonstrating that human beings are free to adopt the norms they so choose. As Buell argues, the concept of early Christians as establishing a "new race" implied a certain degree of fluidity about what it means to be a *genos*: "this juxtaposition of fluidity and fixity enabled early Christians to use ethnic reasoning to make universalizing claims, arguing that everyone can, and thus ought to, become a Christian."[23] Bardaisan draws upon this fluidity—on his account, manifested as the contingency of human allegiance to systems of law—for his own polemical ends. His ethnographic exploration understands the divisions between peoples that stem from culture not in terms of race or descent, or even shared history, but in terms of the collective exercise of free choice.

What is notable about his sense of this fluidity is that he uses it to characterize, not only his own group, but the groups of others, for his particular apologetic aims. Given that early Christians often did use rigid stereotypes of others in polemical discourse, his use of the impermanence of cultural behaviors against his opponents is all the more noteworthy. In reappropriating Peripatetic naturalism, Bardaisan's account of second nature illuminates how the capacity of human beings to legislate themselves autonomously—a capacity that depends upon their ability to change the laws by which they self-legislate—is a consequence of the providential natural

[23] Denise Buell, *Why This New Race: Ethnic Reasoning in Early Christianity* (New York, 2005), 2-3.

order. That his apologetic defense of the existence of one God led him to argue that the characteristics that define particular human cultures are contingent and malleable is an indication of the complex ways in which early Christian attempts to define themselves and others informed their very notions of culture and the nature of convention.

# Chapter 4
# Earth People in Rabbinic and Roman Discourse

Anne Kreps

During the 1970s proliferation of neo-pagan movements, there emerged an Israeli group calling itself the *am ha-aretz*. Despite pejorative connotations of "*am ha-aretz*" stemming from its use in the Hebrew Bible and rabbinic corpus, this group adopted their name with pride. The modern *am ha-aretz* walked a self-described "Israeli nature spirituality neo-tribal path of peaceful warriors,"[1] claiming "Jewishness" as an ethnicity and "Paganism," defined as earth-worship, as its religion. The group's name, *am ha-aretz*, literally "earth people,"[2] described their pagan, or nature worshipping, focus and ignored its typical connotations "boor" or "ignoramus." By intentionally connecting the Hebrew term *am ha-aretz* with the Latin term *paganus*, also literally, "earth people," these modern *am ha-aretz* semantically equated two ancient terms in the context of contemporary intellectual movements.

Although a philological connection between *am ha-aretz* and *paganus* may be weak, this modern group continued a long tradition of shifting the term's meaning, manifest as early as the pre-exilic books of the Hebrew Bible. In an effort to make sense of the *am ha-aretz*'s fluidity in the Hebrew Bible, the term has been described as undergoing a "semantic revolution," in which it initially referred "to a sociological or juridical body," but later "a theologically reflected judgment of faith about exile, captivity and return."[3] In its earliest usage in the Hebrew Bible, the *am ha-aretz* pointed to the native population of a region.[4] More often, the pre-

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[1] Jennifer Hunter, *Magickal Judaism: Connecting Pagan and Jewish Practice* (New York, 2006), 19.

[2] The term *am ha-aretz* is typically left transliterated because there is no consensus on its meaning. Occasionally, the term is rendered "people of the soil," or "people of the land." Here, the term is translated as "earth people" to emphasize the similarities with the term "pagan," to avoid pointing to a particular social group, and as an attempt to capture the rabbinic effort to create a group of "others" through the term.

[3] Antonius H.J. Gunneweg, "Am Ha'aretz – a Semantic Revolution," *ZAW* 95 (1983): 437-40. This article provides a general description of various meanings of *am ha-aretz* in the Hebrew Bible. Also Ernest Nicholson, "The Meaning of the Expression *am ha-aretz* in the Old Testament," *JSS* 10 (1965): 59-66.

[4] The term appears in the following biblical passages: Gen 23, Deut 28:10, Josh 4:24, I Kgs 8, Ezra 9:1, 6:19-21, Neh 10:29, Zeph 3:20.

exilic usage of the term indicated citizens comprising the upper echelon of the state. It did not necessarily denote non-Israelite leaders; on many occasions, it referred to Israelite elites. On the other hand, the meaning in post-exilic texts often pointed either to military and political threats to the holy land or to the Israelites who stayed behind during the Babylonian exile. Gunneweg's semantic revolution was not limited to the biblical texts. In rabbinic literature, the *am ha-aretz* no longer referred to an elite class, but functioned generally as a term for a non-observant Jew. In the majority of its appearances in the Mishna, the *am ha-aretz* designated Jews neglectful of certain purity and tithing laws. However, outside Palestine, and in the ruins of the second temple, purity and tithing were not as central to a Jewish identity as Torah learning. Subsequently, the Babylonian Talmud depicted the *am ha-aretz*, often viscerally, as a Jew who did not engage in study of the Torah.

Because the identifying characteristics of the *am ha-aretz* vary among the sources, how should the modern reader understand the term? One vein of research has tied the *am ha-aretz* to specific sociological groups.[5] If the term referred to vulgar masses, what kind of social group was the target of this polemic? One answer has been to define the *am ha-aretz* in political terms. Did the *am ha-aretz* comprise the indifferent rabble, who ignored the ruling Pharisaic and Sadducean elite in Judea?[6] Or were they active groups of guileless peasants who saw their idyllic pastoral life threatened by political struggles?[7] Or should the *am ha-aretz* be classified as a religious group, a group that rejected the religious authority of the rabbis?[8] A more radical reading of the sources placed the *am ha-aretz* as the base of the early Jesus Movement and other movements on the fringe of society.[9] This model argued that the *am ha-aretz* were peasants attracted to these movements of charismatic authority rather than traditionalist and intellectual models of the philosophizing Pharisee.

A second vein of scholarship placed the *am ha-aretz* in rabbinic discussions of community ethics rather than specific social groups. In the context of daily life in antiquity, depictions of the *am ha-aretz* were not that different from the *yoshbei cranoth*—literally "ones who sit on corners," or, colloquially, "bums." To

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[5] Peter Haas, "The Am Ha-Arets as Literary Character," in Jacob Neusner, Ernest Frerichs and Nahum Sarna (eds), *From Ancient Israel to Modern Judaism: Intellect in the Quest of Understanding VII* (Atlanta, 1989), 143. This article discusses some of the most influential scholarship about the *am ha-aretz* in rabbinic literature in the context of modern scholars' own political struggles and also offers a comprehensive list of citations of the term in the Mishna and Talmud.

[6] Abraham Geiger, *Urschrift und Übersetzungen der Bibel in ihrer Abhängigkeit von der inner Entwickelung des Judenthums* (Breslau, 1857). Cf. Haas, "Am Ha-Arets," 140.

[7] Louis Finkelstein, *The Pharisees: The Sociological Background of Their Faith*, 2 vols (Philadelphia, PA, 1962), 754.

[8] Adolf Büchler, *Der Galilaische 'Am-Ha'ares des Zweiten Jahrhunderts* (Vienna, 1906, repr. 1966). Cf. Haas, "Am Ha-Arets," 141.

[9] Solomon Zeitlin, "The Am Haarez," *JQR* 23 (1932-33): 45-61.

the rabbis who were concerned with study, the *am ha-aretz* were identified by their lack of consideration for the "ethical values of Judaism."[10] Aharon Oppenheimer's collection of rabbinic source material has modified this claim, noting that the definition of the *am ha-aretz* in the rabbinic corpus depended more on the particular concerns of a specific rabbi, rather than the historical reality of the *am ha-aretz*.[11]

Variation, rather than consistency, should be expected when it comes to literary encounters with the *am ha-aretz*.[12] Defying concrete social grouping[13], the *am ha-aretz* has emerged as ethical term, as a character neglecting to conform to the "operative theory of the good life." The shifting emphasis from the mishnaic to the talmudic depictions of the *am ha-aretz* reflected a shift in the central social anxiety, which in the Mishna was "managing one's table in a way reminiscent of the Temple altar." For the Babylonian Rabbis, living outside the holy land, "the study of the Torah and its application to other aspects of life … became the vehicle for preserving Judaism."[14]

However, these notions of proper Jewish behavior have only considered evolving notions of "Jewishness" as a product of internal Jewish debate. Instead, the evolution of the term *am ha-aretz* should also take into account the larger Roman world, in which the rabbis lived. The term *paganus* shares a similar semantic range to the *am ha-aretz*. Classical historians have long noted that the term pagan originally meant something like "red-necked hick,"[15] country-folk, or civilian and only with the Christianization of the Roman empire did the term come to mean non-Christian. Similarities between the terms *am ha-aretz* and *paganus* have been suggested as products of changing cultural attitudes towards rustics, "increasingly derogatory in nature … The pagan became the ignorant unbeliever who originated in the *pagus*, as opposed to the urban Christian. Similarly, the *'am ha-arez* was transformed into the antithesis of the *talmid hakham* … "[16] Comparing literary representations of the *paganus* and *am ha-aretz* suggests that the cultural language of the Roman Empire helped shape depictions of the later rabbinic *am ha-aretz*. The Babylonian rabbis, living on the boundaries of the

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[10] Chaim W Reines, "The Terms Yoshbei Kranoth and Am Ha-aretz," in Abraham Berger, Lawrence Marwick and Isidore S. Meyer (eds), *The Joshua Bloch Memorial Volume* (New York, 1960), 75-81.

[11] Aharon Oppenheimer, *The Am Ha'aretz* (Leiden, 1977).

[12] Cynthia M. Baker, "Am Ha'aretz" in *A Reader's Guide to Judaism* (Chicago, IL, 2000), 19-20.

[13] For example Lee Levine, *The Rabbinic Class of Roman Palestine in Late Antiquity* (New York, 1989), 112-26.

[14] Haas, "Am Ha-Arets," 151.

[15] Rodney Stark, *Cities of God* (San Francisco, 2006), 2.

[16] Stuart Miller, *Sages and Commoners in Late Antique 'Erez Israel*, TSAJ 111 (Tübingen, 2006), 332-6. Miller's study of the *am ha-aretz* is part of his larger discussion on the urbanization of the rabbinic movement and places the definition of the *am ha-aretz* back in social group categories.

empire, transformed an ancient Jewish cultural idiom, roughly synonymous with a Latin term, into a phrase that designated a religious outsider, as the empire began to use the term *paganus* to designate a non-Christian.

## The *Am ha-aretz* in the Palestinian Sources

The majority of *am ha-aretz* citations in the Mishna focused on tithing and purity laws. Rabbinic law mandated that in order for produce to be fit for consumption, one must separate out *termumot*, or priestly dues and tithes, from the harvest. The *am ha-aretz* was identified as one who neglected these tithing laws. Like the pre-Christian pagan, the mishnaic *am ha-aretz* designated a rustic, not necessarily pejoratively. Not unlike modern scholars, both early rabbinic writings and one of Pliny the Younger's epistles have observed that the definition of an earth person is difficult to pin down, and often not consistent.[17] Pliny recounted a visit to a friend Terentius Junior, who retired from high ranks in the military and from his post as procurator of Gallia Narbonensis to the countryside. Pliny remembered how he carefully prepared himself to discuss matters of farming and other topics that might appeal to a man living the rustic life. He was surprised to learn that this supposed country bumpkin could converse fluently in both Greek and Latin, was well read and politically savvy. Pliny cautioned his readers:

> What a number of scholars are hidden and lost to fame through their own modesty or retiring habits! And yet when we are about to make a speech or give a reading we are nervous only of those who parade their learning, whereas the others who say nothing prove themselves superior by paying a noble effort the tribute of silence. I can illustrate this from my own experience … In short, he has increased my nervousness and made me respect these retired somewhat countrified people as much as the persons I know to be learned scholars. You should do likewise, for in the field of letters, as of battle, there are men who may be rustic (*pagano*) in appearance, but are found on closer inspection to be well armed and equipped and full of spirit and fire.[18]

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[17] Both ancient and modern authors have found the term *paganus* unclear. See Martin Basle Heimgartner, "Paganus," *BNP* 10, 338. Augustine claimed that *pagani* lived outside the City of God. Another possibility is that *paganus* functioned as the antonym to soldier in Christ. See Berthold Altaner, "Paganus: eine bedeutungsgeschichtliche Untersuchung" *ZKG* 58 (1939): 130-41. Others assert that the term "pagan" simply signifies "non-Christian," and is part of a growing late antique tendency to describe the world in religious categories. See Peter Brown, "Pagan," in G.W. Bowersock, P. Brown and O. Grabar (eds), *Late Antiquity: A Guide to the Post-Classical World* (Cambridge, MA, 1999), 625. Also Christine Mohrman, "Encore une fois: paganisme," *VC* 6 (1952): 109-21.

[18] Pliny, *Epistulae*, VII, 25 (Radice, LCL).

In his letter, Pliny observed that rustic, contrary to general opinion, did not necessarily mean pagan. Pliny was surprised that Terentius, despite his country address, did not fall into the pagan category; when speaking to his host, "you would think Athens is his home."

Similarly, the rabbinic stipulations in the Mishna urged caution in identifying a suspected *am ha-aretz* prematurely:

> A women lends to her friend suspected of ignoring the laws of the sabbatical year
> a sifter, sieve, mill or oven
> But she should not sift or grind with her
> The wife of a *haver* lends to the wife of an *am ha-aretz* a sifter and a sieve.
> She may sort, grind and sift with her.
> But once she has poured water, she may not touch her
> For help is not given to transgressors
> But all of these things are stated only in the interest of peace.[19]

This halakah dictated two prohibitions. Based on the Deuteronomic law of the seventh year, the observant Jew living in the Holy Land was to leave his lands fallow for a sabbatical year. As the halakah stated above, a woman may lend another woman the equipment to refine grain during this time, the implication being there was no direct evidence the second woman had actually violated the law of the seventh year. However, it was not permitted to refine grain with her, because if the woman were keeping the law of the seventh year, there should be no grain to grind.

The second rule upheld the same legal logic. The wife of a *haver* may refine grain with the wife of a (suspected) *am ha-aretz*, there being no direct evidence that the second woman was actually an *am ha-aretz*. Up until the point water was poured on the flour, the second woman still had the opportunity to remove an amount of grain sufficient to fulfill the tithing obligations. Implicit in this ruling is that until this *fait accompli*, one was not permitted to stigmatize or shun his neighbor on the suspicion of being an *am ha-aretz*.

The label *am ha-aretz* was not necessarily permanent. As seen from the above halakah in Gittin, one could keep company with a suspected *am ha-aretz* until the point when the law had been irrevocably transgressed. Furthermore, even if one was labeled as an *am ha-aretz*, the rabbinic rulings argued that this status was reversible. The rabbis legislated that an *am ha-aretz* should always have equal opportunity to uphold the law:

> A *haver* and an *am ha-aretz* inherit the property of their father—an *am ha-aretz*.
> The *haver* may say to the *am ha-aretz*, "You take the wheat which is in this place, and I take the wheat which is in that place;
> You take the wine which is in this place and I take the wine which is in that place."

[19] *M. Git* 5:9.

> But he may not say to him, "You take the wheat and I take the barley
> You take the wet produce and I take the dry produce."[20]

This halakah permitted both *haver* and *am ha-aretz* brothers to inherit.[21] This was also a law of equal opportunity. Regardless of status, both an observant and non-observant Jew must receive equal portions of the estate. Each agricultural asset must be split, one cannot "take the wheat and (the other) the barley." A *haver* could not ask his *am ha-aretz* brother to take the wet produce, by nature susceptible to uncleanliness, on the assumption the *am ha-aretz* would not care. Neither could the *haver* brother take all the dry wheat for himself; perhaps contrary to the expectation that he would tithe the dry wheat correctly and therefore deserved to keep it for himself. Each brother was given an equal share of all the assets on the assumption that past behavior was not necessarily indicative of future behavior.

In a few instances, the rabbis transliterated the term "pagan" into Hebrew. These passages demonstrated a general understanding of the nuances of the term "pagan." The term "pagan" had a wide semantic range, which could be defined broadly as a "non-participant."[22] Before the fourth century, a pagan could simply mean rustic, a general vulgar term for the masses,[23] or function as an antonym for soldier.[24] Like the term *am ha-aretz*, the designation *paganus* indicated inferior status. Only by the fourth century had *paganus* developed the nuance "non-Christian." This semantic shift took place primarily in the western Empire. In the east, the terms Hellene or Ethnikos were preferred; *paganus* was preserved as a secular insult, "stupid or unrefined."[25] The transliteration of the word "pagan" into Hebrew appeared only in the Palestinian rabbinic literature; there were no attestations in the Babylonian Talmud.

A Midrash from *Genesis Rabbah* used pagan as a technical term for civilian rather than government official:

> 'Two angels came from Sodom.' Here you said 'angels' but there (Gen. 18:2) they are called 'men'. Earlier when the Shechinah was upon them, they were called men. As soon as the Shechinah removed itself from them, they were invested angels. Rabbi Tanhuma said, 'Rabbi Levi said, 'to Abraham, who was strong, they resembled men, but Lot who was weak, they appeared as angels.

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20 *M. Demai* 6:9.

21 Haas, "Am Ha-Arets," 146.

22 Brown, "Pagan," 625.

23 See, for example Suet. *Aug*. 27:3, *Galb.* 19:2.

24 For instance, Tacitus was concerned that the *pagani* exerted a corrupting influence on soldiers. Tacitus, *Hist.* 1.53.3.

25 Brown, "Pagan," 625. However, it should also be noted that the eastern part of the empire was not unaware of this nuance of "pagan." As we will see below, an edict collected for the Theodosian code attested to the term "pagan" in its "non-Christian" sense. See *Cod. Theod*. 16.7.2.

> Rabbi Hunia said, 'when they had not yet done their task, they were called men, when they did their task, angels.' Rabbi Tanhuma said, 'the matter is like one who receives a government position from the king. Before he attains his office, he would go about like a commoner (גפן) when he attains his office he goes about like an esteemed man.[26]

Asking why the two visitors to Sodom were called angels when they appeared in Sodom and men when they visited Abraham, R. Tanhuma provided an analogy to one who is transformed from an ordinary citizen (pagan) into a governor. Here the Hebrew reflected the general conception of pagan as "one excluded from a more professional or more distinguished group."[27]

A narrative from the Palestinian Talmud demonstrated an effort to understand the nuances of the word "pagan." Here, "pagan" was used to indicate a low social status, but in the text was an implication that social status was intrinsically linked to education and the term *am ha-aretz* linked to the term "pagan":

> There were two clans in Sepphoris—the Balvati and Pagani. Every day they used to go and ask after the well-being of the patriach. Now the Balvati would enter first and exit first. The Pagani went and gained merit in Torah study. They sought first entry. It was asked of Simon b. Levi. Simon b. Levi asked Rabbi Yohannan. Rabbi Yohannan went and taught in the study house of Rabbi Beniyah, "If a mamzer was a student of a sage and a high priest was an am haaretz, the mamzer who is a disciple of a sage has priority over a high priest who is an am haaretz."[28]

This story narrated the story of two families the Balvati and Pagani. It has been argued that the first family's name derived from the Greek word Βουλή and the second from "pagan" and therefore should be read as technical terms coming from a Greco-Roman context.[29] The habit of going up "to greet the patriarch" probably referred to the Roman tradition of *salutatio*, when clients would pay daily respect to their patrons.[30] In the context of this Roman ritual, the families in this story probably represented a family of councilors and a family of non-participants, or "pagans." Initially, the high-ranking official had the privilege of greeting the patriarch first, while the commoner waited. However, when the *pagani* acquired "merit in learning," which superseded social rank, they were permitted to enter first.

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[26] *Gen. Rab.* 50:2 (Neusner).

[27] Brown, "Pagan," 625.

[28] yHor 3, 48c. The second portion of the story quoted Mishna Horayot 6:8 – "But if the *mamzer* was a disciple of a sage and a high priest was an *am ha-aretz*, the *mamzer* who is a disciple of a sage takes precedence over a high priest who is an *am ha-aretz*."

[29] Steven Fine, *Jews, Christians and Polytheists in the Ancient Synagogue* (Routledge, 1999), 81.

[30] Catherine Hezser, *Jewish Literacy in Palestine*, TSAJ 81 (Tübingen, 2001), 188.

Similarly, a *mamzer*, whose low social status was determined by his parents' incestuous union, was given priority over some one of high status in the rabbinic ruling by his educational endeavors. The narrative demonstrated the fact that "the Rabbis considered Torah learning the main criterion for determining a person's status," a trump card to social standing.[31] This was the central question in the narrative; to what extent did education override a birth-determined social status? If the Balvati and Pagani were perhaps both "members of the priestly aristocracy," the Hebrew "pagan" as it appeared in this narrative could describe an upper-class family who neglected Torah learning. However, the Rabbis' innovation in this passage was to put the Greco-Roman-worded narrative in their own words, translating the terms into Hebrew. The rabbis compared the social status of the Balvati and Pagani to high priests and *mamzerim* respectively. This comparison was designed to clarify the meaning of the term "pagan" to a rabbinic audience. Certainly "the Pagani were not *mamzerim* and the Balvati were not high priests,"[32]but the rabbinic comparison made clear that, in this case, the operative definition of Pagani was someone of low social status, or "non-participant," in comparison to the aristocratic government employed "Balvati." When "the question was brought to R. Simon b. Levi," the rabbis demonstrated that they were just as unclear about the meaning of the term "pagan" as Pliny, and, perhaps aware that the term "pagan" could designate either someone of low social status or someone who neglected the importance of education. The conclusion of the narrative did not clarify matters because the Pagani were not given a new title after they "attain merit in learning," a feat which, under one operating definition of *paganus*, could render them no longer *pagani*. Furthermore, if "Pagani" designated the nuance of *paganus* meaning boorish or uneducated and unrefined, why would education elevate them *above* the social stratum comprising members of the council? The citation of Mishna Horayot 6:8 clarified matters. By applying this halakah from the Mishna, R. Yohanan explained that here, the term "pagan" indicated one of low social status, like the *mamzer*. But the significance of both terms, "pagan" and *am ha-aretz*, appearing in the narrative should not be taken for granted. The Mishna explained that the Balvati are the true *pagani*; they are just like high priests who were *am ha-aretz*, or government officials who have neglected proper learning and should, therefore, have shown deference to those who have "attained merit in learning."

## The *Am ha-aretz* in the Babylonian Talmud

With the Christianization of the empire, the term "pagan" experienced a seemingly drastic semantic change. The meaning evolved to resemble something like its modern scholarly usage "non-Christian." However the leap from country-folk to

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[31] Catherine Hezser, *Social Structure of the Rabbinic Movement within Palestine*, TSAJ 66 (Tübingen, 1997) 487.

[32] Hezser, *Social Structure*, 487.

civilian to non-Christian may not have been as drastic upon closer examination. Often, the early church fathers encouraged their congregation to be "soldiers in Christ." It would not be surprising then, that "pagan" came to mean non-soldiers-in-Christ.[33] The attitude towards pagans changed visibly. Once viewed nostalgically as the simple country-folk, then condescended to with a superior derision by the literati, the term "pagan" in the Christian empire became a marker of religious identity. Unsurprisingly, the term *am ha-aretz* acquired a similar negative force.[34]

The *am ha-aretz* of the Babylonian Talmud differed from the definition in the Mishna. The mishnaic depictions of the *am ha-aretz* addressed issues of tithing and purity, whereas the Talmudic discussion revolved around ignorance of the Torah. However, even the definition of those who are "ignorant of Torah" is debatable. The rabbis were not unanimous on the definition themselves. A Talmudic *sugya* invented a debate among tannaitic rabbinic scholars on the definition of an *am ha-aretz*:

> Our rabbis taught in a baraita: Who is an *am ha-aretz*? Anyone who does not recite the *shema* evening and morning—the words of R. Eliezer. R. Joshua says, anyone who does not put on *tefillin*. Ben Azzai says, anyone who does not have *tzitzit* on his garment. Rabbi Nathan says, anyone who does not have a *mezuzah* on his door. R. Nathan b. Joseph said, anyone who has sons and does not bring them up for the study of Torah. Others say, Even if he has studied Scripture and Mishna but has not waited upon the *talmidei hakhamim*, he is an *am ha-aretz*. R. Huna says: The *halakah* is as laid down by "Others."[35]

All of these scholars indicated that an *am ha-aretz* was someone who was ignorant of Jewish law; however, the definition of ignorance was expanded with each scholar. Structurally, the debate was organized as three arguments, the first occurring between second generation and the next between third generation *tannaim*. Lines 1-3 presented the dispute between the two second generation *tannaim*. These two scholars agreed that an *am ha-aretz* was defined by neglecting prayer, the most basic religious obligation. The dispute between Rabbi Eliezer and Rabbi Joshua involved the *visibility* of the status of *am ha-aretz*. Only the individual knew if he had recited the shema or not, consequently one's status as *am ha-aretz* was hidden from the public. Rabbi Joshua agreed that an *am ha-aretz* was only defined by the individual's relationship to his religion, but was adamant that there be a

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[33] Adolf von Harnack, *Militia Christi: The Christian Religion and the Military in the First Three Centuries*, trans. David McInnes (Philadelphia, PA, 1981).

[34] This is not to argue that these hostilities translated into social tensions; there probably were "no worse consequences than incurring the snobbish contempt, or the abusive comments of the rabbinic class." Tessa Rajak, "The Jewish Community and its Boundaries," in Judith Lieu, John North and Tessa Rajak (eds), *The Jews Among Pagans and Christians in the Roman Empire* (London, 1992), 13.

[35] b. *Ber.* 47b.

mechanism for others to determine the individual's status. The insistence that a truly pious Jew wear the *tefillin* when he prayed publicized individual devotion. The third generation argued that religious status be even more visible. Ben Azzai's definition of the *am ha-aretz* demonstrated that a Jew's piety must be recognizable at all times, simply by the clothes he wears. His contemporary, R. Nathan, upped the stakes, arguing that a pious Jew must be able to recognize an *am ha-aretz* even before encountering him personally and before entering his home. An absence of a *mezuzah* on the door alerted the pious that an *am ha-aretz* was in residence.

The third section of the *sugya* explained why the definition of *am ha-aretz* had shifted from personal to public knowledge. R. Nathan b. Joseph's argument explained that Jewishness was not simply a relationship between the individual and God, as R. Eliezer thought, but was also a communal obligation, in that one must teach his children Torah. If religion was a communal obligation, the community had the right to know at all times who was and who was not an *am ha-aretz*. The ruling of the "others" or the majority opinion redirected the discussion back to the rabbis. Proficiency in Torah was not sufficient to be a pious Jew; one must have command of the *rabbis*' Torah. The *am ha-aretz* became defined as one who did not observe rabbinic teachings. In effect, a non-rabbinic Jew, like a non-Christian was called "pagan."

The insistence that an *am ha-aretz* wear his status on his sleeve, so to speak, pointed to a growing anxiety among Roman and Jewish law makers—earth people "passing" for soldiers, especially as the Roman army witnessed burgeoning *ambitio*, the corrupt appropriation of high-ranking offices:

> It is intolerable that persons are stealing into titles of military glory who have not seen a battle line, who have not looked upon the standards, and who have not wielded arms. (Emperor Constantius Augustus to Praetorian Prefects. May 1, 353)

> If any civilian (*paganus*) or decurion should come by corrupt solicitation to the honorary rank of imperial bodyguard, neither length of time, nor terms of service shall be computed for him after the promulgation of this law. We command that this rule shall be enforced also in the case of those persons who come by corrupt solicitation to the rank of provost.[36]

The same rabbinic anxieties about an *am ha-aretz* "passing" for an observant Jew unfolded in the Roman legislation against *pagani* purchasing for themselves a high ranking military office.

The legal status of the people of the earth was consistent in Christian and Jewish legal codes in the Byzantine period. Rather than a neutral or condescending opinion of the pagans and *am ha-aretz*, the attitude became openly hostile.[37] The

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[36] *Cod. Theod*. 7.21.2 (Pharr).

[37] The *am ha-aretz* are depicted with such hostility in a minority of instances. See Lester Grabbe, *Judaism from Cyrus to Hadrian*, 2 vols (Minneapolis, MN, 1992), 524.

earth people had no legal rights in the new Christian empire and the imagined rabbinic one. They became outlaws. Emperor Gratian ruled those who revert back to paganism lost their right to make a will:

> Emperor Gratian, Valentinian and Theodosius Augstuses to Eutropius, Praetorian Prefect. Those Christians who have become pagans shall be deprived of the power and right to make testaments and every testament of such decedent, if there is a testament, shall be rescinded by the annulment of its foundation.[38]

Similarly, in the following passage, rabbinic law set legal parameters from which the *am ha-aretz* were excluded:

> The rabbis taught in a *baraita*: Six things were said about the *amme ha-aretz*: We do not transmit testimony to them, we do not receive testimony from them: We do not reveal a secret to them; we do not appoint them as guardians for orphans; we do not appoint them administrators over funds for the poor; and we do not join their company on the road. There are some who say, we also do not announce his lost property. But the *Tanna Kamma* [states] Sometimes good offspring result from him who will benefit from [the lost item], as it is said, "He [a wicked man] prepares, but a righteous man will wear it."[39]

The *baraita* (lines 1-5) prohibited the *am ha-aretz* from engaging in community responsibilities that required a high degree of trust. In the last two lines, the voice of the *tanna kamma* (the anonymous first sage in the *baraita*) transformed this earlier debate into a question about inheritance. The *tanna kamma* addressed the issue of announcing the *am ha-aretz*'s lost property. The "others" considered "announcing lost property" as part of the list of community responsibilities requiring trust; an *am ha-aretz*'s lost property was not announced and consequently there was no legal mechanism for him to reclaim it. The *tanna kamma* disagreed, arguing that issues of inheritance were at stake. As proof, he quoted Job 27:17, "a wicked man prepares a wardrobe, but a righteous man will wear it," which, in the biblical text, appeared as part of a general list of the "heritage that oppressors receive from the almighty." The *tanna kamma* argued that an *am ha-aretz* should be able to retrieve his lost property because his potentially righteous offspring might benefit, contrary to the opinion of the "others," who claimed that the property of an *am ha-aretz* was disposable and the claims by his offspring invalid. The *tanna kamma* was the

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He claims "The term *am ha-artez* is widely used in scholarship to refer to the Jew of late antiquity who did not follow Rabbinic prescriptions in every detail … The term is a useful one for modern scholarship as long as it does not have a pejorative connotation and the assumption is not made that Judaism was to be measured against a Pharasaic or rabbinic 'orthodoxy'."

38 *Cod. Theod*. 16.7.1 (Pharr).

39 b. *Pesach.* 49b.

minority voice, claiming that the descendants of an *am ha-aretz* may inherit his property.

An edict from the *Theodosian Code* decreed that those who revert back to paganism lost their right to make a will. According to the *Theodosian Code*, if one was not able to make a will, he was not considered a citizen under the protection of the law; rather, as the *Theodosian Code* stated, "If Christians and those confirmed in the faith have turned to pagan rites and cults, we deny them all power to make a will in favor of any person whatsoever, so that they shall be *outside the Roman law*."[40] A Christian who reverted back to paganism was considered an outlaw.

The *am ha-aretz* in the Bavli were also considered outside the protection of the law:

> Rabbi Eleazar said: An *am ha-aretz*, it is permitted kill him by stabbing on a Yom Kippur, which falls on the Sabbath. His students said to him, Rabbi, say to cut his throat [according to the laws of ritual slaughter]? He replied: This requires a blessing, whereas stabbing does not require a blessing.[41]

The rhetorical force of Rabbi Eleazar's statement was clear. It was permitted to kill an *am ha-aretz* on the holiest day of the year, Yom Kippur, or the "Sabbath of Sabbaths." Moreover, the *am ha-aretz* could be killed when Yom Kippur fell on the Sabbath; in essence, one was permitted to kill an *am ha-aretz* anytime, even on a "Sabbath of Sabbaths of Sabbaths." In his eyes, there were no legal recourses to protect the *am ha-aretz*. Furthermore, one did not even need to follow an honor code to kill an *am ha-aretz*; as one rabbi claimed, "One may tear an *am ha-aretz* like a fish!; and this means along his back." This halakah approved killing an *am ha-aretz* by any means necessary. The rabbinic law, like the *Theodosian Code*, afforded the earth people no legal protection.

This mutation of meaning of the people of the earth and the increased hostility towards them points to a shared program between rabbinic and Roman elites to artificially distinguish earth people as outsiders. Sociologically, the *am ha-aretz* and pagans may have been indistinguishable from their society, particularly when the term "pagan" began to operate as an antonym for Christian. The writings of the Roman and Jewish elite often created and directed hostility towards behaviors they did not like. This might have included crowds of raucous civilians, Jews lax in their religious obligations, or non-Christians. The similarities between the pagan and *am ha-aretz* in their stages of development indicate that the term *am ha-aretz* was gradually being translated into the cultural language of the Roman empire. Mishnaic discourse on the *am ha-aretz* had several suggestive points of contact with the range of meanings of the term "pagan," but it was only with the Christianization of the Roman empire that the terms "pagan" and *am ha-aretz* became equivalent modes of religious expression. Rabbis living outside

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40 *Cod. Theod*. 16.7.2 (Pharr).

41 B. *Pesach* 49b.

the boundaries of the Roman empire were able to render an ancient phrase from their holy texts in contemporary cultural terms. The similarities between the two expressions suggest that when the term *am ha-aretz* is encountered in rabbinic literature, it is best understood against the backdrop of the myriad meanings of the term "pagan." As a method of reading, the *am ha-aretz* should be considered together with the most prevalent contemporary meaning of the term "pagan." The terms "pagan" and *am ha-aretz* certainly were not crystallized in late antiquity. Old English created its own term "heathen," a word deriving from heath—an open area of uncultivated land, to denote non-Christians.[42] Today as the terms *am ha-aretz* and "pagan" reflect the religious values of neo-pagans involved in "earth worship," it is evident that the definition of the "earth people" has yet to stand still.

[42] Thanks to Ralph G. Williams for mentioning this additional example.

# PART II
# High and Low Cultural Negotiation

# Chapter 5
# Where High and Low Culture Meets: The Legend of the Cross

Harold Drake

Nowhere in Late Antiquity do the cultural changes wrought by Christianity show more clearly than in the cottage industry of stories and folk tales that burgeoned in the aftermath of Constantine's conversion. Undoubtedly the most famous of these is the Legend of the Cross, best known for its dramatic telling of the discovery of that article by Constantine's sainted mother, Helena. Although this portion is the best known and most studied, the full blown account is much more ambitious, careening joyfully through the pages of biblical history in a way that seemingly confirms a long-standing view of the post-Roman centuries as an age dominated by a credulous and superstitious Christian faith. Even the great Père Delehaye, who did more than anyone to systematize their study, considered these legends to be "puerile" works, whose apparent sophistication and detail only masked an understanding of cause-and-effect that was "childishly simple." But the day is long past when scholars could dismiss this output as the detritus of "superstition."[1] Hagiography in particular has benefited from the development of cultural and anthropological tools for unlocking the treasures that lie within that once-scorned genre. But the raft of popular tales has yet to be fully exploited, and for good reason, for these stories are to saints' lives what TV sitcoms are to Shakespeare: their value lies not in their literary quality but in the window they open into popular cares and interests. In this way, a story like the Legend of the Cross can help us determine how the lofty ideas and occasionally soaring rhetoric of the cultural elite who once monopolized the attention of our field played out on the popular level.

This story truly begins at the beginning—not with Constantine and Helena, but with the Garden of Eden, where a dying Adam sends his son Seth to procure the oil of

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[1] Hippolyte Delehaye, *Les légendes hagiographiques*, Subsidia Hagiographica 18, 3 (ed.) (Bruxelles, 1927), 37: "On pourrait multiplier les examples de ces puériles enchaînements de réminiscences historiques aboutissant à former des récits, en apparences fort étudiés, qui sont, en réalité, d'une simplicité enfantile." The traditional separation of early Christianity into elite and popular levels was decisively challenged by Peter Brown, *The Cult of the Saints: Its Rise and Function in Latin Christianity* (Chicago, IL, 1981). For a more recent discussion of the same phenomenon in a different context, see Fernando Cervantes, *The Devil in the New World: The Impact of Diabolism in New Spain* (New Haven, CT, 1994), 1-4.

mercy.[2] This he is denied, but the archangel Michael does give Seth three seeds from the Tree of Life, with instructions to put them under Adam's tongue when he is buried. As the story progresses, the trees that grow from these seeds appear, like Stanley Kubrick's Sentinel stone in "2001," at every key moment in Biblical history. They become, at first, the rods by which Moses performs his miracles. Later, an angel tells David to bring these rods, which Moses had planted in Moab, to Jerusalem. Here, they take root overnight and grow into a single tree, under which David composes his psalms. David's son Solomon orders this tree cut down for his temple, but when the beam it is made into will not fit anywhere the builders reject it, and it becomes a footbridge until the Queen of Sheba, who discerns its holy nature, tells Solomon that this wood will undo God's Covenant with the Jews. To prevent such an outcome, Solomon buries the wood and, for good measure, floods the site, creating the Pool of Bethesda. Not surprisingly by this point, in the time of Jesus the wood rises to the pool's surface, and the High Priest orders it shaped into the instrument of Jesus' crucifixion, after which the Jews once again bury it.

Three hundred years go by. Now Helena comes to Jerusalem specifically to uncover the wood. Interrogating the Jewish elders of the city, she finds one Judas, who is said to know where the wood is hidden. But because of the prophecy Judas refuses to divulge the secret, which has been handed down from father to son in his family. Helena does what any good Late Roman imperial figure would do and tosses Judas in a deep well until he reconsiders his decision. Judas holds out for a week, but finally relents. Praying for divine support, he uncovers the secret hiding place, which turns out to hold not one but all three crosses used on Golgotha that day. To reveal the real one, Helena systematically places each cross on the body of a recently deceased maiden. When the last of these brings the girl back to life, its authenticity is confirmed. After witnessing this miracle, Judas himself converts and ends his days as bishop of Jerusalem. Meanwhile, Helena deposits a portion of the precious wood in Jerusalem, another in Constantinople. To the latter city she also sends nails discovered with the wood, instructing her son Constantine to fashion them into his

[2] There are many versions of the Legend, all with some variants. It is most readily available in G.P. Maggioni (ed.), *Iacopo da Varazze, Legenda Aurea*, 2nd edn (Sismel, 1998), where it appears under two headings: *De inuentione sancte crucis*, 459 (May 3), and *De exaltatione sancte crucis*, 930 (September 14). For an English translation see W. Granger Ryan, *The Golden Legend: Readings on the Saints* (Princeton, NJ, 1993). See further Esther Quinn, *The Quest of Seth for the Oil of Life* (Chicago, IL, 1962). For the Helena legend, see Jan Willem Drijvers, *Helena Augusta: The Mother of Constantine the Great and the Legend of Her Finding of the True Cross* (Leiden, 1992; orig. Dutch publication Gröningen, 1989); Mark Edwards (tr.), *Constantine and Christendom: The Oration to the Saints, the Greek and Latin Accounts of the Discovery of the Cross, the Edict of Constantine to Pope Silvester* (Liverpool, 2003).

crown and the bridle of his horse, where they remain as important safeguards of both imperial rule and the empire's Christian mission.[3]

Once again the story fast forwards 300 years, this time to the reign of Heraclius. In 614, a Persian army raided all the way to Jerusalem, taking away with it the relic of the True Cross. In what might easily be called the real First Crusade because of the religious fervor with which it was conducted, Heraclius invades Persia, punishes the wicked king Chosroes with death, and takes possession of the holy relic. But when he tries to restore it to Jerusalem, the animals on his carriage freeze in their tracks. It takes the intervention of an angel of God for Heraclius to figure out the problem: whereas his Lord had entered Jerusalem humbly, Heraclius was riding in state. Suitably chastised, Heraclius removes his finery and enters the city on foot. After restoring the cross to its rightful place, he finally accounts for Helena's oversight and sends a piece to Rome. With its arrival, accompanied by suitable miracles, the Legend ends.

Needless to say, this is not a scientific account. There is plenty here to justify the judgment of Père Delehaye and generations of other scholars. But it is obvious that some weighty historical and theological questions underlie this narrative, and peering into the connection between those underpinnings, the narrative, and the events themselves is one way to further our understanding of the way high and low culture interacted in Late Antiquity. It also is a way to develop a tiny bit more respect for the popular mentality of the period.

The Helena account is the core of this story. It was undoubtedly inspired by excavations for Constantine's Church of the Holy Sepulchre that were underway when Helena made her famous pilgrimage, probably in 326-7,[4] and the idea that the wood of the cross had been discovered at this time was already in circulation by mid-century, when Cyril of Jerusalem used it to call Constantius II's attention to what he called an even greater miracle, the appearance of a cross in the sky over Jerusalem that was widely visible for several days.[5] Helena herself takes a little

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[3] Before the fourth century ended, Ambrose of Milan made this connection to imperial legitimacy in his 395 Funeral Oration for Theodosius I. See *De obit. Theod*., esp. 47-52. Images of Constantine and Helena flanking a Cross became ubiquitous in church decorations and Byzantine coins; see Anatole Frolow, *Les reliquaires de la Vraie Croix*, Archives de l'Orient Chrétien 8 (Paris, 1965).

[4] Henry Chadwick, "The Fall of Eustathius of Antioch," *JTS* 49 (1948), 27-35, sets the date back from 330 or 331 on the basis of Helena's encounter with Bishop Eustathius of Antioch. Richard W. Burgess has since proposed redating to the end of 328 on the basis of a mid-fourth century chronicle: "The Date of the Deposition of Eustathius of Antioch," *JTS*, n. s., 51 (2000), 150-60.

[5] *Epistola ad Constantium piissimum imperatorem*, *PG* 33, 1165-76. On this letter's authenticity, see E. Bihain, "L'épitre de Cyrille de Jérusalem à Constance sur la vision de la Croix. Tradition manuscrite et édition critique," *Byzantion* 43 (1973), 264-96; Philip Wainwright, "The Authenticity of the Recently Discovered Letter Attributed to Cyril of Jerusalem," *VC* 40 (1986), 286-93; J.W. Drijvers, *Cyril of Jerusalem: Bishop and City*, Vigiliae Christianae Suppl. 72 (Leiden, 2004), 50-52.

longer to appear in accounts of the discovery, but her role was known to Ambrose when he delivered his Funeral Oration for Theodosius I in 395, and by the first quarter of the next century Judas had become the face of a repentant Jewry.[6]

It is harder to establish when this account of the discovery was folded into a universal history of the wood of the cross. Two fifteenth-century illustrated cycles—one by Piero della Francesca for the Church of San Francesco in Arezzo, the other by an anonymous Dutch woodcutter for a book published in 1483—were undoubtedly inspired by the version recorded in Jacobus de Voragine's thirteenth-century blockbuster, the *Legenda Aurea*.[7] But while Jacobus popularized the story he certainly did not create it. Where and how did it originate? In the west, no written version earlier than the early twelfth-century manuscript of Honorius of Autun has been identified, while the earliest versions in the east appear to be no later than the eighth century.[8] But the literary underpinnings of the story may be found in an account of the discovery of the cross by Alexander the Monk, who seems to have lived no later than the sixth century.[9] Internal evidence suggests a date no later than the mid-fifth century: Alexander discusses Cyril's letter to the emperor Constantius concerning a cross that appeared in Jerusalem's sky in 351 at 4069, and at 4029C he refers to Epiphanius of Salamis and Ephraim the Syrian, both mid-fourth century figures, while at 4072A he indicates that he was aware of the Judas Kyriakos story, as well as the legend of a previous discovery during the reign of Claudius, both of which developed in the early fifth century. Another work written by Alexander, *laudatio Barnabas*, which celebrates discovery of the apostle's relics in 488, and criticism of Origen in this work at 4020A that seems to be in line with anti-Origen polemics of the mid-sixth century, have been cited as

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[6] Han and Jan Willem Drivers, *The Finding of the True Cross: The Judas Kyriakos Legend in Syriac. Introduction, Text and Translation*, CSCO 565, Subsidia 93 (Louvain, 1997); Ambrose, *De obit. Theod*., 41-8.

[7] For edition and translation, see n. 2 above. On Piero's frescoes, see L. Schneider, "The Iconography of Piero della Francesca's Frescoes Illustrating the True Cross in the Church of San Francesco in Arezzo," *Art Quarterly* 32 (Spring 1969), 22-4; the Dutch woodcuts are reprinted in J. Ashton, *The Legendary History of the Cross. A Series of 64 Woodcuts from a Dutch Book Published by Veldener, AD 1483* (London, 1887).

[8] Barbara Baert, *A Heritage of Holy Wood: The Legend of the True Cross in Text and Image*, tr. L. Preedy (Leiden, 2004), 289-90, 318-20.

[9] Alexander Monachos, *De inventione vivificae crucis*. The Migne edition (*PG* 87:3, 4015-4088) reproduces the text of J. Gretser, *Opera omnia de sancta cruce* (Ingolstadii 1616). P.C. Pennacchini used additional manuscripts in his later edition, *Discorso storico dell'invenzione della Croce del monaco Alessandro* (Grottaferrata, 1913), but since there are no significant changes in the passages used here, I cite the Migne text since it is more widely available. Unless otherwise noted, translations are taken from R. Scott, tr., "Discovery of the True Cross," in Margaret M. Mullett (ed.), *Metaphrastes, or, Gained in translation: essays and translations in honour of Robert H. Jordan*, Belfast Byzantine Texts and Translations, 9 (Belfast, 2004), 157-84.

evidence for a sixth-century date. Although this conclusion has been questioned,[10] the important point for present purposes is that absence of any reference to Heraclius makes a date after the sixth century unlikely.

Alexander's expressed aim is to tell the story of the discovery of the cross, in response to the request of certain unnamed superiors (4016A). Alexander is not interested in the wood of the cross. His plan is theological: he begins his account with a confession of faith, followed by a panegyrical riff on the qualities of the cross. Like Justin centuries earlier, he seeks to demonstrate the symbolic power of that instrument, arguing that "everything worthy in all creation has been made … in the form of a cross" (4021C). Nevertheless, this concentration on symbolism allows Alexander to make a simple, though fateful, shift. Instead of starting with Helena, he goes all the way back to Eden where, he explains, the Tree of Life, being wood like the cross, symbolized its import. In this way, he situates the cross in the narrative of the Fall.[11] Symbolism also allows him to make the same connections the Legend would with events in Biblical history. Alexander's emphasis is on "the holy Word," not the Holy Wood; the Word, he writes, "did not leave a gap in its visit upon each generation." But, he explains, the Word constantly signified itself symbolically through this cruciform symbol (4024B). In succeeding sentences, he uses wood to connect the symbol of the cross with Noah's Ark, Abraham's sacrifice, Jacob's staff, Moses' rod, the voice of the prophets and the three woods in Solomon's temple (4024C-4025A). "Thus," he argues, "for all those being saved from Adam to Christ, justice was always administered symbolically through the esteemed cross" (4025B).

Since we do not know exactly when the Legend began, we cannot say for certain that Alexander was its inspiration. But a connection is likely. As noted above, Alexander appears to have been responding to stories of the cross already in circulation, but these in all likelihood were the discovery stories that Sozomen also criticized for the role they assigned to Judas (*HE* 2.1). There is no indication that these accounts connected the cross with earlier Biblical history, and Alexander certainly was aware of the novelty of his approach. "No one should be critical of an introduction that is as long as this," he writes in defense of his plan, because "I wanted to reveal the glory of the life-making cross at the outset, a glory which shines out in every creation from the very beginning" (4021B).[12]

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[10] Alexander Kazhdan dismissed such calculations as arbitrary: *Oxford Dictionary of Byzantium*, I:60, and also questioned the identification of Alexander with the author of the *laudatio*, but on this see B. Kollmann and W. Deus (trans.), *Alexander Monachus, Laudatio Barnabae, Lobrede auf Barnabas*, Fontes Christiani 46 (Turnhout, 2007), 57.

[11] "And paradise has the symbol of the Cross, i.e. the Wood of Life, on which the serpent … allowed man to eat, quickly hurling him out of paradise…" (4021D-4022A).

[12] In his translation, Scott notes parallels with the *Chronicle* of Theophanes, but if Alexander does date to the sixth century, he obviously could not have drawn on this ninth century source. Analogues for all of the passages can also be found in Eusebius, either the *Church History* or *Life of Constantine*.

From this novel beginning, Alexander continued the story down to Helena with a fairly standardized synopsis of Christian history, largely cobbled out of the work of Eusebius of Caesarea. Still, all the elements of the later cross legend are already in place in his account—a story that begins at the beginning, that focuses on the cross, and that adopts a chronological format for its exposition.

Whether or not Alexander was the direct inspiration for the Legend of the Cross, comparison of the two approaches gives us a good opportunity to see how the ideas of the theologians were translated, so to speak, into a local dialect. Alexander was hardly a great thinker. But there is an immediate comparison that sets his account off from the Legend. Where Alexander thought in terms of the symbol of the cross,[13] the Legend ignores theological nuance and goes straight for the wood itself. By means of this simple transfer, the account in the Legend becomes much more immediate. No longer is it a Bowdlerized undergraduate essay; it has become a much better story, embellished with colorful circumstantial details such as would never have occurred to Alexander. More importantly for present purposes, it is a much more focused account that has a distinct aim and purpose: it knows what to omit as well as what to include. This focus makes the Legend a lot more fun to read than Alexander; more importantly, its circumstantial detail serves to answer a question that, according to our standard narrative, the superstitious folk who listened to these stories never would have asked.

Jesus' death on the cross is the central event of Christian history; it lies at the heart of Christian thought about the role of humanity in God's plan and serves as a marker for a better life ahead. But in simpler terms it is a profoundly unsettling event, for in ancient thought this was not the way deity was expected to interact with mortals. It was a major stumbling block for intellectuals, as Christians as early as St. Paul recognized,[14] but these problems are not supposed to have occurred to the simple-minded Christians who took in stories like the Legend of the Cross. Yet the Legend shows that they did. The Legend does not deal with these doubts the way an academic would, or even as Alexander the Monk does. It does not even say that there was a problem. Instead, by the simple device of embedding the wood of the cross into the fabric of the Hebrew Bible, having it appear at every key moment in Biblical history, the Legend resolves this critical question. By showing that the wood existed since the beginning of history; and not merely that it existed, but that it served to inspire and direct history from the very beginning, the Legend reassures its audience that Jesus' crucifixion was part of a divine plan, foreordained from the start. This is precisely what Alexander was trying to say, and what the literate among them could read in any number of expository tracts. But if the basic rule of good writing—show, don't tell—has any meaning, then the Legend of the Cross wins this contest hands down. The explanation might not suit our own standards for evidence, but its

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[13] At 4024B, for instance, he writes of the cross doing its work through history "by the symbol as in a sign" (ἀνακαλούμενος συμβολικῶς, ὡς ἐν αἰνίγματι).

[14] 1 Cor. 1:18; Gal. 5:11.

rhetorical strategy cannot be faulted: the smartest way to resolve a potentially sticky question is to answer it before it has even been asked, and that is precisely what the Legend succeeds in doing.

Once attuned to this role of the Legend as a means to air, and convincingly refute, doubts that the prevailing culture did not allow to be otherwise expressed, other elements of the story start to make sense. What would a skeptic have asked about the discovery of the cross, for instance? Undoubtedly, where has it been for 300 years? And how do you know it is real? The Legend provides very specific answers to these questions. They are not answers that rise to today's level of sufficiency, but that should not prevent us from recognizing that the questions are the same. The fact that these questions needed to be addressed tells us something about the dialogue between "high" and "low" culture in Late Antiquity, for there is no evidence that the answers provided by the Legend were any less satisfactory to elites than they were to common people.

These considerations tell us how to handle the role played by the Jew Judas. He is, in a way, the most surprising and unexpected figure in this story. Surprising, because he provokes a certain sympathy in the audience, showing a sense of pride and honor in the way he defends the secret, a heroic resistance to torture that is at odds with the scorn and hatred with which Christians in this era were taught to treat this adversary. The explanation lies in the verbal cue provided by his name. Judas may have been based on a historical figure, the Jewish convert Joseph, whose story plays a prominent role in Epiphanius's account of the Ebionites in the *Panarion*.[15] But this makes the change of name all the more significant. For the Judas of this story is meant to call to mind the Judas who betrayed Jesus to the authorities. By recognizing the truth of Christ, this Judas atones for the sins of his race, just as Jesus atoned for the original sin committed in the Garden of Eden. As surely as the Legend of the Cross reassured the faithful of the central role of the Crucifixion, Judas confirms that, deep down, Jews know the Gospel message is true.

Jacobus, Piero, and the anonymous woodcutter all testify to the powerful artistry of the Legend. For they show that, despite monumental events of the intervening millennium, not least of which were the Crusades, no need was felt to continue or update this story: in resolving questions fundamental to Christian belief, its job was done.

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[15] Epiphanius, *Panarion,* Haer. *1-33*, Jürgen Dummer and Karl Holl (eds), GCS 62 (Berlin, 2008). The Ebionites are Haer. 30. For Joseph, see 30.3-14. See also Glenn Koch, *A Critical Investigation of Epiphanius's Knowledge of the Ebionites: A Translation and Critical Discussion of Panarion 30* (Philadelphia, 1976).

# Chapter 6

# *Curiositas nihil recusat*: A Playful Defense of "Low" Biography against "High" History[1]

Cristiana Sogno

> For oratory and poetry offer a small reward, unless one's eloquence is really first-class, whereas history charms people in whatever style it is written. Men in fact are naturally curious, and they are delighted by the most basic account of facts, to the extent that some are carried away even by little stories and anecdotes.[2]

In this well-known letter to Titinius Capito, the "Maecenas of Trajan's Rome,"[3] Pliny argues that a privileged relationship exists between *curiositas* and the writing of history in general. Because of their natural curiosity, human beings are drawn to history no matter how (poorly) written.[4] According to Pliny, in the most extreme cases, *curiositas* can affect people's judgment, in so far as some men enjoy and are led to believe even *sermunculi* and *fabellae*.[5]

Pliny's remarks seem to suggest an uncommonly broad view of historiography as a genre driven by the *curiositas* of readers, which ultimately outweighs any concern for truth and style in historical writing. But a cursory look at the programmatic statements of ancient historians seems to suggest a radically

[1] I would like to thank Jennifer Ebbeler, Marco Formisano, Noel Lenski, Anthony Kaldellis, Scott McGill, Robert Penella, and Karin Schlapbach for reading and commenting on earlier drafts of this chapter. I am very grateful also to the anonymous reader for the helpful suggestions and to David Brakke, Deborah Deliyannis, and Edward Watts for organizing a most stimulating and enjoyable conference and for their assistance as editors. I am solely responsible for any remaining errors and infelicities.

[2] Plin. *Ep*. 5.8.4, *Orationi enim et carmini parva gratia, nisi eloquentia est summa: historia quoquo modo scripta delectat. Sunt enim homines natura curiosi, et quamlibet nuda rerum cognitione capiuntur, ut qui sermunculis etiam fabellisque ducantur*.

[3] R. Syme, *Tacitus* (Oxford, 1958), 93.

[4] The view expressed in this passage represents quite a departure from that of Cicero who emphasizes the importance of style in historiography. In a passage of the *De Oratore* (2.59), Antonius censures the early Roman historians, while praising the Greek historians on purely literary grounds (see P. Brunt, "Cicero and Historiography," in *Studies in Greek History and Thought* [Oxford, 1993], 192-3).

[5] The use of the diminutives is clearly pejorative and conveys the impression of accounts that are lacking not only in style (*sermunculi*), but also in truth (*fabellae*).

different *communis opinio* on the matter.[6] Even though both history and biography in antiquity were the product of high culture and as such were available to and enjoyed by a very small and privileged segment of the population, the wider scope and grander style of historical narrative seem to have granted loftier status to history. And because of its interest in (marginal) details, which classical historiography tended to disregard, *curiositas* seems to have been the necessary corollary not of "high" history, but of the lesser genre of biography.[7] It is therefore not surprising that the theme of *curiositas* plays a central role in the imperial biographies of the *Historia Augusta*, especially in the lives written by the (bogus) historian Flavius Vopiscus of Syracuse. This chapter is devoted to an in-depth exploration of this theme and the special connection of *curiositas* with biography in general and with the *Historia Augusta* in particular. In addition to an unapologetic interest in *trivia*, *levia*, and *frivola*, the *Historia Augusta* seems to suggest the existence of a triangular relationship between *curiositas*, style, and truth (or the lack thereof) in historical writing. The chapter is divided into two distinct but related parts. The first section focuses on the topos used by ancient historians to underscore the superiority of historiography over other genres, namely the choice of a subject matter worthy of the dignity of history. Interestingly, the same topos recurs frequently in the biographies of the *Historia Augusta*, but is routinely belied by the practice of including the most trivial, petty, and prurient details. Such blatant discrepancy between principle and practice seems to suggest that the author of the *Historia Augusta* is poking fun at one of the topoi dear to historiography. The second section is devoted to another fundamental topos in historical writing, that of the profession of truth. The author of the *Historia Augusta* playfully subverts this topos too by arguing that the lack of stylistic elegance of his curiosity-driven narrative is the guarantee of its veracity.

Since "in dealing with the *Historia Augusta* the first call is to clarity,"[8] a few words must be spent on the problematic issues of authorship, date, and the nature of the work. Following Syme, whose opinion is now accepted by the majority of scholars, I believe that the *Historia Augusta* is the work of a single (unknown) author.[9] The thorny question of the exact date of the *Historia Augusta* is not strictly relevant to the argument of this chapter. Either the last decade of the fourth century,

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[6] This rather unorthodox view seems contradicted elsewhere in this and other letters, where Pliny argues that "history (unlike a letter) is a grand genre which needs a grand style to match." See R. Ash, "*Alius est enim epistula, aliud historiam scribere* (*Epistles* 6.16.22): Pliny the Historian?" *Arethusa* 36.2 (2003), 211-25.

[7] For the problematic relationship between historiography and biography, see the discussion in the first section of this chapter.

[8] R. Syme, *Historia Augusta Papers* (Oxford, 1983), 27 and 95.

[9] The single-author hypothesis was first formulated by Hermann Dessau in his 1889 article "Über Zeit und Persönlichkeit der Scriptores Historiae Augustae," *Hermes* 24 (1889), 337-92. Dessau's brilliant article still offers the best introduction to this peculiar work. See also P. White, "The authorship of the *HA*," *JRS* 57 (1967), 115-33.

proposed by Syme, or the late 370s, persuasively defended by Cameron, would do.[10] More important is the issue of the nature of the work, perceptively described by Syme as "historical fiction." The two terms that make up Syme's felicitous expression should be considered equally important for better understanding the nature of the work: the *Historia Augusta* is indeed an unruly mélange of fact and fiction posing as history, but its subject matter allows the author to explore—however flippantly—fundamental questions of historiography.

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In a deservedly famous (and controversial) passage of Cicero's *De oratore* (2.62-3), Antonius, one of the dialogue's main interlocutors, offers a summary account of what we can assume "both Greeks and Romans thought historiography ought to be":[11]

> Everyone knows history's first law, not to dare to say anything false, and its second, not to be afraid to say anything true. There must be no suspicion of partiality or malice in what the historian writes. These foundations (*fundamenta*) are of course familiar to everyone; as for the building (*exaedificatio*) itself, that rests on the subject matter and the language. The rule for subject matter demands an ordering of times and a description of places. The reader of important events worthy of record (*rebus magnis memoriaque dignis*) expects first what was planned, then what was done, and finally what resulted.

Even though the passage is mainly concerned with what Antonius acknowledges as the universally known cardinal rules of historiography (*fundamenta*) and, more importantly, with the actual construction of the historical narrative (*exaedificatio*), Cicero via his speaker Antonius makes clear that the "great deeds worthy of memory" (*rebus magnis memoriaque dignis*) are the appropriate object of historical inquiry and, therefore, the only fitting subject for historiography.

Cicero's grand view of historiography finds confirmation in the statements—programmatic and otherwise—of ancient historians, both Roman and Greek. Among Cicero's contemporaries, Sallust in the long programmatic preface to the *Bellum Catilinae* declares his intent to write a history of the Roman people

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[10] For an exhaustive overview of the issue, see Alan Cameron, *The Last Pagans of Rome* (Oxford, 2010).

[11] *Nam quis nescit primam esse historiae legem, ne quid falsi dicere audeat? Deinde ne quid veri non audeat? Ne quae suspicio gratiae sit in scribendo? Ne quae simultatis? Haec scilicet fundamenta nota sunt omnibus, ipsa autem exaedificatio posita est in rebus et verbis: rerum ratio ordinem temporum desiderat, regionum descriptionem; vult etiam, quoniam in rebus magnis memoriaque dignis consilia primum, deinde acta, postea eventus exspectentur*. Translated in C. Holdsworth and T.P. Wiseman (eds), *The Inheritance of Historiography* (Exeter, 1986), 2.

by selecting the portions that seemed to him worthy of memory (*memoria digna*).[12] Later historians, moreover, make clear what the "great events worthy of memory" are by pointing out what events are not. Tacitus, for example, states that "few events worthy of memory" (*pauca memoria digna*) happened during the consulship of Nero and Piso, and the building of an amphitheater near the Campus Martius was not one of them.[13] A couple of interesting conclusions can be drawn from Tacitus' remarks. First, the obvious conclusion that Tacitus too is in agreement with Cicero in maintaining that historiography is concerned solely with *res inlustres*. According to the senatorial historian, the construction of buildings and events of that kind (*talia*) are better suited to *acta diurna*, a type of document that is usually (if perhaps anachronistically) described as a daily gazette and devoted as such to the listing of all events indiscriminately. An open distinction is thus drawn between historiography (*annalibus*), which is presented as an activity worthy of the "dignity of the Roman people," and simple lists of events. Moreover, the disparaging mention of a hypothetical writer happy to "fill volumes with the praise of foundations and timbers" suggests that panegyrics are the real target of Tacitus' biting remarks, and that panegyric and history are two incompatible genres.

The testimony of fourth century historians demonstrates that the Ciceronian ideal of *grande histoire* was still alive and well in Late Antiquity. In a surviving fragment of the preface to his history,[14] Eunapius not only emphasizes the selective nature of historiography, which must choose events "worthy to be narrated" (ἀξιόλογα), but also provides a definition of ἀξιόλογα as either events that concern humankind or events that have acquired an exceptional reputation because of the "virtue of an individual."[15] But perhaps the most eloquent apologia, in the Ciceronian tradition,[16] of the dignity of history can be found in the *Res Gestae* of Ammianus Marcellinus (26.1.1):[17]

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[12] Sal. *Cat*. 4.2, *statui res gestas populi Romani carptim, ut quaeque memoria digna videbantur, perscribere*.

[13] Tac. *Ann*. 13.31, *Nerone iterum L. Pisone consulibus pauca memoria digna evenere, nisi cui libeat laudandis fundamentis et trabibus, quis molem amphitheatri apud campum Martis Caesar exstruxerat, volumina implere, cum ex dignitate populi Romani repertum sit res inlustres annalibus, talia diurnis urbis actis mandare*.

[14] R.C. Blockley, *The Fragmentary Classicising Historians of the Later Roman Empire*, (Liverpool, 1981): πάντα δέ, ὅσα πρός τε τὸ κοινὸν ἁπάντων ἀνθρώπων ἀξιόλογα καὶ κατ' ἄνδρα δι' ἀρετὴν περιττοῦ τινος ὀνόματος τετυχηκότα.

[15] For the relationship between Eunapius' and Ammianus' view of history, see G. Sabbah, *La méthode d'Ammien Marcellin* (Paris, 1978), 48-9.

[16] Although focusing on the epilogue of the *Res Gestae*, Blockley offers a convincing account of Cicero's influence on the *Res Gestae*. See R. Blockley, "Ammianus and Cicero: The Epilogue of the *History* as a Literary Statement," *Phoenix* 52 (1998), 305-14.

[17] *Dictis inpensiore cura rerum ordinibus ad usque memoriae confinia propioris convenerat iam referre a notioribus pedem, ut et pericula declinentur veritati saepe contigua,*

> Having narrated the course of events with the strictest care up to the bounds of the present epoch, I had already determined to withdraw my foot from the more familiar tracks, partly to avoid the dangers which are often connected with the truth, and partly to escape unreasonable critics of the work which I am composing, who cry out as if wronged, if one has failed to mention what an emperor said at table, or left out the reason why the common soldiers were led before the standards for punishment, or because in an ample account of regions he ought not to have been silent about some insignificant forts; also because the names of all who came together to pay their respects to the city-praetor were not given, and many similar matters, which are not in accordance with the principles of history; for it is wont to detail the highlights of events (*per negotiorum celsitudines*), not to ferret out the trifling details of unimportant matters (*humilium minutias ... causarum*). For whoever wishes to know these may hope to be able to count the small indivisible bodies which fly through space, and to which we give the name of atoms.

The second methodological preface to the *Res Gestae* forcefully states that history marches along the high places and should not be concerned with petty details.[18] The table-talk of an emperor, the punishments of common soldiers, the names of minor forts, the attendants of the Urban praetor—these and similar trivialities are inconsonant with the principles of historiography.[19] Biography, however, thrives on details of this kind and seeks out *le petit fait significatif*.[20] The difference between historiography and biography is most famously illustrated by Plutarch

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*et examinatores contexendi operis deinde non perferamus intempestivos, strepentes ut laesos, si praeteritum sit, quod locutus est imperator in cena, vel omissum quam ob causam gregarii milites coerciti sunt apud signa, et quod non decuerat in descriptione multiplici regionum super exiguis silere castellis, quodque cunctorum nomina, qui ad urbani praetoris officium convenere, non sunt expressa, et similia plurima praeceptis historiae dissonantia, discurrere per negotiorum celsitudines adsuetae, non humilium minutias indagare causarum, quas si scitari voluerit quispiam, individua illa corpuscula volitantia per inane, atomous, ut nos appellamus, numerari posse sperabit*. Trans. by J.C. Rolfe.

[18] See J. Matthews, *The Roman Empire of Ammianus: With a New Introduction* (Ann Arbor, MI, 2007), 204, 457, 459; G. Kelly, *Ammianus Marcellinus: The Allusive Historian* (Cambridge, 2008), 292-3.

[19] Ammianus' selectiveness in choosing which events to relate is further narrowed by his "aristocratic" disdain for social inferiors, as demonstrated by his refusal to give a detailed account of a scandal involving a woman because "not all that happened among people of the lowest class is worth narrating" (Amm. 28.1.15, *et quoniam existimo, forsitan aliquos haec lecturos, exquisite scrutando notare, strepentes id actum esse prius, non illud, aut ea, quae viderint praetermissa: hactenus faciendum est satis quod non omnia narratu sunt digna, quae per squalidas transiere personas*.)

[20] An interesting exception is represented by Eunapius' preface to the *Lives of Sophists* (453). There Eunapius takes issue with the opening of Xenophon's *Symposium*, which urges that even the casual doings (*parerga*) of distinguished men should be recorded. In contrast Eunapius will record only the main achievements of his subjects.

in the preface to the life of Alexander, which emphasizes the difference in scale between the two.[21] Since the interest of the biographer lies in character,[22] *le petit fait* (πρᾶγμα βραχὺ) and *bon mots* (καὶ ῥῆμα καὶ παιδιά τις) are far more relevant to biography than "the bloodiest battles, greatest armaments, and sieges," which are usually the focus of *la grande histoire*.

Following these considerations, Ammianus' contempt for *trivia* has been interpreted as a reaction against biography[23] and its practitioners.[24] However, as one might expect, Ammianus' indictment should not be read as a radical rejection of "all the biographical elements,"[25] and ancient literary practice shows a great degree of reciprocal influence and overlapping between the two genres.[26] However apologetically, Cassius Dio inserts into his universal history trivial details that, though "unworthy of the dignity of historiography" (ἀνάξιον τοῦ τῆς ἱστορίας ὄγκου), illustrate the character of Domitian;[27] and even a cursory reading shows that the *Res Gestae* contains numerous descriptions of character and individual conducts, as well as descriptions of physical traits. In the light of his methodological statement, Ammianus' criticism becomes clearer and more specific: what Ammianus objects to is the lack of a distinction between the trivial and the important and a perverse fascination with the scandalous and the prurient, indulged in by biographers such as Marius Maximus. Ultimately, both Ammianus and Cassius Dio seem to recognize a certain methodological validity to the biographical approach, and, while acknowledging the limitations in scope

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[21] Plut. *Alex*. 1.2, οὔτε γὰρ ἱστορίας γράφομεν, ἀλλὰ βίους, οὔτε ταῖς ἐπιφανεστάταις πράξεσι πάντως ἔνεστι δήλωσις ἀρετῆς ἢ κακίας, ἀλλὰ πρᾶγμα βραχὺ πολλάκις καὶ ῥῆμα καὶ παιδιά τις ἔμφασιν ἤθους ἐποίησε μᾶλλον ἢ μάχαι μυριόνεκροι καὶ παρατάξεις αἱ μέγισται καὶ πολιορκίαι πόλεων.

[22] As Dihle has shown, this "Charakterisierung durch Fakten" stems from Aristotle's theory about the relationship between actions and character. A. Dihle, *Studien zur Griechischen Biographie* (Göttingen, 1956), 60-64.

[23] W. Ensslin, *Zur Geschichtsschreibung und Weltanschauung des Ammianus Marcellinus, Klio Beiheft 16* (diss. Leipzig, 1923; Aalen, 1963), 15.

[24] A good illustration of Ammianus' contempt for biography can be found in his scathing indictment of the tastes of the Roman aristocracy. In a deservedly famous passage, Ammianus reviles the Roman senators for keeping their fantastic libraries locked and for wasting their *otium* by reading the biographies of Marius Maximus. Amm. 28.1.14, *Quidam detestantes ut venena doctrinas, Iuvenalem et Marium Maximum curatiore studio legunt, nulla volumina praeter haec in profundo otio contrectantes, quam ob causam non iudicioli est nostri*.

[25] See Matthews, *The Roman Empire*, 459; cf. Kelly, *Ammianus*, 214.

[26] The Elder Seneca (*Suas*. 6.21) points out the practice in Greco-Roman historiography of including biographical sketches of great men. See D. Den Hengst, "De Romeinse keizerbiographie," *Lampas* 17 (1984), 374-5.

[27] Dio Cass. 66.9.4, ἐν γοῦν τῷ Ἀλβανῷ χωρίῳ τὰ πλεῖστα διάγων ἄλλα τε πολλὰ καὶ γελοῖα ἔπραττε, καὶ τὰς μυίας γραφείοις κατεκέντει. τοῦτο γὰρ εἰ καὶ ἀνάξιον τοῦ τῆς ἱστορίας ὄγκου ἐστίν, ἀλλ'ὅτι γε ἱκανῶς τὸν τρόπον αὐτοῦ ἐνδείκνυται, ἀναγκαίως ἔγραψα.

of biography when compared with historiography, they are prepared to incorporate biographical elements in their histories.

Interestingly, the elusive author of the *Historia Augusta*, though squarely placing himself in the biographical tradition,[28] seems especially fond of the expression *dignum/digna memoratu*, which, as we have seen, is one of the topoi used by historians to establish the superiority of historiography over other genres, such as biography and—judging from the passage of Tacitus quoted above—panegyric. The expression appears 15 times in the collection as a whole, but is especially frequent in the lives of *Maximini duo*, *Gordiani tres*, and *Maximus and Balbinus* and in the lives written by Flavius Vopiscus.[29] That "the practice of the author of the *Historia Augusta* is completely at variance with his own principle" should not be surprising in a work of historical fiction; and, although it is possible that the author is engaging in a "mechanical repetition of a historiographical topos,"[30] it seems more probable that in this as in other cases he is consciously toying with one of the most cherished topoi in historiography.[31] Moreover, the inconsistency between practice and principle in the *Historia Augusta* can be seen as a direct consequence of the inconsistency of the author with regard to principle. On the one hand, the author seems to follow Plutarch's precept by arguing that, even though trivial and vulgar details (*rerum vilium*)[32] are better suited to gossip (*mythistoriis*)[33] than historiography, they might be included if they contribute to the portrayal of character (*mores*). On the other hand, the claim in one of the lives

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[28] *Prob*. 2.7 draws a telling distinction between *disertissimi viri*, i.e. Greek and Roman historians, and *qui ... non tam diserte quam vere memoriae tradiderunt*, i.e. biographers, both real (Suetonius, Valerius Maximus) and fictitious (e.g. Aelius Lampridius, one of the "authors" of the *Historia Augusta*).

[29] See Den Hengst, *Prefaces*, 44-6.

[30] See Den Hengst, *Prefaces*, 161.

[31] The second and related topos—that of truth in historiography—receives the same irreverent and paradoxical treatment, as argued in the second half of this chapter.

[32] *Macrin.* 1.3-5, *et Iunio quidem Cordo studium fuit eorum imperatorum vitas edere quos obscuriores videbat. qui non multum profecit; nam et pauca repperit et indigna memoratu, adserens se minima quaeque persecuturum, quasi vel de Traiano aut Pio aut Marco sciendum sit, quotiens processerit, quando cibos variaverit et quando vestem mutaverit et quos quando promoverit. quae ille omnia exsequendo libros mythistoriis replevit talia scribendo, cum omnino rerum vilium aut nulla scribenda sint aut nimis pauca, si tamen ex his mores possint animadverti, qui re vera sciendi sunt, sed ex parte, ut ex ea cetera colligantur*.

[33] The term *mythistoria*, a term invented by the author of the *Historia Augusta*, is defined in the *TLL* as *narratio fabulosa*. As in the case of the English word "gossip," two distinct notions are implicit in such definition, i.e. the notion of *levitas* and that of *mendacium*. The notion of *levitas* seems prevalent in the *Historia Augusta* insofar as *res viles* (*Macr.* 1.5)*, infimae res* (*Gord.* 21.4), and *frivola* (*Clod. Alb.* 5.10) constitute the subject matter of *mythistoria*. However, one might wonder whether writers of *mythistoriae*, such as the *Historia Augusta*'s "whipping boy" Junius Cordus, are trustworthy sources for

written by Vopiscus that "curiosity stops at nothing" (*curiositas nihil recusat*) is used as a justification for including petty and irrelevant details in the narrative, thus making *curiositas* its own reward.[34]

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The theme of *curiositas* comes into sharp focus in the last portion of the *Historia Augusta* and is obliquely but inextricably connected with a fundamental topos in historiography, that of truth in historical writing.[35] The passage of Cicero mentioned above reminds us of the two fundamental laws of historiography, not to dare to say anything false (*ne quid falsi dicere audeat*), and not to dare to omit anything true (*ne quid veri non* [*dicere*] *audeat*). Whatever the exact meaning of Antonius's words might be,[36] similar professions of truth are a recurring feature of programmatic prefaces and statements in historiography. Among the contemporaries of the author of the *Historia Augusta*, Ammianus seems to echo very closely the words of the *De oratore* (2.62) in the last paragraph of his *Res gestae*,[37] when he claims to have written a work that professes a truth uncorrupted by either lies (*mendacio*) or omissions (*silentio*).[38]

The truthfulness and veracity of historians is the target of a humorous and paradoxical attack in the *Historia Augusta*. In the programmatic preface of the first of the six biographies attributed to him, the fictional historian Flavius Vopiscus is engaged in a lively discussion with the urban prefect Junius Tiberianus, tellingly, at the festival of the *Hilaria*. The preface is divided (somewhat awkwardly) into two parts. The first section relates the circumstances under which our author was asked to write a biography of the emperor Aurelianus (*Aurel*. 1.1). The second part discusses

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this kind of details. See also Cameron (*The Last Pagans*), who argues that "the author of the *HA* was familiar with the shady Greek mythhistorical literature of the early empire."

[34] *Aurel*. 10.1, *Frivola haec fortassis cuipiam et nimis levia esse videantur, sed curiositas nihil recusat*.

[35] The theme of *curiositas* is especially relevant in the lives attributed to the bogus historian Flavius Vopiscus from Syracuse. Among the "authors" of the *Historia Augusta*, Vopiscus is the one endowed with a "marked literary personality." See Syme, *Ammianus*, 179.

[36] According to A.J. Woodman, *Rhetoric in Classical Historiography* (London, 1988), 72, "Cicero here sees truth only in terms of impartiality." See also J. Marincola, *Authority and tradition in ancient historiography* (Cambridge, 1997), 180-81.

[37] Amm. 31.16.9, *Haec ut miles quondam et Graecus, a principatu Caesaris Nervae exorsus ad usque Valentis interitum pro virium explicavi mensura: opus veritatem professum numquam, ut arbitror, sciens silentio ausus corrumpere vel mendacio. scribant reliqua potiores, aetate doctrinisque florentes. quos id, si libuerit, adgressuros, procudere linguas ad maiores moneo stilos*.

[38] For a most recent discussion of Ammianus' sphragis, see Kelly, *Ammianus*, 318-21, with bibliographical references in note 2.

the merits of Trebellius Pollio, the biographer whose work precedes Vopiscus' in the *Historia Augusta*, and ends with the suggestions that all historians lie:[39]

> Now, when in the same carriage our talk had fallen on Trebellius Pollio … Tiberianus asserted that much of Pollio's work was too careless and much was too brief; but when I said in reply that there was no writer, at least in the realm of history, who had not made some false statement, and even pointed out the places in which Livy and Sallust, Cornelius Tacitus, and, finally, Trogus could be refuted by manifest proofs, he came over wholly to my opinion, and, throwing up his hands, he jestingly said besides: "Well then, write as you will. You will be safe (*securus*) in saying whatever you wish, since you will have as comrades in falsehood those authors whom we admire for the style of their histories (*comites mendaciorum quos historicae eloquentiae miramur auctores*)."

Following a well-established technique in historiography, Vopiscus uses both polemic and praise to define his own task.[40] Tiberianus' criticism of Pollio prompts a passionate reaction from Vopiscus: in defense of Pollio, Vopiscus points out the passages in which the great historians of the past (namely, Livy, Sallust, Tacitus, and Trogus) could be "refuted by manifest proofs." Tiberianus' response is rather startling: easily persuaded by the argument, he jokingly authorizes Vopiscus to give rein to his imagination. Vopiscus can write as he wishes without fear (*securus*),[41] since he will have "as comrades in falsehood those authors whom we admire for the style of their histories."

As Syme remarked, "the genial author [of the *Historia Augusta*] has raised his mask for a moment."[42] His naughty criticism of the model historians of the past

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[39] *Et quoniam sermo nobis de Trebellio Pollione … in eodem vehiculo fuit adserente Tiberiano, quod Pollio multa incuriose, multa breviter prodidisset, me contra dicente neminem scriptorum, quantum ad historiam pertinet, non aliquid esse mentitum, prodente quin etiam, in quo Livius, in quo Sallustius, in quo Cornelius Tacitus, in quo denique Trogus manifestis testibus convincerentur, pedibus in sententiam transitum faciens ac manum porrigens iocando[m] praeterea: "scribe," inquit, "ut libet. Securus, quod velis, dices, habiturus mendaciorum comites, quos historicae eloquentiae miramur auctores."* Trans. by D. Magie.

[40] See Marincola, *Authority*, 218.

[41] The word *securus* seems to be used in the same way in which Ammianus uses it when discussinbg the dangers of history (26.1.1, *pericula … veritati contigua*). As Matthews has persuasively argued (*The Roman Empire*, 457), Ammianus is not alluding to "fear of physical danger to himself from displeased emperors or politicians," but to fear of criticism from readers displeased with the lack of (trivial) details. Tiberianus makes a similar point by maintaining that lying will protect Vopiscus from criticism. But, whereas for Ammianus *veritas* is the province of traditional historiography (*grande histoire*), for Tiberianus traditional historiography is hopelessly tainted by *eloquentia* and amounts to little more than lying.

[42] Syme, *Ammianus*, 215.

not only gives him a ready "excuse for any imperfections of his own work,"[43] while providing him with the authorization to write fiction. More importantly, the passage hints at a connection between *curiositas* (or the lack thereof), truth (or the lack thereof), and style. In response to Tiberianus' criticism that Pollio has written "in an inaccurate and cursory fashion" (*incuriose et breviter*), Vopiscus points out that quite a few of the most illustrious historians have made some false statements and is ready to back his assertion with examples. In a startling move, Tiberianus pushes the envelope further by concluding, however jokingly, that the authors admired for their *historica eloquentia* are a bunch of liars. The passage shows a notable escalation in the intensity of the accusations hurled against the truthfulness of historians: from inaccuracy, to occasional distortion, to systematic lying.

The connection between *curiositas*, truth, and style becomes stronger and clearer in the light of other passages of the lives written by Vopiscus. In the *Life of Probus*, Vopiscus states that his purpose in "relating the lives and times of the emperors" was *not* to imitate the *viri disertissimi*, namely again Livy, Sallust, Tacitus, and Trogus, but to follow the examples set by a series of biographers (real and fictitious)[44] who "have handed down to memory these and other such details not so much with eloquence (*diserte*) as with truthfulness (*vere*)." Both passages make clear that eloquence is the enemy of truth.

The opposition between eloquence and truth[45] helps us understand Vopiscus' concluding remarks in the last biography of the *Historia Augusta* (*Car.* 21.2-3):[46]

> And now, my friend, accept this gift of mine, which, as I have often said, I have brought out to the light of day, not because of its elegance of style but because of its learned research (*non eloquentiae causa sed curiositatis*), chiefly with this purpose in view, that if any gifted stylist should wish to reveal the deeds of the emperors, he might not lack the material, having, as he will, my little books as

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[43] The distortion of the *veritas* topos in this preface is an ingenious reworking of the material found in Cic. *de legib*. 1.5, and *Brut.* 42. See Den Hengst, *Prefaces*, 95 and 97-8.

[44] As usual, consistency is not the strong point of the *Historia Augusta*. In this passage Vopiscus cites Marius Maximus as one of the biographers that he intends to imitate, whereas in the so-called *Quadriga Tyrannorum* (1.2), Marius Maximus is described as *homo omnium verbosissimus, qui mythistoricis voluminibus se implicavit*.

[45] The opposition between *eloquentia* and *verum/utilis* is apparently very common in the so-called "letteratura tecnico scientifica." See M. Formisano, *Tecnica e scrittura: Le letterature tecnico scientifiche nello spazio letterario tardolatino* (Roma, 2001), 74, 85, 97, and 104.

[46] *Habe, mi amice, meum munus, quod ego, ut saepe dixi, non eloquentiae causa sed curiositatis in lumen edidi, id praecipue agens ut, si quis eloquens vellet facta principum reserare, materiam non requireret, habiturus meos libellos ministros eloquii. te quaeso, sis contentus nosque sic voluisse scribere melius quam potuisse contendas*. Trans. by D. Magie.

> ministers to his eloquence. I pray you, then, to be content and to contend that in this work I had the wish to write better than I had the power.[47]

Vopiscus' emphasis on *curiositas* as opposed to *eloquentia* can be read as an idiosyncratic profession of truth that concludes the *Historia Augusta*. In this reading, the trumpeted lack of stylistic elegance becomes the (ironic) guarantee of the truth of its content.

Furthermore, the emphasis on *res*, such as the *facta principum*, is a recurrent theme in the *Historia Augusta*,[48] and Vopiscus' final plea to the recipient of his work to be "content with it" and to "contend that [Vopiscus] had the wish to write better than [he] had the power" is a well-worn topos in Latin prose prefaces.[49] More precisely, three types of the "deficiency of style" topos have been identified: the topos can be an expression of modesty, it can imply a scorn for rhetoric, or it can be a combination of the two. In Vopiscus' case, the meaning of *potuisse* is nicely ambiguous: on the one hand, it can be an expression of modesty, such as "I had the ambition to write well, but lacked the power"; on the other hand, *potuisse* seems to imply that the author would and probably could have written well, but chose not to because he wanted to tell the truth. In other words, Vopiscus might be stating that he chose *res* over *eloquium*, and this reading is reinforced by a passage of another life attributed to Vopiscus,[50] where he promises no "fluency or elegance of style" (*facultatem elegantiamque*) but "deeds" (*res gestas*). In this respect, Vopiscus' attitude is consistent with the attitude expressed by his supposed model Trebellius Pollio, who bluntly states that he has written many books *non historico nec diserto sed pedestri adloquio* (*Tyr. Trig.* 1.1).

Finally, two additional remarks will conclude this exploration of the theme of *curiositas* in the *Historia Augusta* and of its relation to truth and style. First, Vopiscus' (pretended) scorn for rhetoric and the opposition *res*-*verba* find nice

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[47] In his panegyric for Theodosius, Pacatus makes a similar point when he argues that his panegyric will provide the raw material for both epic and history (*Paneg. Lat.* XII[2].47.6, *Ad me longinquae convenient civitates, a me gestarum ordinem rerum stilus omnis accipiet, a me argumentum poetica, a me fidem sumet historia. Compensabo tibi istam, imperator, iniuriam si, cum de te ipse nil dixerim quod legendum sit, instruam qui legantur*). Cf. also the traditional definition of the *commentarius*, as a text rich in fact, but not stylistically elaborated, intended for use as a primary source by a historian or orator (Aulus Hirtius, *Bellum Gallicum* VIII, preface; Cic., *Brutus* 75 [262]; Cic., *Ad Attic*. 2.1 [21 Shackleton Bailey]; in these passages, Caesar and Cicero DO bring stylistic polish to the commentarius, but the point made is that this was not expected).

[48] See, e.g., *Tyr. Triginta*, 33.8, *neque ego eloquentiam mihi videor pollicitus esse, sed rem, qui hos libellos, quos de vita principum edidi, non scribo sed dicto, et dicto cum ea festinatione, quam, si quid vel ipse promisero vel tu petieris, sic perurges ut respirandi non habeam facultatem*.

[49] T. Janson, *Latin Prose Prefaces* (Stockholm, 1964), 125.

[50] *Prob*. 1.6, *neque ego nunc facultatem eloquentiamque polliceor sed res gestas, quas perire non patior*.

parallels in the rhetoric of Christian authors, especially of the fourth century. There are some striking parallels between the *Historia Augusta* and the prologues of Jerome's exegetical works.[51] Another instructive comparandum is offered by a letter of Ambrose (*Ep*. 18) written in the course of the controversy over the altar of Victory. Ambrose argues the brilliance of Symmachus' *eloquium*, which supposedly has the power to blind the reader to truth, is ultimately a cover for lies, whereas the unadorned style of his response to Symmachus is the guarantee of truth.[52]

Secondly, and more importantly, following in Trebellius Pollio's (fictitious) footsteps, Vopiscus sets up a clear distinction between his work, concerned with *res*, and the work of historians *and* panegyrists, who both privilege *verba* over *res*. The expression *quis eloquens* (*Car*. 21.2) seemingly (and outrageously) lumps together both the historian *and* the panegyrist. This assumption seems to find confirmation in Trebellius Pollio's remark that distinguishes between the *historicum et disertum adloquium* on the one side and the *pedestre adloquium* on the other (*Tyr. Trig*. 1.1). Other contemporary works of history, such as Eutropius' *Breviarium*, and Ammianus' *Res Gestae*[53] end with the remark that (contemporary) history must be told in a "loftier style" (*celsiore eloquio*),[54] thus conforming with what Barnes calls "the cardinal rule of imperial historiography, that history could only be written about dead emperors since the living expected (and deserved) to receive panegyric."[55] The fact that Vopiscus is willing to offer his *libellus* as subject matter for either history or panegyric without distinction between the two is another indication of his (playful) indictment of the profession of *veritas* on the part of historians.

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[51] Den Hengst, *Prefaces*, 72.

[52] As Isabella Gualandri shows ("La risposta di Ambrogio a Simmaco: destinatari pagani e destinatari cristiani," in F.E. Consolino [ed.], *Pagani e cristiani da Giuliano l'Apostata al sacco di Roma* [Catanzaro, 1995], 241-56), Ambrose is in fact quite skilled at rhetoric himself and can pick up and play with the Vergilian echoes embedded in Symmachus' text.

[53] For a different interpretation of the end of Ammianus' history, see Blockley, "Ammianus," 1998; cf. Kelly, *Ammianus*, which suggests that the two readings are not mutually exclusive.

[54] The same expression is used also in *Prob*. 2.6 (*illud tantum contestatum volo, me et rem scripsisse, quam si quis voluerit honestius eloquio celsiore demonstret*).

[55] T.D. Barnes, *Ammianus Marcellinus and the Representation of Historical Reality* (Ithaca, NY, 1998), 185.

# Chapter 7
# Decline of Political Culture: Ammianus Marcellinus' Characterization of the Reigns of Valentinian and Valens

Jan Willem Drijvers

Ammianus Marcellinus deals predominantly with political and military affairs in his treatment of the reigns of the fourth-century emperors who are central to the extant books of his *Res Gestae* that describe the historical events of the years 354-378. Cultural interaction and adaptation in all its different forms and expressions are not subjects to which Ammianus paid much attention in his work, in spite of the great cultural transformations, in particular in the area of religion, the Roman world of his time experienced. This is not to say that Ammianus was unfamiliar with or had no interest in the culture of his society. On the contrary: Ammianus was a man of culture. Although his biography is elusive, we can reasonably assume that Ammianus grew up in Antioch where his family belonged to the urban elite.[1] He was no doubt brought up in the tradition of classical *paideia*. His *Res Gestae* displays his knowledge of the classical tradition and is itself probably the best example of his cultural interest: it was deliberately composed in the cultural and literary convention of classical historiography as is clear from its style and the many implicit and explicit allusions to the writers of old and to ancient history.[2]

The assessment of the character and deeds of generals, politicians and, in the case of Roman imperial historiography, the appraisal of emperors was an important feature of classical historiography. Also Ammianus assesses the reigns of the emperors he describes. He does so throughout his narrative of the military and political events of individual emperors, but he does it most explicitly in the obituaries which he presents at the end of the reign of each emperor. Here their virtues and vices are presented and a balanced judgement of the emperor's person and reign is given.[3]

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[1] For a discussion of Ammianus' Antiochene provenance and social status see now Gavin Kelly, *Ammianus Marcellinus: The Allusive Historian* (Cambridge, 2008), 110-32.

[2] Kelly, *Ammianus Marcellinus*; C.W. Fornara, "Studies in Ammianus Marcellinus II: Ammianus' Use and Knowledge of Greek and Latin Literature", *Historia* 41 (1992), 420-38.

[3] Ammianus presents necrologies of the emperors Gallus Caesar, Constantius II, Julian, Jovian, Valentinian, Valens and the usurper Procopius.

Ammianus has inter alia been called a nostalgic historian longing for a lost world and one describing events which he wished would never have happened.[4] That is certainly true for the reigns of Valentinian I (364-75) and Valens (364-78). The last hexad of Ammianus' historical work (Books 26-31) deals in particular with this period. Ammianus presents an account of a world in transformation, if not in decline. Barbarian invasions and warfare characterized the reigns of these Pannonian emperors. There were troubles at the frontiers with Alamanni, Saxons, Quadi, Goths, Huns and Alans. There was a conflict with Persia over Armenia, raids by Isaurians and troubles in Britain. Moreover, both emperors were confronted with usurpations and revolts by Procopius in Constantinople and Firmus in Africa. The disastrous climax was the Roman defeat at Adrianople by the Goths (378).

Although the reigns of Valentinian and Valens have perhaps not quite received the scholarly attention they deserve – in particular on Valentinian we still lack an up-to-date monograph[5] – they have given occasion to differences of opinion amongst scholars. At the foundation of the divergence of views lies Ammianus' assessment of their rule, for Ammianus is the most important historical source for the Valentinian dynasty. Let me give a few examples. The great Otto Seeck in his *Geschichte des Untergangs der antiken Welt* presents Valentinian and Valens as semi-barbarians who were not very smart and still had barbarian instincts. They had bad taste, were faint-hearted, did not keep to their promises, were bloodthirsty, and suffered from lack of self-confidence. In their actions towards enemies they were weak and indecisive.[6] Seeck's negative presentation was, in the case of Valentinian, first somewhat nuanced some years later by his compatriot Walter Heering in the latter's 'Doktorarbeit'.[7] Valentinian's defects are explained by Heering by the fact that the emperor was in the first place a soldier with a "Soldatennatur" who ruled the empire in a military fashion.[8] Edward Thompson

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[4] T.D. Barnes, "Literary Convention, Nostalgia and Reality in Ammianus Marcellinus", in G. Clarke et al. (eds), *Reading the Past in Late Antiquity* (Rushcutters Bay, 1990), 59-92, at 75.

[5] There are two recent studies on the reign of Valentinian but neither is comprehensive: M. Raimondi, *Valentiniano I e la scelta dell'Occidente* (Turin, 2001) and S. Schmidt-Hofner, *Reagieren und Gestalten: Der Regierungsstil des spätrömischen Kaisers am Beispiel der Gesetzgebung Valentinians I.* (Munich, 2008). Unfortunately, Roger Tomlin's DPhil thesis *The Emperor Valentinian I* (Oxford, 1973) was never published and is almost inaccessible. For Valens there is the excellent study by Noel Lenski, *Failure of Empire: Valens and the Roman State in the Fourth Century A.D.* (Berkeley, CA, 2002).

[6] O. Seeck, *Geschichte des Untergangs der antiken Welt* 5 (Berlin, 1913), 7, 17, 25, 35, 41.

[7] W. Heering, *Kaiser Valentinian I (364-375 n.Chr.)* (Magdeburg, 1927), esp. 64-8.

[8] Heering, *Kaiser Valentinian*, 65: "Er hat … den ganzen Staat, besonders die Verwaltung als Soldat gesehen und, man kann fast sagen, soldatisch geleitet".

in turn evaluated the reign of the Pannonian emperors again rather negatively,[9] but Andrew Alföldi then offered a further attempt to correct Seeck's picture of the Valentiniani. Unfortunately Alföldi tipped the scale completely to the other side and presented a very positive picture, in particular of Valentinian. In his view the main culprit for the bad press Valentinian had received was Ammianus. His account was an "emotional narrative, swarming with grotesque detail"; he was "incredibly one-sided" and looked at Valentinian "through a distorting mirror".[10] According to Alföldi, Valentinian was "an outstanding emperor", who among other things was less cruel than Constantine and Theodosius and who had inherited the corruption under his reign from his predecessors.[11] In his unpublished Oxford dissertation, Roger Tomlin presented a more balanced image by not denying Valentinian's vices but arguing that Ammianus gave a somewhat biased characterization of the emperor.[12] Also John Matthews sketched a nuanced picture of the reign of the Valentinians in his *The Roman Empire of Ammianus*, carefully assessing both the negative and positive sides of Valentinian and Valens as presented by Ammianus.[13] Not long after the appearance of this work, François Paschoud argued that it was Ammianus' deliberate intention to blacken Valentinian by sketching a perfidiously and maliciously distorted portrait of the Pannonian emperor in order to contrast him with Julian.[14] In response to this, Hans Teitler has recently argued that although Ammianus made no attempt to disguise his dislike of Valentinian, he was also fair enough to acknowledge his merits.[15]

In spite of these divergent scholarly appraisals, it is hard to challenge the fact that Ammianus presents the Roman Empire under the Valentiniani as a society of disorder and repression. Ammianus' characterization of the post-Julianic empire is not only that of a state which was confronted with serious barbarian threats at its frontiers but also of an empire which suffered from grave internal problems and in which corruption and injustice reached a climax. The disaster of 378 at

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[9] E.A. Thompson, *The Historical Work of Ammianus Marcellinus* (Cambridge, 1947), *passim*.

[10] A. Alföldi, *A Conflict of Ideas in the Late Roman Empire. The Clash between the Senate and Valentininan I* (Oxford, 1952), 3, 65, 42.

[11] Alföldi, *Conflict of Ideas*, 41, 32. Presumably Alföldi was, at least in part, motivated by the desire to rehabilitate a fellow "Hungarian".

[12] Tomlin, *The Emperor Valentinian I*, 35ff.

[13] J.F. Matthews, *The Roman Empire of Ammianus* (London, 1989; repr. with a new introduction Ann Arbor, 2008), 215 ff.

[14] François Paschoud, "Valentinien travesti, ou: De la malignité d'Ammien", in J. den Boeft, D. den Hengst and H.C. Teitler (eds), *Cognitio Gestorum: The Historiographic Art of Ammianus Marcellinus* (Amsterdam, 1992), 67-84.

[15] Hans Teitler, "Ammianus on Valentinian: Some Observations", in J. den Boeft, J.W. Drijvers, D. den Hengst and H.C. Teitler (eds), *Ammianus after Julian: The Reign of Valentinian and Valens in Books 26-31 of the* Res Gestae (Leiden, 2007), 53-70.

Adrianople, where the Roman army was defeated by the Goths and Valens died an inglorious death, was a logical outcome of this state of affairs.[16]

Ammianus considered himself no doubt as belonging to the cultural elite of the empire. His *paideia* in Antioch and his profound knowledge of Graeco-Roman history and culture through the reading of the writers of old made him very much a man of high culture, who, moreover, identified himself with Rome's greatness and history. His assessment of imperial rule is greatly influenced by the standards of his high culture as well as by Rome's past. Closely linked to elite culture was the concept of honour. Honour and honouring were important ingredients of the culture of politics in the Roman Empire, as John Lendon, has made convincingly clear.[17] Honour plays a considerable role in the day-to-day business of government: the payment and distribution of honour from subject to ruler and ruler to subject link emperor, imperial officials and subjects into a wide network; they soften the hard edges of the autocratic Roman regime and make that regime acceptable. In particular, the elite are susceptible to the giving and receiving of honour. They seek to be honoured by the emperor, but they also gladly honour him provided he is seen as a person who has the right qualities and acts according to these qualities. A Roman emperor's honour is based on his moral excellence, his birth, his literary accomplishments, his actions in times of peace and war, as well as by the cardinal virtue of self-restraint (*sophrosynē*). An emperor is supposed to have honour and to augment his honour through his deeds. It provides him with *auctoritas* and with the loyalty of his subjects. Distributing and receiving honour gave those who acted according to the codes of honour prestige, influence, and power.

Ammianus seems to have been concerned about the lack of honour with which the Pannonian emperors ruled. The political culture of which honour and honouring were such constituent elements was clearly in decline in Ammianus' view. Three recurrent themes in his account of the reigns of Valentinian and Valens demonstrate the dwindling of political culture of imperial rule: (1) animal imagery; (2) the character and behaviour of officials in the imperial service; (3) the personal behaviour of Valens and Valentinian themselves.

1. Ammianus has a predilection for comparisons and images from the animal world. The *Res Gestae* has over 60 comparisons of people with various animals, both positive and negative.[18] The last hexad of Ammianus' work has slightly over half of such comparisons – almost all of them negative – with a climax in Book

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[16] See e.g. Barnes, *Ammianus Marcellinus*, 181-3.

[17] J.E. Lendon, *Empire of Honour: The Art of Government in the Roman World* (Oxford, 1997).

[18] R.C. Blockley, *Ammianus Marcellinus: A Study of his Historiography and Political Thought* (Brussels, 1975). Appendix B mentions 52 instances; J. den Boeft, "*non consolandi gratia, sed probrose monendi* (*Res Gestae* 28.1.4). The Hazards of (Moral) Historiography", in J. den Boeft et al. (eds), *Ammianus after Julian*, 293-312, at 296 n. 8 has added another 11 items of animal imagery. For animal imagery in general see T.E.J. Wiedemann, "Between Men and Beasts: Barbarians in Ammianus Marcellinus", in I.S. Moxon, J.D. Smart and

28 which has no less than 12 instances of animal imagery. Of course the barbarian peoples, who occur far more often in these last books than in the earlier ones, are compared to animals. The Austoriani are compared with birds of prey becoming more savage by the incitement of blood (*rapaces alites…irritamento sanguinis atrocius efferatae*, 28.6.13) and to beasts aroused by madness (*ferarum similes rabie concitarum*, 2.8.6.4); the Huns are called two-legged beasts (*bipedes… bestias*, 31.2.2), unreasoning animals (*inconsultorum animalium*, 31.2.11) who feed like wild beasts (*ferino ritu vescuntur*, 31.2.18); the Goths are called savage animals (*bestiae*, 31.8.9; *ferae*, 31.9.1) and compared to wild beasts that are roused to ferocity of a cruel kind by the taste of blood (*bestiae sanguinis irritamento atrocius efferatae*, 31.15.2). The comparison of barbarians with animals is not surprising; however, individuals also are juxtaposed with animals. In particular, imperial officials are said by Ammianus to behave like beasts. A few examples: the *magister memoriae* Rusticus Iulianus is said to be greedy for human blood as a wild beast (*bestiarum more humani sanguinis avidus*, 27.6.1); the *notarius* Leo is said to have slavered like a wild beast in search of prey which was thirsty for human blood (*efflantem ferino rictu crudelitatem, etiam ipsum nihilo minus humani sanguinis avidissimum*, 28.1.12).[19] The vice-prefect of Rome and governor Maximinus outstripped everybody in beastly fashion; no fewer than five times he is compared to ferocious beasts and devious snakes, and characterized as a brigand with the heart of a wild animal (*subterraneus serpens*, 28.1.7; *ferae*, 28.1.10; *serpens*, 28.1.33; *spiritus ferini latronem*, 28.1.38; *basilisci serpentes*, 28.1.41). Even the emperors themselves do not escape Ammianus' animal comparisons. Valentinian is compared to a lion that had just lost his prey (*tamquam leo ob cervum amissum vel capream*; 29.4.7) and to a keen-scented hound (*sagax bestia*; 30.5.10). Valens' furious anger is likened to that of a wild beast in the arena if it sees that anyone brought near to the barrier has made his escape (*in modum arenariae ferae, si admotus quisquam fabricae diffugisset, ad ultimam rabiem saeviebat*; 29.1.27). As has been observed before, the use by Ammianus of animal imagery and comparing the behaviour of men with that of animals underlines excessiveness and irrationality. It is clearly a sign of growing inhumanity and irrationality under the reigns of Valentinian and Valens.[20]

2. Imperial officials in the service of the Valentiniani, of whom many show beastly behaviour, are also for other reasons severely criticized by Ammianus, with only a few exceptions.[21] A few examples may illustrate this. The *comes Africae* Romanus was savage and primarily interested in enriching himself instead

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A.J. Woodman (eds), *Past Perspectives: Studies in Greek and Roman Historical Writing* (Cambridge, 1986), 189-201.

[19] Leo was such a vicious character that even as bad a person as Petronius Probus (see below) would have been praised to the skies when compared with him (30.5.10).

[20] Matthews, *The Roman Empire*, 258; Den Boeft, "*non consolandi gratia*", 296-7.

[21] Exceptions being the Flavius Eupraxius, who was able to suppress Valentinian's uncontrolled behaviour (27.7.6, 28.1.25), and Viventius (26.4.4, 27.3.11, 12, 20.5.11); the

of protecting the people of Tripolis against the rebellious Austoriani who raided the country (27.9.1-2, 28.6). Through his machinations and influence at court he was able to conceal his abominable conduct from the emperor. Even *Iustitia* herself had wept over his demeanour, Ammianus says (28.6.1, 29.5.2, 8).[22] The already mentioned Maximinus, of Pannonian descent, is described in very negative terms. He was harmful, had a natural cruelty, was greedy, had a native arrogance which he was unable to control, and was prone to every kind of wickedness. During his time in Rome he, in collaboration with the above mentioned Leo, convicted many senators to death or exile without a fair trial and with extreme severity; according to Ammianus, in the case of Maximianus a judicial trial was not feared but the suspension of legal proceedings was (8.1.5-40).[23] Moreover, he had a detrimental influence over Valentinian (29.3.1-2). Valens' father-in-law Petronius, who was made a *patricius* by the emperor, was morally twisted, had an intolerable character, was cruel and savage, and had the sadistic eagerness to strip everyone of their possessions, innocent and guilty alike (26.6.7-8).

Ammianus is in particular negative about officials, civil as well as military, serving under Valentinian and Valens. Many of them were, like the emperors, of Pannonian descent, and the number of Pannonians serving in the imperial service clearly increased under their rule. Pannonians are known for their martial character but are also like all Illyrians stereotyped as savage, boorish and uncultured.[24] Ammianus calls Aequitius, who was named as possible successor of Jovian, rude and somewhat boorish (*asper et subagrestis*, 26.1.4); the *magister officiorum* Ursatius is called hot-tempered and cruel (*iracundo quodam et saevo*, 26.5.7). These cases can be easily multiplied.

The Pannonians are not alone in facing Ammianus' critical judgement. The senator Sextus Claudius Petronius Probus, who served Valentinian in various

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latter is called by Ammianus *integer et prudens Pannonius* (27.3.11). On Eupraxius see the article by Charles Pazdernik in this volume.

[22] B.H. Warmington, "The Career of Romanus, *comes Africae*", *Byzantinische Zeitschrift* 49 (1956), 55-64; Altay Coşkun, "Der *Comes* Romanus, der Heermeister Theodosius und die drei letzten Akte der 'Lepcis-Magna-Affaire' (a. 373-7)", *Antiquité Tardive* 12 (2004), 293-308; Sigrid Mratschek, "*Et ne quid coturni terribilis fabulae relinquerent intemptatum …* (Amm. Marc. 28.6.29): Die Göttin der Gerechtigkeit und der *comes* Romanus", in J. den Boeft et al. (eds), *Ammianus after Julian*, 245-70.

[23] On Maximianus see further R. Lizzi Testa, *Senatori, popolo, papi. Il governo di Roma al tempo dei Valentiniani* (Bari, 2004), 11 ff. and 50-51; R. Lizzi Testa, "Quando nella curia furono viste fiorire le scope: il senato di Valentiniano I", in R. Lizzi Testa (ed.), *Le trasformaziani delle élites in età tardoantica* (Rome, 2006), 239-76 at 240-41 and *passim*.

[24] For the characterizations of Pannonians, see Lenski, *Failure of Empire*, 86-7; J. den Boeft, J.W. Drijvers, D. den Hengst and H.C. Teitler, *Philological and Historical Commentary on Ammianus Marcellinus XXVI* (Leiden, 2008), 19. Ammianus is not alone in stereotyping Pannonians as rude, boorish and uncultured; see also Joh. Chrys. *Oppugn.* 1.7 (=*PG* 47, 328-329); Jul. *Mis.* 348c-d; *Epit.* 40.10; Aur. Vict. *Caes.* 39.26 calls Illyrians deficient in culture (*humanitatis parum*).

functions, is seriously criticized.[25] No individual, apart from the emperors, is portrayed as comprehensively as Probus. Ammianus calls him a cruel schemer, who works off his deadly grudges against people by inflicting injury on them. He is arrogant, merciless and unbending, as well as a flatterer. Ammianus also implies that he is avaricious.[26] Probus is presented as the opposite of what just and beneficial authority should be. His portrayal stands for a class of men that Ammianus dislikes and despises: Roman aristocrats who, because of their class, consider themselves above everything base and mean but are simultaneously deeply involved in crime committed by those in their service.[27]

In sum, Ammianus is outspoken in his negative judgement of the leading men serving the Valentiniani. They are savage, rude, uneducated, and avaricious, serve their own interests, and are not bothered about justice and just rule. Their moral depravation and corruption characterize the rule of the Pannonian emperors.

Ammianus also is far from positive about the emperors themselves. Although Valentinian's physiognomy betrays a figure of regal charm and majesty (30.9.6), the emperor is ascribed few positive qualities and abounds in negative ones. He had a lofty opinion about himself (*ut erat sui arrogans aestimator*, 27.10.10), was cruel and savage,[28] and he suffered from fits of anger.[29] Anger is a sign of lack of self-restraint, which was an important characteristic for an emperor.[30] Furthermore Valentinian was inhumane, suffered from excessive greed, and was envious (e.g. 30.8). Under his reign there was an increase of punishments; his judges acted cruelly with his consent (e.g. 28.1.10-11, 30.8.3). Because he was in the highest position, he thought he was allowed anything and did not acknowledge that there are things a ruler should not do even if he is free to do them (30.8.8). His rule was not to the benefit and safety of his subjects, he was weak in restraining his powerful officials (30.9.1), he elevated the military to the detriment of the state by advancing them in standing and wealth (27.9.4), and he could not distinguish between good and bad (30.8.8).

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[25] 27.11, 28.1.31-3, 29.6.9, 30.3.1, 30.5.4, 30.5.10-11.

[26] For Ammianus on Probus see H. Drexler, *Ammianstudien* (Hildesheim, 1974), 65-74; Lizzi Testa, *Senatori, popolo, papi*, 297-305; J. den Boeft, J.W. Drijvers, D. den Hengst and H.C. Teitler, *Philological and Historical Commentary on Ammianus Marcellinus XXVII* (Leiden, 2009), 251-65. There is no reason to suppose that Ammianus' negative portrait had anything to do with Probus' Christianity as Barnes, *Ammianus Marcellinus*, 117-8 suggests.

[27] Cf. David M. Novak, "*Anicianae domus culmen, nobilitatis culmen*", *Klio* 62 (1980), 473-93 at 473 n. 2, who considers it unwise to use Probus' depiction by Ammianus as an illustration for the mentality of the fourth-century aristocracy.

[28] E.g. 29.3.2 (*per asperos velut aestu quodam fluctuum ferebatur et procellarum*), 27.7.4 (*Valentinianus, homo propalam ferus*), 30.8.2-3. The terms *ferus*, *feritas*, and *efferatus* are by Ammianus generally reserved for barbarians; R. Seager, *Ammianus Marcellinus: Seven Studies in His Language and Thought* (Columbia, 1986), 55-6.

[29] 27.7.7, 28.1.23, 28.2.9, 29.3.2, 30.6.3.

[30] On anger in Ammianus see Seager, *Ammianus Marcellinus*, 34-6.

Normally Ammianus reserved an evaluation of an emperor's virtues and vices for his necrologies. However, in the case of Valentinian there is already a preliminary assessment of his character and behaviour when he only ruled for some three years. In chapter 7 of Book 27, Ammianus elaborates on Valentinian's uncontrolled anger and cruelty, ascribing the emperor's rage to a weakness of his intellect.[31] In this chapter Ammianus presents six examples ordered in three pairs of the emperor's brutal behaviour (27.7.5-8). The chapter is concluded with the depressing observation that some emperors refused to listen to critical advice from their friends and deterred their enemies from speaking up. Valentinian thought that what he desired was the highest virtue, implying obviously that the emperor did not allow others to correct his behaviour (27.7.9). Ammianus presents his final assessment in his obituary of Valentinian. He clearly admires the emperor for his military exploits and his strengthening of the frontier defences (30.7.11, 30.9.1 and 4),[32] but, in Ammianus' opinion, Valentinian abounds in vices – cruelty, unreasonable harsh punishments, greed, jealousy, lack of self-restraint, and cowardice, which remarkably Ammianus presents at first (30.8). These are few virtues which Ammianus only mentions at the end of his obituary (30.9) – his indulgence toward provincials, his care in bestowing high positions, his not-favouring his own kind, his tolerance in religious affairs, and his chastity.[33]

Valens is assessed in the same negative way. Ammianus presents his judgement of Valens predominantly in the short necrology of the emperor (31.14). Although he seems to have been a faithful friend, was strict in maintaining military discipline, was watchful lest anyone should elevate himself on the ground of kinship, was an enemy of thievish officials and had the ability of combining liberality with moderation (31.14.2-4), these positive qualities melt away when compared to his defects (31.14.5-8). He was immoderately desirous of wealth, and was like his brother a man of excessive cruelty; he was uncultivated and uneducated, not trained in the art of war,[34] and he became intolerable when he thought his imperial dignity was offended. Like Valentinian he was hot tempered and unable to control his rage (e.g. 26.6.7, 31.14.5); he was unjust, listened to informers without distinguishing

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[31] 27.7.4. Ammianus refers to the definition by experts (*prudentes*) or philosophers that anger was caused by an ulcer of the mind caused by intellectual weakness.

[32] There is, however, discussion about Ammianus' remark that Valentinian was a deliberate and watchful leader (*dux cunctator et tutus*, 27.10.10). Alföldi, *Conflict of Ideas*, 6 characterizes it as very high praise by Ammianus; Tomlin, *The Emperor Valentinian I*, 151 considers it a fair assessment. However, it is most likely that Ammianus' wording is meant to be sarcastic; Den Boeft et al., *Commentary on Ammianus XXVII*, 240-42.

[33] For a more elaborate treatment of Ammianus' assessment of Valentinian, see D.A. Pauw, *Karaktertekening by Ammianus Marcellinus* (Oegstgeest, 1972), 138-54, and A. Brandt, *Moralische Werte in den* Res gestae *des Ammianus Marcellinus* (Göttingen, 1999), 41-55.

[34] 31.14.5: *subagrestis ingenii, nec bellicis nec liberalibus studiis eruditus*.

truth from falsity (31.14.6), took advantage of the suffering of others (29.1.21, 31.14.5) and found it hard to make decisions (31.14.7).[35]

Exercise of power reveals a man's true nature, according to Ammianus (30.7.1). Ammianus evidently has great reservations concerning the rules of Valentinian and Valens, not so much because of the way in which they operated militarily – in particular Valentinian is regarded by Ammianus as a capable general who kept the barbarians out – as for their civil administration and jurisdiction. Why is Ammianus so negative about the reign of the Pannonian brothers and why does he refer so regularly to their bad character and conduct? Of course his assessment of their reigns can be interpreted as the rhetoric of excess and a literary construct rather than objective history writing, in order to make the reigns of their predecessor Julian and of their successor Theodosius I, under whom Ammianus wrote his *Res Gestae*, look more favourable. Julian is indeed still formidably present in the last six books, and the presentation of the rule of Valentinian and Valens can be seen as a negative contrast to that of Ammianus' heroic emperor.[36] Another explanation may be that Ammianus had, like so many, an ethnically motivated prejudice against rulers and officials coming from the Balkan regions. However, I believe these are only partial explanations for Ammianus' rather negative judgements about Valentinian and Valens. Also the Constantinian dynasty, to which Constantius II and Julian belonged, was of Balkan origin. And even though Ammianus is not so positive about Constantius, he is not as negative about him as about Valentinian and Valens. Julian, who recognizes that the family he came from was terribly boorish,[37] had been able through his intellect and education to detach himself from his Balkan background. Their boorish Pannonian origin alone is therefore no excuse for the way in which Valentinian and Valens ruled over the empire, nor is the negative foil to Julian's reign. It was the particular way in which the Pannonian brothers ruled that gave Ammianus occasion to seriously believe that his political culture was in decline, that Roman society under Valentinian and Valens was one of repression, injustice and corruption. The Pannonians were to be held responsible for this: they were the wrong men in the wrong place because they lacked the basic qualities of how to rule the empire.

The death of Julian is a watershed in Ammianus' work but also in the way imperial power was exercised. Ammianus observes a transformation in the political culture and style of leadership in the post-Julianic years – a change he definitely did not like. Ammianus has nowhere formulated a conception of the good ruler, but he definitely had clear ideas about the style, standard, and culture of leadership. Of course, Julian was his ideal ruler. He met the requirements of the good emperor: he possessed the four cardinal virtues of *prudentia*, *fortitudo*, *temperantia* and *iustitia*, and, moreover, he cultivated his *scientia militaris*, his

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35 See further Pauw, *Karaktertekening*, 154-64; Brandt, *Moralische Werte*, 55-60.

36 Den Boeft, "*non consolandi gratia*", 298; Kelly, *Ammianus Marcellinus*, 306-13.

37 Jul. *Mis.* 348c-d.

*auctoritas*, *felicitas* and *liberalitas*.[38] The character of an emperor was of the greatest importance for the way in which he ruled: his actions were defined by the kind of man he was.[39] One of the main features of the good ruler, as indeed of worthy imperial officials, was that he was *civilis* (e.g. 15.1.3, 28.1.44), meaning that he possessed the basics of civilization, that he behaved in a morally commendable way, and that he showed modesty and humanity.[40] It also meant that he did not put himself above others and presented himself as an autocrat. His people should live under a just and constitutional government, because the purpose of a righteous rule, as the philosophers teach, is the safety and welfare of its subjects (25.3.18, 29.2.18, 30.8.14). The task of an emperor is to keep his power in check and to resist the passions of unbridled desire and rage, and to reflect earnestly and "not be carried away by a passion to commit an act that cannot be undone" (29.2.18; tr. Hamilton).[41] The Pannonians clearly did not live up to this culture of leadership. They exercised a rule of suppression, of terror even, in which there was no fair justice for those not in a position of power. But what else could one expect from emperors who lacked edification, were boorish and rude, and who hated the "well-dressed, the educated, the rich, and the highly born" (30.8.10; tr. Hamilton)?

For Ammianus *paideia* should be one of the characteristic features of the ruling elite.[42] Politics and *paideia* were closely linked. *Paideia* made politics work because those in power shared the same language and culture. *Paideia* resulted in composure, control and correct behaviour of those in power, and a civilized style of rule.[43] Ammianus therefore speaks with contempt about the Roman aristocracy which displayed indifference to *paideia* and a general disinterest in the traditional elite culture of literature, philosophy, and rhetoric, and the behaviour which was part of that culture (14.6.7-24, 28.4.7-27). The same applies to Valentinian and Valens. The only positive thing Ammianus has to say about Valentinian's *paideia* was that he wrote in a neat hand and was an elegant painter

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[38] 25.4.1 with commentary J. den Boeft, J.W. Drijvers, D. den Hengst and H.C. Teitler, *Philological and Historical Commentary on Ammianus Marcellinus XXV* (Leiden, 2005) 116-20; see also R.C. Blockley, *Ammianus Marcellinus*,73-103 for Julian as model emperor.

[39] Lendon, *Empire of Honour*, 15-6.

[40] P. de Jonge, *Philological and Historical Commentary on Ammianus Marcellinus XV* (Groningen, 1972), 10.

[41] For the imperial responsibilities according to Ammianus, see also Seager, *Ammianus Marcellinus*, 121-3.

[42] Ammianus uses the word *humanitas*, the Latin equivalent of *paideia*, regularly but barely in the meaning of *paideia*; Brandt, *Moralische Werte*, 134. Ammianus' contemporary Aurelius Victor is also of the opinion that emperors should be educated men: *compertum est eruditionem elegantiam comitatem praesertim principibus necessarias esse* (*Caes.* 40.13).

[43] See for the connection between *paideia* and political culture Peter Brown, *Power and Persuasion in Late Antiquity: Towards a Christian Empire* (Madison, WI, 1992), ch. 2 "*Paideia* and Power".

and modeller (*scribens decore venusteque pingens et fingens*, 30.9.4).[44] Although he had a lively manner of speech, his verbal intercourse was not eloquent and even boorish (*subagresti verbo*, 29.3.6). Valens was boorish and not trained in the liberal arts (*subagrestis ingenii…nec liberalibus studiis eruditus*, 31.14.5); Ammianus calls him an uncultivated ruler (*imperator rudis*, 27.5.8) and even something of a dunce (*Valentem*, *subrusticum hominem,* 29.1.11). He had books on liberal arts and jurisprudence burnt (29.1.41). Moreover, Valens had very limited knowledge of Greek and no education in philosophy, as may be concluded from Themistius.[45] The educated Ammianus clearly felt a great divide between himself and the Pannonian peasant emperors, and Ammianus was not alone in this. When Valens besieged Chalcedon, which was captured by the usurper Procopius, the Chalcedonians insulted the emperor from the walls of their city by calling him a *sabaiarius*. A *sabaiarius* is a drinker of *sabaia*, a Pannonian beer, and is clearly a term of abuse. In Graeco-Roman culture there was a stereotypical contempt for drinking beer; it was considered the drink of "the other", i.e. the barbarian who is said to have drunk it immoderately and in great quantities, even until intoxication. The word *sabaiarius* aptly expresses and sums up the great divide between refined and cultured Greeks, among whom Ammianus undoubtedly reckoned himself, and the barbarian and uneducated Pannonian emperor. It also conveyed the contempt he felt as well as the contempt felt for those of Pannonian origin.[46]

*Paideia* also implied knowledge of the past and the conduct of previous rulers. Julian had knowledge of the past (*antiquitatum peritus*, 23.5.21) and because of this he was able to emulate the exemplary Marcus Aurelius in his conduct and character (*ad cuius aemulationem actus suos effingebat et mores*, 16.1.4).[47] Even of Constantius Ammianus mentions that he did his best to rival his life and conduct with those of *civiles principes* (15.1.3), although without much success. Unfortunately, Valentinian was ignorant in this respect (*haec forsitan Valentinianus ignorans*, 30.8.6). Had he known more about history and the conduct of past (Roman and foreign) rulers and taken an example of the men of old, his reign might

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[44] See also *Epit. de Caes.* 45.6.

[45] Them. *Or.* 6.71c-d. Despite the fact that he had no knowledge of philosophy Themistius (*Or.* 7.93b) calls Valens a *philosophos basileus* because he acted like a philosopher. See further John Vanderspoel, *Themistius and the Imperial Court: Oratory, Civic Duty, and Paideia from Constantius to Theodosius* (Ann Arbor, MI, 1995), 155 ff.; H. Schlange-Schöningen, *Kaisertum und Bildungswesen im spätantiken Konstantinopel* (Stuttgart, 1995), 22-3.

[46] Den Boeft et al., *Commentary on Ammianus Marcellinus XXVI*, 216-7. Also Pannonian officials lacked *paideia*; Maximinus, for instance, was only slightly educated (*is post mediocre stadium liberalium doctrinarum*, 28.1.6).

[47] Julian himself had declared the importance of knowledge of history and ancient events in his oration in honour of Eusebia (*Or.* 3, 124b-c).

have been more humane and righteous.[48] In his obituary of Valentinian, Ammianus refers regularly to the past, obviously implying that when the emperor would have had knowledge of history his rule could have profited from it in a positive way. Officials also lacked education as, for instance, the case of the praetorian prefect Modestus shows. He is said to have been of a boorish nature and not refined by the reading of the ancient writings.[49]

*Paideia* is an important concept for Ammianus' appraisal of the reign of the Pannonian emperors. Ammianus judged Valentinian and Valens, as well as their officials, by the standard of their cultural capital. The Roman elite – the senatorial aristocracy, imperial officials and above all the emperors – are supposed to have at least some degree of *paideia*. Lack of education resulted in bad rule (29.2.18). Clearly the *paideia* of the Pannonians left much to be desired in the eyes of Ammianus. Their absence of a proper education resulted in all sorts of excesses and a decline of the culture of imperial rule.

Connected with *paideia* and political culture was the honourable way in which emperors and ruling elites were expected to behave. Honour, as mentioned above, was an essential component for the functioning and acceptance of Roman autocratic, imperial sovereignty. The Pannonian peasant emperors and their officials clearly did not rule through the mechanisms of honour. They expected to receive honour, but because they lacked the pedigree, the *paideia* and the moral values pertinent to it, they failed to understand how rule by honour worked. As a consequence the imperial honour was protected and demanded through rule by terror. Hence the *maiestas* prosecutions under the Valentiniani. In a reign in which the code of honour plays a marginal or no role at all soldiers get a chance to exercise power. In such a reign military rule is exercised to the detriment of the commonwealth, and the administration of justice is used to advance the interests of those in power.

Being the allusive historian that he was, Ammianus not only shared the cultural and literary tradition of historiography with his predecessors but also the concepts of *paideia* and honour as fundamental qualities of political culture and Roman imperial rule. After Julian, whose knowledge of the liberal arts, history and the working of honour contributed greatly to his ruling the empire in a righteous way and with moral authority, the culture of leadership changed dramatically. Valentinian's and Valens' lack of *paideia* and their incomprehension of rule through honour resulted in a society in which terror and injustice held sway, and those in power behaved like beasts and were predominantly concerned with their own interests rather than with the common good. In Ammianus' view the political culture under

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[48] 30.8.4: *atquin potuit exempla multa contueri maiorum et imitari peregrina atque humanitatis et pietatis, quas sapientes consanguineas virtutum esse definiunt bonas.* Ammianus presents the Persian king Artaxerxes and the republican dictator Papirius Cursor as examples.

[49] 30.4.2: *Modesto praefecto praetorio ... subagreste ingenium nullius vetustatis lectionibus expolitum*.

Valentinian and Valens, or rather the lack of political culture, was a sign of decline of Roman society. Perhaps it was an even more dangerous indication of decay than the barbarian threats at Rome's frontiers since this deterioration of culture was at the centre of power and detrimental to Roman society as a whole.[50]

[50] I would like to thank Noel Lenski for his comments on an earlier draft of this chapter. The finishing touches to this chapter were made during my summer fellowship at Dumbarton Oaks Research Library in 2009.

Chapter 8

# "How then is it not better to prefer quiet, than the dangers of conflict?": The Imperial Court as the Site of Shifting Cultural Frontiers

Charles F. Pazdernik

In his substantial contribution on "The Imperial court of the Late Roman Empire" in the recent volume addressing *The Court and Court Society in Ancient Monarchies*, Rowland Smith makes a passing suggestion to the effect that the court functioned—in terms of the themes addressed in the present volume—as an arena of intense cultural negotiation and a point of interaction between "high" and "low" culture. Citing the claim of Norbert Elias that the Bourbon court at Versailles functioned as an instrument for the 'domestication' of a feudal warrior-nobility, Smith turns this formulation on its head: "[O]n the supposition that the late Roman court served to 'domesticate' elements of any 'warrior-elite,' that elite would be more plausibly associated with the new, non-aristocratic breed of 'soldier-emperors' that had emerged in the mid-to-late third century … ".[1]

In line with Smith's suggestion, this chapter marshals evidence from the fourth and the sixth centuries in support of the claim that elite observers of the imperial court in late antiquity appreciated and evaluated its instrumentality in domesticating or otherwise mitigating objectionable or threatening consequences arising out of interactions between emperors (among other possessors of notoriously low culture), on one hand, and skilled practitioners of courtly etiquette, on the other. In this connection Jan Willem Drijvers examines, in his contribution to this volume, how Ammianus Marcellinus faulted the emperors Valentinian and Valens for their lack of education and culture, their inability to demonstrate composure and self-control, and consequently their debasement of politics. What follows here complements this perspective by focusing upon moments at which Ammianus and others—in particular, Ambrose of Milan and Procopius of Caesarea—acknowledge the means by which skilled practitioners of courtly etiquette accomplish their ends

[1] Rowland Smith, "The Imperial Court of the Late Roman Empire, *c.*AD 300–*c.* AD 450," in A.J.S. Spawforth (ed.), *The Court and Court Society in Ancient Monarchies* (Cambridge, 2007) 157-231, at 165. As Smith notes (loc. cit. n. 25), Elias' claim about Versailles has not escaped criticism within the field.

in the face of uncivilized rulership. Regarded cumulatively, such episodes depict the court as a place in which competing interests appropriated existing modes of cultural expression in an effort both to "domesticate" imperial authority and to adapt to new political and social realities.

The imperial court, and in the fourth century the *consistorium* in particular,[2] was acknowledged to be a performance space, one in which the actors had to monitor and to manage the expectations and reactions of not only the emperor himself but also the other participants.[3] As a case in point, in 384/5 or perhaps 386 Ambrose as bishop of Milan was dispatched on an embassy to the court of the usurper Magnus Maximus in Trier, an account of which Ambrose later recorded in his *Epistle* 30(24) addressed to Valentinian II.[4]

The letter is ostensibly a report on Ambrose's second embassy to Maximus, the substance of which largely consists of recriminations over Ambrose's first

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[2] On the *consistorium*, see A.H.M. Jones, *The Later Roman Empire* (Oxford, 1964) 1, 333-41; G. de Bonfils, *Il comes et quaestor nell'età della dinastia Constantina* (Naples, 1981), 25-39; W. Kunkel, "Consilium/Consistorium," *Jahrbuch für Antike und Christentum* 11/12 (1968-69), 242-8; P.B. Weiss, *Consistorium und Comites consistoriani. Untersuchungen zur Hofbeamtenschaft des 4. Jh. n. Chr. auf prosopographischer Grundlage* (diss. Würzburg, 1975), 6-38; ch. Vogler, *Constance II et l'administration imperiale* (Strassburg, 1979), 216-20; W.E. Voss, *Recht und Rhetorik in den Kaisergesetzen der Spätantike* (Frankfurt, 1982), 23-8; D. Schlinkert, "Dem Kaiser folgen. Kaiser, Senatsadel und höfische Funktionselite (*comites consistoriani*) von der 'Tetrarchie' Diokletians bis zum Ende der konstantinischen Dynastie," in A. Winterling (ed.), *Comitatus. Beiträge zur Erforschung des spätantiken Kaiserhofes* (Berlin 1998), 133-59; R. Delmaire, *Les institutions du bas-empire romain, de Constantin* à *Justinien* (Paris, 1995), 29-39; Jill Harries, *Law and Empire in Late Antiquity* (Cambridge, 1999), 38-42.

[3] See Tony Honoré, *Law in the Crisis of Empire, 379-455 AD: The Theodosian Dynasty and its Quaestors* (Oxford, 1998), 13, citing Ernst Stein, *Histoire du Bas-Empire: de l'État romain à l'État byzantin* (2nd edn, Paris, 1959) 1, 210, and John Matthews, *The Roman Empire of Ammianus* (Baltimore, MD, 1989) 267-9: "The evidence shows that the consistory was not a rubber stamp but rather a body in which, though it adhered to protocol, serious debate took place and strong views were expressed."

[4] (ed.) O. Faller, *CSEL* 82.10.1 (1968); *Ep.* 24 in the Maurist edition printed in *Patr. Lat*. 16. J.H.W.G. Liebeschuetz, with the assistance of Carole Hill, *Ambrose of Milan: Political Letters and Speeches* (Liverpool, 2005), 16, 349, among others, favors the earlier date for the second embassy; cf. Neil B. McLynn, *Ambrose of Milan: Church and Court in a Christian Capital* (Berkeley, CA, 1994), 160-163, 217-18, in support of the later date. See further the extensive bibliography in Yves-Marie Duval, "Les ambassades de saint Ambrose auprès de l'usurpateur Maxime en 383 et 384," in Jean-Michel Carrié and Rita Lizzi Testa (eds), *Humana sapit* : études *d'Antiquité tardive offertes à Lellia Cracco Ruggini* (Turnhout, 2002), 239-51, at 240-41 n. 13. Michael Proulx, "'Patres Orphanorum': Ambrose of Milan and the Construction of the Role of the Bishop," in Robert M. Frakes, Elizabeth DePalma Digeser, and Justin Stephens (eds), *The Rhetoric of Power in Late Antiquity: Religion and Politics in Byzantium, Europe and the Early Islamic World* (London and New York, 2010) 75-97, appeared too late to be taken into consideration in this discussion.

embassy in 383, undertaken on behalf of the tenuous government of Valentinian II in the immediate aftermath of Maximus' overthrow of Gratian.[5] It details the confrontation that ensued once Ambrose, who was eager to arrange a private conference with Maximus, was maneuvered into making his case in front of the assembled consistory in Trier (*Ep.* 30[24].2). Ambrose's letter insinuates that Maximus aimed to exploit the spectacle presented by a formal imperial audience either to overawe Ambrose or to force him into discrediting himself by committing a breach of ceremonial etiquette.[6] But Ambrose insists that he deftly avoided either of these unwelcome alternatives by claiming that his own episcopal prerogatives were being trampled upon (3, trans. Liebeschuetz and Hill 2005):

> When he [Maximus] had taken his seat in the consistory, I entered. He rose to give me the [ceremonial] kiss. I stood among the members of the consistory (*inter consistorianos*). The others began to encourage me to go up, he to invite me. I replied: "Why do you kiss someone whom you do not acknowledge? For if you had acknowledged me you would not be seeing me in this place (*si enim me agnovisses, non hoc loco videres*)." He said, "Bishop, you are upset (*commotus*)." "Not by an insult (*iniuria*)," I replied, "but from embarrassment (*verecundia*), because I am standing in a place where I do not belong (*quod alieno consisto loco*) … "

In this self-valorizing retelling of the episode, Ambrose portrays himself taking a firm stand (*consisto*) that separates and distinguishes him from the *consistoriani*, whom he presents as a chorus of sycophantic enablers. He also emphatically makes a spectacle of himself, denoting himself as the object of the collective gaze and Maximus as a spectator. Ambrose excuses this inversion and subversion of the spectacle that the consistory is designed to evoke by blaming Maximus for *his* own lack of discernment. According to Ambrose, Maximus's breach of ceremonial etiquette is evident in his failure to recognize Ambrose's status as someone other than a courtier. In effect Ambrose is advancing the tendentious claim that as a bishop he has the prerogative to determine whether the substance of his embassy is better delivered in a private conference than in an imperial audience in the consistory.[7] Had Maximus sized up Ambrose properly, Maximus would not now

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[5] On these events, see J-R. Palanque, "Sur l'usurpation de Maxime," *REA* 31 (1929), 33-6 ; idem, "L'empereur Maxime," in *Les empereurs romains d'Espagne* (Paris, 1965), 255-67; John Matthews, *Western Aristocracies and Imperial Court, A.D. 364-425* (Oxford, 1975), 165, 173-82; François Paschoud, *Cinq études sur Zosime* (Paris, 1979), 2.2, 412-15. On the reception of embassies, see Andrew Gillett, *Envoys and Political Communication in the Late Antique West, 411-533* (Cambridge, 2003), esp. 220-72.

[6] See Matthews, *Ammianus*, 268-9.

[7] He likewise resisted (*Ep.* 75[21].17) a summons to the consistory in Milan during the dispute with the Homoeans on the grounds that matters of religious doctrine should be discussed in church.

be finding himself at the wrong end of the optical axis (*si ... me agnovisses, non ... videres*).

Ambrose's firm stand represents as well a pointed repudiation of Maximus's solicitous yet canny suggestion that Ambrose is *commotus*, implying not only that the bishop has lost his composure but also that he has been forcibly displaced into a ceremonial space that is uncongenial to him. Because Ambrose can afford neither to sustain a loss of face nor to be seen to be offering an insult, he again effects a turning of the tables by denying that an insult has been offered to him.

Ambrose acknowledges that he finds himself in an uncongenial place, but denies that he has sustained *iniuria*, which in its delictual sense entails both the conscious intent on the part of the offender to affront and the deliberate acknowledgement on the part of the plaintiff that one has been affronted.[8] Instead Ambrose insists that his discomfiture results from his own delicate perception of the incongruity of the situation, his *verecundia*. It is not Ambrose but Maximus who has committed a breach of ceremonial etiquette by obliging the bishop to appear in the consistory, or so Ambrose would have us believe. But Ambrose is also at pains to suggest that Maximus's behavior must have been inadvertent or unintentional rather than an expression of contumelious disregard for Ambrose's person and ecclesiastical office.

In the recriminations that follow, Maximus at last is the one who loses his composure—*ad postremum erupit* (4), says Ambrose. Consequently it is Maximus who implicitly concedes that he is the one who is being displaced, while Ambrose, denying any intent to effect a displacement, contents himself with a single adverb to signal his victory (5): "To this I replied, gently (*leniter*): 'There is no need,' I said, 'to upset yourself (*ut commovearis*), as there is no reason to be upset (*causa nulla ... commotionis*).'"

Ambrose is writing as a self-interested protagonist in a context in which his need to justify himself after the fact is patent. There is every reason to believe that he has composed his account of his exchange with Maximus in a manner calculated to portray himself in a favorable light in spite of the failure of his embassy to accomplish its stated purpose, the release of Gratian's remains from Maximus' custody for burial in Italy (9-10). Liebeschuetz goes so far as to argue that the letter "is not what it seems" and cannot have been intended "to inform Valentinian of what had been achieved, or not achieved, by the embassy," but might have been "written largely or entirely for the sake of wide publicity" (*Ambrose of Milan*, 40-42); consequently it must be read not as a diplomatic document but rather "in

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[8] See in particular *D*. 47.10.3 pr.-3, 47.10.11.1. On *iniuria*, see Reinhard Zimmerman, *The Law of Obligations: Roman Foundations of the Civilian Tradition* (Oxford, 1996), 1050-1094, esp. 1059-1062 and 1071 n. 166, with the proviso that "a purely subjective mental element [i.e. the intention to insult on the part of the offender] was … not indispensable for purposes of liability" (1060). See also Max Kaser, *Das römische Privatrecht* (2nd edn Munich, 1971) 1, 623-5; W.W. Buckland, *A Text-Book of Roman Law from Augustus to Justinian* (3rd edn rev. Peter Stein: Cambridge, 1963), 589-92.

a context of personal apologetic and self-presentation" demonstrating Ambrose's opposition to Maximus on behalf of the legitimate dynasty (350-51).

Yet Ambrose's claim that Maximus signaled his disinterest in constructive diplomacy at the outset by refusing Ambrose's request for a private conference does not seem implausible on its face;[9] in placing the onus of the failure of the embassy upon Maximus, moreover, the letter makes the consequent maneuvering over protocol within the *consistorium* comprehensible as a strategy for both concealing the weak hand Ambrose had been dealt and insulating himself against carping criticism and second-guessing awaiting him upon his return to Milan within the court circles surrounding Valentinian II(1):

> Yet because when I came to him once more he put me under the necessity of confronting him in a dispute (*sed quia regredienti mihi decernendi secum inposuit necessitatem*), I thought that I needed to forward a report of my embassy, in case somebody's talk should put together a mixture of empty falsehoods (*ne cuiusquam sermo veri … vana intexeret*), before my return could set a seal on the manifest, complete and unvarnished demonstration of the truth.

In this connection it must be stressed that Ambrose's letter presents itself as a performance played in front of an emperor in the context of self-presentation (and self-preservation) at court. Ambrose accomplishes his purposes not only by portraying himself as stalwart in defense of Valentinian's interests,[10] but also by showing, in a manner that an audience of insiders would be equipped to appreciate,[11] how adroitly he evaded the ceremonial entanglements placed in front of him by his opponents and thereby succeeded in outplaying Maximus' court at its own game.

He constructs himself as an episcopal outsider, someone who properly should not have been dragged into the game in the first place. Yet in comparison with a figure like Martin of Tours, who in the notorious incident related by Sulpicius Severus

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[9] See McLynn, *Ambrose of Milan*, 217-18. Norbert Dörner, "Ambrosius in Trier," *Historia* 50 (2001), 217-44, argues that Ambrose incurred Maximus' hostility during his first embassy to Trier (compare *Ep.* 30[24].5, 76[20].23) and that this conflict supplies the subtext of both the second embassy and the letter. See also D.H. Williams, *Ambrose of Milan and the End of the Nicene-Arian Conflicts* (Oxford, 1995), 223-6.

[10] A point to which he alludes in *Ep.* 75(21).20: "I have not learnt to stand up in a consistory other than on your behalf" (*ego in consistorio nisi pro te stare non didici …* ; see also n. 262 above). Compare *De obitu Valentiniani* 28 (ed. Faller, *CSEL* 73).

[11] Compare Proulx, "'Patres Orphanorum,'" 88-9: "…by inserting himself into the center of diplomatic events after the fact, Ambrose was able to create the impression that he was an imperial insider…". Gillett, *Envoys*, 271, observes that sources "exploit narrative accounts of embassies for a variety of literary strategies. Their exploitation depends upon considerable familiarity among contemporaries with the practice and conventions of communication by formal embassies."

confronted the recalcitrant Valentinian I in his court at Trier and succeeded in unseating him from his throne by supernaturally singeing his bottom,[12] or with any number of roughshod ascetics whose unmannered antics at court demonstrate their sanctified otherworldliness,[13] Ambrose chooses to represent his oppositional stance toward a hostile court with relative sobriety and restraint. In terms of a distinction drawn by Brown, Ambrose's is more nearly the *parrhesia* or outspokenness of the conscientious official than that of the fearless philosopher.[14] In striking contrast with other self-styled outsiders Ambrose succeeds as the consummate insider, conserving rather than exploding the performative conventions of the imperial court while denying that they apply in his case.

It should be apparent therefore that in approaching the court as a point of interaction between "high" and "low" culture these categories may be usefully mapped upon the distinction that is emerging in this discussion between courtly "insiders" and "outsiders," in other words between those with a stake in embodying and observing the conventions of courtly etiquette, on one hand, and those who do not, on the other. The qualities that distinguish Ambrose's account of his experiences at the court of Maximus from Sulpicius Severus' account of the experiences of Martin of Tours at the court of Valentinian I and other comparable examples are attributable not only to the differences between the authors and their subjects in their respective contexts but also to the differing audiences to which these accounts are directed: in the former case, to an audience of courtly "insiders"; in the latter, to an audience of "outsiders."[15]

We find another consummate insider in the figure of Flavius Eupraxius, the lawyer from Mauretania Caesariensis who under Valentinian I was promoted from *magister memoriae* to quaestor in a move orchestrated to coincide with the proclamation of Gratian as Augustus in 367 (Amm. 27.6.14) and who subsequently

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[12] Sulp.Sev. *Dialogus* II 5.7-9 (ed. Halm, *CSEL* 1). See Matthews, *Ammianus*, 269.

[13] On such incidents see Charles F. Pazdernik, "Paying Attention to the Man Behind the Curtain: Disclosing and Withholding the Imperial Presence in Justinianic Constantinople," in Thorsten Fögen and Mireille Lee (eds), *Bodies and Boundaries in Graeco-Roman Antiquity* (Berlin, 2009), 63-85, esp. 76-80; idem, "'Our Most Pious Consort Given Us by God': Dissident Reactions to the Partnership of Justinian and Theodora, AD 525-48," *ClAnt* 13 (1994), 256-81, esp. 273-79; Susan A. Harvey, "Theodora the 'Believing Queen': A Study in Syriac Historiographical Tradition," *Hugoye: Journal of Syriac Studies* 4 (2001), online at: syrcom.cua.edu/Hugoye/Vol4No2/HV4N2Harvey.html/ esp. 25-7.

[14] Peter Brown, *Power and Persuasion in Late Antiquity: Towards a Christian Empire* (Madison, WI, 1992), 65-7.

[15] Paulinus, *Vita Ambrosii* 19 (ed. M. Kaniecka [Washington, DC, 1928]), can recommend the letter to his readers for its portrayal of Ambrose's firmness before Maximus, though he mistakenly concludes on the basis of *Ep.* 30(24).12 that Ambrose excommunicated Maximus. On the depiction of bishops as envoys in hagiography, see Gillett, *Envoys*, 113-71 (esp. 122-5), on Ambrose and Martin of Tours.

became urban prefect of Rome (*PLRE* 1 Flavius Eupraxius).[16] Ammianus praises Eupraxius as one who left many examples of his personal integrity and intrepid nature, who resembled the laws themselves in his impartiality and unequivocal advice, and who remained firm in his convictions in the face of Valentinian's cruelty and capriciousness.

These deficiencies on Valentinian's part exacerbated the tendencies, to which some emperors (*quidam principes*) were prone, of ignoring their friends and silencing their opponents (27.7.9). Valentinian's irascibility was innate, or so Ammianus believed, and probably attributable to a mental defect (*ex mentis mollitia*, 4), but while Valentinian might have received profitable instruction from examples of *humanitas* and *pietas* demonstrated by figures from antiquity (30.8.4-5) he, like his brother, lacked the requisite educational background that might have inculcated such things (*haec forsitan Valentinianus ignorans*, 6).[17]

In spite of these difficulties, which Ammianus believed to be attributable to Valentinian's inadequate natural faculties and deficient cultural capital, Eupraxius "left many proofs of noble self-confidence worthy of imitation by sensible men" (*multa et prudentibus aemulanda bonae fiduciae reliquit exempla*, 27.6.14). Ammianus cites one instance from Valentinian's catalogue of cruelties, in which Eupraxius successfully intervened to dissuade the emperor from executing in one fell swoop the entire curial order of three towns by making the argument that Valentinian would merely be turning them into objects of Christian veneration as martyrs. On another occasion, when Valentinian had senselessly ordered the rounding up and execution of three decurions from each of a number of towns, we are told how Florentius, as praetorian prefect of the Gauls, imitated Eupraxius's *salutaris fiducia* on the prior occasion (*cuius salutarem fiduciam ... imitatus*, 27.7.6) by inquiring sardonically whether towns lacking as many as three decurions should be required to provide for their execution whenever they should become available (loc. cit.).

This repeated invocation of Eupraxius's *bona* and *salutaris fiducia* lays bare Ammianus's programmatic purpose in retailing these stories of minor but not inconsequential successes at pushing back against imperial arbitrariness and absolutism. Emperors ill-equipped to benefit from the moral instruction

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[16] On the quaestorship, see Voss, *Recht und Rhetorik*, 33-9; Tony Honoré, "The Making of the Theodosian Code," *ZSS Röm. Abt.* (1986), 133-222, esp. 136-44; idem, "Some Quaestors of the Reign of Theodosius II," in Jill Harries and Ian Wood (eds), *The Theodosian Code* (Ithaca, NY, 1993), 68-94; idem, *Law in the Crisis of Empire* 11-23; Jill Harries, "The Roman Imperial Quaestor from Constantine to Theodosius II," *JRS* 78 (1988), 148-72; eadem, *Law and Empire*, 42-7.

[17] Compare 30.4.2. See further Jan Willem Drijvers in this volume; also Jan den Boeft, "*Non consolandi gratia, sed probrose monendi* (*Res Gestae* 28.1.4): The Hazards of (Moral) Historiography," in J. den Boeft, J.W. Drijvers, D. den Hengst, and H.C. Teitler (eds), *Ammianus after Julian: The Reign of Valentinian and Valens in Books 26-31 of the* Res Gestae (Leiden and Boston, MA, 2007), 293-309, esp. 301-2.

provided by the inculcation of *exempla* drawn from antiquity required guidance from *prudentes*,[18] whose *fiducia*—what we might perhaps call their moral centeredness—was complemented by their willingness and their ability to inhabit personae congenial to the performative context of the imperial consistory and of the court more generally.

More than one persona was available to be inhabited, as the contrast between Eupraxius' cautious advice to avoid rocking the boat and Florentius's remarkably cutting sarcasm would suggest.[19] Foremost among the *exempla* left by Eupraxius was the celebrated instance in 370 in which he intervened in order to persuade Valentinian to rescind an order issued the year before subjecting senators to examination by torture under an arbitrarily expansive definition of *maiestas*. The senate of Rome resolved to send a three-person delegation, headed by no less than Vettius Agorius Praetextatus, to the emperor with instructions to seek the amelioration of this provision. The delegation was admitted to the consistory and delivered its request. Valentinian in response denied issuing such an order and complained of being slandered; but Eupraxius as quaestor rebutted him moderately, "and through this [demonstration of] *libertas* the cruel order was rescinded" (*moderate redarguit quaestor Eupraxius, hacque libertate emendatum est crudele praeceptum*, 28.1.25).

It is worth lingering over the work being done by the adverb *moderate* here, which seems no less carefully chosen for its context than Ambrose's use of *leniter* above to mark his victory over Maximus. Both words connote the judicious skill with which either figure succeeds in sustaining a point of principled opposition while yet maintaining an attitude of unobjectionable deference. They signal, as it were, a deliberate decision to display forbearance while avoiding insubordination.[20] We might say therefore that Ammianus is recognizing and commending in the episode not only the vindication of *libertas*, in the sense both of frankness of speaking and of freedom from arbitrary government, but also Eupraxius's careful abstention from anything that could be stigmatized as *licentia*, the absence of the decorum and self-restraint embodied by a successful courtier.

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[18] Compare Amm. 14.1.10, 29.3.2.

[19] See also the examples cited by Brown, *Power and Persuasion*, 66 with nn. 153, 154.

[20] Compare in a rather different context Plutarch's account of the public rehabilitation of Marius Celsus by Otho following the assassination of Galba: "Celsus replied [to Otho] in a manner that was neither ignoble nor ungrateful" (τοῦ δὲ Κέλσου μήτε ἀγεννῶς ἀποκριναμένου μήτ᾽ ἀναισθήτως, *Oth.* 1.1, trans. Perrin 1926). In Eupraxius' case it has been pointed out by Harries, *Law and Empire*, 40-41, and others that as quaestor he was complicit in the initial decision to subject senators to torture; Harries suggests that the presence of a high-level senatorial delegation was instrumental in bolstering his subsequent determination to oppose the policy. Valentinian might very well have been unaware of the consequences of the policy: see Matthews, *Ammianus*, 212-13; Harries, "Roman Imperial Quaestor," 169.

Elite observers in the sixth century likewise belittled Justin and Justinian as *arrivistes* whose lack of education and culture had a corrosive effect upon politics and government. By this point in time changes are apparent in the consistory, which seems to function more often as a strictly ceremonial and rigidly formal venue than as a genuine council of state. One might suppose that there would be correspondingly less scope for figures like bishops and quaestors to negotiate the boundaries defining their particular competencies and the roles or the personae that were available to be inhabited at court.[21] Yet Procopius can single out the quaestor Proclus, whom he depicts as the leading formulator of policy during Justin's reign, in terms comparable to those applied by Ammianus to Eupraxius. Proclus is credited by Procopius and others for his devotion to justice and his incorruptibility, his aversion to legal and institutional innovation, and for his canny intelligence (*PLRE* 2 Proculus 5). He was alone in opposing Justinian's efforts to trump up charges against the city prefect Theodotus "The Pumpkin," after the latter had cracked down on the Blues (*HA* 9.41).[22]

Proclus receives his fullest portrayal in the incident Procopius relates in book one of the *Wars* (1.11.7-30), in which Proclus prevails over Justin and Justinian in his opposition to the proposal of Cavades of Persia that Justin adopt his youngest son and preferred successor Chosroes in order to protect Chosroes' interests against those of his elder sons.[23] Notwithstanding the merits of the Persian proposal and Proclus' counterarguments, the terms in which Procopius introduces Proclus here, and Proclus introduces himself in direct discourse, make it clear that his stand is a reflection of the man's character (*Wars* 1.11.11-13, trans. Dewing with modifications):

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[21] See Michael McCormick, *Eternal Victory: Triumphal Rulership in Late Antiquity, Byzantium, and the Early Medieval West* (Cambridge, 1986), 123-4.

[22] Procopius reserves comparable praise for Marcellus (*PLRE* 3 Marcellus 3), who as *comes excubitorum* proceeded with painstaking care and deliberation in exposing the conspiracy of Arsaces and Chanaranges against Justinian and subsequently demonstrated his personal integrity in shielding Germanus from the emperor's wrath; Procopius describes him as incorruptible, profoundly invested in the observance of justice, and of sober and forbidding mien (*Wars* 7.32.23). He was learned in the law, having been appointed *iudex pedaneus* by Justinian in 539 (Just. *Nov*. 82.1) together with, among others, Phocas (*PLRE* 2 Phocas 5), whom both Procopius and John Lydus admired. On Phocas see further Charles F. Pazdernik, "Fortune's Laughter and a Bureaucrat's Tears: Sorrow, Supplication, and Sovereignty in Justinianic Constantinople," in Thorsten Fögen (ed.), *Tears in the Graeco-Roman World* (Berlin, 2009), 397-418, esp. 410-13.

[23] On the episode, see Henning Börm, *Prokop und die Perser: Untersuchungen zu den römisch-sasanidischen Kontakten in der ausgehenden Spätantike* (Stuttgart, 2007), 311-17; Geoffrey Greatrex, *Rome and Persia at War, 502-25* (Leeds, 1998), 134-8; A.A. Vasiliev, *Justin the First: An Introduction to the Epoch of Justinian the Great* (Cambridge, MA, 1950), 265-8; Berthold Rubin, *Das Zeitalter Iustinians* 1 (Berlin, 1960), 259-61. See also J.A.S. Evans, *The Age of Justinian: The Circumstances of Imperial Power* (London and New York, 1996), 115.

> [Proclus was] a just man and one whom it was manifestly impossible to bribe; for this reason he neither readily proposed any law, nor was he willing to disturb in any way the settled order of things (ἀνὴρ δίκαιός τε καὶ χρημάτων διαφανῶς ἀδωρότατος. διὸ δὴ οὔτε νόμον τινὰ εὐπετῶς ἔγραφεν οὔτε τι τῶν καθεστώτων κινεῖν ἤθελεν); and he at that time also opposed the proposition, speaking as follows: "To venture on novel projects is not my custom, and indeed I dread them more than any others; for where there is innovation security is by no means preserved (εὖ εἰδὼς ὅτι �én τῷ νεωτεροποιῷ τό γε ἀσφαλὲς οὐδαμῶς σώζεται)."

The qualities Procopius predicates of Proclus here are of course exactly the opposite of those Procopius elsewhere employs to characterize Justinian himself, whose opponents in the *Wars* denounce him as a *neoteropoios* and whom Procopius himself in the *Secret History* castigates as a wrecker of established institutions.[24] They also distinguish Proclus from Tribonian, whom Procopius compliments for his learning but criticizes for his greed and his readiness to alter the law for personal gain (*Wars* 1.24.16; *HA* 20.16).

If for Proclus (as arguably also for Procopius) innovation is something to be resisted and rejected in and of itself, it is important to recognize that what elevates this potentially reactionary tendency to the point of principle, as the work of Tony Honoré, Jill Harries, and Christopher Kelly (among others) has taught us,[25] is the bureaucratic investment in predictability, consistency, and routine that functions as an effective constraint upon the initiative of emperors and in the best instances serves as a check upon arbitrary and despotic abuses of power. If we accord this principle its due weight then the argument that Proclus goes on to make succeeds in its own terms if it deters Justin and Justinian from enacting innovation.

Proclus' argument is that were Justin to adopt Chosroes à la mode romaine, Justin would effectively be making Chosroes his heir and devolving the whole of the Roman empire upon him as his inheritance. On its face it is an argument that seems dubious in its grasp both of the Roman law of succession and of Roman constitutional history and practice. Indeed, Procopius prefaces his account of the entire episode by calling his reader's attention to Justin's own repudiation of the dynastic principle (*Wars* 1.11.1): "And when a little later Anastasius died, Justin received the empire, forcing aside all the kinsmen of Anastasius (Ἰουστῖνος τὴν βασιλείαν παρέλαβεν, ἀπεληλαμένων αὐτῆς τῶν Ἀναστασίου ξυγγενῶν ἀπάντων), although they were numerous and also very distinguished."[26] Proclus

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[24] See Charles F. Pazdernik, "Justinianic Ideology and the Power of the Past," in Michael Maas (ed.), *The Cambridge Companion to the Age of Justinian* (Cambridge, 2005), 185-212.

[25] Christopher Kelly, *Ruling the Later Roman Empire* (Cambridge, MA, 2004), *passim*; see also the works of Harries and Honoré cited in n. 271 above.

[26] See Peter E. Pieler, "L'aspect politique et juridique de l'adoption de Chosroes proposée par les Perses à Justin," *RIDA* 3rd series, 19 (1972), 399-433, esp. 421-32; D. Claude, "Zur Begründung familiärer Beziehungen zwischen dem Kaiser und barbarischen

needs to carry conviction, however, not on the strength of a penetrating legal analysis but rather on his effectiveness in casting the Persian proposal as a direct threat to Justinian's own dynastic interests (16-17):

> And yet both of you ought to repel this attempt of the barbarians with all your power; you, O Emperor, in order that you may not be the last emperor of the Romans, and you, O General [Justinian], that you may not prove a stumbling-block to yourself as regards coming to the throne. For other crafty devices which are commonly concealed by a pretentious show of words might perhaps need an interpreter for the many (τὰ μὲν γὰρ ἄλλα σοφίσματα λόγου ὡς ἐπὶ πλεῖστον σεμνότητι καλυπτόμενα ἴσως ἄν που καὶ ἑρμηνέως τοῖς πολλοῖς δέοιτο), but this embassy openly and straight from the very first words means to make this Chosroes, whoever he is, the adopted heir of the Roman emperor.

Proclus contrasts the brazenness of the Persian proposal, as he characterizes it, with other, unspecified sophistries (σοφίσματα) concealed behind a screen of self-important verbiage, which the undiscriminating require an interpreter to understand. What then are these sophistries, and who comprises the select inner audience capable of unraveling them without the aid of an interpreter? Surely Proclus is being depicted here as offering, to an audience of "insiders," a self-referential and metadiscursive acknowledgment of the conventions and the pragmatics of courtly communication, in which brazenly declaring exactly what you want is rarely the most effective means of obtaining what you want.

For an audience equipped to appreciate Proclus's speech as an example of the kinds of σοφίσματα employed by courtiers in order to befuddle the unsophisticated, Justin's quaestor's objection to the Persian proposal looks less like a carefully argued brief and more like an exercise in lawyerly obfuscation, calculated to move an unsophisticated client[27]—in this case a peasant emperor whose nephew Procopius can declare a barbarian in his speech, his dress, and his manner (*HA* 14.2)—toward a more conservative point of view. Proclus's

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Herrschern," in E.K. Chrysos and A. Schwarcz (eds), *Das Reich und die Barbaren* (Vienna and Cologne, 1989), 25-56, esp. 32-4; Rubin, *Zeitalter*, 259-60, 484 n. 745. As a political and diplomatic matter even a legally spurious claim to the Roman throne might have supplied the Persians with a casus belli, but Procopius insists that the rejection of the proposal earned Chosroes' lasting enmity in any event (*Wars* 1.11.30); compare Irfan Shahîd, *Byzantium and the Arabs in the Sixth Century* (Washington, D.C., 1995), 50 n. 89; Beate Dignas and Engelbert Winter (eds), *Rome and Persia in Late Antiquity: Neighbours and Rivals* (Cambridge, 2007), 105-6 and n. 147. On the alternative of "adoption in arms," proposed by Proclus, see Gillett, *Envoys*, 253-4 n. 153.

[27] Compare Tony Honoré, *Tribonian* (London, 1978), 230: the episode "exposed the limitations of a conservative lawyer in politics." See also J.B. Bury, *History of the Later Roman Empire from the Death of Theodosius I to the Death of Justinian* (London, 1923) 2, 79; Stephen Mitchell, *A History of the Later Roman Empire, AD 284-641* (Malden, MA, and Oxford, 2007), 152 n. 57.

performance as mediated through Procopius's text can be savored for the manner in which it simultaneously exposes, deprecates and enacts the personae available to be inhabited by courtiers seeking to mitigate potentially unsettling or threatening imperial innovations.

The theatricality and artificiality of such performances and the instrumentality of these personae are further exposed and amplified at a parallel point in Procopius's depiction of the deliberations culminating in the Vandal War. Here, however, it is John the Cappadocian, only recently restored to his position following his dismissal during the Nika rioting and derided elsewhere by Procopius and others as a figure of scandalously low culture (*Wars* 1.24.12; *PLRE* 3 Ioannes 11), who implausibly casts himself in the conservative's role.[28] Procopius tells us that the prospect of an expedition to Africa was opposed by Justinian's senior ministers and generals alike, who were mindful of the debacles sustained against the Vandals in the previous century and the demands that would be placed upon the treasury.[29] Only John possessed the temerity to speak out and to urge restraint in view of the formidable risks to be run, in the words quoted above in the title of this chapter: "how then is it better not to prefer quiet, than the dangers of conflict?" (πῶς οὐχὶ τῶν ἐν τοῖς ἀγῶσι κινδύνων τὸ τὴν ἠσυχίαν ἀγαπᾶν ἄμεινον; *Wars* 3.10.13).

That John succeeds for the moment in dissuading Justinian stands less as an demonstration of the principle he endorses, the case that he makes, or Justinian's susceptibility to the σοφίσματα concocted by his courtiers than as an illustration of both the fine line that separates bureaucratic obstructionism from principled opposition and the complex modes and motives of self-representation and cultural appropriation shaping the imperial court. Procopius is demonstrating in this episode exactly how ripe for appropriation—or misappropriation—these courtly modes of self-representation might be. To put the matter schematically, Procopius's John the Cappadocian proves himself as consummate a courtly insider as Ambrose presents himself to be in his letter to Valentinian II. He proves as adept as a Eupraxius or a Proclus in making the case for imperial consistency, predictability, and restraint, without being animated by their sterling character or self-respecting principles.[30]

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[28] The speech is modeled on Artabanus' warning against Xerxes' expedition in Herodotus (Hdt. 7.10.1); see Hermann Braun, *Die Nachahmung Herodots durch Prokop* (Nuremberg, 1894), 46; on the "tragic warner" figure, see Richmond Lattimore, "The Wise Advisor in Herodotus," *CPh* 34 (1939), 24-35, esp. 34-5. On this episode, see R. Scott, "The Classical Tradition in Byzantine Historiography," in M. Mullett and R. Scott (eds), *Byzantium and the Classical Tradition* (Birmingham, 1981), 61-73, esp. 73-4; Anthony Kaldellis, *Procopius of Caesarea: Tyranny, History, and Philosophy at the End of Antiquity* (Philadelphia, PA, 2004), 180-81.

[29] See now A.D. Lee, *War in Late Antiquity: A Social History* (Malden, MA, and Oxford, 2007), 105-6.

[30] Compare Sam Barnish, A.D. Lee, and Michael Whitby, "Government and Administration," in Averil Cameron, Bryan Ward-Perkins, and Michael Whitby (eds), *The Cambridge Ancient History* XIV. *Late Antiquity: Empire and Successors, AD 425-*

The instrumentality of courtly etiquette in domesticating emperors was correspondingly double-edged. Against the not inconsequential successes afforded to sensible men at pushing back against imperial arbitrariness and absolutism had to be set the dangers of empowering the unscrupulous, whose ability to manipulate the means by which influence was exercised at court need not reliably justify their ends.

*600* (Cambridge, 2001), 164-206, at 196: "like any canny financier [John] was reluctant to endorse major new commitments"; Kaldellis, *Procopius of Caesarea*, 180, finds that "the prefect's caution is justified by later events."

# PART III
# Literary Culture

# Chapter 9
# Augustine, the Donatists, and *Litterae Pacificae*

Jennifer Ebbeler

Sometime around 400 CE, as Augustine's campaign to unify the African Christian church was gathering momentum, an excerpt of a letter from Petilian, the Donatist Bishop of Cirta, to his own clergy was brought to Augustine's attention. Even before he obtained a complete and authenticated copy of Petilian's letter, Augustine composed a response. His unsolicited intervention in Petilian's correspondence is preserved among the *libri* as the first book of the *Contra litteras Petiliani*.[1] Augustine addressed the treatise to his most beloved brothers (*dilectissimi fratres*), a category which we should understand to include both his Caecilianist co-religionists and those Donatist laymen who might be persuaded to embrace the *catholica veritas*.

The treatise begins with Augustine's declaration that he had long hoped to use the Donatists' own words to convict them of their heresy (*Contr. Pet.* 1.1.1, *nostis nos saepe voluisse Donatistarum haereticorum sacrilegum errorem in notitiam manifestam, non tam ex nostro, quam ex ipsorum ore producere atque convincere*). "Motivated by this desire," continues Augustine, "I sent letters even to some of their leading bishops. These were not letters of communion, of which they had already in the past rendered themselves unworthy by dissenting from the Catholic Church. Likewise, these letters were not abusive but rather, were intended to encourage unity (*Contr. Pet.* 1.1.1, *unde factum est ut ad nonnullos etiam primates eorum litteras daremus, non quidem communicatorias, quibus se iam in praeteritum indignos a catholica Ecclesia dissentiendo fecerunt; nec tamen contumeliosas, sed pacificas*). In this opening *salvo*, Augustine carefully distinguished his letter to various Donatist leaders from the communion letters that traditionally were exchanged between bishops and which signaled the author's acceptance of the addressee into the Christian community, particularly following a lapse.[2] Likewise,

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[1] For an overview of the treatise and relevant bibliography, see *Augustine through the Ages*, s.v. Litteras Petiliani, contra and S. Lancel, *Saint Augustine* (London, 2002), 278-9. Cf. R. Miles, "'Let's (Not) Talk about It': Augustine and the Control of Epistolary Dialogue," in S. Goldhill (ed.), *The End of Ancient Dialogue* (Oxford, 2008), 136. E. Hermanowicz, *Possidius of Calama* (Oxford, 2008), 141 n. 28 discusses the treatise's date.

[2] Cf. Aug. *Ep*. 44.3. See also Aug. *Ep*. 43.2 and Poss. *Vit. Aug.* 9.3, where Augustine's correspondence with Donatists is characterized as *litterae privatae* to forestall suggestions

he emphasized that these letters to Donatists were not intended to be abusive, however confrontational their rhetoric might appear. Rather, he maintained, they were intended to facilitate peace, that is, the unification of African Christianity.

Augustine's characterization of his letters to Donatists as *litterae pacificae* is unusual. The precise phrase appears only twice more in Augustine's extant literary corpus, and only in reference to communications with Donatists.[3] Augustine's description of his Donatist letters as *pacificae* seems to have been influenced by several passages of scripture. The most direct source for his choice of diction is Matt. 5:9 (*beati pacifici, quia ipsi filii Dei vocabuntur*) but at various points he alludes to the influence of Ps. 36:37 (*custodi innocentiam et vide æquitatem quoniam sunt reliquiæ homini pacifico*). Ps. 120:7 (*cum his qui oderunt pacem eram pacificus*), James 14:27 (*pacem meam do vobis, pacem mean relinquo nobis*), and Eph. 4:3 (*studentes servare unitatem spiritus in vinculo pacis*). There was no shortage of scriptural authorities for Augustine to invoke in his efforts to encourage the Donatists to abandon their purported error and embrace the *pax catholica*. In scripture, the Christian God is more usually the pacifier who unites his children with the bond of peace. In Augustine's formulation, however, the letter exchange usurps that role and is now figured as an agent of pacification and unification.

It is possible that Augustine had more than scripture in mind when he formulated the term *litterae pacificae* to characterize his Donatist correspondence. He may be gesturing to a type of letter that is first attested in Tertullian's early third century treatise *Adversus Praxean*, namely, the *litterae pacis* that a bishop sent to a formerly heretical church to welcome it back to communion. The *litterae pacis*, in turn, seems to have inspired the intercessory recommendation letters that confessors and would-be-martyrs wrote to bishops on behalf of lapsed Christians. These recommendation letters became prominent in Africa during the Decian persecutions in the mid-third century CE. Cyprian's extant correspondence preserves the evidence of their existence, though Cyprian never refers to them as *litterae pacis* or *litterae pacificae*. In fact, he does not use consistent terminology in his discussions of them. Still, there is substantial evidence to support the argument that Augustine intended his readers—Donatist and Caecilianist alike—to understand his letters to Donatist leaders in light of these third century precursors. By locating his own letters to Donatists in an epistolary tradition that included the episcopal letters sent to welcome a once heretical church back to communion and the recommendation letters of the Decian confessors and martyrs, Augustine attempts to sanction his own, rather antagonistic, treatment of the Donatists.

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that they were *epistulae communicatoriae*. Augustine did send communion letters to several ex-Donatist leaders post-411 (e.g. *Ep*. 142, addressed to several clergymen). R. Miles, "Augustine and the Control of Epistolary Dialogue," 139 observes that Augustine considered letters exchanged between Christian communities "as prima facie evidence of Christian community."

[3] Aug. *Contr. Gaud*. 1.1.1; *Ep*. 87.10.

Augustine's endows his letters with the powers of pacification more traditionally attributed to the Christian god in the hope that they will heal the century-long schism in African Christianity.

This chapter begins with a detailed analysis of the evidence for the third century intercessory letters of martyrs and confessors, with close attention to their connection to the episcopal *litterae pacis* attested in Tertullian's *Adversus Praxean*. As Cyprian recognized, these letters from confessors and martyrs posed significant challenges to traditional forms of ecclesiastical authority, particularly episcopal authority. Cyprian did not outright dismiss the authority of the confessors and martyrs to grant forgiveness, but he circumscribed their powers and asserted that the bishop—and the community of living Christians—had the final authority on such matters. The second section of the chapter turns to Augustine's apparent efforts to recall to memory this long-neglected epistolary form. While it is clear that Augustine's letters to Donatists differ in significant formal ways from these third-century precursors, important aspects of Augustine's strategies of unification are illuminated once we identify this connection. At the same time, the association highlights the complexities of Augustine's appropriation of, in particular, Cyprian's authority. This is especially true when it comes to the role of penance in the reconciliation of lapsed or schismatic Christians. The chapter concludes with a brief glance at the post-Augustinian afterlife of the *litterae pacificae*.

## The Decian Persecutions and the Challenge of Reconciliation

In January 250, the Roman emperor Decius issued an edict that called for all inhabitants of the Roman Empire to sacrifice on behalf of the safety of the Empire in the presence of public officials.[4] Those who complied with the edict (or who bribed public officials) were issued a certificate, a *libellus*, attesting to their compliance.[5] The degree to which Decius' edict was enforced is difficult to assess on the available evidence, but it is clear that some Christians, particularly in Carthage and Alexandria, openly refused to comply and were prosecuted. Notable victims of the Decian persecutions include Fabian, the Bishop of Rome, and Pionius, a presbyter from Smyrna.[6] The persecution itself appears to have been

[4] See J.A.F. Gregg, *The Decian Persecution* (Edinburgh, 1897) for extended analysis of the persecution.

[5] See J.R. Knipfing, "The Libelli of the Decian Persecution," *The Harvard Theological Review* 16.4 (1923), 345-90 for discussion and examples.

[6] For mention of Fabian's martyrdom, see Jer. *De vir. ill*. 54 and Eus. *HE* 6.39. The story of Pioniuis' martyrdom is preserved in *The Martyrdom of Pionius*. See L. Robert, *Le Martyre de Pionios, prêtre de Smyrne*, (ed.) G.W. Bowersock and C.P. Jones (Washington, D.C., 1994) for the text and commentary. E.L. Gibson, "Jewish Antagonism or Christian Polemic: The Case of the Martyrdom of Pionius," *JECS* 9.3 (2001), 339-58 discusses the questions surrounding its authenticity.

rather short-lived and of little direct consequence to most Christians living in the Roman Empire. Indeed, the real damage of the Decian persecutions was done once the period of active prosecution ended. In the aftermath, Christian bishops, particularly in Egypt and Africa, were confronted with the challenge of reconciling the lapsed to the faithful to create a unified Christian church.

Tertullian's *Ad Martyres* preserves evidence that, already during the Severan persecutions (202-11 CE), a practice seemingly existed whereby a lapsed Christian begged confessors who were awaiting martyrdom to grant them forgiveness directly.[7] Tertullian does not offer any additional details of this practice, nor does he say whether the forgiveness (*pax*) granted by the *benedicti martyres designati* was recognized by sitting bishops. Tertullian does not specify the particular form which these pardons took and we cannot conclude without further evidence that they were written texts.[8]

Our sources for the persistence of this practice during the Decian persecutions are somewhat more precise. As Eusebius presents it, martyrs took on the guilt of the lapsed.[9] The martyrs evaluated each petitioner and decided when that petitioner had presented himself as sufficiently worthy of forgiveness. It is not entirely clear how this process was imagined to work, but it seems that, while still living, the confessor offered forgiveness to the lapsed. The expectation was that, once the confessor was martyred, he would perform the necessary acts in heaven to procure the sinner's forgiveness. At no point, however, does Eusebius suggest that the soon-to-be martyrs produce written documents to attest to their planned interventions on behalf of individual sinners. Indeed, our earliest and only evidence for the confessors' use of written documents to attest to their pardons of lapsed Christians is preserved in Cyprian's correspondence. So far as I can discover, there is no evidence to support the existence of such written *libelli pacis* prior to *c.*250 CE or outside of Roman Africa.[10] The notion that imprisoned

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[7] 1.6, *quam pacem quidam in ecclesia non habentes a martyribus in carcere exorare consueverunt*.

[8] G.E.M. De Ste. Croix, *Christian Persecution, Martyrdom and Orthodoxy* (Oxford, 2006), 186, n. 106 assumes that they were written, describing them as *libelli pacis*. Cf. Tert. *De pud*. 22 for additional evidence that martyrs were thought to be able to forgive sins directly, without the authority of the bishop or the organized church. As Tertullian is quick to point out, this presumed power of forgiveness could be exploited by the basest of sinners.

[9] Eus. *HE* 6.42.5. Citing from a letter attributed to Dionysius, Eusebius writes, "A little further on he adds: 'These divine martyrs among us, who now are seated with Christ, and are sharers in his kingdom, partakers of his judgment and judges with him, received some of the brethren who had fallen away and become chargeable with the guilt of sacrificing. When they perceived that their conversion and repentance were sufficient to be acceptable with him who by no means desires the death of the sinner, but his repentance, having proved them they received them back and brought them together, and met with them and had fellowship with them in prayers and feasts.'"

[10] See De Ste Croix, *Christian Persecution*, 186, n. 106 for the additional point that there are no further references to the practice of would be martyrs forgiving lapsed

confessors had the authority to issue forgiveness while awaiting martyrdom goes back at least to the Severan persecutions and it is not at all surprising to see that a version of this practice continued during the Decian persecutions. What should attract notice is the transformation of the practice from an apparently oral to a written medium. By the mid-third century, the confessors' are not merely offering pardon. They are producing written documents that attest to this offer—documents whose existence requires bishops like Cyprian to set their own authority against the authority of the martyrs.

Cyprian discusses these written documents at some length in his extant correspondence.[11] At no point does he refer to them explicitly as "letters of peace" (*litterae pacis*) though they seem to be closely related to the letter type that is attested by Tertullian but almost certainly predates the early third century. In the *Adversus Praxean*, Tertullian reports that the heretic Praxeas forced the Bishop of Rome to recall a letter of peace that he had sent to churches in Asia and Phrygia after he recognized the orthodoxy of the Montanists.[12] What Tertullian characterizes as *litterae pacis* is, roughly speaking, an epistolary type that later letter writers called *litterae communicatoriae*, or letter of communion. But there is, I think, an important distinction to be made between *litterae pacis* and *litterae communicatoriae*: *litterae pacis* were sent to previously heretical churches to welcome them back into communion. As such, they conveyed not just an acknowledgement of orthodoxy but also an announcement of forgiveness. *Litterae communicatoriae* were not necessarily warm, effusive letters. Their primary function was to document the communion of author and addressee. Importantly, the dispatch of *litterae pacis* seems to have been the prerogative of the bishop alone.

The documents produced by the confessors and martyrs during the Decian persecutions are, *mutatis mutandis*, strikingly similar to the episcopal *litterae pacis* mentioned by Tertullian. Rather than offering reconciliation directly, however, the confessors and martyrs should, under ideal circumstances, recommend that a bishop offer it (though, as Cyprian complains, many of these recommendations are often indistinguishable from commands). In turn, by writing on behalf of the lapsed, the imprisoned confessor supplies the indisputable evidence of his intention, upon his martyrdom and arrival in heaven, to intercede with Christ on behalf of the lapsed. These recommendations function as certificates of pardon that are meant to procure the lapsed Christian's readmission to communion without

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Christians, either orally or in writing, after the Decian persecutions.

[11] See in particular Cypr. *Ep*. 15-17. For additional discussion, see Gregg, *Decian Persecution*, 162-80 and J.P. Burns, *Cyprian the Bishop* (New York, 2002), 2-3; 22; 26-7; 32; 42.

[12] 1.5: *nam idem tunc episcopum romanum, agnoscentem iam prophetias Montani, Priscae, Maximillae, et ex ea agnitione pacem ecclesiis Asiae et Phrygiae inferentem, falsa de ipsis prophetis et ecclesiis eorum adseverando et praecessorum eius auctoritates defendendo coegit et litteras pacis revocare iam emissas*.

any further action on his part. As with a conventional letter of recommendation, these certificates of pardon require the author to exploit his relationship with the document's addressee (implied or explicit) to secure some benefit for a named third party.[13] In this case, the imprisoned confessor promises to use his post-martyrdom, face-to-face encounter with Christ to secure forgiveness for the beneficiary of his pardon. In turn, the confessor's letter of recommendation ought to be a guarantee that he has thoroughly examined the merits of the petitioner's case and ensured that the appropriate acts of penance have been performed. The confessor steps in for the bishop in the process of reconciliation, and then uses his personal standing with the bishop to procure the lapsed Christian's readmission to communion.

The beneficiaries of these intercessions might be one or a few individuals, as was the case when a certain Mappalicus petitioned for the forgiveness of his lapsed mother and sister.[14] Far more troublesome were the less discriminating offers of peace. Thus, in his own letter to imprisoned confessors, Cyprian discouraged his addressees from offering forgiveness to an entire household. As he remarked, "it opens the door wide open when it says 'such a one together with his own people.' And twenty and thirty and more who assert that they are close relatives, the neighbors, the freedmen, and the servants of him who received the petition can be brought forward to us."[15] While Cyprian was willing to tolerate the occasional penance-free pardon of an individual sinner by a confessor, he did not want to be forced to sanction the wholesale pardon of an entire household of lapsed Christians without being able to demand some form of additional penance from them. When a confessor pardoned an individual or his immediate family members, a bishop could reasonably persuade himself (and the faithful in his congregation) that the confessor had carefully investigated the situation and ensured that the proper

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[13] For an incisive analysis of the triangulated dynamic at play in a recommendation letter, see R. Rees, "Letters of Recommendation and the Rhetoric of Praise," in Ruth Morello and A.D. Morrison (eds), *Ancient Letters* (Oxford, 2007), 149-68. See also H. Cotton, "*Mirificum Genus Commendationis*: Cicero and the Latin Letter of Recommendation," *AJP* 106 (1985), 328-34 and A. Wilcox, *The Epistolary Habit: Representation, Participation, and Exchange among the Roman Elite* (diss. Philadelphia, 2002).

[14] Cypr. *Ep*. 27.1: *cautus et verecundus, legis ac disciplinae memor, nullas contra evangelium litteras fecerit, sed tantum domestica pietate commotus matri et sorori suae quae lapsae fuerant mandaverit pacem dari*.

[15] Cypr. *Ep*. 15.4: *late enim patet quando dicitur ille cum suis et possunt nobis et viceni et triceni et amplius offerri qui propinqui et adfines et liberti ac domestici esse adseverentur eius qui accepit libellum.* All English translations of Cyprian's letters are adapted from the published translation of Sister R.B. Donna, C.S.J., *Saint Cyprian:Letters 1-81* (Washington, D.C., 1964). Cf. Cypr. *Ep*. 20.2 (*Item conperissem eos qui sacrilegis contactibus manus suas adque ora maculassent vel nefandis libellis nihilominus conscientiam polluissent exambire ad martyras passim, confessores quoque inportuna et gratiosa deprecatione conrumpere, ut sine ullo discrimine adque examine singulorum darentur cotidie libellorum milia contra evangelii legem, litteras feci quibus martyras et confessores consilio meo quantum possem ad dominica praecepta revocarem*).

penance was performed prior to issuing the pardon. In the case of these large-scale pardons, however, such a claim was untenable.

Some confessors' habit of offering indiscriminate forgiveness challenged more conventional forms of ecclesiastical authority and required careful management, but Cyprian had little recourse in his response to the challenge that the Carthaginian martyr Paul posed to his authority. Before his death, Paul authorized another zealous but unschooled confessor, Lucian, to serve as his postmortem agent. He instructed Lucian to distribute a certificate of forgiveness to anyone who requested one—even after Paul's death. Lucian apparently obeyed Paul's instructions because Cyprian subsequently complained that Lucian had distributed written pardons by the dozens to the assembled crowd—a scene reminiscent of the grain doles that Roman emperors staged to enhance their popularity.[16] Cyprian was understandably troubled by Paul's behavior, not least because it made it clear that no penance was demanded from the lapsed in exchange for these certificates of forgiveness. He disputed the validity of these mass pardons, albeit by blaming Lucian rather than Paul himself for overestimating the reach of the martyr's authority.[17]

Cyprian was not keen to compete with the popular power of a martyr like Paul, yet he felt a responsibility to preserve the integrity of the Christian community. Without a doubt, he was troubled by the apparent custom of granting imprisoned confessors the privilege of granting forgiveness to petitioning sinners, particularly once these pardons assumed a written form and were granted on a larger scale. Indeed, Paul's indiscriminate pardons for lapsed Christians whom he had never met, much less overseen their performance of penance, clearly crossed the line from recommendation to command. In an effort to avoid putting his own authority in competition with the martyrs, Cyprian searched for a compromise that allowed him to sanction the martyr's pardon but also to maintain his right to impose additional disciplinary measures when he deemed it necessary.[18] He did not challenge the validity of these written pardons writ large but instead attempted to circumscribe their efficacy. To this end, he outlined the features of an acceptable written pardon in a letter to potential authors (i.e. imprisoned confessors). "I ask that you designate by name in the petition those whom you yourselves see, whom you know, whose penance you perceive is the nearest to satisfaction," he wrote.

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[16] Cypr. *Ep*. 27.1: *nam frater noster Lucianus et ipse unus de confessoribus, fide quidem calidus et virtute robustus, sed bene minus dominica lectione fundatus, quaedam conatus est inperite, iam pridem se auctorem constituens, ut manu eius scripti libelli gregatim multis nomine Pauli darentur.* Cf. Cypr. *Ep*. 22.2 (*Cum benedictus martyr Paulus adhuc in corpore esset, vocavit me et dixit mihi, "Luciane, coram Christum tibi dico ut si quis post arcessitionem meam abs te pacem petierit, da in nomine meo"*).

[17] Cypr. *Ep*. 27.2: *nesciens domino magis quam conservo obtemperandum*.

[18] See Burns, *Cyprian*, 20-23 for the keen observation that Cyprian was trying to limit rather than dismiss altogether the authority of the martyr's epistolary pardons.

"And thus, you may address to us letters becoming to faith and discipline."[19] From Cyprian's instructions, it is apparent that he is attempting to impose more rigorous standards on a customary practice that, in his eyes, was being abused by confessors in an effort to enhance their popularity.

Understandably, Cyprian was reluctant to accord these intercessory letters an authority on par with that of the bishop. In his view, the confessors' pardons ought instead to play an advisory role, offering the presiding bishop additional testimony as he evaluated individual cases. The confessor, now a blessed martyr, could recommend a course of action, but the final decision was the prerogative of the living bishop. Cyprian chastised those clergy who, by granting readmission to lapsed Christians without episcopal approval, put the martyrs' wishes in competition with Episcopal authority. Indeed, Cyprian suggests that the real problem is not that imprisoned confessors are overstepping their authority but that certain insubordinate clergymen are stirring up trouble. In an open letter to priests and deacons, he reminds them:

> they expose the blessed martyrs to hatred and they involve the glorious servants of God in controversy with the bishop of God. For, although the former, mindful of our position, have sent letters to me and have asked that their desires be examined and peace be given … the latter, having taken away the honor with the blessed martyrs and confessors have given us, having despised the law of the Lord and the circumspection which the same martyrs and confessors command to be kept … are in communion with the lapsed.[20]

By firmly asserting that his own authority as bishop outweighs the authority of the martyrs (and claiming that the martyrs themselves would acknowledge this), Cyprian reclaims the bishop's right to make the final judgment about readmission. At the same time, he lays the blame for the chaos created by these written pardons at the feet of his own renegade clergymen rather than the martyrs. According to Cyprian, the martyrs recognize that they are servants and always intended for

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[19] Cypr. *Ep*. 15.4: *et ideo peto ut eos quos ipsi videtis, quos nostis, quorum paenitentiam satisfactioni proximam conspicitis, designetis nominatim libello et sic ad nos fidei ac disciplinae congruentes litteras dirigatis*.

[20] *Exponunt deinde invidiae beatos martyras et gloriosos servos dei cum dei sacerdote committunt ut, cum illi memores loci nostri ad me litteras direxerint et petierint tunc desideria sua examinari et pacem dari … hi, sublato honore quem nobis beati martyres cum confessoribus servant, contempta domini lege et observatione quam idem martyres et confessores tenendam mandant … communicant cum lapsis* (Cypr. *Ep*. 16.3). Cf. Cypr. Ep. 17.2, addressed to the Christian brethren: "I hear that some of the priests, not mindful of the gospel, not considering what the martyrs have written to us, not reserving for the bishop the honor of his priesthood and of his see, have already begun communion with the lapsed" (*Audio quosdam tamen de presbyteris, nec evangelii memores, nec quid ad nos martyres scripserint cogitantes, nec episcopo honorem sacerdotii sui et cathedrae reservantes, iam cum lapsis communicare coepisse*).

their pardons to be advisory rather than definitive. He emphasizes this point when he writes to his fellow Christians, "the blessed martyrs have sent letters to us concerning some, asking that their desires be examined. When, after peace has first been given to us all by the Lord, we shall begin to return to the church, each one will be examined in your presence and with you judging."[21] The martyrs could offer their written recommendations on individual cases, but the decision on readmission would be made by the bishop—the temporal representative of God—with the assistance of the faithful.

No examples of these intercessory letters survive, nor do we have any evidence of them independent of Cyprian's correspondence. Without more ancient witnesses, we are left with little sense of how widespread the practice was and how other bishops responded to the potential threats they posed to their authority. Certainly, Cyprian's own reactions were colored by his desire to maintain a firm grip on the primacy of episcopal authority in reconciling lapsed Christians. There is no evidence to suggest that confessors and martyrs in later persecutions produced the sort of written document that Cyprian discusses. Indeed, these so-called *libelli pacis* seem to have faded from view as abruptly as they came on the scene. The same is true for the *litterae pacis* type mentioned by Tertullian. In this case, however, its apparent extinction may be due to the fact that its function was subsumed by the more general *litterae communicatoriae*.

## Augustine's Letters to Donatists

Prior to Augustine's formulation of the term *litterae pacificae* at the start of the fifth century CE, the use of either the noun *pax* or the adjective *pacificus* to modify *litterae/epistula* is virtually unattested. In the single instance that I could find, a letter from Hosius of Cordoba to Constantius, *pacificam* is nothing more than a synonym for the adjective *amicam*.[22] A letter from Jerome's correspondence, conventionally dated to 399 CE and so virtually contemporaneous with the first book of Augustine's *Contra Litteras Petiliani*, uses the term *litterae pacificae* to characterize a letter that Jerome received from John of Jerusalem. In this instance, Jerome contrasts *pacificus* with *mordacissimus*, suggesting that John may have intended to compose a conciliatory letter but, in Jerome's eyes, it was exceedingly caustic.[23] Jerome does not seem to have in mind any established letter type or

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[21] Cypr. Ep. 17.1: fecerunt ad nos de quibusdam beati martyres litteras petentes examinari desideria sua. Cum, pace nobis omnibus a domino prius data, ad ecclesiam regredi coeperimus, examinabuntur singula praesentibus et iudicantibus vobis.

[22] Hosius of Cordoba, *Ep. Ad Const*. (*sed ultro ipsi Romam profecti, coram episcopo et presbyteris haec scripsere cum antea amicam et pacificam epistolam ad Athanasium misissent*).

[23] *Ep*. 82.4: *scribit in suis illis, ut ille vult pacificis, ut ego sentio, mordacissimis litteris, quod nunquam a me laesus sit, nec dictus haereticus*

function when he uses the term *litterae pacificae*. Rather, he is characterizing its tone. Of greater relevance to our discussion is Jerome's translation of Theophilus of Alexandria's paschal letter from 402 CE. The letter concludes with an injunction to exchange *litterae pacificae* with several recently ordained bishops, in accordance with church custom.[24] In this instance, Jerome (and Theophilus) are using the term *litterae pacificae* as Tertullian did, to refer to the type of letters that bishops exchanged to acknowledge their communion.

It is certainly possible that Augustine's usage of *litterae pacificae* is unmarked, as in the first Jerome passage discussed above. Perhaps we are to understand from his terminology nothing more than that he intends for his letters to Donatist leaders to be interpreted as an effort to engage his rivals in a friendly (*pacificus*) conversation rather than an exchange of insults (*contumeliosus*). Yet we should not overlook the fact that, in his description of the Donatist correspondence at the beginning of his response to Petilian's letter, Augustine carefully distinguishes his *litterae pacificae* from the communion letters that Theophilus was encouraging. It is possible that his *litterae pacificae* are intended to recall the *libelli pacis* of the confessors and martyrs rather than the episcopal letters welcoming new bishops into communion.[25] Given the available evidence, it is not possible to prove that Augustine intended for his readers to read his Donatist letters in light of this rather short-lived third century tradition. It is nevertheless a plausible connection, and one that helpfully illuminates Augustine's tactics for reconciling the Donatists to Catholic communion in the years leading up to the Council of Carthage in 411.

The language of peace is prominent in Augustine's writings both to and about Donatists, particularly in his correspondence. This rhetoric underscores the fact that, at least until 411, his primary aim vis-à-vis his rivals was reconciliation rather than punishment. Even before his ordination as Bishop of Hippo, he encouraged the Donatist bishop Maximinus to participate in a peacemaking discussion about the orthodoxy of re-baptism (Aug. *Ep.* 23.6, *pacificis collationibus*). Similarly, he encouraged Proculeian, his Donatist counterpart in Hippo, to discuss their differences with an eye towards reconciliation (*Ep.* 33.6, *omnia pacifice conferendo*). He and other Caecilianist clergy reiterate their desire for such a discussion in a letter to Januarius, the Donatist bishop of Casae Nigrae in Numidia (*Ep*. 88.7, *ut pacifice conveniremini*; cf. 88.7, *recusans pacificam collationem*). In an open letter to the Donatists, Augustine criticizes their bishops for refusing to engage in such conversations with him (*Ep*. 105.4.13, *vestri episcopi conventi a nobis, numquam nobiscum pacifice conferre voluerunt*). Finally, he concludes a

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[24] Jer. Ep. 98.6: *et hoc necessario scribimus, ut sciatis pro sanctis et beatis episcopis qui in domino dormierunt, ordinatos esse in Lemnado pro Herone, Naseam; in Erythro pro Sabbatio, Paulum; in Omboes pro Sylvano, Verrem. His ergo scribite et ab his accipiter pacificas, iuxta ecclesiasticum morem, litteras*.

[25] Alternatively, Augustine may understand the connection between his *litterae pacificae* and those that resemble communion letters to be one of perspective. That is, his *litterae pacificae* accomplish rather than document communion.

letter to the Donatist Bishop Emeritus, in which he pleaded with him to engage in a discussion about the origins of the Donatist schism, by proclaiming that his letter was a *litterae pacificantes* whose function was to encourage them to work out their differences and heal the schism in African Christianity (*Ep*. 87.10, *pacificantes litteras misi*).[26]

At least in the context of the Donatist schism, Augustine uses *pax* (sometimes *pax Christiana* or *pax catholica*) as a gloss for unity.[27] Echoing especially Matthew 5:9 (*beati pacifici quia ipsi filii Dei vocabuntur*; cf. Ps. 36:37, *homini pacifico*), he presents himself as the peacemaker, that is, as the one working to accomplish that unity. When Augustine invites Donatist bishops to participate in pacific debates or correspondences, he does not mean that the exchanges will be calm or even cordial. Rather, he is signaling that they will be focused on healing the century-long schism and unifying Christianity in Africa. These were not formulated as letters of recommendation or pardon, in which Augustine wrote to someone seeking forgiveness for a Donatist's error. Instead, Augustine's peacemaking letters were sent directly to various Donatist bishops. They were meant to engage his addressees in a focused discussion of their misguided views.[28] Augustine maintained that, like a *viva voce* conversation or public debate, the letter exchange could assist the Donatists in recognizing and renouncing their errant beliefs and practices and push them to desire reconciliation to Augustine's brand of Christianity.

Augustine imagines that these exchanges are taking place in the presence of the watchful Christian god. In a letter to the Donatist Bishop Emeritus, for example, Augustine imagines the two of them as lawyers presenting their respective cases for the Christian God's judgment (*Ep*. 87.10). Implicit in this image is Augustine's assumption that the case will be decided in his favor and that he will be the one to intercede with the Christian God to secure forgiveness for Emeritus. Once a Donatist declares his desire to change his ways, no further disciplinary action is required. In fact, the Donatist will be permitted to hold among the Caecilianists whatever

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[26] Cf. *Contr. Gaud*. 1.1.1 (*Gaudentius Donatistarum Thamugadensis episcopus, cum se ipsum in ecclesia quibusdam sibi adiunctis perditis incendere minaretur; viro spectabili tribuno et notario Dulcitio, cui piissimus imperator leges suas exsequendas cura perficiendae unitatis iniunxit, agenti, ut oportebat, cum furentibus mansuete, et prius ad eumdem Gaudentium litteras pacificas danti, duas rescripsit epistolas*). In this instance, the term is applied to a letter that Dulcitius, an imperial agent charged with compelling the Donatists to unify, sent to Gaudentius the bishop who had locked himself in a church and was threatening to set the whole thing on fire.

[27] See, e.g., Aug. *Ep.* 34.1; 43.3.11; 44.5.11; 52.3; 89.1; 128.3. It is worth asking how the Donatists would have understood the word *pax*. Presumably, they would have agreed that peace was a *desideratum* but would have argued that the Caecilianists were the lapsed and needed to make themselves worthy of readmission to communion through penance.

[28] For more expansive discussion of the aims of the letters to Donatists, see R. Miles, "Augustine and the Control of Epistolary Dialogue," 135-48 and J. Ebbeler, "The Donatists and the Limits of the Corrective Correspondence," in *Disciplining Christians: Correction and Community in Augustine's Letters* (Oxford and New York, forthcoming).

position he held among the Donatists.[29] Augustine's position on the readmission of schismatic Donatists closely resembles that of the Decian confessors and martyrs. Like the confessors and martyrs, he reassures the community of faithful Christians that he has judged the schismatic Donatists worthy of admission to their communion. He does not declare that he will sue Christ for their forgiveness upon his arrival in heaven, nor does he need to. As Bishop of Hippo, that is, as God's earthly representative, he has the authority to offer forgiveness directly once he has determined that their errors have been corrected.[30]

He carefully distinguishes the peacemaking letter from the communion letter (*epistula communicatoria*). According to several passages in the *acta* of various church councils, an *epistula communicatoria* was a type of letter that was sent by bishops to lapsed Christians following their repentance. It appears to have attested to the penitent's readmission to communion. On several occasions, Augustine clarifies that his letters to Donatists are not to be understood as evidence of his acceptance of their position (e.g. *Contr. Pet.* 1.1.1; *Ep*. 43.1.2). Rather, they are letters intended to encourage the Donatists to confess their errors publicly and rejoin the Catholic unity. He may feel the need to explicate this point because, as we have seen from passages in both Tertullian and Jerome, the *litterae pacificae* more traditionally seems to have described a letter that was sent to acknowledge an existing communion.

If, in fact, Augustine's description of Donatist correspondence as *litterae pacificae* is intended to recall the intercessory letters of certain Decian confessors and martyrs, then Augustine is claiming for himself the role of the confessor while the Donatists are cast as the lapsed in need of intervention. The role of the confessor was certainly not new to Augustine, as his *Confessions* attests. By fashioning himself a latter-day confessor who was continuously tortured by the temptations of everyday life, Augustine also challenges the Donatists' assertion that they alone venerate the culture of martyrdom that was a central part of the African church's early history. Finally, he subsumes the confessor or martyr's right to grant peace under his own episcopal authority. As both confessor and bishop, Augustine has the singular right to grant peace to the Donatist schismatics. He alone can (and must) unify the African Christian church.

Whereas Augustine's use of *litterae pacificae* apparently casts him as a latter-day confessor, his presentation of himself as the person who finally will bring peace to African Christianity after a century of schismatic unrest is reminiscent of the Carthaginian bishop Cyprian's efforts to reconcile the lapsed following the Decian persecutions. Augustine emphasizes his identification with Cyprian in a lengthy letter to Vincent the Rogatist when he describes Cyprian as a bishop and glorious martyr (*Ep*. 93.10.36, *sancti Cypriani episcopi et gloriosi martyris*) and as a bishop of peace and bravest martyr (*Ep*. 93.10.41, *pacificum episcopum, et*

[29] Cf. Aug. *Ep*. 61 for Augustine's declaration of this policy.

[30] The connection between pacification and correction is especially vivid in Aug. *Ep*. 138 and 185.

*fortissimum martyrem*). As Augustine reminds Vincent (and other readers of the letter), Cyprian embodied the marriage of the martyr's authority with that of the bishop. Augustine maintains that, contrary to Donatist claims, Cyprian prioritized the unity of the church above all else—including the rituals of reconciliation.[31] Even if the Donatists can produce texts attributed to Cyprian, in which he seems to be supporting their position, Augustine is certain that Cyprian corrected his mistaken views (*Ep*. 93.10.38-40). Regardless of what Cyprian actually believed and did, he is resurrected by Augustine to perform the role of the venerated martyr/bishop who, first and foremost, defended the catholic unity, the bond of peace (*vinculum pacis*).

Augustine's own efforts to unify the African church are thus to be understood as a continuation of Cyprian's, motivated by that same desire to restore peace (rather than by personal ambition or anger). Augustine explains the apparent hostility of his interactions with the Donatists by reformulating them as the efforts of a dedicated peacemaker who is acting with the authority of a tradition that extends back to the time of Cyprian. We might presume that the Donatists were less than overjoyed to see Augustine using Cyprian to justify his actions towards them. After all, they were the ones who looked to Cyprian to defend their rigorist position on the reconciliation of the lapsed while considering Augustine and the Caecilianists to be laxists.[32] Likewise, they must have resented Augustine's portrayal of them as lapsed Christians in need of Augustine's offer of forgiveness for their purported errors. Indeed, the extant evidence suggests that the Donatist leaders spurned Augustine's efforts to engage them in peacemaking conversations, both *viva voce* and via letter exchange. Presumably, they believed that silence would be more effective than challenging Augustine's representations of himself, them, and Cyprian on the issue of church unity.

While we cannot be certain that Augustine's description of his letters to Donatist bishops as *litterae pacificae* (or *litterae pacificantes*) was intended to imply a connection between his own efforts to unify African Christianity and the efforts of the confessors and martyrs together with Cyprian to restore unity following the Decian persecutions, the evidence suggests that this is the case. That Augustine failed to make the connection explicit should not be surprising. In general, he avoided such heavy-handedness. He preferred plausible deniability, particularly when it came to his resistant religious rivals. It is perhaps telling that Augustine did not use the term with reference to any other schismatics or heretics (e.g. Pelagianists). Whatever Augustine's intentions were in employing such an

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[31] *Ep*. 93.10. 35ff; cf. 93.10.41: *nempe intueris hunc tantum virum, pacificum episcopum et fortissimum martyrem, nihil vehementius sategisse quam ne unitatis vinculum rumperetur*.

[32] See Burns, *Cyprian*, 166-76 for comment on the place of Cyprian in the Caecilianist/Donatist schism. For more general discussion of the Donatists, see W.H.C. Frend, *The Donatist Church: A Movement of Protest in Late Roman Africa* (Oxford, 1952) and M. Tilley, *The Bible in Christian North Africa: The Donatist World* (Minneapolis, 1997).

unusual term, there are nevertheless compelling reasons to associate his letters to Donatists with third century efforts to heal the African church following an imperial persecution. We cannot be certain that the Donatists themselves made the connection but, given their veneration of Cyprian's rigorist position on the reconciliation of lapsed Christians, the nuances of Augustine's terminology probably did not escape their notice.

The *litterae pacificae* was attested after the early fifth century CE, though not widely. Indeed, we can conclude from the sparse evidence preserved in monastic rules that it was an ambiguous term that required a definitional gloss. Interestingly, the post-Augustinian *litterae pacificae* seems to have lost its close connection to the *litterae communicatoriae*, becoming instead a synonym for the *litterae commendaticae*, or recommendation letter.[33] It may be the case that, after Augustine's treatment of the form, its connection to the commendatory *libelli pacis* of the Decian confessors and martyrs seems to have been activated (although Augustine's *litterae pacificae* were not formulated as recommendation letters per se). On the whole, though, there is nothing to indicate that the Augustinian *litterae pacificae*—a letter sent to encourage the public admission of error and intended to facilitate church unity—had any real influence on later letter writers. In fact, even Augustine himself abandoned this type of letter once it failed to make headway with the Donatists. He turned instead to the authority of the Roman Empire to bring peace to the African Christian church.

[33] A search of the Patrologia Latina database uncovered a very small number of citations: (67.160C.85, *nullus peregrinorum sine pacificis, id est, commendatitiis suscipiatur epistolis*; 67.160C.86, *presbyteri qui sunt in agris canonicas epistolas dare non possunt, ad solos tantum vicinos episcopos litteras destinabunt. Chorepiscopi autem qui sunt irreprehensibiles dare possunt pacificas, id est, generales epistolas*). It also appears in Agnellus of Ravenna's *Life of Sergius* as a gloss on friendly (4, *per nimia blandimenta et pacificas epistolas*).

Chapter 10

# On the Poetics of Dioscoros of Aphrodito: The Encomium on Duke Kallinikos (P. Cair. Masp. III 67315)

Raymond L. Capra

Writing as he was at the end of antiquity, Dioscoros of Aphrodito's poems are the last of the poetic flourishing that occurred in Egypt during the 3rd to 6th centuries.[1] Accordingly his occasional poetry embodies the finale of classical thought, thoroughly Christian though built upon the foundation of Roman *paideia*. The encomium on Duke Kallinikos exhibits this synthesis of pagan and Christian traditions, and so reveals the effect of classical education on the aristocratic Roman. In a poem constructed heavily from epic language Dioscoros uses the heroes of ancient mythology together with Christian themes and imagery in an encomiastic petition.[2] The pagan decorations reflect the mythological literature familiar to both Dioscoros and his aristocratic addressees.[3] Within Dioscoros' extant poetic oeuvre it is evident that while his use of Greek mythology touches on the formulaic it retains meaning. The heroes are symbols of bravery and virtue.[4] These symbols decorate a poem in which the praise of the Duke's arrival creates a comparison with the advent of Christ. In this chapter I examine the structure of the poem and read the encomium as an excellent example of classicizing Christian poetry of the sixth century, literature that shows a total ease in the interweaving of Christian thought and classical learning. For Dioscoros there is no tension

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[1] J.-L. Fournet, *Hellénisme dans l'Égypte du VI^e siècle: la bibliothèque et l'oeuvre de Dioscore d'Aphrodité* (Cairo, 1999), poem 18. Fournet has rearranged the poem as it appears on the papyrus by placing the iambic portion at the beginning as a prologue, *Hellénisme*, 578. However I follow the line numbers according to the texts of Heitsch and MacCoul, E. Heitsch, *Die griechischen Dichterfragmente der römischen Kaiserzeit*, vol. 1, 2nd edn (1963), and L. MacCoull, *Dioscorus of Aphrodito: His Work and His Life* (1988). L. Miguél Cavero, *Greek Poetry in the Egyptian Thebaid 200—600 AD* (New York, 2008), 5.

[2] Fournet, *Hellénisme*, 312-14.

[3] Cavero, *Greek Poetry*, 22.

[4] W. Liebeschuetz, "Pagan Mythology in the Christian Empire," *IJCT* 2.2 (1995), 193.

between these elements; rather they are readily combined, and in effect become complimentary, in the poem's offering of praise.[5]

Dioscoros' eulogizing poem is the product of a thorough training in rhetoric, specifically the art of epideictic oration, combined with an education in pagan literature, in particular Homer.[6] Dioscoros' own Coptic Christian sensibility, reared as he was in a world of praise literature and sermons, has fragmented this essentially classical form into a flowing song of praise. As MacCoull remarks in her commentary on the poem, "we can see how the poet is paying attention both to the prescriptions for an epideictic oration as set forth by Menander Rhetor and to the requirements for praising a holy man in a Coptic sermon."[7] The poem meanders and touches upon most of the rhetorical *topoi* of encomium throughout its length, though without an ordered structure or any transitions between sections.[8] Viljamaa remarks, "there is no clearly discernible disposition in Dioscoros' encomiastic poems. Many poems of his contain, it is true, the matters to be related in regular

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[5] Av. Cameron, "Images of authority: élites, and icons in the late sixth-century Byzantium," in M. Mullett and R. Scott (eds), *Byzantium and the Classical Tradition* (Birmingham, 1981), 227, writes in regard to Agathias, "of the bureaucrats who composed correct Greek epigrams in the middle of the sixth century, and were thus certainly classically educated and surely and élite, some at least were ready to admit Christian material in their poems," while Leibeschuetz, "Pagan Mythology," 193, remarks, "Christians could accommodate themselves to purely literary use of myth." Dioscoros' encomium perfectly displays the combination of these two traditions. Cf. Av. Cameron "New Themes and Styles in Greek Literature, A Title Revisited," in S.F. Johnson (ed.), *Greek Literature in Late Antiquity: Dynamism, Didacticism, Classicism* (Burlington, 2006), 17-18.

[6] Menander Rhetor had proscribed the rules for an encomium to the Emperor, cf. D.A. Russell and N.G. Wilson, *Menander Rhetor* (Oxford, 1991), 368-78. Menander did advise some degree of adaptability for the encomium, cf. M. Heath *Menander: A Rhetor in Context* (Oxford, 2004), 234, and T. Viljamaa *Studies in Greek Encomiastic Poetry of the Early Byzantine Period* (Helskinki, 1968), 98-112. Dioscoros was very familiar with the works of Menander Rhetor, cf. Fournet, "Between Literary Tradition and Cultural Change: The Poetic and Documentary Production of Dioscorus of Aphrodite," in A.A. MacDonald, G.J. Reinink, and M.W. Twomey (eds), *Learned Antiquity: Scholarship and Society in the Near-East, the Greco-Roman world, and the Early Medieval West* (Leuven, 2003), 104, and R. Cribiore, "Menander the Poet or Menander Rhetor? An Encomium of Dioscoros Again," *GRBS* 48 (2008), 95-109. On Homer as an aspect of Greek education see Viljamaa, *Encomiastic Poetry* 16-17, T. Morgan, *Literate Education in the Hellenistic and Roman World* (Cambridge, 1998), 152-4, and R. Cribiore, *Gymnastics of the Mind* (Princeton, 2001), 53-4.

[7] MacCoull, *Dioscorus*, 93. On the appearance of Christian themes in Dioscoros' poetry see Fournet, "Literary Tradition," 105-11.

[8] Viljamaa, *Encomiastic Poetry*, 99-100, writes, "an indication of the proceeding to the next main point may be regarded as quite an important characteristic of an encomiastic presentation. The performer thereby reveals, in fact, that he is following a certain pattern." He then proceeds to demonstrate this point with four examples of transitions from Paulus Silentarius' encomium on the Haghia Sophia. Cf. Fournet, "Literary Tradition," 104-5.

*encomia* but those matters are in no kind of order."[9] For example the references to Kallinikos' lineage in the encomium have no specific reference to his family and rather seem allusions to Christ's lineage; the poem declares that Kallinikos is from a "golden and divine line" (at line 40) and, if line 42 also refers to Kallinikos' pedigree, he is descended "from kings." The poem fulfills its objective of appeal and praise through a cascade of enthusiastic language. Dioscoros considered his petitions as literature, as in the sixth century the petition had become a genre in its own right.[10] Also interwoven in the language of the petition is the declaration of the author's humility, as in line 14, ἴλλαθί μοι τρομέοντι, τεὸ[ν μέλος ὄφρα βοήσω]. Such a posture was common for authors of the hagiography with which Dioscoros was familiar.[11]

The initial hexametric verses declare the poem to be an offering of praise and name the *laudandus*. The use of *hymnos* here is significant as it mixes the language of a religious hymn into the petition and equates Kallinikos with a divinity.[12] The association of Duke and the divine underscores Kallinikos' obligation to God in the imperial context of the poem, as the synthesis of divinity with authority was long established in Roman thought. Lines 1 and 2 in effect constitute a brief *prooemium*. Moreover the verses define the relationship between the poet and the addressee, as the former is as present as the latter throughout the poem, particularly in the first three lines of the iambic section. The poet serves as the voice of the people, and the praise given to Kallinikos comes in exchange for the Duke's responsibility to the Thebaid. This notion of his duty is woven into the poem in different manners, through the repeated references to peace and justice, as Dioscoros proclaims "so you have come to us, Duke Kallinikos, not seeking money, the judgment of the unjust (ἀδίκω[ν] κρίσιν), but lawful judgments (18-19)." This recalls an image prominent in the New Testament, that of Christ as judge.[13] Accordingly Dioscoros reinforces the comparison between the Duke and Christ with language evocative of scripture when describing Kallinikos' role as judge and dispenser of justice. This image follows the rhetorical comparisons (συγκρίσεις) with mythological figures.[14] By building upon these comparisons, in which the object of the poem's praise surpasses the ancient Greek heroes, Dioscoros infuses the fabric of his Christian encomium with the austerity of Classical learning. The manner in

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[9] Viljamaa, *Encomiastic Poetry*, 123.

[10] A.B. Kovelman, "From Logos to Myth: Egyptian Petitions of the 5th to 7th Centuries," *BASP* 28, no. 3-4 (1991), 146-9.

[11] MacCoull, *Dioscorus*, 93-4.

[12] Fournet, *Hellénisme*, 581.

[13] Matthew 13:40-43; 25:31-6, 40-43, 45-6; Luke 12:4-5, 49; Romans 2:16, and Revelation 20:11-12, for some examples.

[14] In regard to justice and government see MacCoull, *Dioscorus*, 94 and Alan Cameron, "*Pap. Ant.* III.115," *CQ* 20.1 (1970), 125-7. On Dioscoros' use of mythological comparisons see Viljamaa, *Encomiastic Poetry*, 115-16, MacCoull, "Phaëthon in Dioscorus of Aphrodito," *GRBS* 22 (2004), 94, and Fournet, "Literary Tradition," 105-8.

which the comparisons are rendered is particularly Christian, as the emphasis on the superiority of Dioscoros' contemporary *laudandus* over the pagan heroes of antiquity signifies Christ's supremacy and reaffirms both poet and Duke as instruments of God's will.

What is to be gleaned from a reading of the extant poetry of Dioscoros is the structural nature of his poetic technique. As the individual lines are constructed from the metrical phrases of his repertoire, so is the entire encomium to Kallinikos.[15] The second hexametric verse is indicative of Dioscoros' compositional method, as this complete line serves to name the addressee. As a line of hexameter poetry it is somewhat attractive with the adjective πολυκυδήων and title *stratiarch* surrounding Kallinikos, and the division of the line is clear before the Duke's name and title. The compound πολυκυδήων, which sounds epic, is a neologism Dioscoros uses three times in his poetry, always with an article to start a hexameter verse dedicated to the poem's *laudandus*.[16] This epithet imparts an epic feeling yet, among literati, is a wink to Dioscoros' linguistic inventiveness. The encomium is decorated with Dioscoros' invented Greek vocabulary as well as with some touches of markedly epic language, in particular three uses of κλέος.[17] Though κλέος is fairly common in the sixth century Greek literature, it should be noted that there is a singular use of κλέος in the New Testament, the first epistle of Peter 2:20. Two uses of κλέος are paired with other words highly evocative of the epic tradition to affect the austerity of the Homeric poems: μῆτις ἀνά̣κτων, and ὀλβιόδαιμον (lines 13 and 28).[18] These epic echoes that constitute the encomium elevate the poem and distinguish it from a simple petition for assistance.

Dioscoros' poem conveys meaning through its blend of rhetorical encomium, Christian praise, and epic poetry. Line 5 again brings the focus onto the poet and his role in the delivery of praise, "inspired by your limitless excellence I came sailing."[19] He is enthused at the possibility of succor, and the implied movement (ἦλθον) toward the Duke acts as a metonymic device for the idea of the populace celebrating and rallying around the Duke's *adventus* to the Thebaid. The implied similarity of Kallinikos' arrival with the advent of Christ underscores the Duke's public duty. Lines 8 and 9 introduce his sanctioned charge as Duke, πήματ᾽ ἀποπτοιεῖεν ὅσα τέτληκε πότνια Θήβη (8). His obligation is to eradicate

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[15] For example line 27 of the encomium is split and used as the base for two verses in the encomium on Duke John (20.12 and 29).

[16] Poem 17.8, the encomium on Justin II, τὸν πολυκυδήεντα φιλόχριστον βασιλῆα, and 20.28, the encomium on Duke John, τὸυ πολυκυδήεντος Ἰωάννου στρατιάρχου. On the phrase from the poem to Justin, see MacCoull, *Dioscorus*, 580-581.

[17] κλέος at 11, 37, and 52. Other words which have their origin in Homer and so evoke the epic tradition are ἀρετή, μῆτις (ἀνάκτων), ὀλβιόδαιμων, and ὅλβος. ὀλβιόδαιμων appears only once in Homer (*Iliad* 3.182). Dioscoros uses κλέος frequently.

[18] The use of epic poetry as a vehicle for Christian literature of course has a tradition in the Psalter.

[19] This line is used three times by Dioscoros, cf. H21.25 and H2.15.

the sufferings of the region and its people. In such a role Kallinikos is Christ's envoy, the new law giver, the νέ̣ος [Σόλ]ω̣ν, who dispenses justice (lines 59-60). Immediately following the mention of Thebes is the poem's first mythological reference, the comparison of the Duke to Herakles. This association both lauds Kallinikos and reiterates his function as protector of the Thebaid. As well there is perhaps a bit of linguistic play at the end of these two lines, as to the educated reader the juxtaposition of Θήβη and Ἡρακλῆα at the ends of lines 8 and 9 recalls the hero's birthplace in Thessaly, thus the encomium fashions a linguistic link between the greatest hero of ancient myth and the Dukes of the Thebaid.[20] Dioscoros emphasizes the responsibility of the *laudandus* through the expression καλέω σε, the poetic veil for the declaration of the people's hope; Kallinikos is to be their defender. Another aspect of his duty is made more explicit in lines 32-7, that of bringer of peace (εἰρήνη). Like Christ the Duke has brought peace through his judgments, πε[ιρασμοῖ]ς σέο θ[ε]σμῶν (line 33).[21]

More essential to the comparison is Herakles' aspect as a culture hero, for an encomium to a civil official is praise for the stability and strength of civilization. Dioscoros adorns the hero with a unique, epic-styled adjective, πανάλκιμον. The two verses which comprise the description of Herakles enrich the mythological comparison through a complex symbolism. The hero's role is made explicit in the poem as he is said to have brought "the universal aid of freedom" to all, ἐλευθερίης παναρώγην (10). This unique phrase combines another of Dioscoros' invented epic compounds with a word rich in both Greco-Roman and Christian associations, ἐλευθερία.[22] This noun appears frequently in Greek after the tragedians, and the centrality of the word to the language of philosophy and oratory is unmistakable.[23] Naturally it is prominent in the New Testament as well, and a quotation from the epistle to the Galatians suffices to demonstrate the importance of ἐλευθερία to the language of Christianity, ἀδελφοί, οὐκ ἐσμὲν παιδίσκης τέκνα ἀλλὰ τῆς ἐλευθέρας. τῇ ἐλευθερίᾳ ἡμᾶς Χριστὸς ἠλευθέρωσεν·στήκετε (Gal. 4:31-5:1).[24]

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[20] As well it recalls the reference of both cities in the *Iliad*, as in 1.366, ᾠχόμεθ' ἐς Θήβην ἱερὴν πόλιν Ἠετίωνος, and 9.381-4, οὐδ' ὅσα Θήβας | Αἰγυπτίας, ὅθι πλεῖστα δόμοις ἐν κτήματα κεῖται, | αἳ θ' ἑκατόμπυλοί εἰσι, διηκόσιοι δ' ἀν' ἑκάστας | ἀνέρες ἐξοιχνεῦσι σὺν ἵπποισιν καὶ ὄχεσφιν.

[21] Cf. Ephesians 2:14.

[22] The noun, however, does not appear in Homer, and there are only a few occurrences of the adjective.

[23] For example Plato uses some form of the word twenty times in the *Laws* alone, and Aristotle in the *Nicomachean Ethics* more than 60. There are 29 instances in Isocrates, as in this instance from the *Panathenaicus*, οὐ τὴν εἰκῇ πολιτευομένην καὶ νομίζουσαν τὴν μὲν ἀκολασίαν ἐλευθερίαν εἶναι.

[24] For Dioscoros' use of biblical phrases in the petitions see J.H.F. Dijkstra, "The Biblical Learning of Dioscorus," in A.A. MacDonald, G.J. Reinink, and M.W. Twomey (eds), *Learned Antiquity: Scholarship and Society in the Near-East, the Greco-Roman world, and the Early Medieval West* (Leuven, 2003), 140-6.

The statement that freedom is Herakles' gift to mankind recalls equally the pagan and Christian, the philosophical and spiritual, resonances. By the sixth century the hero's significance had developed beyond the philosophical interpretations of the neo-Platonist tradition into a Christ-figure in the later Roman Empire.[25] Dioscoros incorporates the comparison into the encomium so as to invest it with an appropriate symbolism. The repeated references to the Duke's just governance throughout the poem supplement the image of him as a contemporary Herakles, the just, Christian defender of the Thebaid.[26] Lines 33-7, which seem to be unparalleled in Dioscoros' poetic output, are particular in describing the Duke's service, κλεπταδίην ἐδαμάσσατε πειραισμοῖς σέο θεσμῶν (33), and reputation in the region, δέος ἔλλαβε πάντας | σῆς ἀρετῆς (36-7).[27] The Duke's *adventus* and governance is lauded in language deeply associated with God's will as made manifest in Christ, εὐσαγγελίης ἑκ θεοῦ τὸ σημῖον | φανέν, δίκαιος … (lines 51-2), "the sign of God's gospel has appeared, a just man."

The image of the Duke as a Herakles figure is balanced with that of the poet as a hymn-singing cicada or bee, τέττιξ τύτθος ἔην, καὶ ὄργανόν ἐστι μελίσσης· | καὶ θεὸν αὐτὸν ἄειδε πανάφθιτον (15-16).[28] Between these two images are four lines describing the poet's humility in the presence of the Duke's greatness that serve as further foil for the meekness of the insects, for example verse 13, "I am not worthy to sing of such excellence." This serves to heighten the contrast between *laudandus* and poet. As a poetic figure for eloquent speech the cicada has a long tradition, as old as Greek literature.[29] The cicada is first found in the *Iliad* as a metaphor for the speech of the elder Trojans upon the wall, γήραϊ δὴ πολέμοιο πεπαυμένοι, ἀλλ' ἀγορηταὶ | ἐσθλοί, τεττίγεσσιν ἐοικότες (3.150-1) "because of age the men had ceased from battle, but as speakers they were excellent, like cicadas." As a metaphor

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[25] Cf. MacCoull, *Dioscorus*, 94. On Plotinus' interpretations of the death of Herakles see Lamberton *Homer the Theologian: Neoplatonist Allegorical Reading and the Growth of the Epic Tradition* (Berkeley, 1985), 100-3. Prodicus of Ceos began the tradition of allegorical interpretation of the hero. Lactantius in the first book of the *Divine Institutes* discusses the pagan view of deification from the Christian perspective. Eusebius had compared Herakles to Samson (*Prep. Evan.* 10.9.7). It is this interpretation coupled with his ascension to Olympus after death that allowed him to be readily Christianized. Simon's work is the most comprehensive study of the various ways the connection is made, *Hercule et le christianisme* (Paris, 1955). A.J. Toynbee, *A Study of History vol. VI* (Oxford, 1939), 266-8, went so far as to say that the Christian story of Jesus is simply the Herakles myth refashioned.

[26] One wonders if the long-standing association of Herakles with Roman emperors is also lurking in the background of the comparison. Menander Rhetor mentions Herakles frequently in his instructions on encomia.

[27] MacCoull, *Dioscorus*, 95, notes the association of πειρασμός with the Lord's Prayer. Fear of the Duke is first addressed at lines 17-18.

[28] Dioscoros will use this figure again in the encomium on Domninus (7.5-7).

[29] Cf. C.A. Kuehn, *Channels of Imperishable Fire: The Beginnings of Christian Mystical Poetry and Dioscorus of Aphrodito* (New York, 1995), 167-76.

for the poet, Socrates tells the myth of the men who became the tribe of cicada (τὸ τεττίγων γένος) (*Phaedrus* 259b-c),

> And when the Muses came and song appeared they were ravished with delight; and singing always, never thought of eating and drinking, until at last in their forgetfulness they died. And now they live again in the grasshoppers; and this is the return which the Muses make to them—they neither hunger, nor thirst, but from the hour of their birth are always singing, and never eating or drinking; and when they die they go and inform the Muses in heaven who honors them on earth.

Callimachus (*Aet.* 1.29-30), and Theocritus (1.146-8) both use the image. Dioscoros' use of this figure is taken from the entire tradition, and an awareness of the Homeric model aids in understanding his employment of the poetic figure. For as the poet of the encomium presents himself as a cicada singing God's glory, thus the glory of the Duke as well since he is God's agent on earth, the poet emphasizes his own capability as an orator.[30] Dioscoros has Christianized this traditional figure of ancient literature. In the encomium on Paul son of Domninus (9.4), Dioscoros will write that he has no need of Homer or the Muses in order to deliver praise, but in the encomium on Kallinikos his use of Homer as the master rhetorician is evident as he presents himself as a poet and a noble orator who, like the Trojan elders, represents the sagacity of the city and its people. The importance of Dioscoros' ability to persuade is the continuous undercurrent of the encomium, and it reappears at the end with the plea for assistance.[31] Folded into this comparison with the cicada is the reference to the bee's instrument. The virtuous and industrious bee is another image with a long tradition. Since Plutarch the bee had been representative of the educated man and his role in society.[32] The incongruous splitting of the cicada metaphor with that of the bee serves to further define the poet as a humble individual who has subordinated himself to the community's well-being. By extension, it implies that the Duke must do the same. To return to the structure of the encomium on Kallinikos, the images of the Duke as πανάλκιμος Herakles and the poet as praise-singing cicada, and bee, strengthen

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[30] The rare adjective πανάφθιτον for God gives an epic feel, recalling Achilles' decision between a return home and κλέος ἄφθιτον (Iliad 9.413) yet eclipses the Homeric allusion. It also appears in *Anth. Gr.* 7.14.7-8: πῶς οὐκ ἐκλώσασθε πανάφθιτον ἦμαρ ἀοιδῷ |ἄφθιτα μησαμένᾳ δῶρ' Ἑλικωνιάδων.

[31] Alan Cameron's sentence of the encomium's final hexametric verse is rather harsh, "Wandering poets: a literary movement in Byzantine Egypt," *Historia* 14 (1965), 478. The plea is probably to be understood as Dioscoros speaking on behalf of the entire community. Cf. line 45 of the encomium on Athanasius χεῖραν ἐμοὶ ἀτάνυσσον ἐμὴν πενίην διασῶσαι.

[32] See Plut. *Quomodo adul.* 32e-f and *De aud*. 41e-42a, and Basil. *De leg. gen.* 4.7. Cf. Teresa Morgan, *Literate Education in the Hellenistic and Roman Worlds* (Cambridge, 1998), 262-70.

the relationship established in the opening lines of the iambic prologue with the repeated γουνάζομαί σε in the second and third lines. The encomium's verses of praise and other images align themselves within the dichotomy of the poet and *laudandus*, and so in the bond between the people and the Duke.

The heroic comparisons in lines 23 and 24 are mere rhetorical devices in light of the expanded depiction and symbolism of Herakles. One needs to look at an earlier poem, the epithalamium to Count Kallinikos, to see the use of more simplistic comparison involving the heroes of myth (H21.22-3):

> ἀκλινέως ἐνίκησας Ἀχιλλέα καὶ Διομήδην,
> ῥηιδίως τὸν Ἄρηα, πανάλκιμον Ἡρακλῆα.
>
> impartially judging, you easily defeated Achilles
> and Diomedes, Ares and the brave Herakles.

The similarity in the structure of the couplets allows a view into Dioscoros' process of composition. The encomium to Kallinkos has the Herakles' reference expanded to a couplet in an appropriate use, celebrating the installation of the Duke and defining his role. It has been invested with a symbolism beyond that of a mere rhetorical figure. As well the condensed, heroic comparison is arranged in this poem so that it gains additional significance following another of Dioscoros' lovely figures of speech, the wish for a painter to accurately portray the *laudandus*. The heroic comparisons in this poem are concentrated thereafter (at lines 20-24):

> ζωγράφον ἀμφιβόητον ἐπίγνοον εἰκόνα πῆξαι
> ἀτρεκέως ποθέω πολυήρατον εἶδος ὑφαίνειν,
> χάρματι λαμπετόοντ' ἀμαρύγματα οἷα Σελήνη.
> ἀκλινέως ἐνίκησας Ἀχιλλέα καὶ Διομήδην,
> ῥηιδίως καὶ Ἄρῆα, κάλλει Βελλεροφόντην.
>
> I yearn that a famous painter would accurately
> portray your well-known image, create your beloved likeness,
> that sparkles with a flashing joy like the Moon.
> impartially judging, you easily defeated Achilles
> and Diomedes, Ares and the brave Herakles.

Dioscoros' reference to the ζωγράφος and the Duke's image implies the creation of a poetic portrait through the comparison with the heroes' beauty. The specifics of his appearance are eschewed in favor of his superiority to the idealized figures of mythology. These lines reappear in the shorter encomium on Duke John (H2.16-22) where they are combined with the Herakles couplet.

The epic and neo-epic language and structure of the poem facilitates the development of such rhetorical tropes, and moreover demonstrates Dioscoros' ability with the epic *Kunstsprache*. As Nonnus had done, he freely coined

words based on Homeric diction.[33] This reveals Dioscoros' thorough knowledge of the Homeric poems, in particular the *Iliad*. Archaeological evidence aside, the appearance of a Homeric hapax, ὀλβιόδαιμων (28) from the third book (*Il.* 3.182), would have been enough to illustrate this great familiarity. Priam uses the word to describe Agamemnon upon seeing him from the wall. Plutarch (470c1) was the first to comment on this verse of the *Iliad*, because of this compound.[34] The adjective thereafter is discussed in various works of Herodian and Pseudo-Herodian, and the line is incorporated once by Themistius into his tenth Oration.[35] More importantly it appears in the *Scholia Vetera* to the *Iliad*.[36] The glossing of such an archaic compound was the typical sort of information contained in the *scholia minora* and discussed in school.[37] Dioscoros used the word twice in his encomia.[38]

Such Homeric echoes are the smallest elements of Dioscoros compositional technique. In the encomium to Kallinikos he weaves the epic vocabulary and neologisms into a Christian poem of effusive praise. The epic feeling of the poem evokes the Hellenic heritage indicative of imperial Roman culture, along with its mythological foundations. The Christian resonances represent the spiritual base of Dioscoros' culture, sixth century Roman Egypt. The combination of these strains in his poetry was seamless; both were suitable and vital structural elements. The encomium embodies the thought of the educated Roman of the era,

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[33] R. Browning, "The Language of Byzantine Literature," in G. Nagy (ed.), *Greek Literature Vol. 9: Greek Literature in the Byzantine Period* (New York), 112-13. I have discussed πολυκυδήων and πανάλκιμος as examples.

[34] From the *De Tranquillitate Animi*, Plutarch cites this verse and then writes, ἔξωθεν οὗτος ὁ μακαρισμός, ὅπλων καὶ ἵππων καὶ στρατιᾶς περικεχυμένης· αἱ δὲ τῶν παθῶν φωναὶ πρὸς τὴν κενὴν δόξαν ἔνδοθεν ἀντιμαρτυροῦσι.

[35] Ὦ μάκαρ Ἀτρείδη, μοιρηγενές, ὀλβιόδαιμον, εἶπεν ἄν τις ἀπιδὼν τηνικαῦτα εἰς ἄμφω τὰς ἡιόνας τοῦ

ποταμοῦ, τὴν μὲν ἀστράπτουσαν τοῖς στρατιώταις ἐν κόσμῳ τὰ δρώμενα θεωμένοις μετὰ φρονήματος καὶἠσυχίας, τὴν δὲ ὀμάδου γέμουσαν συμμιγοῦς ἐπὶ γῆς ἐρριμμένων τῶν ἱκετῶν. μᾶλλον δὲ εἶπεν ἄν σε καὶ τοῦ Ἀγαμέμνονος ὀλβιώτερον· ὁ μὲν γὰρ οἷς ἦγε μόνον ἐμα-καρίζετο, σὺ δὲ καὶ οἷς εἶχες καὶ οἷς ξυνεχώρεις (*Or*. 10d).

[36] Here is one example from the *D scholia*, τοῦ Ἀτρέως. Μοιρηγενές. Ἀγαθῇ μοίρᾳ γεγεννημένε. Ὀλβιόδαιμον. Εὐδαιμονέστατε. It is also glossed in the *Suda*, Ὀλβιοδαίμων: εὐδαίμων, εὐτυχέστατος.

[37] Cf. Tim Renner, "Three New Homerica on Papyrus," *HSCP* 83 (1979), 312, "the *scholia minora* are the remains of an amorphous, fluctuating, and mainly anonymous body of straightforward lexicographical material that was popular rather scholarly in nature." On the prevalence of Homeric glossaries see Morgan, *Literate Education*, 166-7. Cribiore, *Gymnastics*, 40, discusses Dioscoros' role as family teacher including "elementary Homeric exegesis at the grammatical level." On the continual study of Homer in general see Cribiore, "Higher education in early Byzantine Egypt: Rhetoric, Latin, and the law," in Bagnall (ed.), *Egypt in the Byzantine World, 300-700* (Princeton, 2007), 50.

[38] Previously he had used it in the encomium on Romanos (12.13).

and displays a Christianity not in conflict with the Hellenic past, but as a part of that continual civilization; the pagan traditions, poetic, philosophical, theatrical, that provided a vessel for Christianity.

Chapter 11

# Late Antique Visuality: Blurring the Boundaries Between Word and Image, Pagan and Christian

James A. Francis

One of the most intriguing developments in the literary culture of late antiquity is its fascination with the visual. With a new and deliberate intensity, writers beginning with the Second Sophistic in the second century probed, pressed, and confounded the boundaries between word and image, seeing and reading, representation and reality. This process created new literary forms and ultimately new modes of representing human and divine power. Athanasius (*c.*293-373) epitomizes this late antique "visual turn"[1] concisely in his *Third Oration against the Arians*, in which the Alexandrian bishop describes the relation of the Son to the Father in terms of that of the imperial icon to the emperor. Portrayed as if it were alive, the icon proclaims: "I and the emperor are one; I am in him and he is in me. That which you see in me you behold in him, and what you look upon in him you behold in me" (5). The image and its living archetype are indistinguishable, and the innermost nature of the unseen deity is conceived in visual terms. The imperial icon and the Son of God operate in the same way, since both are images. After nearly 2,000 years of Trinitarian theology, we can lose sight of the novelty and audacity of such a conception.

The road to Athanasius's stunning visual metaphor begins in classical literature and rhetoric and, as with so many aspects of late antique culture, represents "a redistribution and reorchestration of components that had already existed for centuries in the Mediterranean world."[2] We can begin at the beginning. Homer's description of the shield of Achilles in *Iliad* 18.468-608 holds what has been called the first ekphrasis in western literature, an artistic literary description of a work of visual art.[3] The poet's vividness (*enargeia*) allows the audience to "see" the images on the shield. Hearing or reading is transformed into seeing. This tradition

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[1] See W.J.T. Mitchell, "The Pictorial Turn," in idem, *Picture Theory: Essays in Verbal and Visual Representation* (Chicago, 1995), 11-34.

[2] P. Brown, *The Making of Late Antiquity* (Cambridge, MA, 1978), 8.

[3] In our own day, ekphrasis refers specifically to the verbal description of a work of art. In antiquity, however, ekphrasis was a rather uncommon and late-developing term defined, not as a description of art, but as a vivid, evocative description pure and simple. Homer's battle scenes were often cited as examples.

continues throughout antiquity, encapsulated in, for example, Plutarch's quotation of Simonides, that "painting is silent poetry and poetry spoken painting" (*Mor*. 346F-347A).[4] Oratory likewise prized visualization, "bringing before the eyes" (πρὸ ὀμμάτων ποιεῖν) by means of words, a concept first coined in Aristotle's *Rhetoric* (1410b-1411b), and later repeated and further elaborated by Quintilian (*Inst. orat.* 8.3.61-72, esp. 62, and 6.2.29-30) as well as by the author of the Greek treatise *On the Sublime*, traditionally attributed to Longinus (15.1-2). There is also from the very start an important concomitant attention to vividness and visualization. Homer describes the figures on the shield both as art and as living reality. The bronze and golden men and animals move, bleed, and have motivations and emotions. They are both images and living beings, representation and reality—while at the same time no more then "mere" words. It is no coincidence that right before the description of the shield, Homer describes the automata that attend Hephaestus in his workshop. These are made of gold, they are like living young women in appearance (ζωῇσι νεήνισιν εἰοικυῖαι), and they are possessed of intelligence (νόος), sense (φρεσίν), voice (αὐδή), vigor (σθένος), and have been taught skills (ἔργα) by the gods (417-20). The maidens have the qualities of living beings; they are, in effect, living images.[5]

Classical literature and rhetoric are dotted with explorations of these two connected boundaries between the verbal and visual and between representation and reality, but with the advent of the Second Sophistic these themes begin to be pursued with unprecedented intensity. This intensity marks the cultural passage into late antiquity. Writers of the second and third centuries such as Lucian (*c.*125-after 180) and Philostratus (*c.*172-after 249) in particular consciously and deliberately attempt to push the limits of reading by conjuring visual experience and turning the reader into a viewer. Both excel in achieving *enargeia* by turning images into living reality, and in Lucian we also witness the reverse: a living person transformed into an image.

The *Imagines* of Lucian is an elaborate tribute to Panthea, mistress of the emperor Lucius Verus (130-169) Words fail to do justice to her beauty, so Lucian engages in applied ekphrasis, describing the various parts and qualities of Panthea's body in terms of their equivalents in great sculptures and paintings. Bit by bit, the woman is transformed into a living work of art. *Imagines* opens with an allusion to the mythological Gorgon, a creature the sight of which turned living people into stone. This is followed by references to Medusa, known for producing the same

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[4] πλὴν ὁ Σιμωνίδης τὴν μεν ζωγραφίαν ποίησιν σιωπῶσαν προσαγορεύει, τὴν δὲ ποίησιν ζωγραφίαν λαλοῦσαν. This is, of course, not the only conception of the relationship between word and image in antiquity. There is also an agonistic motif, often focusing on the permanence of the literary memorial over representational, e.g., Pindar, *Nem*. 5.1-5 and Horace, *Carm*. 4.8.

[5] R.L. Gordon, "The Real and the Imaginary: Production and Religion in the Greco-Roman World," *Art History* 2 (1979), 8, states these were seen "neither as inert matter nor as humans nor animals; they required a special classification."

effect on her beholders; Niobe, who was turned into a statue as punishment by the gods; and the statement that Panthea's beauty is so arresting that the viewer is stopped dead like a stone at the sight of her. From the very start, Lucian draws his audience into the visual play. They are to "look," through words, at a woman being turned into a statue by his description, but are immediately reminded of lookers who were themselves turned into stone (1). Both the viewer and the viewed are transformed into images by the act of seeing and being seen. Vision is both powerful and reciprocal. To underscore the visual focus, the opening of the piece—a mere 25 lines in the Loeb—overflows with visual words: ἰδόντες, ἰδών, θέαμα, ἴδοιμεν, θέας, περιωπῆς, ἀπίδῃς, ἀποφανεῖ, ἴδοις, προσβλέψειε. The word used for statue, ἀνδριάς, draws attention to the human exemplar of the image (1).

Lucian draws Panthea's appearance in words (ὑπόδειξον τῷ λόγῳ, 3) and calls upon the great masters to assist him. He will turn their creations over to words (παραδόντες τὰς εἰκόνας τῷ λόγῳ) to "remodel" (μετακοσμεῖν καὶ συντιθέναι καὶ ἁρμόζειν, 5) these sculptures and paintings, and he calls his finished verbal portrait an εἰκών upon which his interlocutor will look (ὀρᾶν, 6 and 15). He analyzes Panthea's beauty by breaking it down into its component parts: the brow from Praxiteles, the cheeks from Alcamenes, the blush of the cheeks from Polygnotus, etc. (6-7). The living woman is visually dissected and reassembled, piece by piece, as an artistic masterpiece. Lucian is aware of what he is doing. In *Pro imaginibus*, the apology he wrote for this dialogue, he states that Homer, by describing Agamemnon in terms of specific aspects of various gods, dismembered (διαιρῶν) the man for the sake of these similes (25). Lest we lose track of the verbal dimension to all this, Lucian suddenly calls upon Homer and Pindar among his list of painters, and uses poetry to describe Panthea's color (8), utterly conflating and confounding visual and verbal representation. The very idea of *Imagines*, the words Lucian chooses, and finally this introduction of poets into a list of artists drives home the intricate braiding of verbal and visual that Lucian accomplishes in what may appear at first glance to be a simple work. Panthea is finally likened to a divine image sent from the gods above (διιπετές, 9) and this verbal portrait of her is itself called an ἄγαλμα (12).

Lucian's interlocutor, Polystratus, then complains that the woman has not been done justice since Lucian has only described her physical appearance and not her true beauty. He has left her virtue "unseen" (ἀθέατος εἶ, 11). So Lucian proceeds to ask Polystratus for an image (εἰκών, i.e. "icon") of her soul (12). As a good sophist, he begins with her erudition: "Since therefore paideia must rule over all that is beautiful … let us create an image of it, especially in its manifold hues and variety of form, that we might not fall short of your (that is, Lucian's) creation" (16).[6] Instead of combining the many and varied elements of sculptures and painting as Lucian had done, Polystratus endows his portrait of paideia with

[6] οὐκοῦν ἐπειδὴ πάντων καλῶν παιδείαν ἡγεῖσθαι ἀνάγκη, καὶ μάλιστα τούτων ὁπόσα μελετητά, φέρε καὶ ταύτην ἤδη συστησώμεθα.

"all the gifts of the Muses" and the various genres of literature. Words take the exact place that images had in Lucian's portrait.

Arguably the most powerful feat of ekphrasis in antiquity, the *Imagines* written by Philostratus the Elder, signals a new departure in which the boundaries between reader and text, text and image, image and viewer, and viewer and reader are broken down. Reading and viewing, subject and object, merge together. Philostratus presents a tour of an entire gallery, portrayed as real but most probably imaginary. The author plays the docent and leads the reader, represented in the text by a young boy eager to learn, from painting to painting giving his interpretations and commenting on technique as he proceeds through the gallery. The reader becomes a viewer. Intent on "looking" at the pictures and "hearing" the learned commentary, the reader is absorbed into the text and forgets that he or she is a reader. The paintings being viewed and the voice being heard are actually words being read; the acts of viewing, hearing, and reading are compounded with their boundaries blurred. At the very beginning of the work, Philostratus states that both poets and painters contribute to knowledge since both partake of reason through their observance of proportion and symmetry (1.pr.). In his first description, of a painting of a scene from the *Iliad*, Philostratus instructs the boy to actually turn his eyes from the painting and look only on the writing upon which it is based in order to understand its meaning (1.1). He then proceeds to describe the painting with quotations from Homer. He has the boy listen to paintings seven times,[7] a task made easier since the paintings are described as speaking or uttering other sounds some thirteen times.[8] Philostratus even speaks of smelling the paintings.[9] As he proceeds, Philostratus begins to address the figures in the paintings as if they were actually present (1.21). At some points, the narrator and boy place themselves within the painting in order to appreciate and understand it (1.28, 2.17). The reader, having become a viewer, now becomes part of the image being viewed. Images, having become alive, can be brought into an intimate rapport with their viewers, and persons can develop relationships with images as they do with living beings.

Experiments in verbal and visual representation were being pursued with deliberation, artistry, and energy at the very cutting edge of imperial high culture in the second and third centuries. The writers of the Second Sophistic played with the distinctions between the verbal and visual while at the same time combining and conflating them in new and complex ways. At times they covertly bring their readers to a visual experience (or illusion) through their words, at others they call conscious attention to the literary nature of their descriptions.

With the conceptual groundwork laid by the Second Sophistic, this representation of a living person as an image, perhaps begun as a literary conceit, become a fundamental mode of expressing power by the fourth century. Images

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7 1.2, 9, 14, 17; 2.1, 5, 10.

8 1.3, 5, 7, 23, 28; 2.1, 5, 9, 10, 13, 30, 31, 34.

9 1.2, 6, 31; 2.1, 31, 33.

in the service of power were, of course, not new in late antiquity—one need only mention work on images during the reign of Augustus to cite the most obvious example[10]—but, as in literature, this dynamic was taken to a deeper level and used more widely and with greater force in the later empire. More than 40 years ago, H.P. L'Orange spoke of imperial portraiture in the age of Constantine developing a stereometric abstraction that revealed "the inner and spiritual human being."[11] Such visualization is a "crystallization of imperial ideology," an "expression of *divina maiestas*, rather than a portrait of an individual man."[12] L'Orange wrote at the dawn of our appreciation of late antiquity and its art on its own terms, and we can now articulate a more nuanced view. That there is a stylistic change in late antique art, perhaps especially in the depiction of rulers, is obvious, but is the issue one of abstraction rather than individuality? Of the expression of inward rather than outward reality? Consider, for example, the first-century Prima Porta Augustus (Figure 11.1) and the likely fourth- or fifth-century Colossus of Barletta (Figure 11.2). Both are imperial portraits in military dress; the naturalism of the one and the stiff, hieratic quality of the other appear obvious. But how truly naturalistic is the Augustus? He appears far younger than he actually was at the time the statue type was introduced. His bare feet, the cupid beneath him, and the allegories on his cuirass are all indications of divinity. Though naturalistic in style, the image as a whole is far from realistic; it is in fact a portrayal of the *divina maiestas* of Augustus. The style of the Barletta statue is markedly different, though its message is, arguably, virtually the same. It is not quite right to call the colossus an abstract representation, despite its rigidity and formalism. The face, with its high cheekbones and narrow eyes, is clearly that of an unidealized individual. What distinguishes the two statues is more subtle and complex than a matter of dichotomous styles and meanings. It is more the way in which the meaning is conveyed that has changed, less the meaning itself. In the terms we have been discussing, with the Augustus, a statue is made to look like a man; with the colossus, a man is made to look like a statue.

This mode of representation is also seen in the well-known description written by Athanasius's contemporary Ammianus of the emperor Constantius II's entry into Rome in 357.[13] After depicting the cavalry preceding the emperor as "statues polished by the hand of Praxiteles, not men" (16.10.8), Ammianus describes Constantius himself.

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[10] Most notable are P. Zanker, *The Power of Images in the Age of Augustus* (Ann Arbor, 1988) and K. Galinsky, *Augustan Culture: An Interpretive Introduction* (Princeton, 1996).

[11] H.P. L'Orange, *Art Forms and Civic Life in the Late Roman Empire* (Princeton, 1965), 111.

[12] Ibid., 124.

[13] On visuality in Ammianus, see R. MacMullen, "Some Pictures in Ammianus Marcellinus," *Art Bulletin* 46 (1964), 435-56 and T.D. Barnes, *Ammianus Marcellinus and the Representation of Historical Reality* (Ithaca, 1998).

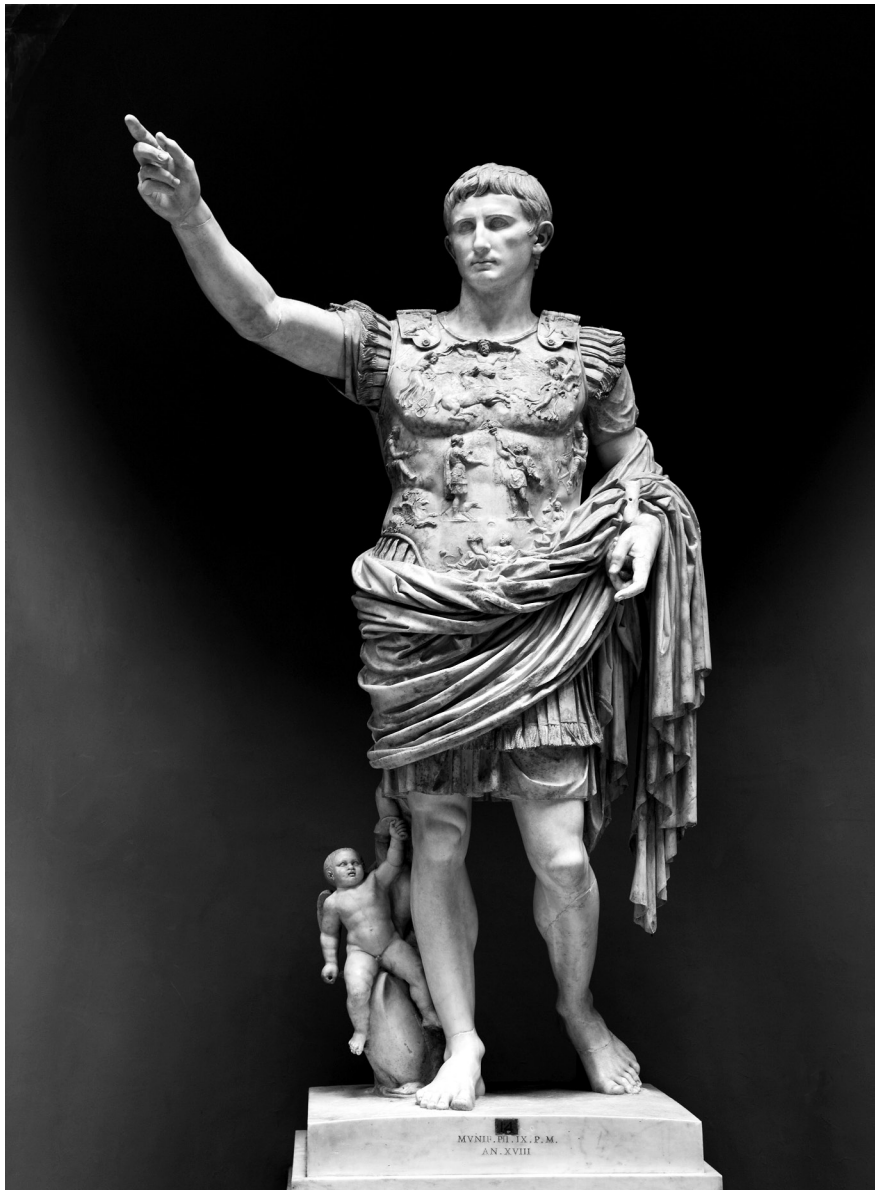



Figure 11.1 Augustus of Prima Porta. Marble statue. Augustan c.20-17 BCE. Location: Braccio Nuovo, Museo Chiaramonti, Vatican Museums, Vatican State (Source: Vanni/Art Resource, NY)



Figure 11.2 Bronze statue of an emperor, perhaps Valentinian I or Honorius; brought from Byzantium to Italy in a ship that foundered on the coast of Barletta. Legs added later; the original legs were lost when the "Colossus" lay forgotten on the beach in medieval times. Location: Barletta, Italy (Source: Erich Lessing/Art Resource, NY)

> As if his neck were in a brace holding his line of sight straight ahead, he turned his head neither right nor left; and as if he were an image of a man (*tamquam figmentum hominis*) he neither nodded when the wheel jolted, nor spat, nor wiped or rubbed his face or nose, or was ever even seen to move his hand. (16.10.10)

Like Panthea, the living Constantius has also become a statue—paradoxically a statue of himself. As Panthea's beauty is magnified by her being transformed into an image, so the emperor's power is enhanced in the same way.

A visual model of power also extends to the divine world. The third-century Neoplatonic philosopher Plotinus (205-269/70 C.E.) speaks of the "wise men of old" who made images (ἀγάλματα) in the hope of making the gods present among them, and speaks of how soul can be attracted to a sympathetic, imitative image. This is possible because "the All, too, made every particular thing in imitation of the rational principles it possessed," so that each thing became a "rational principle in matter" (ἐν ὕλῃ λόγος) of that which existed before matter (*Enn.* 4.3.11). God is an image-maker, and the entire material universe is a representation. Plato said as much in the *Timaeus*, but here once again there is an intensification and specification. Plotinus does not stop at the frame of the universe, but wants to know how traditional iconic images of the gods in themselves relate to "real," invisible divinity. There is a new immediacy here; the visual representation of the god carries the identity and power of the god and serves as a mode of communication with the mortal world in philosophical and metaphysical, not solely ritual and symbolic, terms. In this way, the boundary between "high" philosophical theology and traditional religious ritual is also crossed, and representation itself becomes the force that attracts and transmits divinity. A divine image, as Plotinus indicates, can have something of soul or life about it; it is a living image in some way. As such, Plotinus can be seen as offering a positive view of the familiar Christian accusation that statues of the gods are infested with spirits and demons. The apologist Minucius Felix, probably a contemporary of Plotinus, asserts that philosophers themselves have demonstrated this (*Oct*. 27.1). So for both Plotinus and his Christian opponents, the images of the gods are alive in some sense. For the former they possess divine life, for the latter demonic, but in both cases they are alive nevertheless.

The emperor Julian (332–363), in words strikingly similar to those chosen by his contemporary Athanasius, also pondered this question in his *Oration on The Mother of the Gods* (*Or*. 5). He speaks of the image of the Phrygian goddess coming to Rome as "no human thing, but really divine, not lifeless clay but something having life (or soul, ἔμπνουν) and divinity " (161A, Hertlein; Loeb 1.448). Of course, Julian is no mere idol worshipper. He makes clear that images of the gods are no more the gods themselves than images of the emperor are the emperor, but neither are they mere stones or wood. They are something in between that is constructed not by the artist, but by the image and the viewer, as Julian endeavors to explain in a lengthy fragment dubbed a *Letter to a Priest*:

> He therefore who loves the emperor delights to see the emperor's statue, and he who loves his son delights to see his son's statue, and he who loves his father delights to see his father's statue. It follows that he who loves the gods delights to gaze on the images (ἀγάλματα) of the gods, and their likenesses (εἰκόνας), and he feels reverence and shudders with awe of the gods who look at him from the unseen world. (294C-D, Hertlein; Loeb 2.310)

Julian presents another concept of how images can hold divine power. Echoing Philostratus's skillful and profound exploration of the relationship between viewer and image, Julian states that the viewer's rapport with the object, recognition and reception of it, and devotion to it, changes the nature of the image itself. This "middle thing" between animistic idols and mere sculpture, what may perhaps be called the "sacred image," relies upon what the viewer brings to the viewing relationship. This can range from the mundane relation of subject to ruler to faith in the Son of God made man. There are also other possibilities entertained concerning images and the divine. Jaś Elsner has noted that in Pausanias and Philostratus images of the gods are seen in the context of ritual, becoming not only representations but active loci of the divine, occasioning action in response to them.[14] Clement of Alexandria, in his extended tirade against idolatry in the *Protrepticus*, thunders that depraved myths about the gods are not to be heard by those who bear the living and moving image of God within them (4.59.2).[15] The issue is not that God cannot be imaged, but rather what the true image of the divine is and how it operates. It appears that the second and third centuries witnessed a widespread and rather urgent debate, in both pagan and Christian circles, regarding if and how divinity related to images.[16]

With this in mind, we begin to see the cultural and intellectual continuity common to both pagan and Christian thinkers regarding visualization and images. In all the attention that has been paid over the centuries to theology in the early Christological controversies and to Iconoclasm, it can be easy to forget that Christianity inherited and used a wealth of concepts and language about how divinity could be imaged from centuries of pagan thought. So let us return to Athanasius. The full text from Athanasius quoted at the beginning of this chapter reads:

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[14] See J. Elsner, "Image and Ritual: Reflections on the Greco-Roman Appreciation of Art," *CQ* 46 (1996), 515-31.

[15] ἡμεῖς ἐσμὲν οἱ τὴν εἰκόνα τοῦ θεοῦ περιφέροντες ἐν τῷ ζῶντι καὶ κινουμένῳ τούτῳ ἀγάλματι.

[16] There had been a particular flowering of apologetic writing concerning the images of the gods in this period, represented by the works of Callistratus, Dio, Maximus of Tyre, Philostratus, Plotinus, and Porphyry (J. Bidez, *Vie de Porphyre: le Philosophe néo-platonicien* [Hildesheim, 1964], 143).

> In the image (εἰκών) [of the emperor] there is the character (εἶδος) and the form (μορφή) of the emperor, and in the emperor is that character which is in the image. For the emperor's likeness is exact in the image, so that the one gazing at the image sees the emperor in it, and again the one gazing at the emperor recognizes that he is the one in the image. And since the likeness does not at all differ, the image might say to one wishing to view the emperor after seeing the image: "I and the emperor are one; I am in him and he is in me. That which you see in me you behold in him, and what you look upon in him you behold in me" (cf. John 14.9-11.) Therefore whoever adores the image also adores the emperor in it, for the image is his form (μορφή) and character. (εἶδος)

Athanasius frames the theological problem of the Son's relation to the Father in visual terms, as a matter of imaging and representation. This is dramatically underscored by his comparison to the imperial icon, an image that carries the power and shares the character and nature of the emperor. Basil (*De spir. sanct.* 18[45]) and Ambrose (*Expos. psalm. 118* 10.25) will later use a similar metaphor. We have in this passage a living image. It is so alive that it even speaks to us to describe its nature, and voice had been an emblem of the living character of images since Homer. The image proclaims its essential identity with its archetype, the living emperor; the man and his image are indistinguishable and, in fact, fungible. Not only is the image alive, but the man has become his image. The literary device of the living image, as old as Homer, plumbed by Philostratus, and run in reverse in Lucian's Panthea, was applied in living reality to the imperial power in Ammianus and Athanasius. For Plotinus and Julian, a representational image can carry divine, not merely mundane, life and power and can offer a philosophical underpinning for the Christian "image of the invisible God" (εἰκὼν τοῦ θεοῦ τοῦ ἀοράτου, Col. 1.15). The literary device is transformed into a vehicle for articulating and transmitting power. This inheritance of crossing the boundary between word and image, representation and reality, in turn allows Athanasius to cross a further boundary, that between pagan and Christian, and use these visual concepts to describe the nature of his God.

In the course of the intervening Christian centuries, it can be easy to overlook that there are actually two controlling metaphors for the nature of Christ: one from John's Gospel, "In the beginning was the word," and another, visual metaphor from Colossians. Athanasius exploits what in our day has become the neglected second metaphor. In defining Christ as both word and image, the culture of early Christianity shows itself thoroughly in step with its times.[17] Christianity was immersed in a culture fascinated by the interface between verbal and visual, and

[17] There is, interestingly, also a negative view of images, especially iconic images, in late antiquity, on the part of both pagans and Christians, one which sets word and image into an antagonistic relationship. E.g., Porphyry begins his *Life of Plotinus* telling his reader that Plotinus objected to sitting for a painter or sculptor (1). The apostle John complains similarly when some attempts to paint his portrait surreptitiously in *Acts John*, 26-9.

by ways of seeing and modes of representation significantly different from our own. A religion of the Word of God, Image of God, and Word made Flesh, one which developed, in the words of Philip Rousseau, a "firm commitment to the visible,"[18] did not simply and fortuitously lend itself to this culture, but rather was very much the product of it.

[18] P. Rousseau, *The Early Christian Centuries* (London, 2002), 15.

# Chapter 12
# The Ant of God: Augustine, Scripture, and Cultural Frontiers

Gillian Clark

> See the ant of God: every day she gets up, runs to God's church, prays, hears the reading, sings a hymn, mulls over what she heard, thinks about it, stores within the grain collected from the threshing-floor. This is what people do who listen wisely: everyone sees them go to church and come back from church, hear the sermon, hear the reading, find the book, open it and read: all this is seen when it happens. (Aug. *En.Ps*. 66.3)[1]

"Go to the ant, thou sluggard: consider her ways and be wise." The ant in the book of Proverbs (6:6-7) is an example to us all, because in times of abundance she does not relax, but stores up supplies for the winter. Augustine's ant of God collects her grains of wisdom from prayers and hymns and Bible readings and sermons, and follows up with her own reflection and Bible reading. She is an example not only of industry, but of shifting cultural frontiers: whatever her social, economic, and educational status, churchgoing gives her access to the resources of literary culture.

"High" culture is often equated with literate culture, but there are many levels of literacy.[2] In late antiquity, high-level literate culture came at a price. There were payments to *grammatici* who took their students through the central classical texts (Aug. *Conf.* 1.16.26), and payments to teachers of rhetoric who prepared boys for public life. Augustine did both kinds of teaching in his early career, and complained in *Confessions* about rhetoric students who failed to pay their fees (*Conf.* 5.12.22). Presumably there were also payments to philosophers who combined the techniques of argument, namely rhetoric and dialectic, with discussion of ethics and metaphysics; but these payments are not mentioned, perhaps because philosophers were supposed to be above such worldly considerations.[3]

Christian teaching was free of charge. Augustine held that Christianity was the true philosophy, and that the wisdom offered by the Christian scriptures was more ancient, more profound, more consistent, and more accessible than that of other traditions (*Civ. Dei* 18.41). A church was like a classroom open to men and women, to all ages and to all social and educational levels (*Ep.* 138.10). Anyone

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[1] All translations are my own.

[2] H. Gamble, *Books and Readers in the Early Church* (New Haven, 1995), 2-10.

[3] G. Clark, "Philosopher: Augustine in Retirement", in M. Vessey (ed.), *The Blackwell Companion to Augustine* (Oxford, 2012), 258-59.

could come and hear readings from the Bible; the bishop would explain them, as the *grammaticus* explained classical texts, and in so doing he would also, like the philosopher, demonstrate the techniques of rhetoric and dialectic and discuss ethics and metaphysics, that is, how we should live and what is our place in the universe. According to Augustine, it was quite easy to pick up rhetorical technique from Christian writings, without a long and expensive education (*Doctr. Chr.* 4.3.6-4.7.21). Present-day historians have noted the risk of bad or boring or inaccessible preaching, but if the preacher was a good communicator, the frontier between high and low culture shifted or even disappeared.[4]

But there was another cultural frontier, between the sacred texts shared by Christians and the classical texts shared by educated people. Some Christians shared both, and found a range of strategies for using the linguistic and rhetorical skills conferred by a classical education while also challenging its values.[5] Late antique education allowed people from an elite social class to identify each other as members of the same cultural club who shared a recognizable set of cultural references.[6] In *City of God*, Augustine consciously exploited these shared references, both in order to demonstrate his own classical education to readers who were hostile to Christianity, and in order to construct an account of Rome as it functioned in their cultural memory. He used the authors whom Romans themselves recognized as authorities (*Civ. Dei* 4.1). They paid money, he observed, to learn about these authors, and to have children absorb their accounts of Roman history, religion and values (*Civ. Dei* 1.3). He repeatedly contrasted "their authors" with "our authors": "theirs" are the authors of Roman classical texts, "ours" the divinely inspired authors of the books which made up the Christian Bible. He contrasted freely available Christian preaching with the obscure gatherings of philosophers and their students (*Civ. Dei* 18.41). But one contrast is missing: the programme of study. Shared cultural references depend on a shared curriculum. Augustine could assume that readers of *City of God* were familiar with at least some of Terence and Sallust, Cicero and Virgil, because they had studied them at school.[7] Was there a curriculum for the books which made up the Christian scriptures, so that there were books or parts of the Bible which everyone could

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[4] Inaccessible preaching: R. MacMullen, "The Preacher's Audience (AD 350-400)", *JThS* 40 (1989), 503-11; against, G. Clark, "Pastoral Care: town and country in late antique preaching", in T. Burns and J. Eadie (eds), *Urban Centers and Rural Contexts in Late Antiquity* (East Lansing, MI, 2001), 265-84.

[5] C. Harrison, *Augustine: Christian Truth and Fractured Humanity* (Oxford, 2000), 46-78.

[6] P.R.L. Brown, *Power and Persuasion in Late Antiquity* (Madison, Wisc., 1992), 35-47; E. Watts, *City and School in Late Antique Athens and Alexandria* (Berkeley, CA, 2006), 3-7.

[7] R.A. Kaster, *Guardians of Language: the Grammarian and Society in Late Antiquity* (Berkeley, CA, 1998).

be expected to know, if they benefited from free Christian teaching or took an intelligent interest in Christianity? If not, why not?

Christians in Augustine's time had not yet developed the Bible-based educational system which demonstrates a major shift in cultural frontiers. That came later: in the mid-sixth century Cassiodorus tried to promote a school at Rome for the study of scripture, and, by the end of that century, Gregory the Great expected his Roman audience to share Biblical rather than classical references.[8] But already in Augustine's time, educated Christian preachers were a distinctive feature of late antiquity. They used the resources of their own high culture when explaining Christian sacred texts, both in their regular preaching and in preparing candidates for baptism. Their sensitivity to language, their rhetorical ability, and their grasp of philosophical arguments, had been acquired by working through a programme of study. Such programmes were devised by individual teachers in relation to their own expertise, the ability of their students, and general expectations of what an educated person should know.[9] There is more information on the content of a classical education than on the order of the texts studied, but it is clear that order was considered. Study of Aristotle, for example, always began with the *Categories*; whereas for Plato, according to the philosopher Albinus, a student's character, circumstances and previous knowledge should be taken into account in deciding where he should start on the dialogues.[10] Christian preachers often exhorted their hearers to read for themselves.[11] They might therefore be expected to advise on the best sequence for reading the scriptures; but Augustine's account of his own experience suggests that this did not happen.

In a well-known passage of *Confessions*, Augustine says that as a student of rhetoric at Carthage, in the usual sequence of the curriculum (*usitato discendi ordine*) he read the *Hortensius* of Cicero. Inspired by Cicero's praise of philosophy, he decided "to give my attention to the holy scriptures and see what they were like" (*Conf.* 3.4.7-9). He tells his readers that he found the style inferior to Cicero, and that he fell in with Manichaeans who claimed to have the true interpretation of this unsatisfactory text. He does not tell them what exactly he read. Was it the opening chapters of the book of Genesis, on which he later wrote so much? His first attempt

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[8] Cassiodorus, *Inst.*1 pr. 1; R.A. Markus, *Gregory the Great and his World* (Cambridge, 1997), 40-41.

[9] Philosophy: Watts, *City and School*, 4-5. Rhetoric: R. Cribiore, *The School of Libanius in Late Antique Antioch* (Princeton, NJ, 2007), 147-55.

[10] Aristotle: R. Heine, *The Commentaries of Origen and Jerome on St Paul's Epistle to the Ephesians* (Oxford, 2002), 23. Albinus: I owe this point to Aaron Johnson. On introductions to philosophical and technical works, see his "Eusebius the Educator: The context of the *General Elementary Introduction*", in. C. Zamagni and S. Inowlocki (eds), *Reconsidering Eusebius* (Leiden, 2011), 99-118.

[11] Gamble, *Books and Readers*, 232-4.

at commentary on scripture was on Genesis against the Manichaeans.[12] But thanks to recent work on book production, we know not to imagine Augustine picking up a Bible and beginning at the beginning, or opening it at random to see where *sortes* would take him. Single-volume Bibles were very expensive to produce, and very unlikely to be in private ownership.[13] The Bible was still *ta biblia*, books in the plural. These books were widely available, especially in a big city such as Carthage, with its strong Christian tradition and its student population. In a sermon preached at Carthage, Augustine said that "the Lord's books" could be bought and read any day (*ser*.114b15). Even when preaching in Hippo, a smaller town not known for higher education, he did not suggest that his hearers might have difficulty getting a particular book of scripture.[14] So, if in Carthage he could get any book of Scripture, and he was used to the idea of a curriculum, how did he know where to start?

It is surprisingly difficult to find suggestions for a Christian curriculum. A present-day confirmation class, or a new reader, may be encouraged to begin with a Gospel, probably Mark, for an immediate encounter with the life and teachings of Jesus. That would also make sense in late antiquity: using the life of Christ as an introduction to the Scriptures would be like Porphyry using the life of Plotinus as an introduction to the *Enneads*, or Iamblichus using the *Pythagorean Life* as an introduction to his Pythagorean Encyclopedia.[15] But where is the evidence that it happened? Augustine recalled in *Confessions* (9.5.13) that when he decided to seek baptism at Milan, he wrote to Bishop Ambrose declaring his intention, and asking what parts of scripture he should particularly read to prepare himself. Ambrose recommended Isaiah, apparently without explanation: "I suppose", Augustine reflected, "because he is the plainest foreteller of the Gospel and of the calling of the Gentiles." In *City of God* (18.29) Augustine noted that Isaiah made many more prophecies about Christ and the Church than the other prophets did, so that some commentators call him an evangelist rather than a prophet. Jerome did so in the preface to his commentary on Isaiah (*In Isa.* prol.): "I shall expound Isaiah so as to show that he is not only a prophet, but an evangelist and apostle."

There is another possible explanation, though Augustine did not suggest it. Ambrose may have intended an allusion to the story in Acts (8: 26-39) of the Ethiopian eunuch who was a high official of the queen. The apostle Philip was inspired by the spirit to run up beside his chariot, and heard him reading Isaiah.

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[12] *De Genesi adversus Manichaeos* (389); *de Genesi ad litteram liber unus imperfectus* (393/4); *de Genesi ad litteram* (401-15): see R.J. Teske, *Saint Augustine on Genesis* (Washington DC, 1991), and E. Hill O.P., *Saint Augustine: On Genesis* (New York, 2002).

[13] A. Grafton and M. Williams, *Christianity and the Transformation of the Book* (Harvard, 2006), 215-21.

[14] H. Houghton, *Augustine's Text of John* (Oxford, 2008), 22-7.

[15] D.J. O'Meara, *Pythagoras Revived* (Oxford, 1989); G. Clark, "Philosophic *Lives* and the Philosophic Life", in T. Hägg and P. Rousseau (eds), *Greek Biography and Panegyric in Late Antiquity* (Berkeley, CA, 2000), 29-51.

"Do you understand what you are reading?" Philip asked, and the Ethiopian replied "How can I, unless someone shows me the way?" He was reading a passage often interpreted as a prophecy of Christ (Isa. 53: 7-8). Philip explained; they came to some water; and the eunuch said "Here is water: what prevents me from being baptized?" Ambrose's preaching had shown Augustine the way to interpret Scripture, but he had trouble with Isaiah. He assumed that all of Isaiah was like the first passage he tried, so he put the book aside until he had more practice in understanding the Lord's style (*Conf.* 9.5.13).

That is not surprising, for Isaiah is not easy, especially not in Latin translated from Greek translated from Hebrew. But it is surprising that, after this experience, Augustine did not himself suggest a sequence of guided reading when Deogratias, a deacon from Carthage, asked his advice about teaching people in preparation for baptism.[16] For mixed-ability catechism classes, Ambrose devised a short *Explanation of the Creed*: its style is so much simpler than his formal preaching style that its attribution has been doubted.[17] But nothing in *Confessions* suggests that Augustine attended such a class, or had any preparation other than his own reading, reflection, and discussion with friends. Deogratias too was faced with a mixed-ability group, and was dissatisfied with his own teaching. Augustine reassured him that hearers often appreciate a lecture even when the lecturer knows how much better it could be (*de cat.rud.* 2.3). He offered useful advice on presenting the key points of history and doctrine, and specifically warned against a detailed survey of scripture:

> There is a complete narrative when instruction ranges from "In the beginning God created heaven and earth" to the present time of the Church. But we should not for that reason take the whole of the Pentateuch, all the books of Judges and Kings and Ezra, and all the Gospel and the Acts of the Apostles, and either recite them from memory if we have learned them off, or expound in our own words everything in those volumes. There is no time and no necessity for this. (*De cat. rud.* 3.5)

Augustine also engaged with the problem of different educational levels, and his comments show that although educated members of the class could be expected to have read extensively in the scriptures, Deogratias could not predict what exactly they had read:

> One point must not be overlooked: if someone with a liberal education [*liberalibus doctrinis excultus*] comes to you for instruction, having already decided to be a Christian and come so as to be made one, it is most unlikely that

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[16] Augustine's theory of communication in *cat.rud.* is discussed by B. Stock, *Augustine the Reader* (Harvard, 1996), 181-90.

[17] Attribution of *de symbolo* and *de sacramentis*: R.H. Connolly, "St Ambrose and the *Explanatio Symboli*", *JThS* 47 (1946), 185-96.

> he will not know many of our scriptures and writings; he will have come, having already learned about these, only for participation in the sacraments. Such people investigate everything carefully, not at the same time as they become Christians, but in advance, and they discuss the promptings of their soul with anyone they can. (*De cat.rud.* 8.12)

That, no doubt, is what Augustine himself had done. In such cases, he said, Deogratias must make a swift assessment of what the candidate already knows and tactfully convey anything they do not know. It is also helpful to ask what prompted their wish to be Christian:

> So if you see that he was persuaded by books, whether canonical books or helpful discussions, you can start by saying something about them, warmly praising them in accordance with their various merits [ … ]. You must also get him to say what in particular he has read, and which are the books he holds most dear, those which persuaded him to want to join the Church. Then, if we too know the books, or have at least heard in church circles that they were written by some renowned Catholic author, we shall gladly approve. (ib.)

Tact is required again if the educated person has come upon heretical writings and thinks they are catholic. But in all this sensible discussion, there is no suggestion that the educated catechumen will have followed, or should now follow, a curriculum of Scripture reading.

What might such a curriculum be like? Origen observed that just as different foods suit different bodies, so different minds need different nutrition.

> The word of God includes clear and simple teaching, as is usual in ethics, and this is offered to those who are beginners in divine studies, embarking on the first stages of education. They willingly listen to a reading from the divine volumes in which there is nothing obscure: for example, the book of Esther, or Judith, or Tobias, or the advice of Wisdom; but if the reading is from Leviticus, their mind is immediately repelled, and recoils from this food which seems not to be its own. (*H. in Num.* 27.1)

Later, they may come to understand the deeper meaning of the obscure passages, as interpreted by Origen. He also suggested (*Comm. in Cant.*, prol.) that the three books of Solomon, namely Proverbs, Ecclesiastes, and the Song of Songs, are intended for people at different stages. Proverbs offers ethical teaching for beginners; Ecclesiastes shows people who have some understanding of the world why they should renounce it; and the Song of Songs is for those who are ready to understand its spiritual meaning. In this prologue, and in the introduction to his *Commentary on John*, Origen raised questions which were asked in commentaries on philosophical texts: these include the place of the text in the works of the author,

and the prerequisites for the reader.[18] Origen, if anyone, could be expected to set out a programme of Scripture reading, for he was an experienced teacher of the liberal arts, and he believed that interpretation of Scripture is the path which leads to understanding and thereby to salvation.[19] But he did not propose a curriculum.

Jerome sketched a Scripture curriculum for the granddaughter of his friend Paula (*ep.* 107), but with little explanation.[20] Psalms came first, because little Paula could sing them with her mother, then Proverbs, Ecclesiastes, and Job. This seems very unlikely reading for a child, but Jerome probably wanted to begin with ethics, especially with teaching on the transience of earthly pleasures. His commentary on the world-weary Ecclesiastes used some seriously forced exegesis to make the text advocate the ascetic life.[21] Next on Paula's reading list, without explanation, come the Gospels, Acts, and Epistles, and then the Prophets. Perhaps Jerome meant the ethical teaching to be spiritual preparation for approaching the life and teachings of Christ and his disciples, in the same way that commentators on philosophical texts addressed the question "what should be the disposition of the person who studies this text?"[22] Then, once Paula was familiar with the New Testament, she would be ready to identify prophecies of Christ in the Old Testament. The best-known feature of Jerome's curriculum is also the easiest to explain: the Song of Songs comes last, when Paula is able to understand that this intensely erotic text is really about Christ and the Church. Jerome adds that Paula also needs to know that the apocrypha are not reliable.

There is an interesting resemblance between Jerome's curriculum for Paula and Augustine's early reading of Scripture. James O'Donnell drew attention to this in his discussion of Ambrose recommending Isaiah:

> Augustine is familiar and comfortable with the wisdom literature of the Old Testament from early in his career; at Milan he has certainly read the Gospels, and has said and shown that he has read Paul; and so Ambrose's recommendation of the first of the Prophets comes to Augustine at the same stage in his reading that Jerome would have chosen. Not that there was a standard sequence, or some link between Jerome and Ambrose, but the analogy may reflect the spirit of the age.[23]

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[18] Heine, *Origen and Jerome*, 26-32.

[19] Origen on Scripture and salvation: P.W. Martens, *Origen and Scripture: the Contours of the Exegetical Life* (Oxford, 2012).

[20] On Jerome and women's education, see F. Le Moine, "Jerome's Gift to Women Readers", in R.W. Mathisen and H. Sivan (eds), *Shifting Frontiers in Late Antiquity* (Aldershot, 1996), 230-41.

[21] Jerome's commentary on Ecclesiastes is translated with introduction and notes by R. Goodrich and D. Miller (Mahwah NJ, fc).

[22] Heine, *Origen and Jerome*, 26-32.

[23] J.J. O'Donnell, *Augustine: Confessions* (Oxford, 1992), vol. III, 103.

This may well be right, though there are some difficulties in demonstrating it. All Augustine's writings date from after his baptism, so his citations of scripture do not show how early he became familiar with wisdom literature. We depend on *Confessions* for Augustine's reading in Milan a decade earlier, and for Ambrose's resistance to discussing scripture with Augustine and his friends: without discussion, how would Ambrose know what Augustine had so far read, any more than Augustine or Deogratias could guess what an educated catechumen in Carthage had read? If Ambrose could assume that Augustine, before coming forward for baptism, would have read the wisdom literature, the Gospels and the letters of Paul, that would indeed suggest a standard sequence; but there are other reasons, discussed above, for his suggesting the first of the Prophets.

There was another major influence on Augustine's knowledge of Scripture. *Confessions* (9.4.8) attests the overwhelming effect of reading the Book of Psalms in the time before his baptism. He and his friends also sang psalms, as they did after Monica's death (*Conf.* 9.12.31), and this raises a further question about encountering Scripture in other ways than reading. According to *Confessions*, Augustine was taken to church as a child (1.11.17), went to church at Carthage even if his mind was on other things (3.3.5), probably continued to attend church even as a Manichaean who thought he knew what Scripture really meant, and certainly went to church at Milan. So he had heard many passages of Scripture read and expounded, and perhaps he had also heard or joined in the chanting of psalms, though it is not easy to show when exactly in the late fourth century this practice began.[24]

In many Christian traditions, churchgoers become very familiar with some passages of the Bible, because year on year they have heard them in the prescribed readings for a particular Sunday and have sung or said the prescribed psalm. It does not follow that they know the context, though some also read their Bibles, according to a variety of plans: they go back to the readings for the day, or follow another sequence of readings in a devotional book, or work through the whole Bible from Genesis to Revelation and then start again. In Augustine's time, there seems not to have been a lectionary, that is, an agreed sequence of Bible readings for clergy to follow through the liturgical year. Some readings would naturally be used at a particular time (for instance, Acts 2 for Pentecost), but in general preachers were free to choose their own texts, and, if they wished, to deliver a series of sermons on a book of scripture, as (for example) Augustine did on the Gospel of John.[25]

The Bible quotations in Augustine's sermons and writings, and the texts on which he chose to preach or write, show clear preferences in Scripture. Genesis and Psalms

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[24] M. Richter, "*Carmina autem quaecumque in laudem dei dicuntur hymni vocantur*", *JLA* 2 (2009), 116-30.

[25] No lectionary: Gamble, *Books and Readers*, 217-8; Houghton, *Text of John*, 30-7. Augustine probably preached one series of sermons on John in 406/7, another series in 414, and three to fill a gap in 419: ib. 107-8.

predominate; some books of the Bible are never mentioned; and though Augustine wrote so much on Genesis, many years of preaching passed before he began, in 419, the earliest known Latin commentary on the Heptateuch, the first seven books of the Bible. It was preparation for *City of God* books 15 and 16, where Augustine, tracing the course of the earthly and heavenly cities, surveys the early history of Biblical Israel. The commentary was a rapid treatment, and in the Preface Augustine apologized for his haste and for the unpolished style. It began with seven books on Greek and Hebrew idioms in the Latin scriptures (*Locutiones in Heptateuchum*) and on differences in the manuscripts, and continued with notes on the questions (*Quaestiones in Heptateuchum*) which occurred to him as he read.[26]

Augustine's commentary on the Heptateuch was not prompted by preaching, though as always his preaching was influenced by his work in progress. In other contexts, commentary is an indicator that a text was used in teaching, because it began as a teacher's notes, *commentarii*, on the text he was explaining to his students.[27] Origen was the pioneer commentator for many books of scripture, though he was not the author of the earliest surviving biblical commentary: Hippolytus on Daniel comes from the second century. Biblical commentary in Latin began, so far as we know, in the mid-fourth century, and that has been taken as evidence for another shifting cultural frontier: it shows that the scriptures in Latin translation were being studied by, and expounded to, educated people. In one of his earliest writings, Augustine challenged critics of scripture not to assume that they knew what it meant, but to seek out a commentary and a teacher as they would for a classical text:

> "I read it and saw it for myself." Did you? If you had no training in poetry, you would not attempt Terentianus Maurus [on metre] without a teacher. Asper, Cornutus, Donatus, and many others are required for the understanding of any poet whose work wins applause in the theatre. Now here are books of great religious importance, as almost everyone recognizes. But you rush in without a guide, you give your opinion without a teacher, and if you find something that seems absurd, you don't blame your own soul. Instead, you blame those who perhaps cannot be understood by people with souls like yours. (*De ut.cred.* 7.17)

But though commentary is an indicator of teaching, the known Latin commentaries on Scripture do not allow us to reconstruct a curriculum. They are evidence for controversy, or for preaching preferences, or for individual interests.[28]

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[26] J. Lienhard, "The Christian Reception of the Pentateuch: Christian commentaries on the Books of Moses", *JECS* 10 (2002), 373-88, at 378.

[27] I. Sluiter, "Commentaries and the Didactic Tradition", in G. Most (ed.) *Commentaries – Kommentare* (Göttingen, 1999), 173-205.

[28] For the history of Latin commentary, see A. Souter, *The Earliest Latin Commentaries on the Epistles of St Paul* (Oxford, 1927).

The earliest extant Biblical commentary, Hippolytus on Daniel, deals with a text which according to Christians was an ancient prophecy of future kingdoms and their downfall. It was notoriously difficult to interpret. The earliest extant Latin commentary is Victorinus of Pettau on the Apocalypse, a text which some Christians took to promise an earthly millennium, and which was also notoriously difficult to interpret. This commentary survived, though many others by Victorinus are lost.[29] The letters of Paul attracted commentary because they raised so many theological questions. Galatians, in particular, confronted readers with questions about grace and law, flesh and spirit, and the embarrassing disagreement of Peter and Paul on the status of Jewish customs.[30] The mysterious Ambrosiaster, working probably in the 370s and 380s, is credited with a collection of Latin commentaries on all the letters of Paul (except Hebrews), and with *quaestiones*, responses to questions posed by others or by the author himself, arising from the Old and New Testaments.[31] Then there were specific requests for commentary, or at least expressions of interest which could be presented as requests. Jerome, according to Rufinus, translated some of Origen's commentaries on Paul: presumably those on Philemon, Galatians, Ephesians and Titus, which Jerome said he wrote in response to requests from Paula and Eustochium (386-7). Jerome also translated Origen's commentaries on Isaiah; on Jeremiah and on Ezekiel (381); two of his homilies on the Song of Songs, at the request of Bishop Damasus (383); and 39 of his commentaries on the gospel of Luke (390-1), at the request of Paula and Eustochium. Of the 23 surviving commentaries by Jerome, 12 (including Ecclesiastes) are dedicated to women who are said to have requested them.[32]

It seems, then, that we cannot identify a late antique curriculum for reading scripture. There is no discussion of the best sequence; there was no requirement for preachers to follow a particular sequence of reading through the year; and there was no way of predicting what an individual Christian or would-be Christian might have read. This applies even if the Christian behaved like Augustine's ideal hearer, the ant of God who followed up the readings chosen by a preacher. Perhaps Augustine expected or hoped that his hearers would be like him, but in practice the ants of God were in the minority, like students who follow up the references from lectures. It remains puzzling that Christian leaders did not offer their people a preferred sequence for reading the scriptures. Recent work on education in late antiquity has emphasized the role of books, chosen by a teacher, and read and

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[29] B. Daley, *The Hope of the Early Church* (Cambridge, 1995), 65-6.

[30] E. Plumer, *Augustine's Commentary on Galatians* (Oxford, 2003), 5-59; S. Cooper, *Marius Victorinus' Commentary on Galatians* (Oxford, 2005).

[31] S. Lunn-Rockliff, *Ambrosiaster's Political Theology* (Oxford, 2007), 11-32, and 63-86 on the context in preaching and discussion; D. Hunter, "The Significance of Ambrosiaster", *JECS* 17 (2009), 1-26.

[32] Heine, *Origen and Jerome*, 5-7; Le Moine, "Jerome's Gift", on commentaries dedicated to women.

discussed by his students with the help of his commentary.[33] Thus, for example, the Platonists Iamblichus, Syrianus, and Proclus, and perhaps also Porphyry in the *Philosophy from Oracles*, gave their students a general introduction to a philosophical system, followed by a sequence of philosophical texts, which might be standard works or compilations; Iamblichus also established a sequence for reading Plato's dialogues.[34] Commentaries on philosophical texts often considered the proper order of reading, which would ensure that the student had the right preparation.[35] Within the "scriptural movement" of late antiquity, Christian identity and Christian preaching were distinctively text-based and insistent on right interpretation, and there was much debate on which texts belonged to the canon of authoritative scripture. Why, then, did Christian teachers not discuss the most helpful order of reading?[36]

The answer to the puzzle may be that Christian teaching had to work differently. In his early work *de utilitate credendi*, Augustine said that people who found Scripture unsatisfactory should seek out a teacher:

> You should have looked for someone both pious and learned, or someone who was widely agreed to be such, whose instruction would make you better and whose teaching would make you more expert. Not easy to find? Make the effort to seek one out. Nobody where you live – what better reason for travel? None in evidence, or none at all, in your part of the world? Time to sail. If there was no one in the nearest country across the sea, you could go to the lands where the events recorded in those books are said to have taken place. Did we do any of that, Honoratus? (*de ut. cred.* 7.17)

Augustine, not yet a priest, was thinking of people like himself and his friend Honoratus. They could have travelled, just as other students of philosophy travelled, to Italy or to the eastern Mediterranean in search of the right teacher, and worked with him through difficult texts.[37] This is a very different perspective

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[33] G. Clark, "Augustine and the world as text", in W. Klingshirn and L. Safran (eds) *The Early Christian Book* (Washington, DC, 2007), 117-38, at 133-8.

[34] Platonist curriculum: D.J. O'Meara, *Platonopolis: Platonic Political Philosophy in Late Antiquity* (Oxford, 2003), 61-8; for Porphyry *Phil.Or.*, see A. Johnson, "Arbiter of the Oracular: Reading Religion in Porphyry of Tyre", in A. Cain and N. Lenski (eds) *The Power of Religion in Late Antiquity* (Farnham, 2009), 103-15.

[35] Heine, *Origen and Jerome*, 24-36. See also M. Heath, "Platonists and the teaching of rhetoric in late antiquity", in S. Clark and P. Vassilopoulou (eds), *Late Antique Epistemology: Other Ways to Truth* (Basingstoke, 2009), 143-59, for the use of commentaries in the teaching of rhetoric.

[36] "Scriptural movement" is borrowed from G. Stroumsa, "The Scriptural Movement of Late Antiquity and Christian Monasticism", *JECS* 16 (2008), 61-77.

[37] Student travel: E. Watts, "Student Travel to Intellectual Centers: What was the attraction?", in L. Ellis and F. Kidner (eds), *Travel, Communication and Geography*

from that of the resident teacher, the bishop or his deputy who must try, week by week, to teach a mixed-ability and unpredictable group, and who cannot assume that any of them have read the text. He could choose the passages he wanted to expound, just as a philosopher could devise his own curriculum, or he could use or compile *testimonia* from the Scriptures. He could use sermons, as a teacher used lectures, to provide commentary on the text, in the hope that his hearers would learn appropriate techniques of reading and apply them to other parts of scripture, just as Augustine learned from Ambrose. But there was very little that the resident teacher could do to control the reading and interpretation of Augustine's ideal hearer: the ant of God, who follows up lessons and sermon with her own reflection and reading. Cognitive theory directs attention to the way in which the audience understands preaching, as distinct from the way in which the preacher expounds the message.[38] Augustine was well aware of that difference. He also acknowledged the diversity of interpretation, and said that he would prefer to include an interpretation which did not contradict basic Christian principles, rather than exclude it and the person who offered it (*Conf.* 12.31.42; *Doctr.Chr.* 3.27.38).

Some recent scholarship on late antiquity seeks to establish a new cultural frontier, a line of demarcation between Christian and non-Christian, by contrasting the speculative freedom of philosophers with Christian efforts to determine which texts were canonical, how they should be interpreted, and precisely what words should be used to convey correct belief and right interpretation. The claim is that just as Christianity was distinctively text-based, even within a general scriptural movement, so Christianity was distinctively intolerant and controlling, to the point of invoking Roman law not only against scandalous practices, but also against unacceptable beliefs.[39] For people in general, *hairesis* was a choice to join a particular school of thought in philosophy or medicine, so the school of thought could also be called *hairesis*. But for Christians, *hairesis* was heresy, a wilful or deluded choice which led to damnation, and Christian emperors were prepared to legislate against it.[40]

There are many possible reasons for requesting a law or asking for it to be enforced: political infighting, or personal obsession, or even a sincere belief that people will die for ever if they are wrongly taught, and must be rescued by force

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*in Late Antiquity* (Aldershot, 2004), 13-23.

[38] Cognitive theory: I. Sandwell, "How to Teach Genesis 1.1-19: John Chrysostom and Basil on the Creation of the World", *JECS* fc.

[39] P. Athanassiadi, "The creation of orthodoxy in Neoplatonism", in G. Clark and T. Rajak (eds), *Philosophy and Power in the Graeco-Roman World: Essays in Honour of Miriam Griffin* (Oxford, 2002), 271-91; A. Cameron, *Christianity and the Rhetoric of Empire* (Berkeley, Ca., 1991), 222, modified *eadem* "Enforcing Orthodoxy in Byzantium", in K. Cooper and J. Gregory (eds) *Discipline and Diversity* (Woodbridge, 2007), 1-24.

[40] E. Magnou-Nortier, *Le code Théodosien, livre XVI* (Paris, 2002).

if necessary.[41] But though Roman law was ferocious in expression and sometimes in practice, it was never easy to get the active cooperation of the local officials in charge of law enforcement. It was possible to target an outspoken individual or a conspicuous group, but impossible to police the thoughts of an entire population. Against the claim that Christianity transformed a tolerant pluralist culture by means of a totalizing discourse of repression, we should remember the ant of God, collecting her grain of wisdom from freely available preaching, then scurrying off across the cultural frontiers to read and think for herself.

[41] Law in church disputes: B.D. Shaw, *Sacred Violence: African Christians and Sectarian Hatred in the Age of Augustine* (Cambridge, 2011); C. Humfress, *Orthodoxy and the Courts in Late Antiquity* (Oxford, 2007).

# PART IV
# Material and Popular Culture

# Chapter 13
# Shining a Light on Shifting Frontiers: Cultural Uses of Ceramic Lamps during Late Antiquity[1]

Kate da Costa

Levantine lamps, which stand outside the stylistic conventions of the Imperial mainstream, can be used to reveal a significant expression of cultural resistance to social change at the borders of the Empire. Modern scholarship often looks to more sophisticated expressions of cultural mores than low-value objects of daily life such as ceramic lamps – the "high" and "low" dialogue explored throughout the *Shifting Frontiers* conference. Yet the deliberate choice of a contrasting, tangible aesthetic by the indigenous inhabitants of the southern Levant demonstrates how that population signalled their recognition of, and relationship to, shifts in social culture in Late Antiquity.

Ceramic lamps, and mould-made ceramic lamps in particular, have enormous potential as evidence for a range of social, economic and political histories, beyond the self-evident data on iconography. The full power of the artefact class is diminished, however, by the problems of publication which plague many such sets of objects in the Roman Empire– and are particularly acute as much of the value of lamps as economic markers depends on quantitative data. Nonetheless, the broad trends of lamp production in the years from Augustus to the seventh century are well known, and can be exploited to examine cultural change.[2]

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[1] This chapter is dedicated to my doctoral supervisor, Em. Prof. J. Richard Green, who substantially aided a topic in unfamiliar territory. In particular, this chapter is but small thanks for his assistance in understanding lamps with faces. The author thanks the organizers of the conference, and the editors of this volume for the opportunity to present this material. The chapter has benefited from the comments of the editors and anonymous reviewers, and participants in the Near Eastern Studies seminar at the University of Sydney.

[2] There remain only two substantial reference works which cover the lamp material of the entire Roman Empire for the period under discussion: Bailey's fundamental catalogue of the British Museum's collection (D. Bailey, *A Catalogue of the Lamps in the British Museum I-IV* [London, 1975-1996]) and Hayes' smaller publication of the holdings of the Royal Ontario Museum (J.W. Hayes, *Ancient Lamps in the Royal Ontario Museum 1: Greek and Roman Clay Lamps* [Toronto, 1980]). Other standard works are geographically or chronologically limited.

Vast numbers of these lamps survive, intact or in fragments. Furthermore, because they were used for a larger range of functions than most other ceramic classes (domestic, public, religious, industrial and funerary), they are recovered from a wide range of contexts, forming an essential class of evidence particularly for social and economic history. Finally, mould-made lamps, as opposed to wheel-made ones, can be traced not just to a particular region of manufacture but to a particular mould. Lamps related to each other from individual moulds can be linked in a map of trade and usage patterns.

A brief survey of lamps of the Mediterranean world will be useful as a background against which can be set the particular points of this chapter. Levantine lamps follow the general trends outlined here until the early Roman period (first century AD). Wheel-made lamps are known from the Bronze Age. Wick supports became more pronounced until sometime in the seventh century BC, when the pinching together of the wick support edges produced a bridged nozzle.[3] It is clear that the use of a mould to make lamps was a Greek idea, and occurred some time in the third century BC.[4] Why the technique of mould making, used for centuries to produce bronze statues, and terracotta figurines, was not used earlier for lamps will remain a mystery, but seems linked to the rise of mould-made vessels.[5] By the end of the third century BC almost all regions of the Mediterranean or Near East were producing some, if not most, lamps by this technique. Decoration very quickly was introduced on the body and nozzle top.

Hellenistic lamps across the Mediterranean are similar in form, and the types apparently last a very long time.[6] These types continued to be produced well into the first century AD, although in Italy, in the late first century BC, a major innovation had been developed – a change in shape to produce a large circular flattish area on the top of the lamp onto which could be modelled a vast array of motifs.[7] Roman discus lamps were clearly a sensation in the early Imperial world.

One undoubted factor in the popularity of the new form of lamp manufacture was that the large discus provided a canvas to display motifs of the sort that were familiar in early imperial art, not just in Rome but throughout the Empire. The concept of isolated figures was known from painting and stucco decoration, as well as mosaic panels. Even the particular shape – a figure, bust or geometric pattern within a wreath – was known from architectural and sculptural decoration.[8]

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[3] Bailey, *BM I*, 13.

[4] R.H. Howland, *Greek Lamps and their Survivals (The Athenian Agora IV)* (Princeton, 1958), 5, 129.

[5] Howland, *Greek Lamps*, 4; Bailey, *BM I*, 4.

[6] Bailey, *BM I*, 15

[7] Bailey, *BM I*, 15.

[8] Bailey, *BM II*, 6; in Athens, Perlzweig considered that sarcophagi were the principal prototypes for the third and fourth century discus lamps, especially given the popularity of erotes in the Greek city (J. Perlzweig, *Lamps of the Roman Period [The Athenian Agora VII]* [Princeton, 1961], 22-3, 59-6).

Relations between lamp makers and the potters of moulded vessels remained particularly close.[9] More particularly, gemstones and numismatics provided either inspiration or the sources of actual craftsmen. The circular discus of a lamp in fact allowed a larger scale depiction of many motifs already known in glyptic art.

Regrettably, there appears to be almost no scholarly study of the iconography of this class of object.[10] Perhaps Bailey has been too influential here. As Stewart noted in his article on cult images on lamps (a rare exception to the rule),[11] Bailey, using as his authority a quote from Henry Moses of 1814, asserted that "The purpose of their adornment would seem to be to attract a purchaser for the product, and although the occasional buyer might take into consideration the discus-scene when obtaining a lamp for a particular purpose, this factor does not seem to have concerned the buying public generally."[12] Since we do not suppose that gemstones carried images by accident,[13] it is a little perverse to nonetheless assume that lamps (used extensively for religious purposes) have meaningless decoration. Indeed, it would seem a prudent position to assume that all motifs have meaning(s) unless clearly proven otherwise.[14] Indeed, the conclusions of this chapter show just one of many potential readings of meaning in the motifs carried by ceramic lamps.

Italian discus lamps were directly copied and subsequently influenced local production across the empire, although the impact was uneven.[15] Athens in particular, a major producer of Hellenistic lamps, barely imported and copied even fewer Italian discus lamps.[16] The types copied show some regional preferences – far fewer lamps of Loeschcke Type VIII/Broneer XXV are known from Gaul or Britain, for instance, than in the Mediterranean provinces, at least as reflected in

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[9] A. Karivieri, *The Athenian Lamp Industry in Late Antiquity* (Helsinki, 1996), 61-2.

[10] Leibundgut's discussion has been largely ignored (A. Leibundgut, *Die römischen Lampen in der Schweiz* [Bern, 1977], 189-203), and the limited discussion in Karivieri, *Athenian Lamp Industry*, 61-78 is typical. For discussion of symbolism on one type, see V. Sussman, "Samaritan Cult Symbols as Illustrated on Oil Lamps from the Byzantine Period", *Israel – People and Land* 4 (1986/7), 13-14 (English), 133-46 (Hebrew).

[11] P. Stewart, "Cult Images on Roman Lamps", *Hephaistos* 18 (2000), 7-28.

[12] Bailey, *BM II*, 6.

[13] M. Henig, "The Meaning of Animal Images on Greek and Roman Gems", in M. Avisseau-Broustet (ed.), *La glyptique des mondes classiques: mélanges en hommage à Marie-Louise Vollenweider* (Paris, 1997), 45-53.

[14] Stewart was very hesitant in reading lamps, and his study, hedged in by caveats, restricts itself only to images which can clearly be shown to replicate not deities, but statues of deities. Although the entire study is suitably cautious, one of his main conclusions should guide further research: "it is wrong to reject any connection between function and iconography either on the grounds that the association is irregular and inconsistent, or on the assumption that function can be determined by the lamp's broad provenance" (Stewart, "Cult Images", 20).

[15] The following discussion, especially of dates and types, depends heavily on Bailey, *BM III*.

[16] Perlzweig, *Lamps*, 4-5, 11-13.

the British Museum collection.[17] In the Levant, limited production, as opposed to substantial import of, lamps with protruding nozzles took place. However, the adopted form, from the early second century, which became the local type was indeed a variant of Broneer XXV – a relatively round body with wide shoulders, and a snub nozzle.[18] It should be noted that there is not yet one single published manufacturing centre of such lamps in the Levant. In small details, regional differences can be detected. Levantine lamps often have schematic volutes flanking the nozzle, in contrast to the kite or heart-shaped wick surrounds in other regions. The shoulder is rarely decorated with designs other than small ovolos or palmettes, although a central double-axe motif is particularly diagnostic. Overall, however, the Levantine versions of these discus lamps fall within the definition of Italian-style lamps.

A contemporary, indigenous lamp was also made for nearly the same length of time, that is, the later first century to third centuries AD. The Darom lamp continued the body shape of the late Hellenistic wheel-made lamp of the region, the Herodian lamp.[19] Made in a mould, and taking the Italian idea of a series of motifs, although in this case applied to the shoulder, Darom lamps became in some areas at least as popular as the Italian style lamps, whether imported or the local copies. Where it is possible to judge from the motifs on these indigenous lamps, they were oriented with the nozzle "up", that is, away from the viewer. This is a critical point. Stewart has convincingly argued that the standard Mediterranean orientation was with the nozzle "down", or towards the viewer.[20] This, by placing the flame between the user and the image on the lamp, replicates the situation in a religious sanctuary – the worshipper, the flame on the altar and the cult image beyond. While this may be particularly relevant to the set of images Stewart studied, there is, from the Augustan period, a clear difference between Mediterranean and Levantine orientations.

If the lamps from the third century across the Empire are examined, it can be seen that in many regions, local traditions, although incorporating concepts from the Italian discus lamp, had begun to appear. Again, this is not a linear development: in Athens, where lamp makers had only just started to make their own versions of discus lamps, local input in the quality of work and the range of discus motifs is observable;[21] in central and south Italy, third century lamps were

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17 Bailey, *BM III*, 153.

18 R. Rosenthal-Heginbottom, *Römische Bildlampen aus östliche Werkstätten* (Wiesbaden, 1981); R. Rosenthal and R. Sivan, *Ancient Lamps in the Schloessinger Collection* (Jerusalem, 1978); M. Grawehr, "Die Lampen der Grabungen auf ez Zantur in Petra", in D. Keller and M. Grawehr, *Petra-ez Zantur III* (Mainz, 2006), 283-96, 358-9, 361-4.

19 V. Sussman, *Ornamented Jewish Oil-lamps* (Jerusalem, 1982).

20 Stewart, "Cult Images", 19-20.

21 Karivieri, *Athenian Lamp Industry*, 44-6.

very coarsely made;[22] in Egypt the famous frog lamp series begins; in Tunisia, like Athens, discus lamps in local variations continue in the third century while the distinctive North African sequence begins in the fourth century.[23]

The southern Levant is taken as a case study for a closer look at the phenomenon of negotiated cultural exchange. Mapping is hampered by the relative lack of early Roman excavated material in the region, but every published site appears to have imported and locally made discus lamps for the first to third centuries. The two indigenous forms (Darom and Round-bodied no discus) which existed in this period appear on currently published data to have been outnumbered by the "Italian" types.[24] What is critical to note is that neither indigenous type had a figured discus. This feature continued and is the attribute, with orientation, that distinguishes southern Levantine lamps from others in the Roman Empire of the Late Roman/Byzantine period.

That the lack of a figured discus on indigenous lamps is not mere whimsy is demonstrated by the widespread evidence of "smashing" out the figured discus of Italian or Italian-style lamps throughout the southern Levant. The debate to explain the reason behind the practice has stalled. Rosenthal-Heginbottom reviewed the explanations,[25] largely related to Jewish law. Brandt proposed the discuses offended Jews who preferred not to have depictions of living things and so destroyed them (which does not explain why plain discuses were smashed, nor, frankly, why they did not buy indigenous lamps without discuses in the first place).[26] Smith invoked a rabbinic ruling that the filling hole of a lamp had to be larger than a small coin, which again does not explain why observant Jews did not just buy lamps without discuses, which appear to have been widely available.[27] Rosenthal-Heginbottom preferred Sussman's view that the "smashers" were simply creating precursors to the later tradition of non-discus lamps.[28] This is not an explanation. More recently Assis has suggested another halakhic justification,[29] rather better than the earlier

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[22] In fact, there seems to be nearly a 50-year-gap in lamp production of any kind in central Italy from around the mid to late third century, a situation which cannot really be true, but must at least indicate a huge downturn in lamp production (Bailey, *BM II*, 336, 378).

[23] Hayes, *ROM*, 63.

[24] K. da Costa, "The Limits of Long-Distance Exchange: Evidence from sixth century Palaestina/Arabia", *Reading Medieval Studies* 32 (2006), 35-45 (map 1).

[25] Rosenthal-Heginbottom, *Römische Bildlampen*, 127-8.

[26] Y. Brandt, "Über antike Tonlampen" in *Glasgefässe in der talmudischen Literatur*, (Jerusalem, 1978), 165-8 (Hebrew) (as referenced by Rosenthal-Heginbottom, *Römische Bildlampen*, 127 n. 1).

[27] R.H. Smith, "The Household Lamps of Palestine in New Testament Times", *Biblical Archaeologist* 29 (1966), 2-27 (27).

[28] Rosenthal-Heginbottom, *Römische Bildlampen*, 127-8.

[29] A. Assis, "The Lamp – its Use and Significance in Judaic Traditions", in J.G. Westenholz (ed.), *Let there be Light* (Jerusalem, 2004), 8-22 (12). One might argue about

ones: as ceramic vessels, lamps could become impure and could not be cleansed. To control against this, an observant user would wish to purchase an "unopened" lamp. "Opening" the lamp at home, by smashing the discus, whether figured or not, would satisfy purity laws for both Jews and Samaritans. Supporting this argument, Samaritan I lamps, which were made after the Italian style discus lamp tradition ended, are often found with a plain "discus" which is not a true discus but an unopened filling hole.[30]

From the later fourth to sixth centuries AD there is evidence of hyper-regionalism, at least in the manufacture of ceramic lamps in the southern Levant.[31] There were far more distinct types of lamp made than in earlier periods, and each was distributed over a far smaller distance. It is difficult to determine what caused this phenomenon, other than an observation that it more or less coincides with a period of economic prosperity in the entire region.[32] The picture changes again over the late sixth to eighth centuries when only four main types of lamps are found.[33] No doubt the explanation is complex. There was no apparent technological imperative – lamps were still mould-made, and continued to be for another 200 years, until the glazed wheel-made lamps of the early mediaeval period predominated. It seems as if economic pressures and cultural change coincided.[34]

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the detail of this argument: a lamp can be used, and thus be open, with an intact discus; the Mishnah ruling quoted sounds more like the description of a production stage than smashing the discus; and of course, by the time the Mishnah was compiled, very few manufacturers even made lamps with discuses, but as a general explanation it covers all the known cases.

[30] V. Sussman, "Samaritan Lamps of the Third – Fourth Centuries AD", *Israel Exploration Journal* 28 (1978), 238-50.

[31] da Costa, "Limits", map 2; distribution data from K. da Costa, *Byzantine and early Umayyad Ceramic Lamps from Palaestina/Arabia (300–700 AD)* (PhD diss. University of Sydney, 2004); K. da Costa, "Byzantine and early Islamic Lamps: Typology and Distribution" in P. Watson and E. Villeneuve (eds), *La céramique byzantine et proto-islamique en Syrie-Jordanie (IVe-VIIIe siècles apr. J.-C.)* (Beirut, 2001), 241-57.

[32] Attempts at defining low level economic data particular to the southern Levant include: A.H.M. Jones (ed. P.A. Brunt), *The Roman Economy. Studies in Ancient Economic and Administrative History* (Oxford, 1974); D. Sperber, *Roman Palestine 200 – 400. Money and Prices* (Ramat-Gan, 1974); S. Mrozek, *Prix et remuneration dans l'Occident romain (31 av. n.e – 250 de n.e.)* (Gdansk, 1975); Y. Israel, "The economy of the Gaza-Ashkelon region in the Byzantine period in the light of the archaeological survey and excavations of the '3rd Mile Estate' near Ashkelon", *Michmanim* 8 (1995), 119-32 (Hebrew); G. Tate, "Expansion of a rich, egalitarian society: The peasants of northern Syria from the 2nd to the 7th century", *Comptes rendues des séances de l'Académie des inscriptions & belles-lettres* 3 (1997), 913-40; R. Reynolds, "Pottery production and economic exchange in second century Berytus: some preliminary observations of ceramic trends from quantified ceramic deposits from the AUB-Leverhulme excavations in Beirut", *Berytus* 43 (1997-1998), 35-110.

[33] da Costa, "Limits", map 3.

[34] K. da Costa "Economic Cycles in the Byzantine Levant: The Evidence from Lamps at Pella in Jordan", *Levant* 42/1 (2010), 70-87; P. Watson "Change in foreign and regional

It is clear that although each south Levantine Late Antique manufacturing centre produced its own style of lamp, over the centuries of hyper-regionalism all lamps changed in similar ways – they became elongated, the decoration became simpler, if not coarser, and the nozzle ceased to be a separate element in the form. Although no channel was introduced, the influence of the new glamour lamp of the rest of the Roman Empire, African Red Slip Hayes II lamps, must be seen.[35] Although African lamps are not known inland in the Levant, they were very widely exported from Tunisia. Their impact was profound. Lamps produced in Greece, Asia Minor and Italy all began to copy the North African shapes and iconography. Although Levantine lamp manufacturers held out against this level of imitation, they did change their lamp shapes in a similar way. Nonetheless, "upwards" orientation and the continued lack of a discus maintained the local character of the entire production.

To summarize this background material, the history of lamp styles from the first to the seventh centuries throughout the Roman Empire indicates that there was a complex system of cultural exchange. At first, one lamp style, Italian discus lamps, became the most fashionable lamp in the empire. Although the mechanism is unclear, it cannot be a coincidence that this phenomenon began in the Augustan period, and from the perspective of the southern Levant, continued during the century in which the region became increasingly absorbed into the Empire. Then, for about one hundred years, the inhabitants of the Empire both copied directly, and absorbed, features of Italian discus lamps, merging them in local ways with their own local preferences. There was a dialogue for several generations with the Italians. From the fourth century onwards, paralleling economic and political changes, the Italians took the back foot. Fashion was dictated in the East at first by Athens, but in the late fourth century the African Red Slip industry, and its lamp forms, began to dominate. As with the Italians, the export of these lamps and the eventual absorption of their form and motifs took place over several centuries in a complex conversation. Two regions stood apart: Egypt and the southern Levant. Both had been involved with the first round of lamp design changes, but then, separately, developed distinctive indigenous lamp forms.

It is possible in the southern Levant to understand why this independence should have happened, from the evidence of the lamps themselves. The Holy Land designation enmeshed the area within the Empire in a network of ways. Yet local inhabitants, whether Jewish, Samaritan, Christian or pagan, often chose,

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economic links with Pella in the seventh century AD: the ceramic evidence", in P. Canivet et J-P Rey-Coquais (eds), *La Syrie de Byzance a l'Islam VIIe-VIIIe siècles*, (Damascus, 1992), 233-48; see also works cited in n. 32.

[35] J.W. Hayes, *Late Roman Pottery* (London, 1972), 310-315; M. Mackensen, "Centres of African Red Slip ware production in Tunisia from the late 5th to the 7th centuries" in L. Sagui (ed.), *Ceramica in Italia: VI-VII secolo. Atti del convegno in onore di John W. Hayes* (Florence, 1998), 23-39; idem, *Die Spätantiken Sigillata- und Lampentöpfereien von el Mahrine (Nordtunesien): Studien zur Nordafrikanischen Feinkeramik des 4. bis 7. Jahrhunderts (vols 1 and 2)* (Munich, 1993).

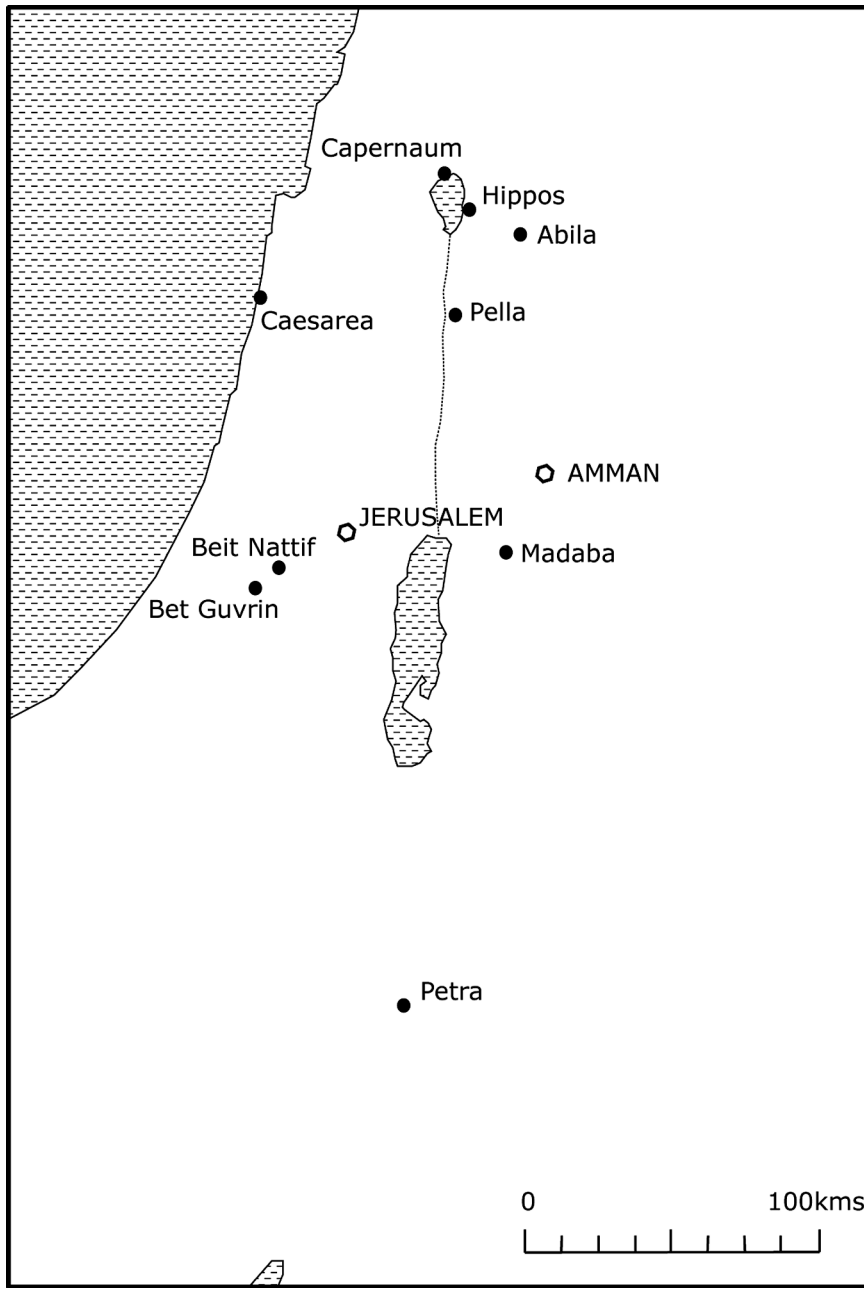



Figure 13.1 Map of southern Levant

through their lamps, to express cultural preferences which overrode their religious differences, and united them "against" the rest of the Empire.

There are some lamps in the Levant which do carry quite obvious figural decoration on large discuses (Figure 13.1). One rare type is known mainly from a dump at Beit Nattif.[36] This, not uncoincidentally, was near the site of one of only two purpose-built amphitheatres in the southern Levant, at Bet Guvrin.[37] The most striking type, however, was made in Caesarea Maritima,[38] the capital of *Palaestina* (and then *Palaestina Prima*), recognized as the most Roman of the cities in the region. The city also boasted a true amphitheatre.[39] These lamps are in the Mediterranean fashion, with large discuses which carry a variety of, frankly, not very well crafted motifs. One in particular is relevant (Figure 13.2). This lamp, published in 1988, has shoulder decoration of simple radiating lines, a characteristic nozzle, handle and large discus, all typical of these Caesarean discus lamps of the fifth to possibly early seventh centuries.[40] On the discus, mostly above the central, small, filler hole, is a schematic face in relief. Probably male, the hair is shown by 4 concentric lines in an omega shape, with central parting. Large eyes with pupils are placed each side of a long, straight, neat nose. The cheeks are highlighted. Open lips of a very large mouth are not quite placed around the filler hole – it seems as if the hole was supposed to be in the mouth, but the positioning of the stamp was misaligned. In place of a chin, however, is a strange shape. It is not a beard, but three concentric lines outlining a square U shape, with dotted circles in the lower angles. This is of course not a face, but, as the open mouth indicates, a theatrical mask. By reference to a scene on a mosaic from Daphne near Antioch, amongst others, showing Comedy, Menander and Glykera,[41] the

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[36] D.C. Baramki, "Two Roman Cisterns at Beit Nattif", *Quarterly of the Department of Antiquities Palestine* 5 (1935/6), 3-10.

[37] A. Kloner and A. Hübsch, "The Roman Amphitheater of Bet Guvrin: a Preliminary Report on the 1992, 1993 and 1994 Seasons", *'Atiqot* 30 (1996), 85-106; J. Magness "The Oil Lamps from the South Cemetery" in G. Avni, U. Dahari and A. Kloner *The Necropolis of Bet Guvrin-Eleutheropolis* (IAA 36) (Jerusalem, 2008), 121-78.

[38] V. Sussman, "Moulds for Lamps and Figurines from a Caesarea Workshop", *'Atiqot* (English series) 1, (1980), 76-9; Y. Israeli and U. Avida, *Oil-Lamps from Eretz Israel: The Louis and Carmen Warschaw Collection at the Israel Museum, Jerusalem* (Jerusalem, 1988) nos. 321-3.

[39] Caesarea generally: K. Holum et al., *King Herod's Dream: Caesarea on the Sea* (New York, 1988), A. Raban and K. Holum (eds), *Caesarea Maritima: A Retrospective after Two Millennia* (Leiden, 1996).

[40] Holum et al., *Herod's Dream*, fig. 117 far right (no identification number given); once visible on the website K. Vine and G. Hartelius, "The Corpus of Terracotta Lamps from Caesarea Maritima, Israel, 1971-1980", http://digcaesarea.org/images/CaesareaLamps/ (last accessed 2000, site no longer active), identified as no. 853A.

[41] C. Kondoleon, *Antioch: The Lost Ancient City* (Princeton, 2000) 156, cat. no. 40, ca 250-275 House of Menander; G.W. Bowersock, *Mosaics as History* (Cambridge, 2006), fig. 2.17.

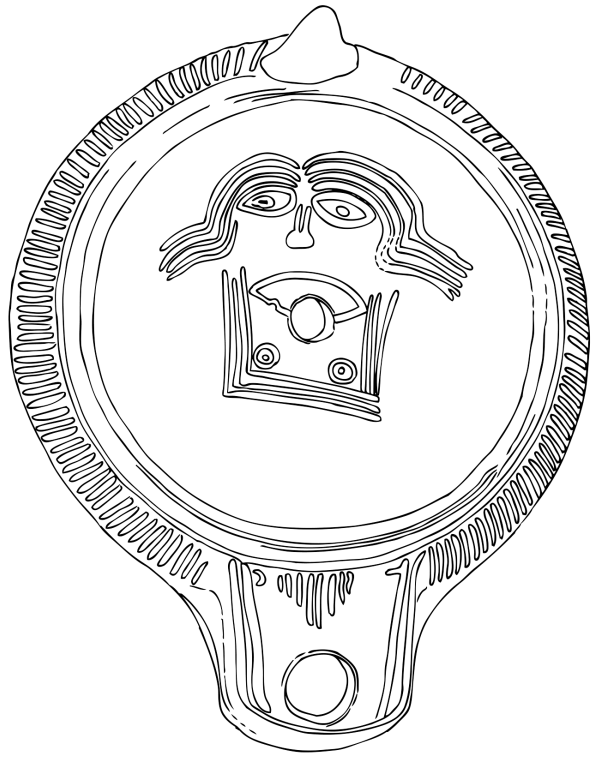


Figure 13.2 Caesarean Discus lamp with theatrical mask resting on a box, fifth to seventh centuries AD (after Holum et al., *Herod's Dream*, Figure 117 and K. Vine and G. Hartelius, "The Corpus of Terracotta Lamps" no. 853A, drawing © F.J. Reidel)

lamp motif is confirmed as a, poorly drafted, theatrical mask resting on a box.[42] Obviously, by the time the Caesarean mask lamp was made, no one was watching comedy or tragedy on the stage, but the mask remained, as it is today, a symbol for the theatre.[43] The Caesarean mask lamp, along with many but not all others of the type, is furthermore oriented in the Mediterranean manner.

[42] I thank Eric Csapo for his assistance in the identification of this motif, especially the suggestion of a mask on a box. We disagree on the interpretation of the Galilean face/mask lamps.

[43] J.R. Green, "A Note on the Classification of Some Masks and Faces from Petra" (43-9) in "Faces in the Rock at Petra and Medain Saleh", J. McKenzie, A.T. Reyes and A. Schmidt-Collinet, *Palestine Exploration Quarterly* 130 (1998), 35-50; T.B.L. Webster (revised J.R. Green and A. Seeberg), *Monuments Illustrating New Comedy* (London, 1995 3rd edition), 1-5.

It links to a special subgroup of the otherwise conventional South Levantine Galilean lamp type. Galilean lamps are normally oriented with the nozzle "up", carry limited decoration, normally only on the bridge, and that almost always of a bird.[44] They are characterized by a large conical handle, and a particular orange-red, poorly adhering slip. One small group, however, carries an overall decoration using the shape of the lamp itself as part of the motif (Figure 13.3). The nozzle is oriented "down". Two large eyes flank the handle, which takes the place of a nose. Short strokes along the shoulders become closer together, ending in a triangular shape on the bridge, altogether making a beard. The large filler hole, a typical Levantine feature, can then only be interpreted as a large open mouth. We have here, on a lamp group which must be made somewhere in the Galilee, the form of a Levantine version of a theatrical mask. The type is dated from the mid fifth to possibly the early seventh centuries, contemporary with Caesarean discus lamps, although no finer dating for this group is available.[45] Almost all examples known, each slightly different, are from *Palaestina Secunda*: one from a collection;[46] an unpublished lamp in the Jordanian Museum Amman from Abila;[47] the illustrated example from Pella/Tabaqat Fahl in the Jordan valley; fragments from Capernaum;[48] and unpublished fragments from Hippos east of the Sea of Galilee.[49]

Theatres of course are known at most major cities in the Levant, in contrast to amphitheatres which are rare in the Holy Land. Choricius of Gaza wrote extensively of theatrical performances,[50] and we can imagine that this was a familiar part of life in the southern Levant. Bowersock, following Dunbabin, in his recent study of the mosaics of Late Antiquity links the theatre to this popular art form.[51] There is no doubt that mosaic art, in churches, synagogues, secular and private buildings, flourished in the southern Levant in the fifth through eighth centuries.[52] The mythological scenes on Levantine mosaic floors have usually been interpreted as a generalizing inheritance of Hellenic culture.

Using unusual depictions of Achilles and Patrokles in one Madaba mosaic, and Phaedra and Hippolytus in another, Bowersock has developed an argument showing that these scenes, and very possibly many other mythological mosaics, are directly

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[44] S. Loffreda, *Cafarnao II: La ceramica* (Jerusalem, 1974), 88-96.

[45] da Costa, *Byzantine and Early Umayyad Ceramic Lamps*, 120-128.

[46] Rosenthal and Sivan, *Ancient Lamps*, no. 518 provenance unknown.

[47] J8234 from Abila/*Queilbeh.*

[48] Loffreda, *Cafarnao*, fig. 43.15.

[49] Seen by the author, with thanks to Jolanta Mlynarczyk who is publishing the Hippos lamps.

[50] *Apologia mimorum*; F.K. Litsas, "Choricius of Gaza and His Description of Festivals at Gaza", *Jahrbuch der Österreichischen Byzantinistik* 32/3 (1982), 427-36.

[51] K. Dunbabin *Mosaics of the Greek and Roman World* (Cambridge, 1999), 299, 303; Bowersock, *Mosaics*.

[52] Dunbabin, *Mosaics*, 160-208.

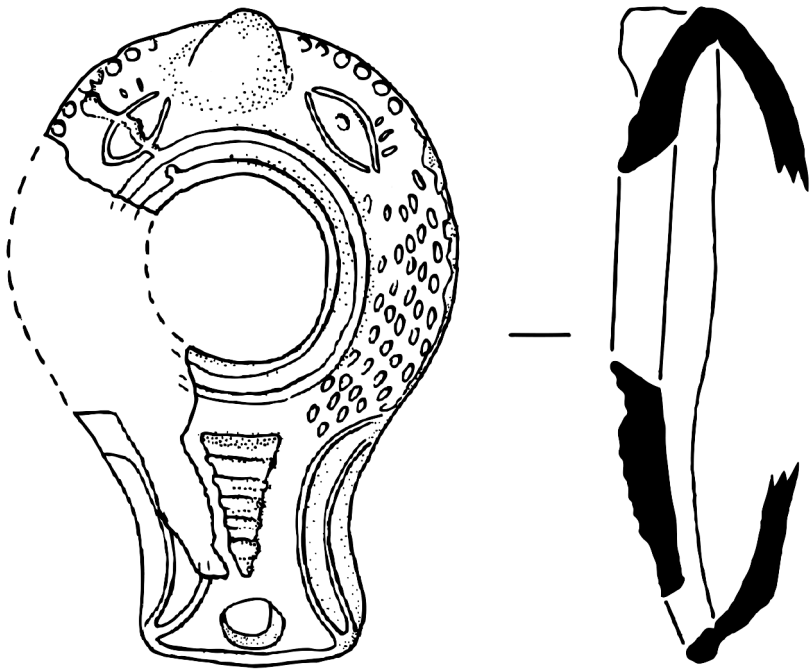


Figure 13.3 Pella lamp PL938/RN132007, findspot Tomb 100 2.2, Munsell: 7.5YR8/4, slip: 2.5YR6/8; used; length: 10 cm; fabric: standard Galilean lamp ware, pale with much small rounded multicoloured quartz, occasional other tiny, small rounded black and red stone inclusions; mid-fifth to late-sixth/early-seventh centuries AD (© Pella Excavation Project, University of Sydney, reproduced with permission)

illustrating popular pantomime and mime subjects.[53] Herakles and Dionysos were particularly popular themes, well illustrated by the drinking contest mosaics from Antioch and Sepphoris, and in another, not very well understood context, at Sarrin in Syria.[54] Bowersock reminds us of Libanius's "loving detail" in descriptions of pantomimes, and the main stories are those we see in the mosaic floors: Achilles, Dionysos, Herakles and Phaedra and Hippolytus. At Sheikh Zouède in the northern Sinai is another version of Phaedra and Hippolytus, dated between the mid fourth and the mid fifth century, in this case associated with Dionysos and Herakles, with

[53] Bowersock, *Mosaics*, 31-63.

[54] J. Balty, *La mosaïque de Sarrîn* (Paris, 1990).

a very self-consciously classicizing Greek inscription lauding the beauty of the mosaic:

> If you love me, gentleman, enter gladly into this grand hall and then your soul will enjoy the works of art herein. Cypris wove this splendid peplos of the Charites by a mosaic of delicate cube stones, into which she has put much charm.[55]

In Procopius' description of the painted version at Gaza, the myth is associated with scenes from the Iliad, linking us back to Achilles and Patrokles in Madaba.[56]

Although only a fraction of all mosaic floors survive, there are a substantial number now known in the southern Levant.[57] Associated with religious structures, public buildings including bath-houses and government offices, and clearly lavish private villas, this art form must have been considered, at the time, as "high" culture, especially if "high" involves "expense". Going to the theatre (even at the frequency complained of by the Church Fathers) was also considered "high" culture, and it is therefore unsurprising that these two elite activities can be so closely associated. We can be equally sure that contemporary ceramic lamps were, on the other hand, representative of "low" culture. It is remarkable, then, that two groups of Late Antique lamps in the southern Levant which follow the Mediterranean orientation rather than the local fashion, despite without question being made in the Levant,[58] also have a clear link with the theatre. Their very distinctive decoration and orientation throws into sharper relief the great bulk of contemporary lamps.

In the southern Levant, then, how do we interpret those few lamps which reference the elite activity of theatre-going? And how does that relate to the general cultural conversation as expressed in manufactured lamps, which continued during this time period within the rest of the Mediterranean? The Levantine mask lamps are not acting in counter-balance to the mosaic floors, in an attempt to make the theatre less elite, and more ordinary, as there are not enough of them to make such an impact. Indeed, the relative lack of theatrical motifs speaks of a different balancing equation. This equation would include all lamps, and also explain why the main Levantine sequence stood apart from the rest of the Empire. The

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[55] A. Ovadiah, "Allegorical Images in Greek Laudatory Inscriptions", *Liber Annuus* 47 (1997), 442.

[56] P. Friedlander (ed.), *Spätantiker Gemäldezyklus in Gaza* (Vatican city, 1938/9); R. Talgam, "The *Ekphrasis Eikonos* of Procopius of Gaza: The Depiction of Mythological Themes in Palestine and Arabia during the Fifth and Sixth Centuries", in B. Bitton-Ashkelony and A. Kofsky (eds), *Christian Gaza in Late Antiquity* (Leiden, 2004), 209-34.

[57] M. Piccirillo, *Mosaics of Jordan* (Amman, 1992); R. Ovadiah and A. Ovadiah, *Hellenistic: Roman and Early Byzantine Mosaic Pavements in Israel* (Rome, 1987).

[58] Moulds have been found in Caesarea for the discus type, and fabric, form and slip of the second type are certainly Galilean.

whole concept of mosaic floors was, even at this late date, seen by the Levantine population as Mediterranean/Roman/Hellenic, that is, most definitely not a local cultural tradition.[59] Similarly, the theatre, however popular, was also recognized as a foreign cultural product. Thus, those lamps which also referred to the theatre had to have a Mediterranean/Roman form as well. They were clearly not the type of lamp which indigenous people bought for their everyday life. If we have a dichotomy, it is not so much between "high" and "low", as between "foreign" culture for public display, and "local" culture for private action.

[59] Dunbabin, *Mosaics*, 299.

Chapter 14

# Sleeping Arrangements and Private Space: A Cultural Approach to the Subdivision of Late Antique Homes[1]

Leslie Dossey

Jokes that we find disturbing are often a clue of a cultural difference worth paying attention to. Take, for instance, the following joke from a late antique Greek collection: "An intellectual during the night ravished his grandmother and for this got a beating from his father. He complained: 'You've been mounting my mother for a long time, without suffering any consequences from me. And now you're mad that you found me screwing your mother for the first time ever!'"[2] What is striking about this joke is the sense that family members would possess a casual familiarity with each others' sex lives. It brings home the fact that in antiquity, as in much of history, beds and bedrooms were crowded places, where parents, children, and servants would sleep near one another.[3]

For the Romans of the early empire, the exposure of the bedroom to the gaze of others was not the result of poverty so much as preference. The Roman *cubiculum*—the closest approximation of the modern bedroom—was, by modern standards, remarkably open to view from the reception areas and peristyles of the house.[4] *Cubicula* often directly adjoined the dining rooms (both Greeks and Romans considered it natural to sleep after you ate). Most of them opened onto the atrium or peristyle courtyard—and the large doorways would have allowed a good view of the room when the door was open. For example, in the first-century House of Lucretius Fronto at Pompeii, Room G, which can be identified as a *cubiculum* because of the floor layout, opens right into the atrium (Figure

[1] My very great thanks to David Nitecki for preparing the drawings and to the participants of the Shifting Cultural Frontiers conference for their useful feedback on the preliminary version of this chapter.

[2] Philogelos 45, (ed.) R.D. Dawe (Leipzig, 2000), 17, as translated by Barry Baldwin, *The Philogelos or Laughter-Lover* (Amsterdam, 1983).

[3] Robert Darnton, *The Great Cat Massacre and Other Episodes in French Cultural History* (New York, 1985), 29.

[4] Andrew M. Riggsby, "'Public' and 'Private' in Roman Culture: the Case of the Cubiculum," *JRA* 10 (1997), 36-56.

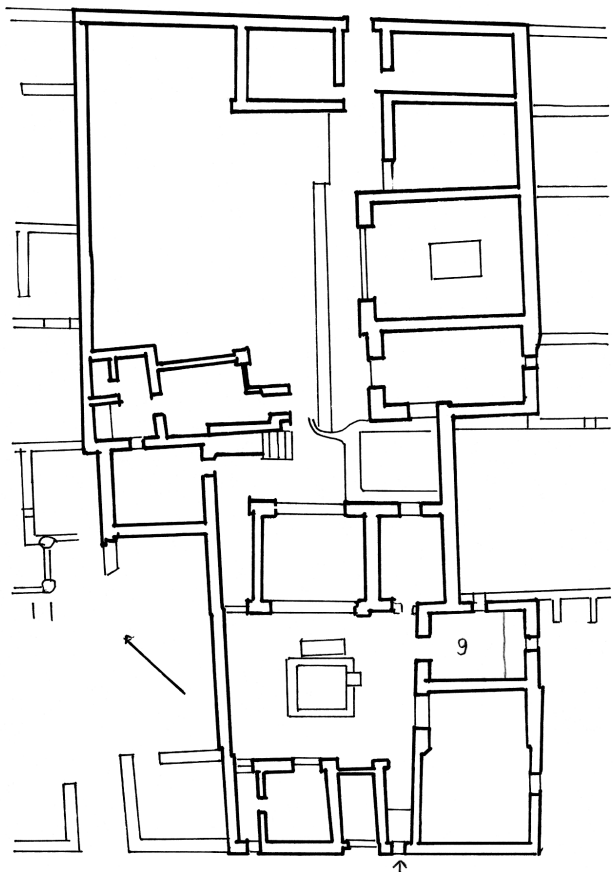



Figure 14.1 Pompeii, House of Lucretius Fronto (after Clarke, *Houses of Roman Italy*, Figure 69)

14.1).[5] Moreover, few activities escaped the observation of the omnipresent slaves: Roman paintings commonly showed couples engaged in sex with slave attendants gazing on.[6] This absence of shame differentiated the Romans from

[5] John R. Clarke, *The Houses of Roman Italy 100 B.C. – A.D. 250: Ritual, Space, and Decoration* (Berkeley, 1991), Fig. 69. See Margherita Carucci, *The Romano-African Domus: Studies in Space, Decoration, and Function* (London, 2008), 73, for the method of identifying *cubicula*.

[6] For example, two wall paintings from the first-century Roman villa under the Farnesina, which show a male and female couple in bed attended by three servants in one case and a naked boy in another; see John R. Clarke, *Looking at Lovemaking: Constructions of Sexuality in Roman Art 100 B.C. - A.D. 250* (Berkeley, 2001), Fig. 20 and Plate 6, with

many of their provincials, most notably the Jews, whose boundaries of public and private fell rather differently.[7]

This is by way of background for understanding the significance of the changes in domestic space during late antiquity. A growing body of scholarship suggests that domestic architecture in late antiquity emphasized privacy, and separated family space from reception areas to a greater extent than had been the case in the early imperial period.[8] This chapter will review some of the archaeological evidence for the "privatization" of the *cubiculum*. It will then use legal, homiletic, and hagiographical texts to attempt to explain it. One goal will be to show that the growing emphasis on private space was not confined to the elite, but shared by people from all walks of life—an example of the intersection of "high" and "low" culture discussed in the introduction to this volume.

The first thing to establish is the class differences in access to private space during the early imperial period. The master (or mistress) of the house could choose to have a private *cubiculum* if he desired it. Pliny the Younger had a private suite in his Laurentine villa where he could get away from his slaves. He had another *cubiculum* "with an alcove large enough to hold a bed and two armchairs and separated from the rest of the room by glass doors and curtains."[9] Such secluded rooms were even more common in provincial architecture, for example in North Africa, where, well into the third century, elite *cubicula* were protected from the public gaze by means of anterooms, corridors, and the placement of doorways.[10]

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extensive discussion of these and other representations of the presence of servants in erotic scenes. For the omnipresence of slaves in Roman elite life, see Michele George, "Servus and Domus: The Slave in the Roman House," in Ray Laurence and Andrew Wallace-Hadrill (eds), *Domestic Space in the Roman World*: *Pompeii and Beyond* (JRA Supplementary Series 22) (Portsmouth, RI, 1997), 15-24.

7 Richard Alston, "Houses and Households in Roman Egypt," in Laurence and Wallace-Hadrill, *Domestic Space in the Roman World*, 78-81 for the contrast between Roman and Greek and Egyptian domestic architecture, and 100 for Jewish (Philo). For the Jewish emphasis on modesty, especially female, see also Michael L. Satlow, "Jewish Constructions of Nakedness in Late Antiquity," *Journal of Biblical Literature* 116 (1997), 429-54, and Leonie J. Archer, "Her Price is beyond Rubies: The Jewish Woman in Graeco-Roman Palestine," *Journal for the Study of the Old Testament* Suppl. 60 (Sheffield, 1990), 114-17.

8 Yvon Thébert, "Private Life and Domestic Architecture in Roman Africa," in Paul Veyne (ed.), *A History of Private Life*, vol. 1, *From Pagan Rome to Byzantium* (Cambridge, MA, 1987), 379-81 and 387-92; Kristina Sessa, "Christianity and the *cubiculum*: Spiritual Politics and Domestic Space in Late Antique Rome," *Journal of Early Christian Studies* 15.2 (2007), 171-204; Barbara Polci, "Some Aspects of the Transformation of the Roman Domus between Late Antiquity and the early Middle Ages," in Luke Lavan and William Bowden (eds), *Theory and Practice in Late Antique Archaeology* (Leiden, 2003), 79-112; and Simon P. Ellis, "The End of the Roman House," *American Journal of Archaeology* 92 (1988), 565-76.

9 Pliny the Younger, *Epistula* 2.27.21; Carucci, *The Romano-African Domus*, 73.

10 Robert Daniels, "Punic Influence in the Domestic Architecture of Roman Volubilis (Morocco)," *Oxford Journal of Archaeology* 14.1 (1995), 7996; Carucci, *The Romano-*

For example, an early third-century house from Thaenae, Tunisia, (Figure 14.2) has a series of *cubicula* in the north corner (marked with "c" on the plan), which were entered through antechambers rather than directly from the peristyle.

However, the vast majority of the population had no choice in their degree of privacy. Privacy was to a large extent a privilege of wealth. At the lower-class houses at Herculaneum (where wooden beds actually survived in their original location), we find multiple beds concentrated in one main "sleeping" room.[11] Since the beds themselves were meant to hold more than one person,[12] these would have been crowded bedrooms (with four-plus people in them).

In the provinces as well as in Italy, multiple households were frequently crowded into one house. In tax registers from villages in Roman Egypt, some 50 percent of houses were inhabited by more than one household (in one early fourth-century register, there were 16-17 people per house!). And most of these houses were tiny—at least their ground floors were.[13] From Richard Alston's work on the papryi, we learn that the residents would not subdivide the house, but rather hold it in common, sharing their living spaces.[14]

Even less able to control their domestic space were the residents of—in the terminology of Andrew Wallace Hadrill—the "big" houses. In urban areas such as Rome or even Pompeii, slaves, freedmen, and boarders (*inquilini*) of "big houses" constituted a large portion, possibly the majority, of the city's population.[15] Slaves often slept in anterooms, corridors, or on the floor of their

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*African Domus*, 79-81 and 86.

[11] For example, Richard E.L.B. De Kind, *Houses in Herculaneum: A New View on the Town Planning and the Building of Insulae III and IV* (Amsterdam, 1988), 115 and Figs. 4 and 5 for the Casa a Graticcio. This two-story multifamily house is one of the only houses in Herculaneum where the upper story has been preserved. One bedroom was on the ground floor – Room 3 – in a very public location off the main corridor (14) and hall (3). Most of the ground floor was given over to work space and storage, however. The bedrooms were concentrated on the second floor in only a couple of rooms: Rooms 1 and 2 near the staircase entrance (Room 2 having two beds and a cupboard). In the separate apartment on the upper floor, all the beds (2) were concentrated in one room (5), which was the largest room in the apartment and probably also functioned as the main living room for the family.

[12] Stephanus Mols, *Wooden Furniture in Herculaneum: Form, Technique and Function* (Amsterdam, 1999), 37-8.

[13] Richard Alston, *The City in Roman and Byzantine Egypt* (New York, 2002), 70-72 and Alston, "Houses and Households," 34-5 for the Egyptian evidence. For a northern Syrian example of married brothers sharing a house (*frereche*), see Georges Tate, *Les campagnes de la Syrie du Nord du IIe au VIIe siècles*, vol. 1 (Paris, 1992), 183 and 259-60, an inscription from Brad dating AD 207-8 that suggests that each room of a floor was inhabited by a couple and their children.

[14] Alston, "Houses and Households," 35.

[15] Andrew Wallace-Hadrill, *Houses and Society in Pompeii and Herculaneum* (Princeton, 1994) is the classic argument for this.

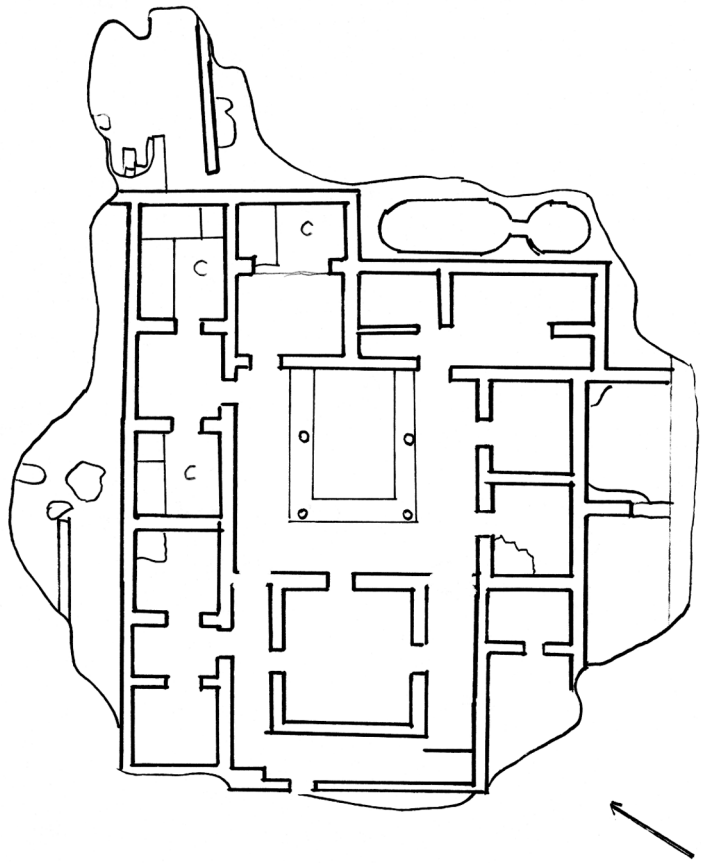



Figure 14.2 Thaenae (Tunisia), Maison de Dionysos (after Carucci, *The Romano-African Domus*, Figure 36)

master's room—without any space of their own.[16] The ones lucky enough to have their own "cells" had to crowd into beds with other slaves.[17] The sleeping arrangements for children appear to have been similar.[18]

The implications of all this is that people were far more familiar with each others' sexual lives and personal hygiene than we today with have been comfortable

[16] George, "Servus and Domus," 22.

[17] Ibid., 22 for examples of slaves sharing rooms and beds, and 16 ff. for slave *cellae*; Carucci, *The Romano-African Domus*, 73, for slave *cellae* on a *villa rustica* and the *cellae familiaricae* ("belonging to house-servants") in the women's quarters of the Greek house (Vitruvius).

[18] Wallace-Hadrill, *Houses and Society*, 9 ff.

with. The bodily functions of the master would have been particularly familiar to his household. In the *Life of Andrew*—a Greek apocryphal gospel probably written in the third century and set in Asia Minor—the master of the house used a chamber pot in the courtyard of his house in the full view of his wife and servants (and, though he didn't know it thanks to a miracle, a group of visiting Christians who had been meeting in his wife's bedroom).[19]

In the fourth to sixth centuries, several related changes in domestic architecture occurred that may have improved access to privacy**.** The first (and earliest) was a movement away from the open plans that had characterized Roman (and Hellenistic) domestic architecture. We see the first signs of this in elite houses of the fourth century, where apsed dining rooms and basilica-shaped audience chambers were built that separated the "public" reception space from the domestic core of the house (still usually centered around a peristyle).[20] Figure 14.3 shows the sixth-century House of the Consoles, in Apamea, Syria, where a very large reception room (marked "r") has separate entrances than the more "domestic" section at other end of the peristyle.[21] The extensive scholarship on this phenomenon has attributed it to an imitation of imperial palaces, but also to greater desire for privacy, though not from the "familia" (including servants), but from clients and other outsiders.[22]

By the fifth century, some elite residences had abandoned the peristyle altogether and moved the domestic areas to a second story, while keeping the ground floor as work spaces. One of the earliest excavated examples of this in the west is the villa of San Giovanni di Ruoti in southern Italy, which was rebuilt around AD 460 without a peristyle. The main buildings were separated by narrow corridors. On the second floor of one wing was a grand apsidal hall. The bedrooms for the family appear to have been located on the second floor

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[19] *Acts of Andrew*, 13 (ed. Prieur, CCSA, vi, 471). The proposed dating of these acts ranges from AD 150 to the late third century: see Jean-Marie Prieur, *Acta Andreae: Praefatio – Commentarius*, CCSA, v (Brepols, 1989), 156 and 413-4.

[20] Ellis, "End of the Roman House;" Margherita Carucci, "Domus on the Late-antique Esquiline: Architectural Developments and Social Changes," in P.A.J. Attema, Albert Nijboer, and Andrea Zifferero (eds), *Papers in Italian Archaeology VI* (Oxford, 2005) 2, 903-12; Lale Özgenel, "Public Use and Privacy in Late Antique Houses in Asia Minor: The Architecture of Spatial Control," in Luke Lavan, Lale Özgenel, and Alexander Sarantis (eds), *Housing in Late Antiquity: From Palaces to Shops* (Late Antique Archaeology vol. 3.2) (Leiden, 2007), 197-238. In North African towns, this is a phenomenon of the fourth and early fifth century: see Anne Leone, *Changing Townscapes in North Africa from Late Antiquity to the Arab Conquest* (Bari, 2007), 52-7 and 61-2.

[21] Simon P. Ellis, *Roman Housing* (London, 2000), 62-6 and Fig. 10.

[22] Ellis, "End of the Roman House"; Özgenel, "Public Use and Privacy," 274: "In late antiquity, however, these blurred and indistinct physical and social boundaries, between both the house and its public spaces and between the public spaces themselves, were more firmly set. An increased spatial hierarchy and seclusion prevailed, best exemplified by the audience hall."

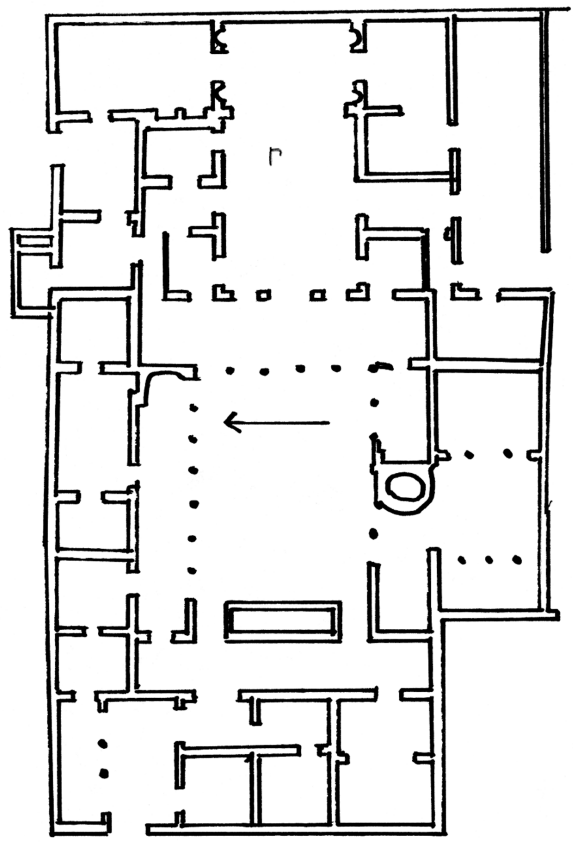


Figure 14.3 Apamea (Syria), House of the Consoles (after Ellis, *Roman Housing*, Figure 10)

of a separate wing.[23] Two-story houses without peristyles and with the living quarters on the second floor become the main form of elite housing in early medieval Italy.[24] (It should be noted that upstairs sleeping quarters had long

[23] Polci, "Some Aspects of the Transformation," 91 ff. and Fig. 4; Alastair M. Small and Robert J. Buck, *The Excavations of San Giovanni di Ruoti*, Vol. 1, *The Villas and their Environment*, Phoenix Suppl. 33 (Toronto, 1994), 116-9; Carla Sfameni, "Residential Villas in Late Antique Italy: Continuity and Change," in William Bowden and Luke Lavan (eds), *Recent Research on the Late Antique Countryside* (Boston, 2004), 350-51 and 367-8.

[24] Polci, "Some Aspects of the Transformation"; Chris Wickham, *Framing the Early Middle Ages: Europe and the Mediterranean 400-800* (Oxford, 2005), 647-9, who suggests that this was particularly true for Byzantine Italy. However, Sfameni,

been a characteristic of eastern Mediterranean domestic architecture, especially in villages.)[25]

In some cases, the movement away from the peristyle courtyard seems to have involved subdivision into separate apartments. One of the clearest examples is the House of the Frescoes in Tipasa in Mauretania Caesariensis, which has been cogently interpreted by Simon Ellis. This house had been a typical Romanized peristyle house in the third century. Towards the end of the fifth century, it was subdivided into four separate apartments (see Figure 14.4).[26] Perhaps the most interesting was the one in the southeast end (Rms 1, 3, 19-21). Rooms 19-21 near the street were the "public" part of this apartment. The more private part would have been entered through Rm 20, where there was a new curved wall added to protect the privacy of the interior. A new low wall across Rm 3 created a corridor (and private space to the south for a *cubiculum*). The same kind of division was done to the old *triclinium* (Rm 1).[27] Sleeping space was being screened from both the peristyle and the entryway. Such subdivision of rooms and walling up of peristyles was common in the fifth-century west

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"Residential Villas in Late Antique Italy," 367-8 notes that second-story residential space had not yet become the norm in the West before the eighth–ninth centuries.

[25] This has been especially well studied for Roman Palestine: see Yizhar Hirschfeld, *The Palestinian Dwelling in the Roman-Byzantine Period* (Jerusalem 1995); Katharina Galor, "Domestic Architecture in Roman and Byzantine Galilee and Golan," *Near Eastern Archaeology* 66:1-2 (2003), 44-57, esp. 56; and Eric M. Meyers, "The Problems of Gendered Space in Syro-Palestinian Domestic Architecture: The Case of Roman-period Galilee," in David L. Balch and Carolyn Osiek (eds), *Early Christian Families in Context: An Interdisciplinary Dialogue* (Grand Rapids, 2003), 44-69. See also John W. Betlyon and Bert de Vries, *Umm el-Jimal: A Frontier Town and its Landscape in Northern Jordan*, JRA Suppl. 26 (Portsmouth, RI, 1998), 111 and 121 and an example in the *Martyrium Polycarpi* 7.1, (ed.) H. Musurillo, *The Acts of the Christian Martyrs* (Oxford, 1972): "and coming together upon him late in the day they found him lying down in a certain bedchamber upstairs (ἐν ὑπερῴῳ)."

[26] Ellis, "End of the Roman House," 568-9 and Fig. 2. The largest apartment was in the northeast corner (8 rooms: I-K, 8, 11-14); a second in the southeast (5 or 6 rooms: D-G, 4-5, and U); the third was Rms 2 and 22 (each partitioned), which were probably shops; and the fourth was Rms 1, 3, 19-21 in the southeast. For this house, see also the discussion in Isabella Baldini Lippolis, *La domus tardoantica: forme et rappresentazioni dello spazio domestico nelle città del Mediterraneo* (Bologna-Imola, 2001), 315 and the original report by Jean Baradez, "Nouvelles fouilles à Tipasa," *Libyca: Bulletin du Service des antiquités. Archéologie,* épigraphie 9 (1961), 7-199.

[27] Ellis, "End of the Roman House," 568-9 and Fig. 2.

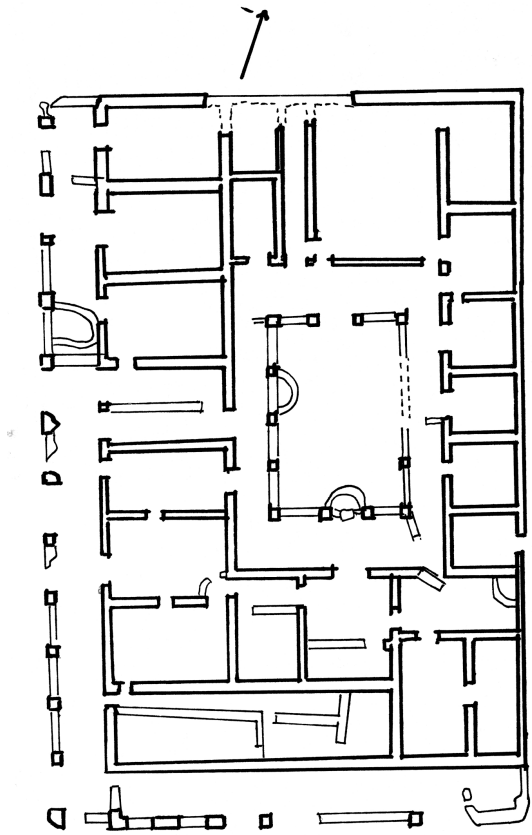


Figure 14.4 Tipasa (Algeria), House of the Frescoes (after Ellis, "End of the Roman House," Figure 2)

(North Africa, Italy, Spain)[28] and somewhat later (the sixth-seventh centuries) in the eastern Mediterranean.[29]

[28] For other examples of subdivided mansions in the west, see Neil Christie, *From Constantine to Charlemagne: An Archaeology of Italy AD 300-800* (Aldershot, 2006), 229 ff. (Brescia); Tamar Lewit, "Bones in the Bathhouse: Re-evaluating the Notion of 'Squatter Occupation' in 5th-7th century Villas," in Gian P. Brogiolo, Alexandra Chavarría Arnau, and Marco Valenti (eds), *Dopo la fine delle ville: evoluzione nelle campagne tra VI e IX secolo*, Documenti di Archeologia 39 (Mantua, 2005), 255 (Mérida, Toulouse); and Leone, *Changing Townscapes*, 61, 146-7, and 254-5 (Thuburbo Maius, Utica). The walling up of peristyles, without clear subdivision into apartments is also common, especially in the fifth century: see Leone, *Changing Townscapes*, 245 and Baldini Lippolis, *La domus tardoantica*, 56 and 204-5.

[29] Sardis, Late Roman house in Sector MMS, subdivided in the late fifth or sixth century: Crawford H. Greenewalt, Jr. and Marcus L. Rautman, "The Sardis Campaigns

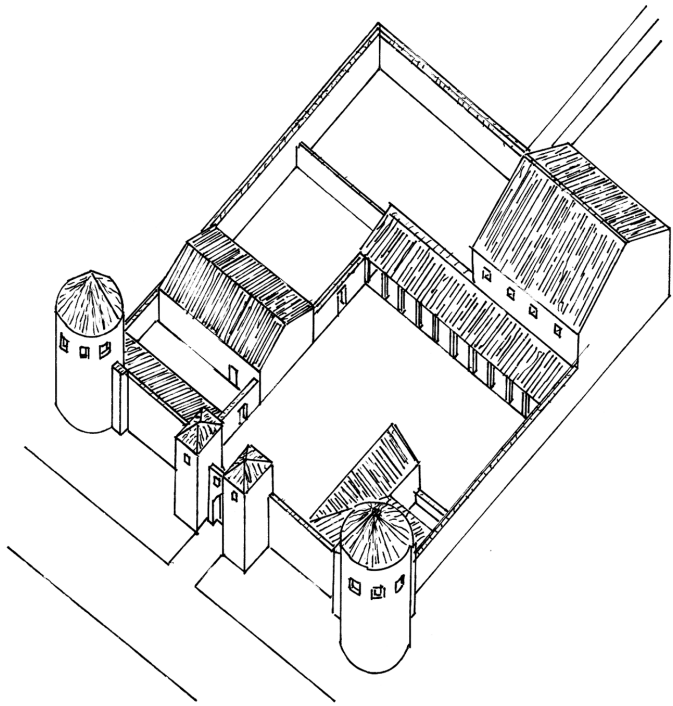


Figure 14.5 Territory of Tipasa (Algeria), villa of Nador (early 4th century) (after Anselmino et al., *Il castellum di Nado*r, Figure 49)

Although urban and rural habitations have typically been treated separately, there is reason to view the subdivision that occurred at many fifth- and sixth-century villas as a related phenomenon.[30] One particularly clear example is the North African villa of Nador, near Tipasa. This villa was built in the early fourth

of 1996, 1997, and 1998," *American Journal of Archaeology* 104.4 (2000), 643-81, esp. 645-55; Antioch, House of the Atrium, portico blocked up and triclinium subdivided (fifth–seventh c.): Simon P. Ellis, "An Archaeological Study of Urban Domestic Housing in the Mediterranean A.D. 400-700" (PhD thesis, University of Oxford, 1983), 75; Sagalassos, Palatial Mansion, sixth-century subdivision into 4 apartments: Marc Waelkens et al., "Two Late Antique Residential Complexes at Sagalassos," in Lavan et al., (eds), *Housing in Late Antiquity*, 495-514; Apamea, House of the Pilasters, last phase (seventh c.?): Jean-Robert Gisler and Madeleine Huwiler, "La Maison aux pilastres," in Janine Balty (ed.), *Apamée de Syrie: Bilan des recherches archéologiques 1973-1979, Aspects de l'architecture domestique d'Apamée* (Brussels, 1984), 90-94 and Fig. 1; Abu Mina (Egypt): Alston, *City in Roman and Byzantine Egypt*, 109 (late sixth c.?).

[30] For the case for viewing the transformation of villas in the fifth and sixth centuries as a related phenomenon to the transformation of the urban *domus*, see Lewit, "Bones in the Bathhouse."

century according to an open plan (Figure 14.5). The focus of the architecture was originally around the large central courtyard. In the late fifth century, the villa was subdivided (Figure 14.6). It was still a working farm, with oil presses and a large work area for wine and oil processing, and still had some (smaller) courtyards for light and work space (Rm 39 and, off to one side, Rms 56 and 27). But most of the interior had been divided up into smaller rooms, connected by corridors, including what the excavators interpreted to be three separate apartments (two located off of Rm 27—note the seclusion of the rooms by the need to enter through small corridor or from one room to another; they don't open right off the courtyard). The third apartment was more spacious: probably a two-story residence that incorporated the second tower.[31] The excavators' interpretation was that the peasants, who had previously lived in huts outside the main building, were by the late fifth century occupying the main villa.[32]

We also find subdivision taking place in the humble houses of fifth- and sixth-century villages. In the prosperous villages of northern Syria, new apartments or houses were added to the existing house plots in the fifth and sixth centuries. This was sometimes done by subdividing existing houses, sometimes by adding new apartments sharing the same courtyard.[33] Multi-room buildings (many with second floors) become more common overall.[34] At the village of Déhès, for example, excavators estimate that modifications to a fourth-century farm complex would have doubled the number of people that could have been housed there by the sixth century.[35] The architectural form of these houses did not conform with the "open" plans of antiquity centered on an internal courtyard, but rather multiple separate two-story apartments on the edges of shared yards, with sleeping space on the second floor accessed through external staircases.[36]

To sum up the archaeological evidence, we find the separation of reception areas from domestic spaces in elite *domus*; the walling up of peristyles and even systematic subdivision of houses and villas; a proliferation of small "single family" apartments; and, in all these cases, an attempt to maximize private space.

The explanations for these phenomena tend to differ depending on whether people are discussing the western Mediterranean or eastern. Until recently, the most common explanation of the subdivision of urban mansions or villas in

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[31] Lucilla Anselmino et al., *Il castellum di Nador: Storia di una fattoria tra Tipasa e Caesarea (I-VI sec)*, Monografie di archeologia libyca 23 (Rome, 1989), 231-2. See also the discussion of the "casual" building techniques" of the new walls: ibid., 79-82.

[32] Ibid., 231-2.

[33] Tate, *Campagnes de la Syrie*, 63.

[34] Ibid., 322-3.

[35] Jean-Pierre Sodini et al., " Déhès (Syrie du nord), Campagnes I-III (1976-1978): Recherches sur l'habitat rural," *Syria* 57.1 (1980), 296.

[36] Ibid., 181 Fig. 243 for a reconstruction of the complex in its final form. See Ellis, "An Archaeological Study of Urban Domestic Housing," 240-52 for the architecture of these Syrian village houses and n. 25 of this chapter for upstairs sleeping space.

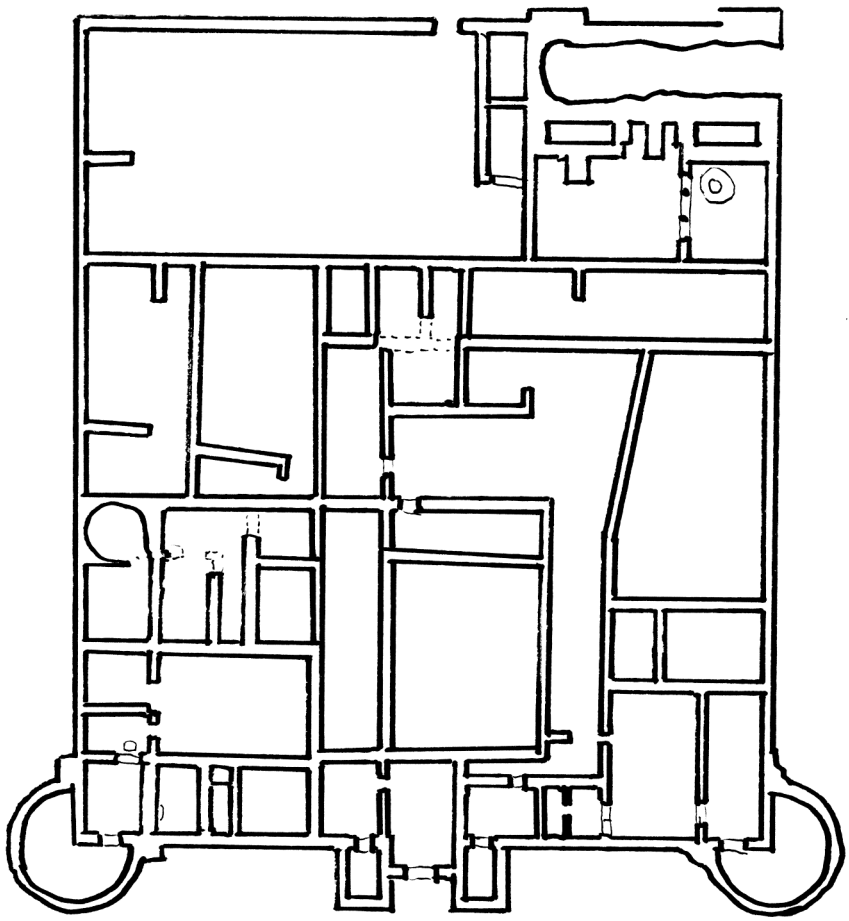


Figure 14.6 Territory of Tipasa (Algeria), villa of Nador (late 5th century) (after Anselmino et al., *Il castellum di Nador*, Figure 22)

the west is that of "squatter" habitation by people of lower social status (or in northern Italy, billetted barbarian troops).[37] It has usually been assumed that these "squatters" had seized possession because property rights of the previous owner of

[37] Christie, *From Constantine to Charlemagne*, 245-6; J.H.W.G. Liebeschuetz, *The decline and fall of the Roman city* (Oxford, 2001), 369-73. For criticism of this approach, see Helen Saradi, "Privatization and Subdivision of Urban Properties in the Early Byzantine Centuries: Social and Cultural Implications," *The Bulletin of the American Society of Papyrologists* 35.1-2 (1998), 17-43, and, with respect to villas, Lewit, "Bones in the Bathhouse," and Kim Bowes and Adam Gutteridge, "Rethinking the Later Roman

the villa or house had lapsed in the political and social turmoil of the fifth and sixth centuries.[38] For the eastern Mediterranean, the subdivision of urban mansions has also been attributed to squatter settlement or "ruralization," but recent scholarship has also looked for other explanations—for example, population growth in the case of northern Syria or Egypt.[39] Yvon Thébert and, more recently, Helen Saradi stand out in having adopted a more cultural approach, connecting subdivision to a growing emphasis on privacy and the individual and a turning away from the public and communal.[40]

What hasn't really been considered is the possibility that the "great house" or "great villa" model had become morally offensive, that some—perhaps even most—of these villas or mansions remained in a landlord's possession,[41] but that the landlord was now willing to have the space subdivided for the households of slaves, peasants, or married children.

The reasons for this may partly have to do with a new emphasis on the conjugal couple as the core of a household, even for servile households. In a recent monograph, *The Fall of the Roman Household*, Kate Cooper has discussed how the "permanent and irreversible union of two individuals" became the core institution of Roman

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Landscape," *JRA* 18 (2005), 405-13, who believe that part of what was going on was a transition from a villa model to a hamlet or village model of rural settlement.

[38] Ellis, "End of the Roman House;" Liebeschuetz, *Decline and Fall*, 369-73; Gian P. Brogiolo, "Ideas of the Town in Italy during the Transition from Antiquity to the Middle Ages," in Gian P. Brogiolo and Brian Ward-Perkins (eds), *The Idea and the Ideal of the Town between Late Antiquity and the Early Middle Age*s, The Transformation of the Roman World 4 (Leiden, 1999), 104 (billetting of the Ostrogoths).

[39] Janine Balty, "Notes sur l'habitat romain, byzantine et arabe d'Apamée: rapport de synthèse," in Balty, *Apamée de Syrie*, 471-506 (ruralization); Waelkens et al., "Two Late Antique Residential Complexes" (squatters); Tate, *Campagnes de la Syrie* (population and economic growth in northern Syria); and Wickham, *Framing the Early Middle Ages*, 611-12 (urban population growth in Egypt).

[40] Saradi, "Privatization and Subdivision," 28 and 41; Thébert, "Private Life and Domestic Architecture," 392, followed by Alston, *The City in Roman and Byzantine Egypt*, 123 (on the related phenomenon of the appearance of small houses in formerly public spaces).

[41] Saradi, "Privatization and Subdivision," gives documentation of this for the subdivided urban *domus* of Byzantine Egypt. See also Jairus Banaji, "Aristocracies, Peasantries and the Framing of the Early Middle Ages," *Journal of Agrarian Change* 9.1 (2008), 59-91 for the continuing domination of the peasantry by landlords during the early medieval and Islamic periods (contra Wickham, *Framing the Early Middle Ages*). Ellis, "An Archaeological Study of Urban Domestic Housing," 308-9, makes the important point that the flimsy walls and respect for existing floors that characterize much of the subdivision of urban mansions may indicate a desire to preserve the houses rather than "widespread poverty." The partitions could have very well been intended to be temporary and easily removed should the landlord desire to do so.

social life in late antiquity.[42] This had implications for domestic architecture. Adult children were more frequently emanicipated from *patria potestas* in late antiquity than had been the case in the first century. Emancipated children often formed their own households when they married; this could have led to the more frequent establishment of separate residences or the subdivision of ancestral homes.[43]

Late Roman law also encouraged the formation of slave and peasant households. In 324, Constantine prohibited the separation of the families of slaves or *coloni* on the imperial estates by sale to different masters: "For who can bear to separate children from parents, sisters from brothers, wives from husbands?"[44] We know that this law had some effect: under Honorius and Arcadius, this protection was extended to all peasant households (not just those on the imperial estates) and slave traders were prohibited from selling *familiae* abroad.[45] In the sixth century, the protection of slave families was established law, incorporated into Justinian's Digest and enforced on the papal estates by Gregory the Great.[46]

A curious episode of Victor of Vita's *History of the Vandal Persecution* from the late fifth century gives us a sense of how this new respect for slave households may have affected domestic space. A certain Vandal officer had a number of Roman slaves, including a highly valued arms maker (Martinianus) and a woman, Maxima, who was the housekeeper. In order to increase their loyalty, their master had Martinianus and Maxima marry. In the "secret quiet" (*secreta silentia*) of their

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[42] Kate Cooper, *The Fall of the Roman Household* (Cambridge, 2007), 147, etc. See also Mathew Kuefler, "The Marriage Revolution in Late Antiquity: The Theodosian Code and Later Roman Marriage Law," *Journal of Family History* 32.4 (2007), 343-70.

[43] Julia Hillner, "Domus, Family, and Inheritance: The Senatorial Family House in Late Antique Rome," *JRS* 93 (2003), 137: "Since in Late Antiquity emancipation happened much earlier and was more frequent, this must have resulted in a multiplication of households and consequently nuclear family traditions attached to these households," with references to the scholarship on increased emancipation. See also Andrew Wallace-Hadrill, "Domus and Insulae in Rome: Families and Housefuls," in David L. Balch and Carolyn Osiek (eds), *Early Christian Families in Context: An Interdisciplinary Dialogue* (Grand Rapids, 2003), 3-18 for the evidence that multiple households occupied the late antique *domus* of Rome.

[44] *CTh* 2.25.1; *CJ* 3.38.11: "Quis enim ferat liberos a parentibus, a fratribus sorores, a viris coniuges segregari?" See also *CJ* 11.48.13.1. For a discusson of these laws, see Kuefler, "The Marriage Revolution," 361; Judith Evans Grubbs, *Law and Family in Late Antiquity: The Emperor Constantine's Marriage Legislation* (Oxford, 1995), 307-9; and Roberto Scevola, *'Negotium mixtum cum donatione': Origini terminologiche e concettuali* (Padua, 2008).

[45] *CJ* 11.48.13.1. The same emperors forbade slave traders from selling members of slave families abroad in a law known to Augustine, though lost to us: see Augustine, *Epistula* 10*.3.

[46] *Dig*. 33.7.12.7 and Adam Serfass, "Slavery and Pope Gregory the Great," *JECS* 14.1 (2006), 91, for Gregory. For the modification of this passage of the Digest to reflect late Roman law, see Scevola, *Negotium mixtum cum donatione*, 261.

*cubiculum*, Maxima persuaded Martinianus to have a celibate marriage.[47] They afterwards convinced their fellow slaves to also convert to a monastic life. Their subsequent adventures are discussed elsewhere in this volume as revealing of Arian and Catholic cultural identities (see E. Fournier, "Rebaptism as ritual of cultural integration"). What is notable here is that these married slaves appear to have been living in a "big house" with their fellow servants (and possibly also their master), and yet still had a private *cubiculum* of their own (exactly at the same time and near to the region where the house of Tipasa, discussed above, was subdivided).

So some cases of subdivision in the fifth and sixth centuries may have had to do with an increased willingness to give married children, slaves, and peasants their own domestic space. But this was probably not all that was going on. It would have been possible to do this without the degree of architectural change that we see in the archaeological record, if there hadn't also been a change in values—a growing emphasis on modesty, on screening nakedness, on blocking vision, more in line with Jewish attitudes than previous Roman ones.

Augustine of Hippo considered it absolutely necessary—and also absolutely uncontroversial—that a husband and wife needed complete privacy for sex. In the *City of God*, he explained that some actions that are permitted should not be public. For example, marital sex: "Why even though it is licit and respectable, does it seek a bed removed from witnesses?" He goes on to say, "doesn't the husband send away all slaves and even the bridesmaids … send them outside before he begins to caress his spouse?" He also notes that those children—for whose sake the marriage was done in the first place—are not allowed to be witnesses.[48]

And it is not just the sexual act itself that should be screened from view. The moral danger of seeing women of any status naked is dwelled on by late antique preachers. Ambrose points out that King David's downfall was seeing woman bathing from inside his home.[49] According to John Chrysostom, it is an "outrage" to see a woman naked in public or in the home, even a slave woman. If a slave girl needs to be stripped and beaten, the husband should not be the one to do it.[50] Even partial nakedness is risky: in a Pseudo-Cyprianic text of the late fourth century, the exposure of a woman's arm or leg during weaving poses a danger to male control.[51]

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[47] Victor of Vita 1.31 (*CSEL* 7: 14): "At ubi ventum est ut cubiculi adirentur secreta silentia et Martinianus, nesciens quid de illo decreverat deus, maritali fiducia quasi cum coniuge cuperet cubitare, viva ei voce memorata famula Christi respondit: Christo ego … "

[48] Augustine, *De civitate Dei*, 14.18 (*CCSL* 48).

[49] Ambrose (dubium), *Apologia Dauid altera*, 3.12 (*CSEL* 32.2: 364): "Non adulterasset Dauid alieni ius tori et foederati pacta coniugii, nisi nudam et lauantem mulierem de domo sua interiore."

[50] John Chrysostom, *In Matt. hom* 6.8 (*PG* 57: 72) and *In Eph. hom* 15.3-4 (*PG* 62: 109-10). He seems to assume that mistresses will have their slave girls punished by other slaves.

[51] Pseudo-Cyprian, *De singularitate clericorum* 10 (*CSEL* 3.3: 185).

A concern that may have more to do with class relations than sexual morality is a growing embarrassment by mistresses and masters of displaying any sort of nakedness or other vulnerability before slaves, especially when asleep and/or drunk. In the third-century Greek *Acts of Thomas*, a wife converts to Christianity and refuses to have sex or dine with her husband. At one point, he tries to force her to sleep with him.[52] She runs from the room, naked, to spend the rest of the night with her nurse. The husband remains in the room, beats his face with his hands, and is agonized by the impression that her naked exit must have given the servants. What most distresses him is her nakedness before the slaves (not the dispute).

In a Pseudo-Augustinian sermon of the early fifth century, *On Sobriety and Chastity*, a drunken wife shames her husband by falling asleep before the slaves. She lies prostrate on the bed, the room moving around her in circles, "she is received by sleep as though going to burial" (this is right after feasting, so the implication is that she has gone to sleep in a *cubiculum* that would adjoin the dining room). Her children, all the women and slave girls come out and look at her with catcalls. The order of the household falls apart, and the woman's husband wishes he were dead.[53]

It wasn't only the women who were shamed in this way before slaves. A sermon of John Chrysostom derides the drunken man at home in the evening: "exposing his nakedness shamefully. And if his wife is present, or his daughter, or his slave girl, or anybody else, they will ridicule him."[54] He praises monks for sleeping clothed. None of them sleep naked; "they sleep as decently as those who are awake." They don't call for their slaves because they wait on themselves.[55]

What we are seeing, I believe, is a change in sensibilities about nakedness—much more in line with the Jewish attitudes than previous Roman ones. There are definite affinities with the Jewish rabbinic tradition here—especially the sense that "Social superiors should not appear naked before their inferiors" (or vice versa),[56] nor were men advised to look at naked women (not even the genitals of their own wives).[57] And it is worth noting that Jewish architecture had long placed the sleeping quarters in a separate and more private space.[58]

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52 *Acts of Thomas*, 98-9 (ed. Lipsius and Bonnet, ii.2, 210-11).

53 Pseudo-Augustine, *De sobrietate et castitate*, 3 (*PL* 40: 1110).

54 John Chrysostom, *In Rom. hom* 13.10 (*PG* 60: 522). We find a similar sensitivity to the nakedness of the master before his slaves in the sermons of Quodvultdeus, the fifth-century bishop of Carthage, in which he repeatedly discusses the naked dancing of David (2 Sam. 6:20) before the slaves and maid-servants, which, in his mind, prefigures Christ's nakedness on the cross before slaves: Quoduultdeus, *Sermo* 8.19, *Sermo* 9.5-6, *Liber promissionum et praedictorum Dei* 2.25, and *Gloria sanctorum* 13. See Satlow, "Jewish Constructions of Nakedness," 438 ff. for the Jewish late antique exegesis on this passage.

55 John Chrysostom, *In 1 Tim. hom* 14.4 (PG 62: 575).

56 Satlow, "Jewish Constructions of Nakedness," 438.

57 Satlow, "Jewish Constructions of Nakedness," 438 and 440.

58 See references in n. 25.

## Conclusion

I would therefore suggest that some (by no means all) of the changes in domestic architecture in late antiquity may reflect a growing need for boundaries within the household, starting in the fourth century with those who had the most power to shape their domestic space—the owners of the houses—but spreading by the sixth century to virtually everyone. The idea gains currency that married people should have their own private space. Landlords become willing to provide private bedroom space for married dependents. But even more important than this are the signs that "big house" models and open styles of domestic architecture that had persisted through much of antiquity had become offensive. People felt a new sense of shame before the eyes of servants and children. Cultural sensibilities towards nakedness were changing—sensibilities that affected the display of the human body in art and athletics as well as in the home (for the decline of professional athletics, see Sofie Remijsen, "Blushing in Such Company," in this volume).[59] This is not to deny that there were also other factors involved that promoted subdivision—in some places, a decline in the architectural standards of antiquity and changes in elite conspicuous consumption—but to characterize the subdivision of houses and villas merely as "squatter" habitation would be a mistake.

[59] See Ine Jacobs, "Production to Destruction? Pagan and Mythological Statuary in Asia Minor," *American Journal of Archaeology* 114.2 (2010), 267-303, at 266 and 278-9, for late antique Christians particularly targeting nude statues for mutilation.

# Chapter 15
# "Blushing in Such Company?" The Social Status of Athletes in Late Antiquity[1]

Sofie Remijsen

In the early Byzantine period, chariot racing was by far the most popular sporting event. This type of entertainment went back directly to the races of ancient Rome. A papyrus from Oxyrhynchus gives an example of the program of such races in a provincial city in the Greek East in the sixth century: six chariot races alternated with other performances, such as singing acrobats, dogs hunting a gazelle, mimes and a group of athletes.[2] Although the presence of various entertainments in the hippodrome was in no way exceptional, the presence of the athletes in this setting is surprising, even for scholars of ancient sports. Cameron, author of standard works on Byzantine chariot racing, commented that these athletes were "blushing, no doubt, in such company."[3] Entertainers of the hippodrome and athletes are indeed two groups one does not expect to see mingling. Athletes traditionally had a high social status in the Greek world, quite unlike entertainers such as gladiators, acrobats, actors and charioteers. Athletics is, moreover, rarely mentioned in the Byzantine period.

The aim of this chapter is to find out who were these athletes in Oxyrhynchus and whether they were indeed blushing. Starting from the athletes of the imperial period, in particular during the heyday of Greek athletics in the second and third centuries AD, the chapter analyzes how political, economic and cultural changes in Late Antiquity affected their status. Although this focus is limited, it touches on a major historical problem: how one of the most characteristic aspects of Greek culture throughout antiquity, athletics,[4] lost its cultural prominence in Late

[1] The research for this chapter was funded by a fellowship of the Research Foundation Flandres ("Aspirant van het FWO"). I would like to thank Willy Clarysse, Patrick Gouw and the participants of the Shifting Cultural Frontiers conference for their invaluable comments, which certainly improved this chapter, and Andrew Connor for making sure my English does not sound like Dutch. For a more detailed discussion of the theme see S. Remijsen, *The End of Greek Athletics* (diss. Univ. of Leuven, 2011), 207-34.

[2] *P.Oxy.* XXXIV 2707. Similar texts are *P.Harrauer* 56 (no athletes) and *P.Bingen* 128.

[3] A. Cameron, *Porphyrius the Charioteer* (Oxford, 1973); idem, *Circus Factions: Blues and Greens at Rome and Byzantium* (Oxford, 1976), esp. 213 (quote).

[4] E.g. Bardesanes, a second-century Christian scholar writing in Syriac, characterized the Greeks as practicing athletics and the Romans as always conquering new territories in

Antiquity. It did not disappear, but, crossing the borders between social classes, it found a new place in this transformed culture.

## The Proud Athletes of the Imperial Period

A long Greek inscription from Rome honors the pankratiast Marcus Aurelius Asklepiades, born in the Egyptian city Hermopolis as the son of another famous athlete, Demetrios, and victor of the Olympics of AD 181.[5] Asklepiades' list of victories is impressive: he won all the major games, several of them twice, and many smaller contests. He even remained unbeaten for six years, after which he retired at the age of 25. Afterwards he became an official of the international athletic guild, the so-called xystic synod: he was high priest, president for life and head of the imperial baths in Rome. According to a second inscription he was, besides high priest of Sarapis, also a member of the Alexandrian Museion.[6] During his lifetime, the athlete from Hermopolis also became a citizen and member of the city council of Alexandria, Puteoli, Naples, Elis, Athens and many other cities. As the highest official of the international athletic guild, headquartered in Rome, and of the imperial baths, he even met the emperor personally.

This inscription for Asklepiades is one of the many agonistic inscriptions of the imperial period. In the first century AD, a dynamic interaction between cities, athletes and the emperor had brought Greek athletics to a new golden age. So many new games were founded that Robert has called it an "agonistic explosion."[7] Inscriptions from the early third century are especially numerous, but in the late third century a rapid "implosion" followed. Even though Asklepiades' impressive victory list and his connection to the imperial court are both out of the ordinary, Asklepiades can serve here as the example of an athlete from this golden age, as his life presents several elements shared by many professional athletes of this period, such as citizenship of multiple cities and membership of the athletic guild.

The social status of athletes in antiquity has long been a topic of scholarly discussion. In the nineteenth century, Greek athletes were traditionally described as upper class amateurs, analogous to the contemporary ideal of the gentleman-athlete who was not allowed to compete for money and did not compete against professional lower class athletes who did. Indications of professionalism were taken as proof of the decline of Greek athletics from the fourth century BC on. In an influential book published in 1984, Young has demolished this modern

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*The Book of the Laws of Countries*, 599.

[5] *IGUR* I 240 = *IG* XIV 1102. Cf. J.-Y. Strasser, "Les Olympia d'Alexandrie et le pancratiaste M. Aur. Asklèpiadès," *BCH* 128-9 (2004-2005), 421-68.

[6] *IGUR* 241 = *IG* XIV 1103.

[7] L. Robert, "Discours d'ouverture," in *Actes du VIIIe Congrès international d'épigraphie grecque et latine, 3-9 Octobre 1982* (Athens, 1984), 35-45 (*Opera Minora Selecta* VI 709-19).

myth, proving that Greek athletes were never amateurs in the nineteenth-century sense and gladly competed for money prizes and other valuable rewards.[8] The participants of the major games were professionals, whose whole life was centered on their athletic career, but this type of professionalism, namely athletics as a *career*—which is not the same as a *job*—had nothing to do with nineteenth-century professionalism and did not exclude upper-class athletes at all. There were of course also amateurs, but these were not the victors of top games, but just young men educated in the gymnasia, who participated in local games. Only the very best could aspire to a professional career.

The most disputed point concerning the social status of athletes is their social background. Inscriptions usually inform us about athletes toward the end of their careers. There are therefore not many indications about the social environment in which athletes grew up.[9] Two important factors, however, should be taken into account. First, Greek sports were very technical, certainly in the imperial period, as is illustrated by the existence of different types of trainers: some were mere attendants who gave the athletes massages, others ex-athletes who had a detailed knowledge of the rules and techniques and still others had a "scientific" knowledge of training schedules and the appropriate diet.[10] Only those boys who started training in the gymnasium at a young age, paid for by their families, later had a real chance in the major contests. Second, athletes at the beginning of their professional careers needed financial resources to travel. Professional athletics was practiced at biannual and quadrennial *agones*, forming a circuit of games covering the whole central and eastern Mediterranean.[11] Athletes who only took part in minor local games—where certainly not all participants were professionals—could hardly make a living from athletics alone. An exception to this rule that equates professional athletics with the major agones is a number of dwarfs who trained as boxers or pankratiasts to entertain guests at dinner parties.[12] For these professionals, however, athletics was a job, not a career. Socially they had very little in common with the other athletes.

In theory, the technical and international character of Greek athletics must have excluded all but the wealthy. There are, however, examples of promising young athletes with limited resources receiving financial support or borrowing

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[8] D.C. Young, *The Olympic Myth of Greek Amateur Athletics* (Chicago, 1984).

[9] Most sources about the social background of athletes have been collected in H.W. Pleket, "Zur Soziologie des antiken Sports," *MNIR* 36 (1974), 57-87. For a more recent contribution, see S. Brunet, "Olympic Hopefuls from Ephesos," *Journal of Sport History* 30 (2003), 219-35.

[10] This is best illustrated by Philostratus' *Gymnasticus*.

[11] Three recently published texts are illuminating for the organization of the agonistic circuit. See G. Petzl and E. Schwertheim, *Hadrian und die dionysischen Künstler. Drei in Alexandria Troas neugefundene Briefe des Kaisers an die Künstler-Vereinigung* (Bonn, 2006).

[12] S. Brunet, "Dwarf Athletes in the Roman Empire," *AHB* 17 (2003), 17-32.

money.[13] They may not have belonged to the highest classes from the beginning of their careers. The lowest classes, however, never got the chance to participate in athletics.

During and after their professional careers, on the other hand, all successful athletes can safely be considered upper class, on the basis of their financial means, political influence and status in general. This connection between athletics and status is apparent throughout Greek history. The material prizes and rewards from their own cities gave the athletes considerable financial resources. The glory of victory also enhanced their social standing, which led to local prominence and influence. Many inscriptions for athletes from the second and third centuries mention honorific citizenships of several cities and the membership of the city council of one or several of those cities. The multiple citizenships were mostly honorific, but in their hometowns athletes did sometimes become active council members or took up priesthoods after their careers. Many also remained active in the agonistic world as organizers of local games or officials of the athletic guild.[14] This international association, led by the most prominent of the athletes and in direct contact with the emperor, also added to the influence of athletes as a social group. The prospect of wealth, glory and influence made athletics an attractive career for an ambitious and talented young man.

## The Decline of Athletics in "High Culture"

Studies of ancient athletics, even those dedicated to the imperial period, rarely touch upon the fourth century more than fleetingly, which is no surprise because the main source of information on Greek athletes, honorific inscriptions, disappears in this period. This is, however, connected to the changing epigraphic habit and need not automatically point to a decline of athletics.[15] Therefore, one must look for other evidence to fill the gap left by the inscriptions.

An informative fourth-century author is Libanius. His concern for the local Olympic games of Antioch shows how highly he valued athletics. In five letters from 364, he asked high officials from different provinces for help in attracting athletes for the Antiochene Olympics.[16] The president of the games, Alexander,

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[13] For financial support, see e.g. *I.Ephesus* 1415, *P.Lond.* VII 1941. Loans for athletes are attested in Roman law, e.g. *Dig*. 22.2.5.pr-1; 4.2.23.2. See A. Wacke, "Athleten als Darlehensnehmer nach römischem Recht," *Gymnasium* 86 (1979), 149-64.

[14] For examples of multiple citizenship and offices, in the city and in the athletic guild, see the *prosopographia athletarum* in P. Gouw, *Griekse atleten in de Romeinse Keizertijd* (diss. Univ. of Amsterdam, 2009), 227-407. Asklepiades himself acted as *prytanis* in Hermopolis when he was in his fifties, see *SPP* XX 58 (after 212).

[15] R. MacMullen, "The Epigraphic Habit in the Roman Empire," *AJPh* 103 (1982), 233-46.

[16] Lib. *Ep*. 1179-1183. *Ep*. 843 is a similar letter of AD 388.

had already offered prizes to attract them, but Libanius helped him, because the support of a governor would be an extra inducement for the athletes to come (Lib. *Ep.* 1167). These athletes were still upper class professionals: they could not just be hired, but they decided independently on their programs and thus envoys had to travel around the Greek East to discuss with the athletes and to convince them with prize money and the advice of high officials.[17]

Although it is clear that in Libanius's day there were still professional athletes, it is nevertheless questionable whether athletics was still an attractive career. This is closely connected to the changes in civic government.[18] In the second and third centuries, an important prospect for a career athlete had been membership of the city council and involvement in local politics. The city (*civitas* or *polis*) still remained an important administrative unit in Late Antiquity, but the prominence of the members of the council (*curia* or *boule*) had faded considerably since Diocletian centralized the state. The financial burden on the *curiales* was much heavier than before, putting a strain on civic expenditure. Membership of the *curia* was no longer as desirable as it had been until the third century. The best way to obtain immunity from curial service was an office within the growing imperial service, a position guaranteeing real status and influence. In the fourth century, a career in the imperial service or, alternatively, in the Church would have appealed far more to an ambitious young man than a career in athletics.

Changes also took place in the field of education, some of them reflecting the changes in political structure. Up to the fourth century, the standard education of upper class boys had both a literary and an athletic side.[19] The athletic side lost its appeal in the fourth century. It did not disappear altogether—Libanius praises several young men who were trained in both athletics and rhetoric[20]—but the institutionalized gymnasium program, the ephebate, disappeared,[21] as did the infrastructure for it. Since the early empire, monumental bathing complexes in the East had always been combined with gymnasia. Large baths continued to be

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[17] *Ep*. 843.1. The envoys are called οἱ διαλεξόμενοι καὶ πείσοντες.

[18] E.g. K.W. Harl, *Civic Coins and Civic Politics in the Roman East A.D. 180-275* (Berkeley, 1987), ch. 1 (esp. 8) and 9; B. Ward-Perkins, "The Cities," in A. Cameron and P. Garnsey (eds), *The Cambridge Ancient History XIII* : *The Late Empire, A.D. 337-425* (Cambridge, 1998), 371-410; J.H.W.G. Liebeschuetz, *Decline and Fall of the Roman City* (Oxford, 2001); S.T. Loseby, "Mediterranean Cities," in P. Rousseau (ed.), *A Companion to Late Antiquity* (Oxford, 2009), 139-55.

[19] O. van Nijf, "Festivals and Physical Education in the World of the Second Sophistic," in B.E. Borg (ed.), *Paideia: The World of the Second Sophistic* (Berlin and New York, 2004), 203-27.

[20] *Ep*. 843, 1117, 1277, 1278. The two sides of classical education are also present in *I.Métr.Ég.* 82, a fourth-century epitaph describing a young man as 'wise in the arts of the Muses and a new Herakles'.

[21] N.M. Kennell, "The Greek Ephebate in the Roman Period," *The International Journal of the History of Sport* 26 (2009), 323-42.

constructed and repaired in the early Byzantine period, but the palaistras were now often paved, built over or simply left out.[22] Fewer upper class boys were, therefore, prepared for an athletic career. The study of the law, on the other hand, better suited for a career in the imperial service, flourished.[23]

Not only the political, but also the financial prospects of athletes faded. As the number of games decreased considerably during the fourth century, it must have become more difficult to live from the prizes and rewards. The lack of agonistic inscriptions makes it difficult to follow this evolution, but there are other indications for the decline. In the second and third centuries, almost every city in the Greek East had its own *agon*(*es*). In the late fourth century, however, even the Asian capital Ephesus had difficulties finding *curiales* to pay for its games. The emperors therefore decreed in 372 that rich citizens from smaller cities could also preside over the Olympics of Ephesus, which suggests that these cities no longer had their own games (*I.Ephesus* 43). A law from 376 allowed the restoration of athletic contests in North Africa (*CTh* 15.7.3). This implies that they had been abolished previously. The restored games did probably not continue beyond the fourth century.[24] The headquarters of the athletic guild in Rome were still in use around 390, but 30 years later this site was covered by a church for the Saints Peter and Paul.[25] Around 435 the imperial official Leontius proposed to reintroduce the Olympic games of Chalcedon, which had also been abolished, supposedly by Constantine. The monk Hypatius reacted vehemently, even though—and this is an interesting detail—he did not even know what Olympic games entailed (Callin. *V. Hypat.* 33). In the mid-fifth century also the games at Olympia, the most prestigious contest for more than a millennium, had disappeared. In the ancient sanctuary there was at this point only a small settlement of Christian farmers between the ruins of the monuments.[26] Even then Greek *agones* had not disappeared completely; the local Olympics of Antioch survived until 520 (Joh.

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[22] F. Yegül, *Baths and Bathing in Classical Antiquity* (Cambridge [MA], London, 1992), 313.

[23] P. Petit, *Les étudiants de Libanius* (Paris, 1957), 182-3.

[24] The last references to games in North Africa are August. *Conf.* 4.2 en 4.3, on Augustine's victory in the poetry competitions about 380, when he was still a pagan rhetorics teacher.

[25] F. Rausa, "I luoghi dell'agonismo nella Roma imperiale. L'edificio della Curia Athletarum," *MDAIR* 111 (2004), 537-54.

[26] E.g. E. Kunze, *VI. Bericht über die Ausgrabungen in Olympia* (Berlin, 1958), 67; idem e.a., *IX. Bericht* (Berlin and New York, 1995), 21; A. Mallwitz, *XI. Bericht* (Berlin and New York, 1999),67-9; idem and W. Schiering, *Die Werkstatt des Pheidias in Olympia* (Berlin, 1964), 168-9. Essential for the chronology of Late Antique Olympia is the disputed date of the fortification wall, see U. Sinn, "Ο Νέρωνας και οι Έρουλοι. Δύο μοιραία γεγονότα στην ιστορία της Ολυμπίας;" in A.D. Rizakis (ed.), *Achaia und Elis in der Antike. Akten des 1. internationalen Symposiums Athen, 19.-21. Mai 1989* (Athens, 1991), 365-70; S. Remijsen, *The End of Greek Athletics* (diss. Univ. of Leuven, 2011), 32-5.

Mal. 17.13), but these were exceptions. The agonistic circuit fell apart in the course of the fourth century. Without this circuit, athletics could only be a hobby, never a career.

It is unlikely that it was a decrease in the number of professional athletes that led to this decline in the number of games: in the Hellenistic period and the first centuries AD, it also occasionally happened that an insufficient number of athletes turned up, even when athletics was blooming. This did not lead to the cancellation of the games. If there were few professionals, local young men saw their chance. If no one competed in a particular event, this crown was dedicated to the god.[27] The decision about whether games would be held was in the hands of the notables who paid for the organization, not in the hand of the athletes. As long as the notables had the money and saw it as a way to enhance their status, they would organize them. The decrease in the number of games was an inevitable consequence of the loss of cultural prominence of Greek athletics. This process may have been influenced by changes in imperial policy, in the economic situation and civic organization and by the spread of Christianity, but the respective weight of each factor and the mechanisms of the change are still largely unknown.

At the end of the fourth century, the only remaining prospect of a career in athletics was glory. Libanius still held athletic glory in high esteem; he actually blamed the council members of Antioch for not having won something to be proud of, such as an Olympic crown (*Or.* 48.42). The traditional ideal of athletic glory even survived Antiquity through the use of athletic metaphors by Christian authors.[28]

## The Rise of Athletics in "Low Culture"

That athletics was no longer a career option for ambitious young men caused the gradual disappearance of professional upper class athletes in the course of the fourth century. This does not explain, however, the appearance of a group of athletes on the sixth-century papyrus from Oxyrhynchus. Or, to get back to Cameron's comment, if the athletes who would have blushed in the company of circus entertainers no longer existed in the sixth century, who then were these athletes on the papyrus? These men probably practiced athletics in the Greek style: the group is referred to as a *xystos*,[29] a Greek word that originally meant "covered running track," but was also applied to the group assembled here, the "athletic

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[27] N.B. Crowther, "Resolving an Impasse: Draws, Dead Heats and Similar Decisions in Greek Athletics," *Nikephoros* 13 (2000), 130-35.

[28] The comparison of Christ, martyrs, monks and good Christians to athletes is a *topos* throughout Christian literature. E.g. A. Koch, *Johannes Chrysostomus und seine Kenntnisse der antiken Agonistik im Spiegel der in seinen Schriften verwendeten Bilder und Vergleiche* (Hildesheim, 2007).

[29] *P.Oxy.* XXXIV 2707.13. *P.Bingen* 128.8 mentions ἀθληταί.

community". The members of this community that competed on the international circuit of contests were represented by the "xystic synod". Still, an explanation for these athletes cannot be found inside the world of Greek athletics. Because they appear on a circus program, our attention must shift toward Roman sports, a completely different world.

Roman games (*ludi*) belonged to a spectacle culture. The main goal was not winning, but entertaining the public. This was reflected in the social status of the performers: charioteers, gladiators, and the like belonged to the bottom of the social ladder; often they were slaves. If free, they belonged legally to the group of the "infamous," having fewer rights than ordinary citizens.[30] This does not mean that all performers were necessarily poor and insignificant. The very best entertainers could become true celebrities, with both fame and money.[31] For these happy few, the comparison with a rock star is not far-fetched. But the social difference with the athletes remains nonetheless. While the elite of the Roman Empire accepted athletes as equal participants in local politics, they certainly would not have considered an entertainer of the circus or amphitheater as one of them. Athletes were also more independent; they decided themselves in which contests they participated, taking into account what was best for their careers. The entertainers of Roman-style games, on the other hand, were hired.

The circus games of the sixth century were based on and still very similar to the Roman circus games.[32] Horse races were the main part of these games, but often they did not fill a whole day. Already in the republican period, the organizer would look for other kinds of entertainment for in between the races, for example a military demonstration or a wild animal hunt (Livy 44.9). Another possibility was a demonstration of sports, for example boxing matches or running contests.[33] Boxing was particularly popular. These contests had originally nothing to do with Greek athletics. The Roman *catervarii* lacked the technique, nudity, and social status of Greek boxers.[34] Greek athletics entered the Roman world for the first time in the second century BC, but it remained something exotic in the next two centuries.[35] Even when Greek athletics had acquired a permanent position in Rome with the introduction of the Capitolian games under Domitian, it remained clearly separated from the Roman spectacles. The professional athletes taking

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[30] G. Horsmann, "Die Bescholtenheit der Berufssportler im römischen Recht. Zur Bedeutung von 'artem ludicram facere' und 'in scaenam prodire' in den juristischen Quellen," *Nikephoros* 7 (1994), 207-27. Competitors at sacred games (*certamina sacra*) were not infamous: *Dig*. 3.2.4.

[31] E.g. Porphyrius, see Cameron, *Porphyrius*, esp. 244-52.

[32] E.g. J.-P. Thuillier, *Le sport dans la Rome antique* (Paris, 1996), 100-13.

[33] Thuillier, *Le sport*, 113-16.

[34] For *catervarii*, see Suet. *Iul.* 39. Nep. pr.5 names athletics, specifically the Olympics, in a list of honorable Greek practices that would be considered low and undignified in Rome.

[35] N.B. Crowther, "Greek Games in Republican Rome," *AC* 52 (1983), 268-73.

part in the Capitolia all came from the eastern part of the empire.[36] They did not come all this way to entertain the Roman mob in the circus in between races. The aforementioned dwarf athletes, however, because they were performers just as the Roman athletes, were readily incorporated in Roman spectacles.[37]

In the East, the combination of athletic and equestrian contests in one building was not unusual either. Buildings combining the function of stadium and hippodrome are attested from the Hellenistic period.[38] Greek athletic and equestrian contests were, however, always two clearly separate and moreover equal parts of an *agon*. The participants of these contests were independent athletes and private horse owners, competing for the honor of the victory. Roman-style circus games were largely unknown in the East in the first three centuries AD, but gained popularity in the fourth. The organizer of these Roman-style games had to find the horses instead of attracting the owners. The circus factions, who organized the games in Rome, were introduced in the East in the fifth century.[39]

With the introduction of Roman-style circus games in the East a group of professional lower class athletes emerged. After the Roman example, the eastern organizers also looked for performers to entertain the public in between the races: acrobats, pantomimes, hunters, as well as athletes. If one considers the long tradition of the Greek East in this last field, it is difficult to imagine that they would practice any other type of athletics than the Greek one. The professional career athletes, who competed to gain honor at the sacred games, looked down upon such a job, but strong young men from the lower classes, who liked athletics, but missed the means to travel the world as a professional, no doubt welcomed this opportunity. Because most sources are written about the elite by the elite, it is not surprising that these lower class athletes are never really discussed, only alluded to in the sources, quite unlike the career athletes, who were such a fixed element of high culture that they still served as metaphorical examples long after they had disappeared.

An early source for the circus athletes is the mid-fourth century *Expositio totius mundi et gentium*, which has a paragraph on the entertainment sector of the Syro-Palestinian region.[40] After naming all the cities with a circus, the author tells which type of entertainers each city was famous for and sent out to other cities. Laodicea had good charioteers, Tyrus and Beirut mimes, Caesarea pantomimes, Heliopolis singers, Gaza *pammacharii*, Ascalon wrestlers and Castabala acrobats. *Pammacharii* were athletes specialized in the *pammachon*, a relatively new

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[36] M.L. Caldelli, *L'Agon Capitolinus* (Rome, 1993), 90-94.

[37] Brunet, "Dwarf Athletes," 25-32.

[38] E.g. Alexandria, Caesarea, etc. Cf. J.H. Humphrey, "'Amphitheatrical' Hippo-Stadia," in A. Raban and K.G. Holum (eds), *Caesarea Maritima: A Retrospective After Two Millennia* (Leiden, New York and Cologne, 1996), 121-9.

[39] Cameron, *Circus factions*, 203-21.

[40] *Expositio totius mundi et gentium*, 32.

sport, similar to pankration, but less technical.[41] The wrestlers and *pammacharii* were clearly professionals. The inclusion of these athletes in a list of entertainers indicates that they were lower class. That cities had their own specialties might suggest the existence of schools in the style of gladiator schools: promising slaves and lower class men were recruited and trained until they were ready to perform. The owner of the school sent them out, depending on where he could make most money.

## Neither Mingling nor Blushing

In the fourth century, the career athletes and the circus athletes coexisted, but they probably did not mingle. It is unlikely that they met at contests, for there was no glory to be won in the circus for career athletes, and for the circus athletes it would have been difficult to get admitted to the sacred games. In the second half of the fourth century, John Cassian wrote a description of the screening of young men for the Greek style games: they could not be "infamous," had to be free citizens, and had to have given proof of their technique and prowess. He also sketched out the expected career: competitors in the sacred games had previously been successful at games for ephebes and afterward in minor games for adults.[42] All of this excluded circus athletes.

A background check for participants in the sacred games was not new, but earlier this was mainly focused on citizenship: every athlete needed to be a citizen of a Greek city, because barbarians were not allowed. But since Roman citizens were accepted, the only matter still to be checked after the *Constitutio Antoniniana* was whether the athlete was a free man. Before the fourth century it was rarely mentioned that slaves were indeed not allowed to compete, since this was considered self-evident.[43] In this perspective, it is telling that in the second half of the fourth century, John Cassian felt the need to explain explicitly that slaves were not worthy of the discipline and the contact with the qualified athletes. The additions that the "infamous" were also excluded—mirrored by Cassian's contemporary Themistius's notion that athletes had to come from an "undefiled

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[41] That they were not simply pankratiasts, as often assumed, follows from *SB* III 6222, in which a man tells that during a visit to Alexandria he took the opportunity to compete in the *ad hoc* games in honor of the visiting emperor (probably Diocletian). He did not know how to do pankration, he writes, but he won the less technical *pammachon*. See S. Remijsen, "Pammachon: A New Sport," *BASP* 47 (2010), 185-204.

[42] John Cassian, *Institutiones*, 5.12.2. Cf. A. Koch, "Unbekannte Details der antiken Agonistik?" *Nikephoros* 20 (2007), 209-11.

[43] Artem. *Onir*. 1.62 mentions it when explaining that in the unlikely event that a slave did participate and win one of the crown games, he automatically became a free man, since no slaves were allowed. Cf. M. Golden, *Greek Sport and Social Status* (Austin, 2008), 40-43.

root" (*Or.* 21.249c-d)—suggests that social class was taken into account as well. The importance of social status at the sacred games even continued on a very small scale until the sixth century: Malalas decribed the participants of the Olympics of Antioch as receiving no gain from any source, since they were rich and had their own slaves as attendants.[44]

That career athletes and circus athletes were two clearly distinguished groups can also be inferred from the way they fashioned themselves. In papyri that have nothing to do with games, career athletes normally refer to themselves as victors, for example as an *olympionikes* or *hieronikes*. These titles disappear in the course of the fourth century, when new athletes start mentioning their athletic occupation as just an ordinary job.[45]

The new athletes from these fourth-century papyri are comparable to the sixth-century athletes of the circus program. They were just doing their job, without blushing, in the company of other kinds of entertainers. This type of athlete probably existed as long as the circus games and thus survived the professional upper class athletes, who had disappeared after the fourth century. The few remaining *agones*—rare remnants of the type of athletics that had characterized Greek culture throughout antiquity—only attracted amateurs in the fifth and sixth century. One might even say that the nineteenth-century ideal of amateurism was perhaps closer to the early Byzantine reality of athletic decline than to the classical period of bloom.

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[44] Joh. Mal. 12.287-8. Although this passage is included under the reign of Commodus, he is describing the late antique situation here. Of the earlier games he knew very little, see S. Remijsen, "The Introduction of the Antiochene Olympics: A Proposal for a New Date," *GRBS* 50 (2010), 411-36.

[45] Late third- and fourth-century career athletes in papyri, styled *hieronikai* : *P.Flor.* I 64, *P.Lips.* I 18, *P.Oxy.* I 59, XXVII 2477; *paradoxoi* : *P.Oxy.* IX 1205, *P.Oxy.Hels.* 28; *periodonikes* : *P.Oxy.* XIV 1643. Fourth-century examples of athletics as job: *P.Herm.* 20, *P.Oxy.* XLVIII 3426, *P.Lips.* I 66, *P.Lond.* V 1831 ('athlete'), *CPR* VI 50, VIII 44 ('boxer'). The only earlier examples of non-agonistic papyri mentioning athletics as a profession are *BGU* II 576 ('wrestler') and *P.Lond.* III 1158 ('boxer'), but in both cases it is clear that this was not just an ordinary job. The wrestler is mentioned in a list between curial officials and the boxer is known from *P.Lond.* III 1178 to have been a member of the international athletic guild.

# Chapter 16
# Viewing the Column of Arcadius at Constantinople

John Matthews

It is difficult to imagine the unpretentious street in modern Istanbul called Cerrahpaşa Caddesi as the Mesé, the great Central Avenue of Constantinople, as it made its way in its southern branch from its division west of the Forum of Theodosius to the Golden Gate of Constantine. However, this is what it is, and among the many reasons for thinking so is the still extant base of the column of Arcadius, set up in the forum of that emperor in 402/3, with the addition of a statue of Arcadius on its summit in 421.[1] It is pictured here in its present condition, standing just off Cerrahpaşa Caddesi on its northern side – which, we shall see, is exactly where it should be – in the untidy little square, formerly the Slave-girl Market, which is all that is left of the forum (Figure 16.1). In one of the versions of the fifteenth century manuscript plan of the city attributed to Buondelmonti, the column appears in its correct position relative to the column of Theodosius and the Golden Gate of Constantine, if this is what is meant by the caption "porta antiquissima pulchra" that appears on some (though not all) versions of the plan. The River Lycus is correctly shown running in the space between the columns (the valley of Aksaray, the columns and their forums being on the higher ground to each side), though it is mistakenly shown as issuing into the harbour of Julian and not that of Theodosius.[2]

The column was dismantled as unsafe in 1715, but long before that it had been drawn by visiting artists, especially in a partial version now in the Louvre, and in that given to the library of Trinity College, Cambridge, by its owner, E.H. Freshfield, who had inherited the drawings from his father, and published

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[1] The forum and column are dated 402/3 by Theophanes, and the raising of the statue to 421 by the *Chronicon Paschale*; see Michael Whitby and Mary Whitby, *Chronicon Paschale 284-628* (1989), 69 with n. 231.

[2] Ian R. Manners, "Constructing the Image of a City: the Representation of Constantinople in Christopher Buodelmonti's *Liber Insularum Archipelagi*", *Annals of the Association of American Geographers* 87 (1997), 72-102. Figure 16.2 is a detail from the version of Buondelmonti shown at Manners, "Constructing the Image of a City", 84. On the harbour of Theodosius see below, n. 5.



Figure 16.1 Base of column of Arcadius, eastern face

them with commentary in the journal *Archaeologia* of 1921/2.[3] The Freshfield drawings, as they are now known, are either the work of or, more likely, were

[3] E.H. Freshfield, "Notes on a Vellum Album containing some original sketches of public buildings and monuments, drawn by a German artist who visited Constantinople in 1574", *Archaeologia* 22 (1922), 87-104 with Plates XV-XXIII. References are given in the usual way to aspect (east, south, west) and register (1-13) of the column. See Franz Alto Bauer, *Stadt, Platz und Denkmal in der Spätantike* (1996), W. Müller-Wiemer, *Bildlexikon zur Topographie Istanbuls* (1977), and the classic treatments by Kollwitz and Becatti. For a brief account and analysis see J.H.W.G. Liebeschuetz, *Barbarians and Bishops: Army, Church and State in the Age of Arcadius and Chrysostom* (1990), Appendix II at 273-8 and Plates 1-7 – with bibliography, to which I would add Michael McCormick, *Eternal Victory:*



Figure 16.2 Beginnings of the revolt (W1); demonstrations in the Augusteum? Note the array of statues in civilian dress. Subsequent figures in this chapter are reproduced with kind permission of the Master and Fellows of Trinity College, Cambridge

made for one Stefan Gerlach, who was twice in Istanbul as chaplain to an envoy of Maximilian II to the Ottoman court, and had an interest in the antiquities of the city. The general accuracy of the drawings becomes more and more evident as one studies them, and there is a control in the quality of other drawings by the same artist in the dossier, of the still extant obelisk base of Theodosius.

The column of Arcadius resembles that of Theodosius, and more distantly the second-century columns of Trajan and Marcus Aurelius in Rome, in showing a narrative of recent events in a continuous spiral frieze, as is clearly shown in Buondelmonti's image, and in the Vavassore woodcut of a century later. The events in question are not now in dispute. Freshfield, supported by J.B. Bury, thought that they were events of the 380s, but there is now general agreement that what the frieze shows is the rebellion, if we can call it that, of the Gothic general Gainas, who rose to power at Constantinople but was forced by popular demonstrations to leave the city, and was followed into Thrace and defeated by a Roman army under Fravitta. Identifying the precise persons and events that are shown on the frieze is

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*Triumphal Rulership in Late Antiquity, Byzantium and the early Medieval West* (1986), 49-50.

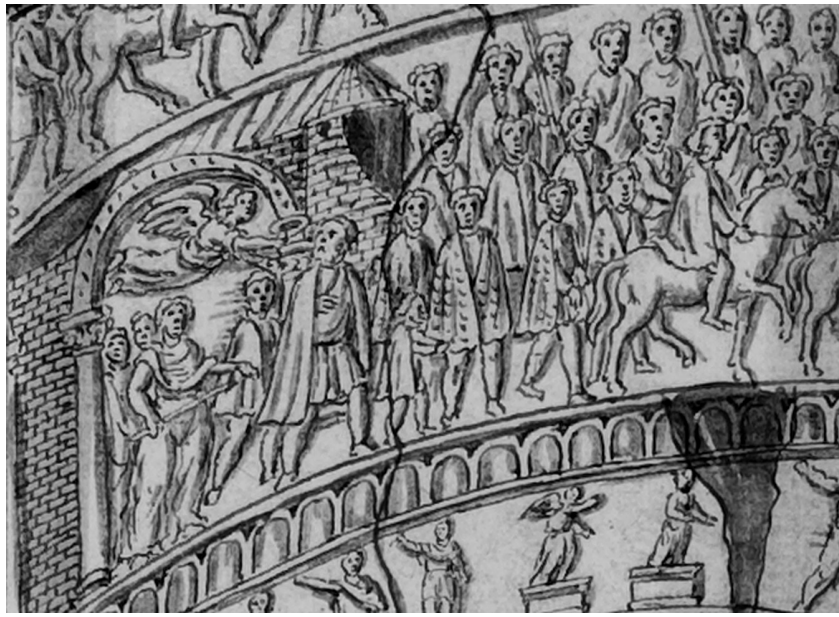


Figure 16.3 Gainas leaves the city (S2). He is pursued by a (threatening?) figure of Victory and another female figure (The Tyché of the city) seems to bar his return

a matter of debate and only selected details are shown here, without the arguments that may be necessary to support some interpretations. We see at the beginning of the frieze an agitated scene, perhaps the protests that forced Gainas' withdrawal from the city; the demonstrations seem to have taken place in the public square known as Augusteum, to judge by the array of monuments and statues, mainly of standing figures on pedestals and columns, that are shown (Figure 16.2).

In the next register we see Gainas' expulsion from the city, with a winged figure of Victory apparently showing him out of the city and another female figure, probably the Tyché or Fortune of the city, barring the city gate to prevent his return. Gainas' status as a refugee is indicated by the presence of a child at his side – the Roman army that will defeat him appears at a later juncture of the narrative (Figure 16.3). Given the intended direction of Gainas' withdrawal from Constantinople into Thrace, the gate must be the so-called "Gate of Attalus" beyond the mausoleum of Constantine, by now the Church of the Apostles, on the road leading in the direction of the Gate of Charisius or Hadrianople Gate in the yet unbuilt Theodosian wall circuit.[4] After scenes from Gainas' "Long

[4] It might be seen as the successor of what in Cassius Dio's day was called the "Thracian Gate" in the Severan wall; see Cassius Dio, *Roman History* 75.14.5-6 (ed. Loeb, Vol. IX, 194) – describing the famous "echo effect" that could be produced from there.

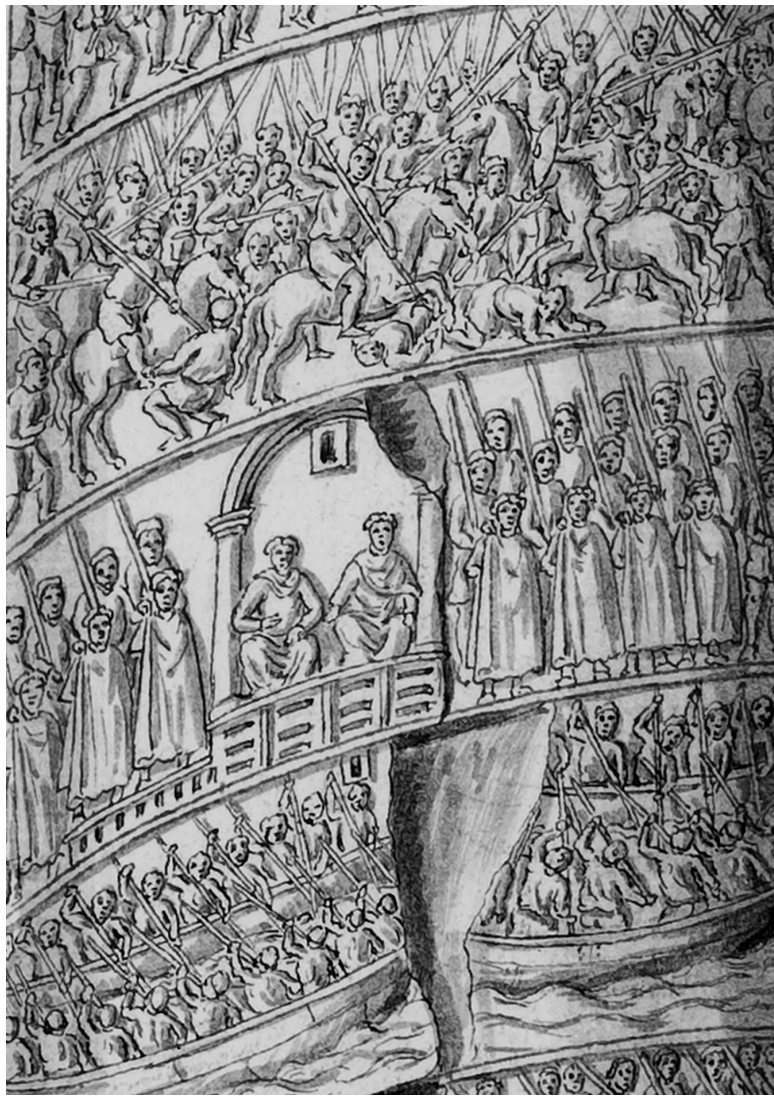


Figure 16.4 South face (S9-11); Arcadius and Honorius presiding over a council of war (?) with water and land battles

March" into Thrace, with encampments and some striking images of rural life (E2-W6), we see battles on water and land (Figure 16.4) and, at the summit of the column, the crowning of the victorious emperor**,** a scene to which I will return.

From a house abutting the northern side of the column base (on its right-hand side in Figure 16.1), it is possible to gain access through the original doorway to its

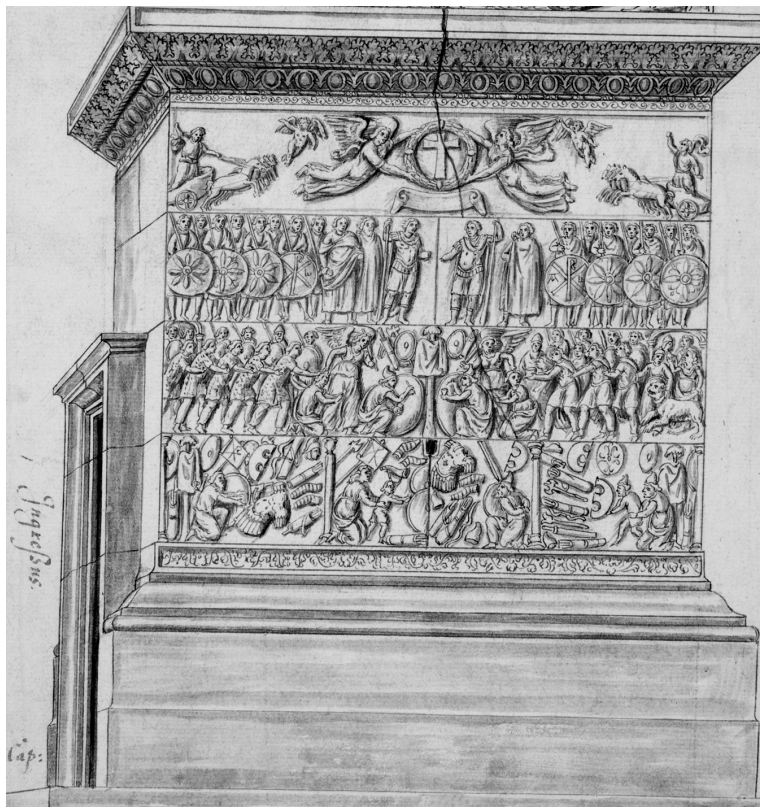


Figure 16.5 Column base, west side, with entrance door seen on the north side

interior, and to see the first steps of the spiral staircase that led inside the column to the top. On the western face of the column base in the Freshfield drawings (Figure 16.5) we note two important features; the entrance doorway itself, and the absence of any decorative carving on the northern side of the base. This means, as I see it, that the entrance to the column was, as it were, round the back of the monument, on its least frequented side. This is confirmed when we look at the summit of the south side of the column (Figure 16.6), where the staircase opens out onto a balcony (hopefully equipped with balustrade), from which the observer could look over the Forum and across the Mesé, with a view down to the harbour of Theodosius, recently the site of spectacular excavations, and the Propontis.[5]

If this is a correct understanding of its orientation, the column stood not in the middle but in the northern sector of the Forum of Arcadius, from where it looked down over the main part of the forum itself and across the Mesé to the south. The

[5] Their progress reported by Mark Rose and Şengül Aydingün, "Under Istanbul", *Archaeology*, July/August 2007, 34-40.



Figure 16.6 Summit of column, south side, with viewing platform and the crowning of the emperor

same was true of its predecessor in the Forum of Theodosius, where a location in the northern sector of the forum, shown by its location in the Seventh Region by the *Notitia* of the city of Constantinople,[6] is confirmed by the famous sixteenth-century printed panorama of Vavassore, where the column, with a indication of its spiral frieze (and the caption "colonna istoriata"), appears inside the walls of the Old Seraglio.

Like that of Arcadius, Theodosius' column thus stood not in the centre but on the northern side of its forum with a view across it; in this case to the basilica of Theodosius extending across its southern side. On the summit of the column of

[6] *Notitia Urbis Constantinopolitanae* (ed. Seeck, 1876), Regio VII.13-14.

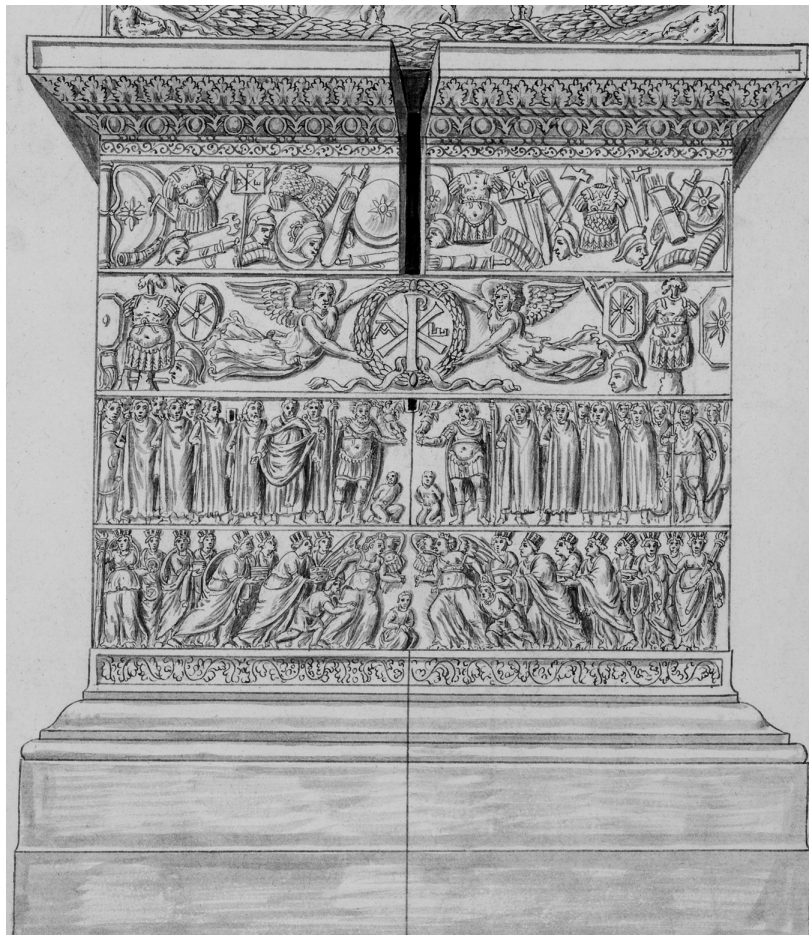


Figure 16.7 Base of column, south side. The slit in the stonework is to give light to the interior of the base and the spiral stairway

Theodosius stood an equestrian statue of the emperor (later recycled to become that of Justinian in the Augusteum), and at its base, one to each side, equestrian statues of his sons Arcadius and Honorius.[7] They too, like their father on the summit of the column, faced south across the forum.

[7] Franz Alto Bauer (above, n. 3), 194; it is not exactly clear which of Theodosius' sons/ colleagues were the "equites magnos duos" located in the northern part of the forum by the *Notitia* of Constantinople (Regio VII.15). On the statue of Theodosius and its later fate see Ian R. Manners (above, n. 1), "Constructing the Image of a City", 86, citing Mango, *The Art Bulletin* 41 (1959), 351-6, with Michael Whitby and Mary Whitby, *Chronicon Paschale 284-628, Translated with Notes and Introduction* (1989), 55 with n. 174.

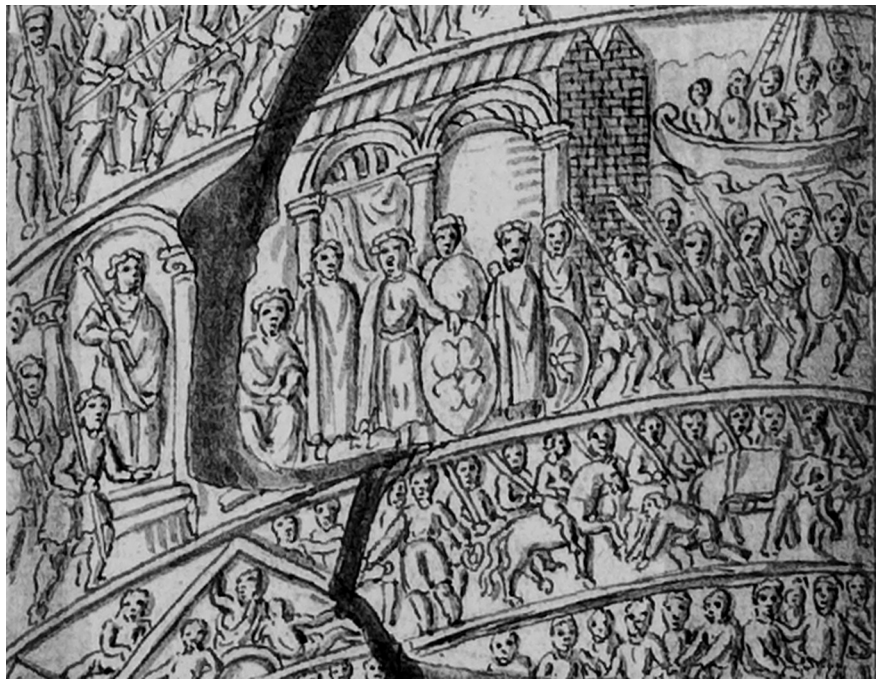


Figure 16.8 South side (S6); the emperor Arcadius

Transposing this orientation of the column of Arcadius, like that of Theodosius, to the perspective of the viewer, we can see that although the reliefs form a continuous narrative spiral rising up the column, it is the southern viewpoint, taken with that of the base and summit of the column, that acquires a certain priority. In each case, it is the south side of the column and its base that the traveller or passer-by would see more directly, as he or she moved along the Mesé in one direction or the other, and looked up at the column without pausing to inspect it closely or from every angle. This was how most people would be accustomed to see it, and this is how they would approach it if they wished to look more carefully.

This rendering of priority to the southern perspective of the column is borne out by the scenes on its base. On the west side (an oblique viewpoint for those entering the forum from that side) are images of the army and scenes of war (Figure 16.4 above); on the east side (not illustrated here), is a similarly oblique view, with corresponding scenes of peace − emperors and courtiers, in the register below them the cities of Rome and Constantinople flanking representatives of their senates bearing crown gold, with corresponding but not identical Christian symbols on each side. On the south side, which I think of as the "front" of the monument, we see the dominant image of the monogram with alpha/omega and spoils of war, figures of victory in the hands of unanimous emperors in east and west, and defeated captives at their feet (Figure 16.7). In the lowest register are provinces, urged forward by

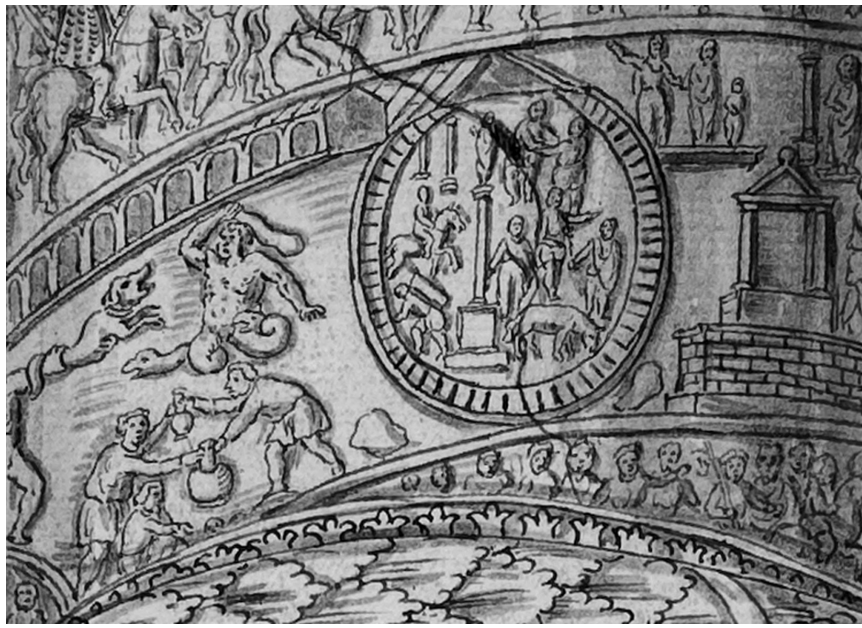


Figure 16.9 Column of Arcadius, east side (E1). The Forum of Constantine with (to left) the colonnades leading from the Augusteum and (to right) the "bronze Tetrapylon" and column of Theodosius. At the left two figures seem to be drawing water from a cistern and above them is what appears to be a statue of Hercules fighting Cerberus. The opening scenes of the frieze (W-E1) are striking for their lack of Christian imagery

figures of Victory dragging captives, to present their "gifts" of taxation; the top hats that the provinces seem to wear are to be understood as mural crowns, as we see provinces symbolized in the contemporary *Notitia Dignitatum* and other sources. It is an argument for the veracity of the drawings that such a detail, more familiar to us from other examples of it than to the artist himself, has been misunderstood by him in his attempt to be faithful to what he saw.

Although it cannot be as clearly articulated on its continuous curved surface as what we have seen on the two-dimensional faces of the column base, a similar priority is claimed by the southern perspective in the spiral friezes of the column itself. In the very first register, among the statues and columns that indicate the monumental centre of the city in the Augusteum, a figure of Victory is prominent (it can be seen on Figures 16.3 and 11).

Directly above, as Gainas leaves the city a female figure, perhaps the Tyché of the city, bars the gate against his return, while a figure of Victory hovers overhead, in the compositional frame provided by the city gate (Figure 16.3 above). As our eyes ascend the column on the southern side, we see a figure who is probably the

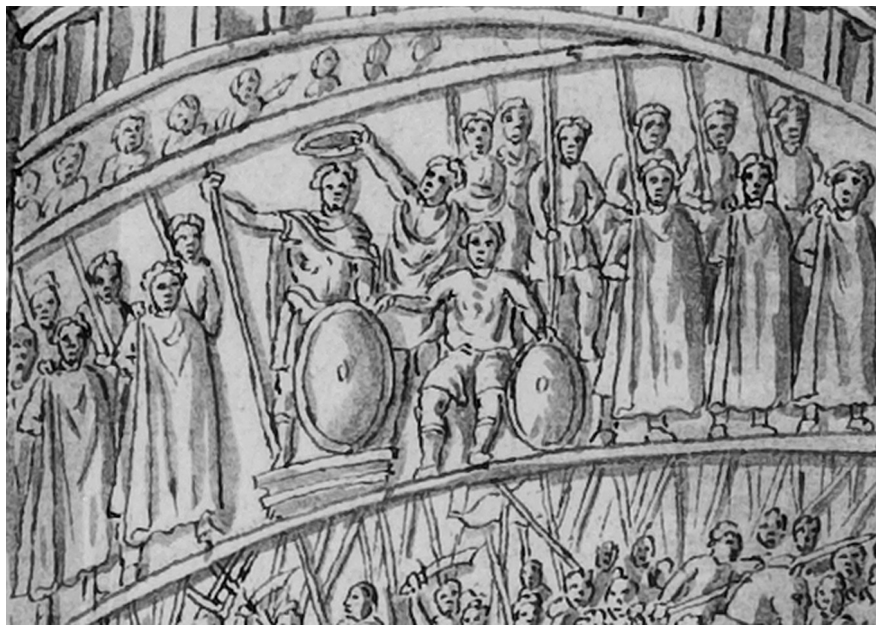


Figure 16.10 Column of Arcadius, south side (S13). The crowning of Arcadius, as shown in the uppermost register of the frieze. The emperor is shown on a plinth, which might be understood as the base of his statue on the column itself

emperor Arcadius shown symbolically at the centre of action in the gates of a riverside city (Figure 16.8), and a little higher up the column two more figures of authority, perhaps Arcadius and Honorius, again seen as if present with courtiers or advisers in a council of war, and as if viewing the naval battle taking place in the register below them (which must in narrative terms have been earlier) (Figure 16.4 above); and, at the summit, an emperor with shield and spear receiving a crown.

Before I address this image, I would like to return to the first register of the frieze, and to the images of Constantinople shown there. We have seen some of them before; a restless crowd in the Augusteum with its monuments and statues (Figure 16.2 above), a view that continues on the south face of the column. At the top of the frame we see continuous arcades, leading into a circular structure that can only be the Forum of Constantine (Figure 16.9); this is shown with its column and statue of the emperor, a man carrying a load on his back, people mounted and on foot in typical "forum" scenes and, to make matters clear, a couple pointing out the forum to their child as a sight of the city. Since the arcades are shown as issuing into the forum and have a double roof as they reach that point, they must represent the famous double colonnade, of Severan origin, that fell victim to the Nika Riot of 532. To the right of the forum we can see a further column which must be that of Theodosius (it may be just a trick of the eyes that seems to pick out a hint of the spiral sculptures



Figure 16.11 Column of Arcadius, south side (S1). An honorific column with statue as shown in the Augusteum. Compare the image of Arcadius in Figure 16.9 above

that covered it); if this is so, then the monument with columns and pediment on a constructed stone base, shown between the forum of Constantine and the column of Theodosius, must be the "Bronze Tetrapylon" which stood at the intersection of the Mesé with the important cross road later known as the "Portico of Domninus".[8]

Directly above, still on the south side of the column, the double image of Victory escorting Gainas out of the city and the Tyché of the city preventing his return − what Ammianus Marcellinus would have called the alliance of Virtue and

[8] For this road, represented by the modern Uzunçarşi Caddesi or "Longmarket Street" and continuing over the Mesé downhill to the Propontis, see Cyril Mango, *Le développement urbain de Constantinople (IVe-VIIe siècles)* (Travaux et Mémoires du Centre de Recherche d'Histoire et de Civilization de Byzance, Monographies 2, 1985), 30-31; A. Berger, "Regionen und Straßen im frühen Konstantinopel", *Istanbuler Mitteilungen* 47 (1997), 366, 396. Its line is apparent in plans of the Bazaar, running at a slight angle to the central galleries.

Fortune that ensured the eternity of the city (cf. 14.6.3) − reasserts the centrality of Constantinople (Figure 16.3 above).

Returning to the summit of the column, we see the crowning of Arcadius with a wreath of victory (Figure 16.10, cf. 6, with a fragment of a battle to be seen below in S12). Now as mentioned earlier, the forum of Arcadius was established in 402/3, before the death of its honorand. We do not know how long it took to complete the column (these were complicated structures requiring much detailed work, and took some time to finish), but the statue on the summit was placed there only in 421, many years after Arcadius' death in 408 (in the *Notitia* of the city of Constantinople, the whole forum is called after Theodosius II).[9] This leads me to close this sketch of a chapter with what I think of as an intriguing possibility. The figure of Arcadius receiving the crown is shown standing on a little pedestal. It does not look like a platform or tribunal and I cannot see a way of interpreting the feature except as the pedestal of a statue – or even as the summit of the column on which the image itself is shown; a parallel to this mode of presentation of column and statue is to be found in a detail from the first register of the frieze (Figure 16.11). It seems that we are simultaneously shown Arcadius in a double image; as the living emperor receiving a crown after the suppression of a revolt, and as the statue that was always intended for the summit of the column; perhaps the seated(?) figure beside Arcadius (emperor and/or statue) is Theodosius II, under whom the column was completed.[10] The statue is shown on the column frieze as the passer-by on the Mesé would see the finished object above it, and we are at the same time treated to a picture of a lost artefact of the city. The narrative frieze, which began in its lowest registers with the early fourth-century monumental area of Constantinople – the Augusteum and the double colonnades leading from it to the Forum of Constantine, the Bronze Tetrapylon and the column of Theodosius – ends with a cunningly insinuated picture of its most recent acquisition, the column of Arcadius itself with the statue surmounting it.[11] Still more intriguingly, the city in which the column stood, anchoring its narrative at its beginning and end, is the central character in its own story – the chorus, as it were, to the tumultuous events shown on the column.

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[9] *Notitia Urbis Constantinopolitanae*, Regio XII.10.

[10] A different, and to my mind less satisfactory interpretation by J. Casey is reported by Liebeschuetz, 276-7 – agreeing however that the figure being crowned is a statue.

[11] On the uppermost register of the eastern side (E13) is another imperial figure, possibly Honorius, shown as notionally sharing his colleague's victory and thereby asserting the unity of eastern and western imperial regimes, or else of Theodosius himself, under whom the column was completed and the statue of Arcadius erected. The figure is higher up the gradient of the spiral frieze, but on the less emphatic eastern face.

# Chapter 17
# Late Antique Fora and Public Honor in the Western Cities: Case Studies[1]

Jinyu Liu

At some point in the latter half of the second century, statues clogged the passage through the forum of Cirta, the capital of Numidia, and had to be "straightened up."[2] As the civic center and a central locale of elite competition for honor and prestige, the forum and the immediately adjacent areas contained inscribed statues dedicated to deities, reigning emperors and high-ranking magistrates; others honored benefactors who funded public building projects, established endowments, and distributed cash or other gifts to recipients ranging from the city to private organizations such as *collegia* (voluntary associations). A statue in the forum, especially in the most prestigious part of the forum, often came with a hefty price tag.[3] As such, the forum as a locale for epigraphic display and exhibition of pubic portraits was also intricately connected with the euergetic patterns in the Early Empire. But how long did the forum in the provincial city last as a desirable place for honorific statues, and a place that could confer prestige on the honorands? How would the many changes on the religious, economic, and political horizons after the third century affect the forum as a favored locale for elite representation?

For the Late Antique fora, the scholarly literature has followed either the "decline" or "transformation" model. The decline model emphasizes the decline of the fora as monumental and civic centers in Western cities against the general background of the decline of the cities themselves since the third century.[4] The decline has been attributed to various elements, especially the decline of civic munificence caused by the changing ethos of the local wealthy, and the rise of Christian patronage, which focused on churches and almsgiving to the poor, and which resulted in funding for traditional euergetic deeds being further diminished.[5]

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[1] I am grateful to the editors of the volume, and the anonymous reader for the helpful comments. I also thank the conference participants especially Professors John Matthews and Michele Salzman for their questions and suggestions.

[2] *CIL* VIII. 7046= *ILAlg* II. 631.

[3] E.g., *ILS* 6468.

[4] E.g., T.W. Potter, *Towns in Late Antiquity: Iol Caesarea and its Context* (Oxford, 1995).

[5] B. Ward-Perkins, *From Classical Antiquity to the Middle Ages: Urban Public Building in Northern and Central Italy, AD 300-850* (Oxford, 1984).

Recent studies of Late Antique aristocrats, both non-Christian and Christian, however, have revealed the complexity of the historical reality by highlighting the force of the Roman elite's traditional value systems.[6] The strikingly strong flavor of Pliny the Younger in the discourses of Symmachus as well as in those of Paulinus of Nola, who had dramatically different religious allegiances, has been repeatedly noted.[7] As in many other areas of Late Antique studies, more recent research on the fora has also moved towards a nuanced and complex picture of transformation. Based on archaeological evidence from Italy, Spain, and Britain, Lavan, for example, has shown that many fora and agorai continued to be important urban elements, and remained bustling administrative and shopping places in the fourth and fifth centuries, which saw not only repairs but also the additions of new buildings. Only in the sixth and seventh centuries came their "definitive eclipse."[8]

Largely sustained by a re-examination of archaeological data and literary sources, however, recent research on the municipal cities in the West has yet to fully incorporate the epigraphic material in order to shed further light on the varied experiences of the fora in the Late Antique urban scene. We are often reminded of the decline of the "epigraphic habit" (or "epigraphic culture") after the third century.[9] The chronological vicissitude of epigraphic output is certainly a caveat to bear in mind; and new types of media of elite representation, especially perishable media, should not be forgotten.[10] The assumed decline of the "epigraphic habit," however, cannot serve as the starting point for the inquiry into the epigraphic media in Late Antiquity for at least two reasons. First, careful dating of inscriptions is urgently needed for us to better understand the chronological distribution of the epigraphic material. Second, it is problematic to speak of a universal "epigraphic habit." As Mouritsen recently emphasized, "[n]o epigraphic practice was universal – throughout the Empire, or even within a region or a single community. Instead

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[6] E.g., J. Matthews, *Western Aristocracies and Imperial Court, A.D. 364-425* (Oxford, 1975; repr. 2001); H. Niquet, *Monumenta virtutum titulique: Senatorische Selbstdarstellung im spätantiken Rom im Spiegel der epigraphischen Denkmäler* (Stuttgart, 2000); M.R. Salzman, *The Making of a Christian Aristocracy* (Cambridge, MA, 2002).

[7] D.Trout, *Paulinus of Nola: Life, Letters, and Poems* (Berkeley, CA, 1999), 147.

[8] L. Lavan, "Fora and Agorai in Mediterranean Cities during the 4th and 5th c. A.D.," in W. Bowden, C. Machado and A. Gutteridge (eds), *Social and Political Life in Late Antiquity* (Leiden, 2006) 195-249; L. Lavan, "The political topography of the late antique city," in L. Lavan and W. Bowden (eds), *Theory and Practice in Late Antique Archaeology* (Leiden, 2003), 317-21.

[9] R. MacMullen, "The Epigraphic Habit in the Roman Empire," *AJP* 103 (1982), 233-46; J.H.W.G. Liebeschuetz, *Decline and Fall of the Roman City* (Oxford, 2001), 11-19.

[10] B. Borg and Ch. Witschel, "Veränderungen im Repräsentationsverhalten der römischen Eliten während des 3. Jhs. n. Chr.," in G. Alföldy and S. Panciera (eds), *Inschriftliche Denkmäler als Medien der Selbstdarstellung in der römischen Welt* (Stuttgart 2001), 90-120.

we find multiple 'habits', which changed and interacted with each other."[11] A welcome direction of study has emerged that maps the regional differences of the Late Antique "epigraphic habit(s)." It has been shown, for instance, that while the mosaic inscriptions recording private donations in the churches were significantly better represented in Southern Italy than in Northern Italy in the fourth and fifth centuries,[12] the opposite seems to have been true for the continued use of inscribed statues for elite representation.

This chapter does not attempt any sort of general survey or global treatment. Instead, it seeks to understand the status of the Late Antique fora in specific, local contexts by a close examination of the quantity of inscriptions in the forum in the fourth century, the status of the honorands, the formulations of honorific inscriptions, and the spatial relationships, if any, between the later statues in the forum and those from the first three centuries. Praeneste and Cuicul, from Latium (Italy) and Numidia (North Africa) respectively, are selected for case studies, since both left abundant epigraphic records and neither was a provincial capital.

Praeneste (modern Palestrina), a city near Rome, was renowned for the cult and oracle of Fortuna Primigenia. The oracle was still fairly active in the fourth century, but the spread of Christianity was well underway by the third century. The city produced its first important martyr under Aurelian. A bishop was recorded in 313. The *Liber pontificalis* (34. 14, 33; 46.3) listed several church properties in this area during the reign of Constantine and in the fifth century. It also became one of the six suburban bishoprics of Rome in either the fourth or fifth century.[13] In the late fourth century, there were properties owned by both Christian and non-Christian senators in the land of Praeneste.[14]

Praeneste had two fora in the Roman period.[15] The more ancient of the two corresponds to Piazza Regina Margherita, not far from the ancient Temple of Fortuna Primigenia. It was in this forum that the statue for the famous praetor Marcus Anicius was set up (216 BC), representing him in all his three roles as general, magistrate and priest.[16] According to Suetonius (*Gram.* 17), there was a

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[11] H. Mouritsen, "Freedmen and Decurions: Epitaphs and Social History in Imperial Italy," *JRS* 95 (2005), 62-3.

[12] J-P. Caillet, *L'évergétisme monumental chrétien en Italie et à ses marges d'après l'épigraphie des pavements de mosaïque (IVe-VIIe siècle)* (Rome, 1993), 4. For the tendency toward moving the display of writing and images "into the new cityscape of the church interior," see also Ch. Roueché, "Written Display in the Late antique and Byzantine city," in E. Jeffreys (ed.), *Proceedings of the 21st International Congress of Byzantine Studies* (Aldershot, 2006), 253.

[13] R. Van Deman Magoffin, *A Study of the Topography and Municipal History of Praeneste* (Baltimore, MD, 1908), 11.

[14] Symm. *Rel*. 28.

[15] Magoffin, *A Study of the Topography*, 54-8; O. Marucchi, *Guida Archeologica Della Città Di Palestrina* (Rome, 1932), 90-91.

[16] Livy 23.19.17-18.

statue of Verrius Flaccus in the upper part of the forum near the hemicycle, where his calendar was exhibited on its marble walls. Although of freedman status, Verrius established himself as a famous grammarian and great scholar, which led to his appointment as tutor of Augustus' grandsons. It had been assumed that the forum in question was the new forum until Coarelli argued that it may have been the old forum.[17] Identified as the area of Madonna dell'Aquila in the lower city, this new forum, or the lower forum, was created after Sulla turned Praeneste into a Roman colony. Equipped with a curia, porticoes, baths, libraries and other public buildings, the lower forum became the more prominent civic center of the city in the imperial period. The number of statues and inscriptions that are reported to have been found in the lower forum[18] and the nearby *macellum*, along with the fact that several inscriptions specified the location of statues in the forum,[19] points to both the concentration of honorific statues in the lower forum area and the desirability of the forum as a place of display. The curia and the porticos seemed to have been considered the most prestigious places at least in the first two centuries.[20] Among all the statues and/or inscribed statue bases found in the lower forum, five can be dated to the fourth century (Table 17.1), two of which were inscribed on older inscriptions.

The bid for a place in the lower forum of Praeneste was at one point remarkably open to distinguished individuals from widely different social backgrounds. The honorands ranged from emperors to freedmen. Lucius Urvineius Philomusus, a freedman, received a public funeral and a statue in the forum because in his will, he provided the populace with three years of free bathing, ten pairs of gladiators, a gold crown weighing one pound for the goddess Fortuna Primigenia, and 20,000 sesterces for games.[21] In the fourth century, the lower forum remained crowded with earlier honorific inscriptions and statues of emperors and benefactors, with new ones added or old ones reinscribed from time to time at least until the end of the century. But honorific statues for non-imperial persons are attested for the grades of the *clarissimi* and *perfectissimi* alone.

In 333, Barbarus Pompeianus, the governor of Campania, gained a statue in the forum because "he ordered the reconstruction and repair of public buildings collapsed in ruins."[22] The inscription partially replaced an earlier text dated to 227. Anicius Auchenius Bassus, governor of Campania *c.*379-82, received a statue on

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17 F. Coarelli, "Il monumento di Verrio Flacco nel foro di Praeneste," in F. Coarelli, *Revixit Ars* (Rome, 1996), 455-69.

18 Cf. *CIL* XIV. *ad* 2934; G. Gatti, *Notizie degli Scavi* (1903), 575 ; Magoffin, *A Study of the Topography*, 58; N. Agnoli, *Museo archeologico nazionale di Palestrina: Le sculture* (Rome, 2002), 14.

19 *CIL* XIV 2919, 2934, 3015; *ILS* 8376.

20 Magoffin, *A Study of the Topography*, 54. Cf. *CIL* XIV. 2924.

21 *CIL* XIV. 3015=*ILS* 6256. The date was not specified, but the orthography *conl*(*egii*) would suggest a first century date.

22 *CIL* XIV 2919=*ILS* 1219.

**Table 17.1 Statues erected in the forum of Praeneste in the fourth century**

| | Honorand | Status and religious identity | Dedicant | Benefaction | Date |
|---|---|---|---|---|---|
| *CIL* XIV. 2919=*ILS* 1219* | Barbarus Pompeianus | *v.c.*, consularis Camp (aniae), "Pagan," *PLRE* I, Barbarus Pompeianus 4 | *universus ordo* | *Quod publica aedificia in ruinam conlapsa benivola dispositione refici ad(que) instaurari praecepit* | 333 |
| *CIL* XIV. 2914 | Julian | Emperor, "The Apostate" | *Ordo populusq(ue)* | | 361-3 |
| *CIL* XIV. 2917=*ILS* 1263 | Anicius Auchenius Bassus | *v.c.*, Christian; *PLRE* I, Bassus 11 | *Ordo populusque civita/tis* | *provisori eiusdem provinciae restitutori generis Aniciorum ob merita eius inlustria* | 379-83 |
| *CIL* XIV. 2934=*ILS* 8375 | Postumius Iulianus | *v.c.*, patron, Christian? | *Cives* | Perpetual endowment, *aepulum* | 385 |
| *AE* 1904. 108=*ILS* 8376* | Publius Aelius Arlenius | Son of a *v.p.*, *PLRE* I, Apollinaris 3; Christian? | *collegia* | Perpetual endowments for *convivia* | Fourth century? |

*Note*: * indicates that the inscription was reinscribed on an earlier inscription.

account of his "distinguished merits."[23] A large statue base dated to 385 recorded that Postumius Iulianus, whose exact relationship to Praeneste was not specified but who was of senatorial rank, bequeathed an estate to the citizens of Praeneste in exchange for annual commemorative ceremonies and a statue in his name, engraved with his very will, in the forum.[24] Publius Aelius Apollinaris Arlenius, the son of a *vir perfectissimus*, set up a perpetual endowment for the local *collegia*, who, in turn, put up a statue of him in the forum. Although the precise date of Arlenius' benefaction is uncertain, a late Constantinian date is most plausible, as will be shown shortly.

[23] *CIL* XIV. 2917=*ILS* 1263.

[24] *CIL* XIV. 2934 = *ILS* 8375. Cf. E. Champlin, *Final Judgments: Duty and Emotion in Roman Wills 200 BC-AD 250* (Berkeley, CA, 2001), 167.

Julian was the only fourth-century emperor found honored in the lower forum. The erection of a statue to Julian has been interpreted as an indicator of Praeneste's resistance to Christianization.[25] It must be noted, however, that Praeneste's dedication to Julian was hardly religiously keyed. Rather, he was styled *victor ac triumfator semper Augustus*, as in many other inscriptions set up for him throughout the Empire.[26] These titles themselves were not indicative of any emphasis on his religious preference, especially since they were standard imperial titles borne by a multitude of emperors from the late third century to fifth centuries. In contrast, in honoring Julian, several other cities used much less impartial language, extolling him for restoring religion, correcting past mistakes, and ruling through philosophy.[27] Furthermore, it is possible that there were other statues of fourth-century emperors or members of the imperial families in the lower forum of Praeneste, which may have been lost or have not been identified.[28] It is worth asking, however: was the forum of fourth-century Praeneste exploited as a public place to showcase the persistence of paganism? Did it become a battleground between the "pagan" and Christian elite in advertising their virtues? Or, alternatively, was it a neutral ground shared by both the Christians and the pagans, where the civic elements predominated? Answering these questions requires a close look at the religious affiliation(s) of the honorands and the ways their identities were projected.

Notably, despite the late date of these inscriptions, none of them explicitly stated the honorand's religious affiliation. Barbarus Pompeianus would have belonged to a notable "pagan" senatorial family. He was very likely the grandfather or great-grandfather of the famous pagan senator Gabinius Barbarus Pompeianus, who, as Urban Prefect, sought to restore pagan ceremonies during Alaric's first siege of Rome.[29] Anicius Auchenius Bassus, however, was evidently Christian, as he, his wife and children were described as *deo sanctisque devoti* on the epitaph.[30] It is more difficult to determine the religious affiliation(s) of Publius Aelius Apollinaris Arlenius and Iulianus Postumius, since we have no other sources about them. The inscription recording Arlenius' gifts to the local *collegia*[31] is hardly perfect in terms

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[25] N. Agnoli, "Palestrina: il cosiddetto *Macellum*," *RAL* 9.1 (1998), 167.

[26] See the many examples in S. Conti, *Die Inschriften Kaiser Julians* (Stuttgart, 2004).

[27] E.g., *restitutor sacrorum* (*AE* 1893. 87); *ob deleta vitia temporum pr*(*a*)*eteritorum* (*CIL* III. 10648, Mursa, Pannonia Inferior); *restitutor libertatis et Romanae religionis* (*CIL* VIII. 18529); *OGIS* II. 520 (Iasos, Caria).

[28] G. Gatti, for example, mentions fragments of a draped statue (1.75m in height) that could possibly be dated to the fourth century (*Notizie degli Scavi* [1903], 575).

[29] *PLRE* II, Pompeianus 2; Zos. 5. 41.1; T.D. Barnes "Late Roman Prosopography: Between Theodosius and Justinian," *Phoenix* 37.3 (1983), 269.

[30] *CIL* XIV.1875 = *ILCV* 91 = *ILS* 1292.

[31] *AE* 1904.108=*ILS* 8376=*FIRA* III 43; G. Gatti in *Notizie degli Scavi* (1903), 575-80; Edouard Cuq, "Une fondation en faveur des collèges municipaux de Preneste," *Nouvelle revue historique de droit français et étranger* 28 (1904), 265-72.

of grammar and spelling, which was not atypical of later Latin inscriptions. But the basic information was clear. Born on 29 October, Publius Aelius Apollinaris Arlenius, son of Apollinaris, was brought up honorably, and was educated in literature. On 24 June at the age of 18, desired by heaven, while being freed from bodily prison, he successfully persuaded his father, Publius Aelius Apollinaris, a *vir perfectissimus*, who had been *actor causarum* (which signified juridical competence), governor of Corsica, and prefect of the fire brigades, to give the local *collegia* an estate adjacent to the territory of Praeneste. The condition was as follows: they or whoever succeeded them had no rights to alienate the property. They should, however, have banquets twice a year on the above-mentioned dates, namely, 29 October and 24 June, from the yields of the estate. Moreover, he asked his father to purchase additional properties at 5,000 *folles*, and give them to the groups under the above-mentioned condition. Because of his gift (*beneficium*), all the *collegia* members honored him with a togate statue in the forum.

The date of the inscription was not specified.[32] The use of the monetary unit *folles* (L.20) indicates a date after Diocletian's currency reform. The references to the position *praeses provinciae Corsicae*[33] instead of *procurator*, and the title *praefectus vigilibus*[34] instead of *praefectus vigilium* both point to a date later than the beginning of the fourth century. A helpful dating clue can be found in the value of 5,000 *folles*, the proposed price for the *horti sive possesio*. This amount would have been significant enough to merit recording. In 313, Constantine granted 3,000 *folles* to be distributed among the North African churches (Eus. *HE* 10.6), which was doubtless an enormous amount of money. After 324, *follis* depreciated progressively, and became of little value at the end of the fourth century and in the early fifth century.[35] Our inscription can be reasonably dated to the 320s-330s.

The language and the practice reflected in the inscription were familiar in many ways. Arlenius left properties for the *collegiati* to have communal meals on stipulated days. Municipal *collegia* were frequently recipients of gifts in the first three centuries.[36] M. Aurelius Iulius Eupraepes, an equestrian patron of Praeneste in late second or third century, for example, distributed *sportulae* to *corporib*(*us*) *colleg*(*iorum*), among his various public benefactions.[37] In the imperial period,

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[32] Ward-Perkins did not list this inscription on his Appendix 1: Late Antique Statues outside Rome.

[33] *CTh*. 1. 16.3; 2.6.2 (319).

[34] R. Sablayrolles, *Libertinus Miles: Les Cohortes de Vigiles* (Rome, 1996), 521-2.

[35] A.H.M. Jones, "The Origin and Early History of the Follis," *JRS* 49 (1959), 34-8.

[36] J. Liu, "The Economy of Endowments: the case of Roman associations," in K. Verboven, K. Vandorpe, and V. Chankowski-Sable (eds), *'Pistoi dia tèn technèn': Bankers, Loans and Archives in the Ancient World. Studies in Honour of Raymond Bogaert* (Leuven, 2008), 231-56.

[37] *AE* 2006. 272.

important local *collegia* included those of the butchers, traders, smiths and craftsmen, freedmen, and so on.[38]

New elements in the inscription are also noticeable. The phrasing "desired by heaven, he was being freed from the bodily prison" (*caelo desideratus corporeo carcere liberaretur*) (Ll. 5-7) in the context of perpetual endowments, for example, is rather peculiar. This raises the question of the significance of the incorporation of this expression. Granted, neither the concept of death as departing to heaven nor the metaphoric reference to the body (*corpus*) as a prison (*carcer*) is uniquely Christian.[39] In Ciceronian language, for instance, the free sky (*in liberum caelum*) was the very home (*domum suam*) of the soul (*animus*).[40] But it was in Christian conceptualization and terminology that *caelum* was closely associated with the afterlife.[41] In contrast, the references to heaven were extremely rare in Graeco-Roman funerary expressions. In classical literature and imagery, rising to heaven connoted the immortality of prominent figures through deification or apotheosis. The most conspicuous example was perhaps the literary epitaph allegedly composed by Ennius for Scipio Africanus: *si fas endo plagas caelestum ascendere cuiquam est, / mi soli caeli maxima porta patet* (if it is right for anyone to ascend into the tracts of the gods, the greatest gate of heaven opens for me alone). The phrasing *porta caeli patet* was echoed more than 500 years later on the epitaph of the eminent pagan activist Praetextus.[42] The metaphoric reference to the body as a prison was also a familiar notion in both (Neo-)Platonic and Stoic discourses as well as in the Orphic and Pythagorean cults.[43] The body as fetters (*vincula*) and a prison (*carcer*) was a frequent subject in Cicero.[44] However, if, in the classical period, the notion of the body as a prison was more or less confined to the circles of philosophers and certain mystery cults, it gained much wider publicity and acceptance among the Christians.[45] Indeed, while death was usually described as *acerba* (painful), *tristis* (sad) and *infelix/dustuchês* (unhappy) in Graeco-Roman funerary expressions, death as liberation and freedom from the body found much more representation in Christian inscriptions. In this vein, a verse epitaph dated to 399 spoke of death as freedom from the chains of the body (*corporis exutus vinclis*).[46]

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[38] *CIL* XIV. 3015, 2877, 2878, 2981, 3003, 3009.

[39] F. Cumont, *After Life in Roman Paganism* (New York, 1959), 105.

[40] E.g. Cic. *Tusc*. 1. 22. 51. Also see Lact. *Div. inst*. 7. 13. 6 (Platonic?).

[41] E.g., *hic corpus iaceo caeli sed in aethere vivo*/*ante pedes domini praecellens munere Ch*(*ris*)*ti* (I lie down here as a body but, distinguished by the gift of Christ, I live in the celestial ether at the feet of the lord) (*ICUR* IX. 25966).

[42] *CIL* VI. 1779. Cf. Jer. *Ep*. 23.3.

[43] Plat. *Phaed.* 62C; 250C; 248C-D.

[44] Cic. *Rep*. 6, 13-14 ; *Tusc.* 1. 30, 74.

[45] E.g., Tert. *Anim*. 53; St. Cyprian, *De mortalitate* 15; Paul. Nol. *Ep*. 32.6; Arnob. *Nat.* 2.45; Aug. *Civ. Dei* 10.30; 12.27. The apostles such as Paul and Peter sometimes referred to men as "spirits in prison" (1 *Pet*.3. 19); cf. *Vulg. Apoc.* 4, 2; 11, 15.

[46] *ICUR* I. 1453 = *CLE* 679. See also *InscrIt* IX. 1.165; *CIL* VI. 1756 = *CLE* 1347.

If the discussions so far have not yet fully established Arlenius' Christian identity, a firmer ground for the identification can be found in another new element in the inscription, that is, the inclusion of the anniversary of death as an occasion for commemorative meals. This would have been influenced by the Christian notion of death as a new birth and new beginning.[47] Comparisons between pagan and Christian inscriptions have shown that "The most crucial difference … is related to the belief that true life *began* after death," and that "Unlike pagan inscriptions, the Christian epitaphs regularly included the date of death as a significant threshold in the existence of the believer."[48] Although the inscription under discussion was not an epitaph, the commemorative language seems consonant with Christian concepts of death and afterlife. If we consider everything together, that is, the Constantinian date, the phrasing of death with Christian/philosophical overtones, and the equal emphasis on the dates of birth and death, Arlenius was most likely a Christian benefactor, who largely gave in the traditional manner and received the gratitude and honor accordingly.

As in the case of Arlenius, the date of Postumius Iulianus' death was also specified. The purpose of the endowment Iulianus bequeathed to the people of Praeneste was to nourish (*colant*) his *spiritum*. The citizens (*cives*), in turn, did not spare their words of praise, but extolled his merit, love and sense of duty towards them (*meritum amorem et religionem erga cibes*[!] *universus*). They also celebrated his great affection (*magna adfectione*) and good deeds (*honorificentia*). All these expressions would have been very familiar to earlier audiences. *Colant spiritum meum*, however, was a familiar Christian expression. In the traditional Graeco-Roman context, the usual expression would have been *manes colere*.

Unfortunately, we have lost the statues that once stood on the bases where the above-mentioned inscriptions were inscribed. Therefore, we cannot decisively pinpoint the ways in which the artistic styles and visual vocabularies of the fourth-century statues differed from the earlier ones in Praeneste. Did they easily blend in with the existing statues? Or were they easily distinguishable from the earlier ones? Additionally, we do not have all the inscribed statues that once lined up the forum. Nor do we know the exact locations of the extant statue bases, or how the statues from the first three centuries may have been rearranged in the fourth century. Because of all these uncertainties, it is difficult to determine whether the expansion of the Christian elements substantially changed the epigraphic landscape of the old public center or not. Despite the lack of information in these areas, it is still possible to gather some meaning from the epigraphic material discovered at the lower forum.

The dialogues between the monuments, the honorands, the beneficiaries, and the viewers followed a particular genre of their own. The forum had a strong appeal

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[47] M.A. Handley, *Death, Society, and Culture: Inscriptions and Epitaphs in Gaul and Spain, AD 300-750* (Oxford, 2003), 9-10.

[48] M. Carroll, *Spirits of the Dead: Roman Funerary Commemoration in Western Europe* (New York, 2006), 274.

to potential benefactors, Christian and non-Christian alike, as a prestigious place for commemorating traditional civic virtues such as *munificentia*, *merita*, *beneficia* and *honorificentia*.[49] The conservatism of the epigraphic culture was represented in the persistence of conventional formulations in the fourth-century inscriptions. But they also highlight the adherence to traditional patterns of euergetism and honorific practices. The forum did not seem to have been used as a venue for displaying competing patterns of public virtues. Nor did it appear to be a battleground for religious beliefs. The inscriptions did not tend to mark the religious identities of the honorands. The honorific inscriptions for Barbarus Pompeianus and Anicius Auchenius Bassus, for example, only referred to their positions and "good deeds," but contained no reference to whether they were Christian or polytheistic. As for Iulianus and Arlenius, their religious (very likely Christian) affiliation is only deduced on the basis of suggestive clues in the texts. If they had projected their religious identity at all, it was done in a very subtle rather than explicit fashion. It is also notable that the religious identity of the recipients of meals or gifts was nowhere prescribed. Iulianus' gift was ostensibly civic, designating *universi cives* as the beneficiaries. Perpetuating the name and the memory of the honorands as the main purpose of the honorific statues was explicitly stated in the dedications to Barbarus Pompeianus and Postumius Iulianus. Interestingly, in Praeneste's dedication to Bassus, he was styled as the provider of his province (*provisori eiusdem provinciae*) and restorer of the *gens* of the Anicii (*restitutori generis Aniciorum*). The latter may refer to the scarcity of male members among the Anicii. The *gens* may have been "revived" by adopting Bassus or as a result of Bassus having produced male offspring. Whichever the case, the juxtaposition of his public role and family role highlighted how complementary they were to each other in the construction of status and public image.

Study of Late Antique public portraits in Aphrodisias has allowed Smith to conclude that "[m]uch of this material is testimony not so much to the powerful idea and impact of monotheism but to the very large neutral zone of public life that was simply unconcerned with the nature of the divine."[50] While this was also largely true for the forum of Praeneste, there is, however, more than just plain persistence of tradition. Changes in the language of inscriptions are also noticeable. In the case of Arlenius, perpetuation of memory aside, renunciation of property and even a redemptive agenda may be suspected, considering the incorporation of the language denouncing the body as well as the stipulation for commemorating the anniversary of death. A new and rather subtle spin might have been put to old practices. Such benefactions may have fulfilled multiple goals: they were deeds of euergetism/*philanthropia* through the sharing and renouncing of properties for the sake of personal salvation, while they simultaneously addressed the status concerns of the extremely status-conscious aristocrats. Gladiatorial games or gifts to Fortuna

[49] For these virtues, see E. Forbis, *Municipal Virtues in the Roman Empire: The Evidence of Italian Honorary Inscriptions* (Stuttgart, 1996).

[50] R.R.R. Smith, "Late Antique Portraits in a Public Context: Honorific Statuary at Aphrodisias in Caria," *JRS* 89 (1999), 156.

Primigenia, which were fairly common in earlier benefaction inscriptions,[51] however, disappeared from the surviving fourth-century inscriptions. This may not have been a mere coincidence but a true departure from tradition.

Outside of Italy, we are fortunate to have some well-preserved fora, especially in Cuicul and Thamugadi, where many inscriptions have been found *in situ*. Cuicul (now Djemila, Algeria), initially a veteran colony founded by Nerva in Numidia, had two fora: the so-called old forum and a newer one founded under the Severans. The old forum (Figure 17.1) was fully developed in the second century. Such important components as the basilica and the marketplace were gifts from local priests or magistrates.[52] Benefactions might also take the form of contributing *summa honoraria*, that is, the fees the civic magistrates or priests paid upon entering office, which ranged from 2000 sesterces to 21,000 sesterces in Cuicul. However, *ob honorem* dedications associated with *summa honoraria*, which totaled 10 cases, were among the minority of all the dedications in the forum. The majority of the dedications were made by the city, as indicated by the formula *D*(*ecreto*) *D*(*ecurionum*) *P*(*ecunia*) *P*(*ublica*) or *ordo*/*Respublica* (*Cuiculitanorum*), to the emperors and members of the imperial household.

It must be noted that only 33 statue bases can be dated with some accuracy,[53] while 35 others cannot be securely dated to within 200 years or be dated due to the fragmentary states or the loss of the inscriptions, making it difficult to assert which century saw the most honorific inscriptions in the forum. The distribution of the statues as we know it, which was the result of several centuries, did not show a clear pattern. For example, the dates of nos. 2-17, which lined up the eastern side of the forum, did not follow any particular order. Nos. 44, 45 and 47 were all attached to no. 46, which was a very sizable statue base (134 × 250 × 434 cm). The inscriptions of 46 and 47 have been lost; nos. 44 and 45, which stood side by side, were created about one hundred years apart, being dedicated to Hadrian and the son of Maximinus Thrax respectively. No. 46, then, must have either dated to Hadrian's time or predated Hadrian. As such, it would have been one of the earliest statue bases in the forum area.[54]

The statues in the forum, therefore, did not provide a chronologically streamlined narrative for the viewers. Nor did the organization of the statues show clear typological patterns.[55] Near the Capitol, the dedication to Jupiter Optimus

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[51] *CIL* XIV. 3014= *ILS* 6252; *CIL* XIV. 3015=*ILS* 6256; *AE* 2006. 272; *CIL* VI. 31917= *ILS* 5662.

[52] G. Wesch-Klein, *Liberalitas in rem publicam: private Aufwendungen zugunsten von Gemeinden im römischen Afrika bis 284 n. Chr*. (Bonn, 1990), 300-305.

[53] Trajan-Commodus: 12 total; the Severans, 6; third century anarchy: 6; the Tetrachic period-Julian: 9.

[54] P. Gros, "Les forums de Cuicul et de Thamugadi," *BCTH* 23 (1990), 76.

[55] Cf. P. Stewart, *Statues in Roman Society: Representation and Response* (Oxford, 2003), 88-9.

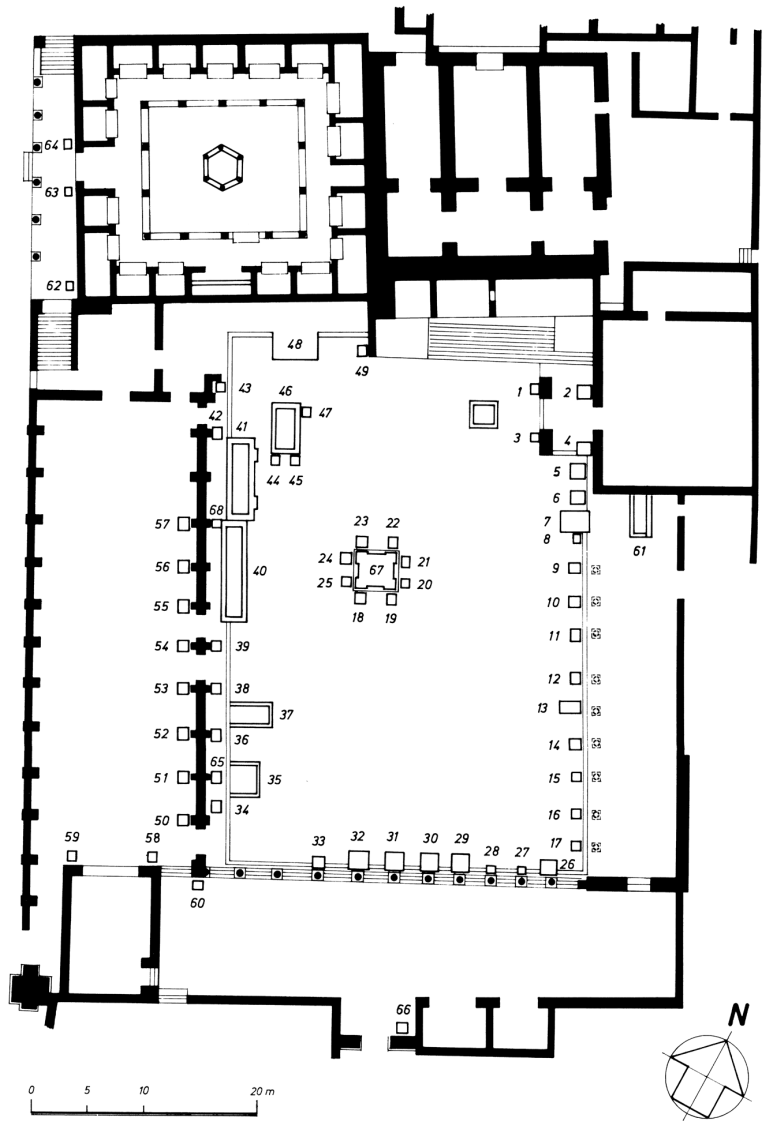



Abb. 5. Cuicul, Plan des alten Forums (1:500).

Figure 17.1 The plan of the old forum of Cuicul (G. Zimmer and G. Wesch-Klein, *Locus datus decreto decurionum: Zur Statuenaufstellung zweier Forumsanlagen im römischen Afrika* [Munich 1989] 18. The numbers are the catalogue numbers of inscriptions in ibid., 54-69

Maximus in honor of the emperor Caracalla (no. 5)[56] was inserted between two statues dedicated by the same L. Flavius Celsus to the *Genius Senatus* and *Genius Populi* of Cuicul respectively in celebration of his entering the priestly office (nos. 4 and 6).[57] L. Flavius Celsus' *summa honoraria* for his aedileship and the position of augur amounted to 21,000 sesterces respectively. The dates of the inscriptions, however, are not certain, which makes it difficult to say whether this amount was an unusually large sum or not. If they were dated to the third century, inflation would have made this amount less significant.

If the viewers were not guided by chronology or typology, the size and location of the monuments may have been better pointers. A relatively small honorific inscription to a benefactress (no. 8)[58] was found between two much larger monuments in honor of imperial families (nos. 7 and 9).[59] It may be the case that the slots near certain statues were more desirable than others. Large monuments may attract smaller statues around them. Notably, the central court of the excavated old forum was occupied by a group of nine statues (nos. 18-25, 67). Eight statues (nos. 18-25) were put up for emperors or imperial family members around a very large monument (no. 67), which seemed to have been on the axis of the forum. Unfortunately, the inscription of no. 67 has not survived. But it must have predated no. 22 (AD 203),[60] which was perhaps the earliest among the eight statues around it. The inscription of no. 19 is hardly legible. The other six statues mostly came from the Tetrarchic period or were associated with the house of Constantine. The latest dated imperial statue was that of Julian (no. 24).[61] The standard formula in the dedications to the emperors, that is, *numini maiestatique d*(*ecreto*) *d*(*ecurionum*) *p*(*ecunia*) *p*(*ublica*), continued to be used from the late second century to the fourth century.

A few points emerge from this rapid survey of the trajectory of the epigraphic and statuary history of the old forum. In third- and fourth-century Cuicul, the old forum remained not only a living place but also a highly prestigious space where imperial statues cropped up. Because of the central location of some of the fourth-century statues, they would have been more conspicuous to the contemporary viewers. The decisions to put up these statues were made collectively by the *ordo*/decurions. The programming of the statuary landscape of the forum was therefore still in the hands of the local ruling body, although access to a spot in the forum became more exclusive than ever in the fourth century. The *ob honorem* type of inscriptions indeed decreased after the third century, and that there are no examples available from the fourth century. This, however, does not necessarily mean that the statues on top of the inscribed bases would be dramatically different in nature. In fact, even in the first three centuries, dedications made *ob honorem*

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56 *ILAlg* II.7666.

57 *ILAlg* II.7657, 7654.

58 *ILAlg* II.7944 (225).

59 *ILAlg* II.7645 (205), 7638 (166-9).

60 *ILAlg* II.7813.

61 *ILAlg*. II. 7875.

were normally directed to the emperor or the imperial family or deities. The prominence of imperial statues marked the continuum of the statuary landscape of the old forum. In the late 360s, however, the location of new inscriptions shifted to the area of the Severan Forum, where a number of *pro beatitudine et felicitate d*(*ominorum*) *n*(*ostrorum*) type of building inscriptions have been found.[62] While they commemorated the continuing building activities of the governors, the involvement of the local elite, especially the *flamines perpetui*, was also recorded.

By way of conclusion, the similarities and differences between the fora of Praeneste and Cuicul should be emphasized. The fora of these cities were far from being phased out as active sites for commemorative statues and inscriptions in the fourth century; nor were the inscriptions particularly revealing of the transformation of the religious horizon. However, while in Praeneste, benefactions were still the dominant subject of the honorific inscriptions, in Cuicul, collective dedications to the emperors or the imperial family by the city were predominant. While the language of the inscriptions from Cuicul showed much uniformity in the fourth century, the inscriptions from Praeneste were more vibrant and dynamic, showing not only strong continuity of traditional honorific vocabularies and formulations, but also occasional subtle hints of the benefactors' Christian identity.

It is by no means the intention of this chapter to say that the forum was the only locale for statues and inscriptions, or that the cases of Praeneste and Cuicul cover the entire spectrum of the experiences of the fora in the Late Antique cities. They were, however, not exceptional cases. An illuminating articulation of the importance of the forum comes from Phrygian Orcistus, where an inscribed dossier recorded the city's correspondence (AD 323-31) in Latin with Constantine regarding its claim to independent city status. Among the supporting arguments, Orcistus referred to its "forum adorned with statues of earlier emperors (or leading men)" (*forum istatuis*[!] *veterum / principum ornatum*), and its population as "followers of the holiest religion" (*sectatores sanctissimae religionis*).[63] At least in Constantine's era, then, as a public space that displayed the city's loyalty to the emperors, commemorated imperial patronage, and preserved civic memory, the forum/agora with all its statues was considered as an integral and eminent feature that qualified a city as a city, regardless of the religious allegiance of either its citizens or the honorands. In a number of Italian cities, the forum was still considered the most frequented and prominent place (*celeberrimus locus*) that deserved embellishment in the fourth and early fifth centuries.[64] Honorary

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62 *ILAlg*. II. 7876-7878, 7881.

63 *ILS* 6091 =*MAMA* VII. 305. Cf. R. Van Dam, *The Roman Revolution of Constantine* (Cambridge, MA, 2007), 150-83.

64 E.g., Verona: *CIL* V. 3332=*ILS* 5363; Pisa: Rut. Nam. *De red. suo* 575-8; Puteoli: *AE* 1976.141; *CIL* V. 1693=*ILS* 791; G. Camodeca, "Ricerche su Puteoli tardoromana (fine III-IV secolo)," *Puteoli* 4-5 (1980) 86-7, 117-8; Beneventum: *CIL* IX. 1568.

titles such as *conditor fori* or *restitutor fori* were still quite desirable.[65] More case studies of Late Antique fora based on careful dating and tracing of the locations of later monuments of an honorific nature will reveal more about the role of fora in the construction of public honor in the later cities.

[65] E.g., *CIL* IX. 1596 = *ILS* 5511; E. Savino, *Campania tardoantica (284-604 d.C.)* (Bari, 2005), 244. For cautions against reading references to reconstruction/restoration as evidence of actual damage, see E. Thomas and Ch. Witschel, "Constructing Reconstruction: Claim and Reality of Roman Rebuilding Inscriptions in the Latin West." *PBSR* 60 (1992), 135-77.

# PART V
# Negotiating the Imperial Frontier

# Chapter 18
# Rebaptism as a Ritual of Cultural Integration in Vandal Africa[1]

Eric Fournier

Midway through the first book of his *History of the Vandal Persecution*, Victor of Vita narrates the story of a Vandal master who deemed it appropriate to allow his two Roman slaves, Martinianus and Maxima, to marry (1.30).[2] But Maxima was a virgin dedicated to God and she converted her husband to her ascetic lifestyle (1.31). Martinianus in turn converted his three brothers and they all fled to a nearby monastery (1.32). Incensed, the master organized a search for his slaves, who were soon found. He had them tortured, forced the spouses to consummate their union and, worse, rebaptized them (1.33). For Victor, these events were part of a persecution of Nicenes by the Vandals occurring in North Africa.[3] In this specific instance, the Vandal master failed to realize that he was now persecuting slaves that belonged to God and no longer his own.[4] The master afterward had the Roman slaves tortured daily to coerce them into converting to his Christian Homoean confession, but they were miraculously healed by Christ-doctor, and the Vandal master along with his children suffered death as a divine punishment (1.34-5).[5] The master's widow then

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[1] Thanks to Andy Merrills, Beth Digeser and Hal Drake, for their comments on earlier versions of this chapter. I am obviously solely responsible for remaining errors and for the opinions expressed here.

[2] The text of Victor (henceforth *HP*) is cited according to the edition of S. Lancel, *Victor de Vita: Histoire de la persécution vandale en Afrique* (Paris, 2002). In preparing my translations, I have consulted both the French translation of Lancel and that of J. Moorhead, *Victor of Vita: History of the Vandal Persecution* (Liverpool, 1992). Throughout, Victor's text will be referred to, following Moorhead and the conventions of scholarship, as "History of the Vandal Persecution," even if the title attested by the manuscripts is the more neutral "Historia persecutionis Africanae prouinciae." Translations are my own except where otherwise stated. Cf. L. Dossey's contribution to this volume for another take on this episode.

[3] E. Fournier, *Victor of Vita and the Vandal "Persecution": Interpreting Exile in Late Antiquity* (diss. Univ. of California, Santa Barbara, 2008). Cf. A. Merrills and R. Miles, *The Vandals* (Malden, MA, 2010), 177-203.

[4] *HP* 1.33: Inueniens itaque iam non sua sed Christi mancipia, conicit uinculis et uariis tormentis dei famulos insectatur.

[5] See S. Costanza, "Considerazioni storiografiche nell'Historia persecutionis Africanae provinciae di Vittore di Vita," *BStudLat* 6 (1976), 30-6, on Victor's (absence of) theological conception of history. See now L. Ayres, *Nicaea and Its Legacy: An Approach*

gave the slaves away. They were eventually sent to the Moors, but converted them (1.36). When the Vandal king Geiseric (428-77) heard of this, he ordered the slaves to be put to death (1.37-8).

Through Victor's one-sided description, one can still find elements of what the Vandals' policy was in religious matters. It seems clear enough from the last few sections of this story that, to Victor, conversion to one's form of Christianity was the main issue at stake. The fact that the master rebaptized his runaway slaves once he discovered that they were Nicene Christians illustrates this point, as does Geiseric's reaction when he heard that the slaves had converted the Moors. The story of Count Sebastianus, a Nicene living at the court of Geiseric, also illustrates this point. Asked to convert in front of Homoean bishops, Sebastianus found a way out by using a stratagem to stymie the king: he asked for white bread and told the Vandal ruler that he would accept being rebaptized if, after having been dipped in water and baked for a second time, the bread would come out better than it was before.[6]

The question of rebaptism—supposedly ended with the demise of "Donatism" in 411—was without a doubt an important component of the new Vandal kingdom, as both of these stories illustrate.[7] The son-in-law of the powerful western Roman general Boniface, Sebastianus sought employment at the Vandal court after becoming alienated from the Eastern court in 444. The count's advice was much appreciated by Geiseric, Victor reports, but the king still required him to convert to his religion (1.19). Sebastianus' answer to the king—a strong theological defense of the unicity of baptism—introduces an important characteristic of the Vandals' religious policy: rebaptism as the ritual of conversion *par excellence*.[8]

This chapter argues that the Vandals adopted rebaptism as the ritual of conversion to their version of Christianity because it provided strong connections to the local African Christian tradition. In doing so, the Vandals made possible a rapprochement with the majority of Christians in Roman North Africa that

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*to Fourth-Century Trinitarian Theology* (Oxford, 2004) for the problems related to the process of labeling in late antique Christianity. Cf. R.P.C. Hanson, *The Search for the Christian Doctrine of God: The Arian Controversy, 318-81* (Edinburgh, 1988), 99-128; and D.H. Williams, "Another Exception to Later Fourth-Century 'Arian' Typologies: The Case of Germinius of Sirmium," *JECS* 4 (1996), 335-57, esp. 335-40.

[6] *HP* 1.21: Sed fiat, si uelis, ut ipse propono: iste panis confringatur in frusta, madidetur aqua et iterum conspergatur, mittatur in furnum; si melior exierit, faciam quae hortaris.

[7] On the labeling problem involved with the Christian factions discussed here, see Brent Shaw, *Sacred Violence. African Chrisitans and Sectarian Hatred in the Age of Augustine* (Cambridge, 2011), 5-6, updating idem, "African Christianity: Disputes, Definitions, and 'Donatists'," in M.R. Greenshields and T.A. Robinson (eds), *Orthodoxy and Heresy in Religious Movements: Discipline and Dissent* (Lampeter, 1992), 5-34.

[8] *HP* 1.21: 'Rigatus sum aqua baptismatis et igne sancti spiritus coctus. Et, ut hic panis de furno, ita et ego per officia sacramentorum diuinorum artifice deo de fonte mundus ascendi. Sed fiat, si uelis, ut ipse propono: iste panis confringatur in frusta, madidetur aqua et iterum conspergatur, mittatur in furnum; si melior exierit, faciam quae hortaris.' On Sebastianus, see *PLRE* 2.983-4.

Catholic authorities had declared heretical specifically because of their practice of rebaptism. For both "Donatists" and Homoean Vandals, the Catholic authorities and their aggressive measures to impose their version of the faith throughout the empire represented the feared enemy. The adoption of rebaptism as the ritual through which Vandal rulers operated a unification of their realm allowed them to gain support from the local population. It also provided them with an opportunity to cement the identity of their coalition through religious means, something they were very eager to accomplish. This material illustrates the fluidity of cultural boundaries on the Roman southern frontier of North Africa, where strict religious confessional boundaries and labels gave way to expediency. If the chronology of the process is admittedly blurry—it is unclear when the Vandals adopted this ritual—by contrast it is very clear that by the reign of Huneric (477-84), rebaptism was the ritual through which Vandals would make their kingdom uniformly Homoean Christian.

Indeed, on 24 February 484, following a conference very similar to that of 411 between Catholics and "Donatists"—this time between Homoean Vandals and Catholics—the Vandal king Huneric issued an edict banning Nicene beliefs in all Vandal territories (*HP* 3.3-14).[9] 1 June was set as the deadline by which all should convert to the Homoean faith. The measures decreed by the king were henceforth applied throughout Africa, which Victor presented as stories of martyrdom.[10] Finally, the royal policy of religious unification was implemented through the ritual of rebaptism, which was carried throughout Vandal territories and coerced if necessary (3.45-52). For Catholics, it obviously constituted an intolerable violation of their souls, but from the Vandal king's point of view, it sealed the matter once and for all by making all subjects of his dominion Homoean and therefore accomplishing the desired unity of the kingdom.

The earliest African texts to deal with the Homoean faith in Africa come from the stylus of Augustine. Imperial Gothic troops under the command of military officers, and refugees fleeing from Italy and Gaul seem to have made it a

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[9] S. Lancel (ed.), *Gesta conlationis Carthaginiensis, anno 411*, CCSL 149A (Turnhout, 1974); reproduced with French translation, along with an important introduction and commentary, in *Actes de la conférence de Carthage en 411*, 4 vols (Paris, 1972-1991). Cf. E. Lamirande, in *Oeuvres de Saint Augustin* 32, 4th series: *Traités anti-donatistes* 5 (Paris, 1965), 27-77; S. Lancel, "Le sort des évêques et des communautés donatistes après la Conférence de Carthage en 411," in *Internationales Symposion* über *den Stand der Augustinus-Forschung (12 bis 16 April 1987, Giessen)* (Würzburg, 1989), 149-67; M.A. Tilley, "Dilatory Donatists or Procrastinating Catholics: The Trial at the Conference of Carthage," *ChHist* 60 (1991), 7-19; B. Alexanderson, "Après la conférence de Carthage (411) Augustin et les réactions des donatistes," in *Comunicazione e Ricezione del Documento Cristiano in Epoca tardoantica: XXXII Incontro di studiosi dell'antichità Cristiana* (Rome, 2004), 195-203.

[10] *HP* 3.21-30 and 33; cf. D. Shanzer, "Intentions and Audiences: History, Hagiography, Martyrdom, and Confession in Victor of Vita's *Historia Persecutionis*," in Merrills (ed.), *Vandals, Romans and Berbers*, 271-90.

preoccupation for the bishop of Hippo from around 417/8 onward.[11] Augustine's *Letter* 185 contains one of the earliest such allusions to the new importance of Homoeans in Africa. Writing to Count Boniface, who was in charge of enforcing the "anti-Donatist" legislation issued by the court in Ravenna, and who wanted to know the difference between Homoeans and "Donatists", Augustine mentions that the latter, "wanting to win the Goths to their side, when they see that they have some power, say that they believe the same thing as the Goths."[12] Boniface, one of the most powerful military men in the Western Empire, was not inclined to abandon his mundane pursuits, as advised by Augustine who wished that Boniface would become chaste following the passing of his wife.[13] About a decade later, however, Augustine wrote again, this time to rebuke him for having remarried, and worse, for having taken a Homoean wife:

> After I found this out, I admit, I was dumbfounded in amazement. The fact that I heard that you refused to marry her unless she first became Catholic eased my sorrow to some extent, and yet the heresy of those who deny the true Son of God has been so influential in your home that your daughter was baptized by them. Now, if what was reported to us is not false—though I wish it were false—namely, that even young women consecrated to God have been *rebaptized* by these heretics, with what great fountains of tears should we not bewail so great an evil?[14]

Quodvultdeus, a deacon at the time, had requested in 427 that Augustine write a short compendium, a history of the various heresies, in order to instruct Christians in Carthage, and especially some of the clerics who remained uneducated.[15] The

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[11] P.R.L. Brown, *Augustine of Hippo: A Biography: A New Edition with an Epilogue* (Berkeley, 2000 [1967]), 426; and A.-M. La Bonnardière, *Recherche de chronologie augustinienne* (Paris, 1965), 94-101.

[12] Aug. *Ep.* 185.1.1 (in A. Goldbacher, CSEL 57 [Vienna, 1911], 2): Aliquando autem, sicut audiuimus, nonnulli ex ipsis uolentes sibi Gothos conciliare, quando eos uident aliquid posse, dicunt hoc se credere, quod et illi credunt (tr. R. Teske, *The Works of Saint Augustine: A Translation for the 21st Century* II/3 [New York, 2004], 180).

[13] See esp. Aug. *Ep.* 220, with the comments of Brown, *Augustine*, 426-7.

[14] Aug. *Ep.* 220.4 (Goldbacher, 433-4): Quod ego cum comperissem, fateor, miratus obstipui; dolorem autem meum ex aliqua parte consolabatur, quod audiui te illam ducere noluisse, nisi prius catholica fuisset facta. Et tamen haeresis eorum, qui uerum filium dei negant, tantum praeualuit in domo tua, ut ab ipsis filia tua baptizaretur. Iam uero, si ad nos non falsa perlata sunt, quae utinam falsa sint, quod ab ipsis haereticis etiam ancillae deo dicatae *rebaptizatae sint*, quantis tantum malum plangendum est fontibus lacrimarum! (tr. R. Teske, *The Works of Saint Augustine: A Translation for the 21st Century* II/4 [New York, 2005], 74, italic added). Cf. R.W. Mathisen, "Sigisvult the Patrician, Maximinus the Arian, and Political Strategems in the Western Roman Empire, *c.*425-40," *EME* 8.2 (1999), 173-96, at 179.

[15] Aug. *Ep.* 221-4; esp. 221.2 (in Goldbacher, 443): Nonnullos in clero huiusce etiam amplissimae ciuitatis esse inperitos ex me ipso conicio. On Quodvultdeus, see now D. Van

deacon's purpose was evidently to further Augustine's lifetime combat against non-Catholics in order to obtain a pure Catholic Church; in Quodvultdeus' words: "do not refuse me the bread of Africa pure of any foreign flavors."[16] The result was Augustine's *De haeresibus*, dedicated to Quodvultdeus. This work included a section on Homoeans in which Augustine mentioned that "Donatists" also practiced rebaptism of Catholics.[17] Following Augustine's death in 430, Quodvultdeus, now bishop of Carthage, followed in his spiritual master's footsteps to become the leader of the Catholic resistance to the Vandal invaders.[18]

In this context, Quodvultdeus alludes numerous times to rebaptism, the public ritual through which the official conversion was sanctioned. Quodvultdeus attests that the Vandals attracted numerous converts through peaceful means: "Beware, dearly beloved, the contagion of the Arians; don't let them separate you from Christ with a promise of earthly goods."[19] And later, after having been exiled from Africa himself, the former bishop of Carthage writes of "Arians whom we now see seducing many either with temporal power or with the industry of an evil genius or with a certain moderation of temperance (or abstinence) or with the deception of all sorts of signs."[20]

Another sermon of Quodvultdeus attests also to the function of rebaptism as a public ritual that sanctioned the conversion, or perhaps even the allegiance of those Christians who adopted the religion of the new rulers of Africa: "[Heretic,] are you not giving money for this reason, that those wretches may sell Christ for the purpose of rebaptism, just as Judas once sold Christ to the Jews for the purpose of crucifying him?"[21] In addition to the theological differences between Nicenes and Homoeans, this repetition of the central rite of initiation to Christianity made

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Slyke, *Quodvultdeus of Carthage: The Apocalyptic Theology of a Roman African in Exile* (Strathfield, Australia, 2003).

[16] Aug. *Ep.* 223.3 (in Goldbacher, 451): Panem Afrum […] sero pulsanti sed famen patienti non deneges (tr. Teske II/4.84). Cf. Brown, *Augustine*, 415.

[17] *De haer*. 49 (in L.G. Müller, *The De Haeresibus of Saint Augustine: A Translation with an Introduction and Commentary* [Washington, DC, 1956], 98): Rebaptizari quoque ab his Catholicos novimus. The full title, in numerous manuscripts, is "De Haeresibus ad Quodvultdeum."

[18] P. Courcelle, *Histoire littéraire des grandes invasions germaniques* (Paris, [3]1964), 127, 138-9; accepted by A. Isola, *I cristiani dell'Africa vandalica nei Sermones del tempo (429-534)* (Milan, 1990), 34: "Quodvultdeus la prima anima della "resistance" all'invasore."

[19] *De temp. barb. I* 8.7 (in R. Braun [ed.], *Opera Quodvultdeo Carthaginiensi episcopo tributa*, CCSL 60 [Turnhout, 1976], 436): Cauete, dilectissimi, arrianam pestem; non uos separent a Christo terrena promittendo.

[20] *Liber promissionum et praedictorum dei*, Dimidium Temporis 5.7 (in Braun, 194): Arrianos quos nunc uidemus multos seducere aut potentia temporali aut industria mali ingenii aut certe abstinentia parcitatis uel quorumlibet signorum deceptione (tr. Van Slyke, *Quodvultdeus*, 128, with modifications).

[21] *De symbolo* 1.13.8 (in Braun, 334): Ad hoc das pecuniam, ut sic tibi isti uendant Christum rebaptizandum, quemadmodum Iudas Iudaeis Christum crucifigendum? (tr. T.M.

Homoean Vandals heretical in the eyes of the former: "When Christ has restored a man to life by baptism, why does the Arian kill him by rebaptism? Be ashamed, be ashamed, O heretic."[22] Indeed, in a sermon preached immediately after the fall of Carthage in 439, Quodvultdeus seems to have despaired of the situation, as attests the way he addresses Christ: "Your enemies, who hate you, they have said that you are less than God, they have humiliated you by rebaptizing your members. Why are you silent?"[23] The puzzling question regarding this evidence is that other Homoean groups in different regions of the Mediterranean did not practice rebaptism.[24]

It would seem that the polarized religious situation the Vandals found in Africa made them increasingly aware of their own distinct form of Christian worship, and their opposition to Roman power could have led them to take a firm position against the politically dominant version of Christianity within the African religious landscape. The Vandal conquest happened during a period of strong Catholic intolerance in North Africa for all groups and people Catholics considered unorthodox, and when increasingly severe means of coercion were used to force non-Catholics into the Church.[25] Augustine was also one of the prime movers in this regard, especially in organizing the drive for imperial legislation to outlaw and force the conversion of "Donatists". Moreover, it is also likely that the strong resistance and hostility that the Catholics, led by their bishops, presented to the Vandals would have contributed to increase the division between the two religious camps.

In this polarized context, the Vandal establishment of a distinct African religious identity may have found common cause with "Donatists", the opponents

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Finn, *Quodvultdeus of Carthage: The Creedal Homilies. Conversion in Fifth-Century North Africa* [New York, 2004], 49-50).

[22] *De temp. barb. I* 8.8-9 (in Braun, 436): Quem Christus per baptismum uiuificauit, quare eum arrianus rebaptizando occidit? Erubesce, erubesce, haeretice. Cf. ibid. 8.11-2: Nemo talia damna, qualia tu integris Christo in carne uenit occidi. Erubesce, erubesce, haeretice. Quid itears quod semel datur? In membris suis iam intus est Christus, noli in istis ipsum uelle rebaptizare.

[23] *De temp. barb. II* 14.3-4 (in Braun, 486): Et nunc, domine, Dauid noster, manu fortis, tot de tuo grege cotidie perunt oues: quare tantum taces? *Ne sileas neque mitescas, deus* (Ps. 34.22). Quare taces? *Inimici tui sonuerunt, et qui te oderunt leuauerunt caput* (Ps 82.3). Quare taces? Inimici tui, qui te oderunt, ipsi te minorem dixerunt, ipsi membra tua rebaptizando humi<li>auerunt. Quare taces?

[24] With the exception of the Eunomians, on which see now E. Ferguson, *Baptism in the Early Church: History, Theology, and Liturgy in the First Five Centuries* (Grand Rapids, MI, 2009), 575-6.

[25] See E. Hermanowicz, *Possidius of Calama: A Study of the North African Episcopate in the Age of Augustine* (Oxford, 2008), for an illuminating study of the African bishops' participation in this process; and now Shaw, *Sacred Violence*.

of Catholics for more than a century over the control of Christian communities.[26] Scholars have usually assumed that any rapprochement between "Donatists"and Vandals was precluded by theological differences.[27] Despite the *Liber genealogus*, however, we have already seen that "Donatists", "wanting to win the Goths to their side, when they see that they have some power, say that they believe the same thing as the Goths."[28] This seems to indicate that certain "Donatists"were willing to compromise in order to obtain some support against the Catholic establishment that had opposed them for so long.

Basing his interpretation on the writings of Gregory the Great at the end of the sixth century, Robert Markus found a surprising picture of coexistence between "Donatists"and Catholics. Markus insists on a blurring of identity to explain the disappearance of the former; in his view, "Donatists"and Catholics united under Homoean rulers.[29] Markus is certainly right to point to the disappearance of

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[26] F.M. Clover, "The Symbiosis of Romans and Vandals in Africa," in E. Chrysos (ed.), *Die Reich und die Barbaren* (Wien, 1989), 57-73; J.K. Parsons, *The African Catholic Church under the Vandals, 429-533* (diss. King's College, London, 1994), 65, 73, 75, 100, and 223-5; Y. Modéran, "Une guerre de religion: Les deux églises d'Afrique à l'époque vandale," *AnTard* 11 (2003), 26-7 and 30; L. Dossey, "The Last Days of Vandal Africa. An Arian Commentary on Job and Its Historical Context," *JThS* 54 (2003), 60-138, at 122; J.H.W.G. Liebeschuetz, "*Gens* into *Regnum*: The Vandals," in H.-W. Goetz, J. Jarnut and W. Pohl (eds), *Regna et Gentes*: *The Relationship between Late Antique and Early Medieval Peoples and Kingdoms in the Transformation of the Roman World* (Leiden, 2003), 55-83; Cf. W. Pohl, "Justinian and the Barbarian kingdoms," in M. Maas (ed.), *The Cambridge Companion to the Age of Justinian* (Cambridge, 2005), 448-76, at 456: "Victor of Vita dwelt on the barbarian and ruthless character of Vandal rule, but his main worries in fact were that a consensus between the Vandal elite and important parts of the Roman population could thus be reached at the expense of the Catholic clergy."

[27] See, e.g., G. Halsall, *Barbarian Migrations and the Roman West, 376-568* (Cambridge, 2007), 323; cf. the excellent treatment of E. Stein, *Histoire du Bas-Empire*, J.-R. Palanque, (ed.) and tr. (Amsterdam, 1968), 1.327.

[28] Aug. *Ep.* 185.1.1 (cited n. 12, *infra*). For a new interpretation of the *Liber genealogus* that nuances the hostility to the Vandals, see A. Dearn, "Persecution and Donatist Identity in the *Liber Genealogus*," in H. Amirav and B.H. Romeny (eds), *From Rome to Constantinople: Studies in Honour of Averil Cameron* (Leuven, 2007), 127-35.

[29] R.A. Markus, *Gregory the Great and His World* (Cambridge, 1999 [1997]), 192-3: "This situation would be exactly the consequence of what one would expect of a historical development such as the schism underwent during and since the Vandal occupation: a slow blurring of the boundaries defining the separate communities; the attrition of local hostilities, often, perhaps, allowing episcopal vacancies arising on either the Donatist or the Catholic side not to be filled and thereby clearing the way for the gradual fusion of the two communities under a single bishop in many places. That such a fusion would produce local Churches which might often have preserved former Donatist traditions—particularly the practice of re-baptism—would not be surprising; nor would the prevalence of Donatist characteristics in the merged churches in areas such as Numidia, the province where Donatism had been especially strong and where Gregory's difficulties were concentrated."

"Donatists", but perhaps he is mistaken in his identification of the dominant group who absorbed them within its ranks.

While "Donatists"seem to disappear from the records under the Vandals,[30] numerous indications nevertheless point toward a certain awareness on the part of the Vandals of the controversy between Catholics and their opponents during the previous century, if not a conscious attempt by Vandal rulers to apply the strategies of coercion formerly used by Catholics against the Catholics themselves. The first and foremost indication that Vandals knew about the way Catholics had dealt with their African ecclesiastical foes is Huneric's recycling of "anti-donatist" imperial laws. Huneric's law of 484 repeats numerous methods of coercion used against "Donatists": it bans heretical meetings with the threat of confiscating buildings where they would be held and with exiling the participants (*HP* 3.8 = *CTh.* 16.5.43, 45; 6.4); it forbids baptism by heretical priests under a penalty of 10 pounds of gold (*HP* 3.8 = *CTh.* 16.5.52); it removes the right of any Catholic to write a testament (*HP* 3.9 = *CTh.* 16.5.54; cf. 16.6.4); it fixes fines according to the ranks of those who would decline to convert to the Homoean faith (*HP* 3.10 = *CTh.* 16.5.52); and it threatens the members of the administration who would help the [Catholic] heretics in any way (*HP* 3.11 = *CTh.* 16.5.46).[31] Clearly, Huneric and his advisors had access to official archives in Carthage, and were able to learn the methods of coercion that the Roman imperial administration had used against "Donatists"who were not in communion with the Nicene bishops of Africa.[32] Ironically, Honorius' order that his law of February 405 against "Donatists"be posted throughout Africa may have had the effect of ensuring that copies would be readily available to the Vandals.[33]

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Cf. Shaw, "African Christianity"; and S. Mitchell, *History of the Later Roman Empire, AD 284-641: The Transformation of the Ancient World* (Malden, MA, 2007), 282.

[30] See Parsons, *African Catholic Church*, chap. 1 appendix, "Donatism in the Vandal Period," 56-7; R.A. Markus, "Reflections on Religious Dissent in North Africa in the Byzantine Period," in G.J. Cuming (ed.), *Studies in Church History* 3 (Leiden, 1966), 140-9; idem, "Donatism: the Last Phase," in C.W. Dugmore and C. Duggan (eds), *Studies in Church History* 1 (London, 1964), 118-26. Lancel, "Le sort des évêques," stops in 418.

[31] Lancel, *Victor*, 177-9, n. 374, 376, 378-80, mentions *CTh.* 16.5.46, 52 and 54, but ignores 16.5.43, 45, and 6.4.

[32] Access to archives is also inferred by Lancel, *Victor*, 22. Cf. A.H.M. Jones, *The Later Roman Empire, 284-602: A Social, Economic and Administrative Survey* (Baltimore, 1964), 1.474-5; C. Lepelley, "L'Afrique à la veille de la conquête vandale. Quelques aspects de l'administration des provinces romaines d'Afrique avant la conquête vandale," *AnTard* 10 (2002), 62-5; and J. Matthews, "The Making of the Text," in Jill Harries and Ian Wood (eds), *The Theodosian Code. Studies in the Imperial Law of Late Antiquity* (London, 1993), 19–44, accepted by Merrills and Miles, *The Vandals*, 219.

[33] *CTh.* 16.11.2 [5 March 405]: Edictum, quod de unitate per Africanas regiones clementia nostra direxit, per diversa proponi volumus. It concerns the laws issued on 12 February 405 (*CTh.* 16.5.38, and 16.6.3-5).

The very last sentence of Victor's work, albeit considered a later addition by most, might indicate just such a link between Vandals and "Donatists".[34] After relating Huneric's death as one well suited to a persecutor, à la Lactantius, "Ps.-Victor" claimed that the "other transgressor of the revealed law (*legis datae transversor*), Nicasius who, coming from the heresy of the Donatists, had joined [the Arians], also died shortly after from a similar death."[35] At the very least this passage shows that "Donatist"conversion to the Homoean faith was a plausible scenario; and it is possible to imagine that some family vendetta dating from the Catholic coercion of "Donatists"would have been carried over during the Vandal coercion of Catholics.[36]

A second, very intriguing connection between Vandals and "Donatists"is the practice of rebaptism that Vandal bishops used against Nicenes after the conference of 484, in order to carry out the royal order for a wholesale conversion of all people living under Vandal authority (*HP* 3.46-8, 60). Rebaptism was one of the main bones of contention between Catholics and "Donatists".[37] And specifically because of this repetition of the fundamental rite of Christianity Catholics were able to transform their labeling of "Donatists"from schismatics to heretics, which allowed Catholics to pursue "Donatists"with the full rigor of anti-heretical laws.[38] We might have here evidence for continuity of religious practices

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[34] Later Addition: C. Courtois, *Victor de Vita et son oeuvre: Étude critique* (Algiers, 1954), 16, following two editors of Victor's text, Halm and Petschenig, who printed this paragraph in square brackets; accepted by Moorhead, *Victor of Vita*, 93, n. 36. However, the fact that this paragraph is attested in all manuscripts is a strong argument in favor of authenticity, as noticed by Lancel, *Victor*, 212, n. 549; cf. A. Roncoroni, "Sulla morte di re Unerico (Vittore di Vita, *Hist. pers.*, III, 71)," *Romanobarbarica* 2 (1977), 247-57, in favor of the authenticity of this paragraph.

[35] *HP* 3.71: Sed et ille legis datae transuersor ex Donatianorum heresi ad eos ueniens quondam Nicasius in breui simili morte periit. See J.-L. Maier (ed. and tr.), *Le dossier du donatisme* (Berlin, 1987-1989), 2.308, n. 4, for "Ps.-Victor."

[36] S. Raven, *Rome in Africa* (3rd edn, New York, 1993), 196: "The worst excesses against the civilian population were, no doubt, the private revenges wreaked by Donatists on their hated oppressors under cover of the invasion." Cf. L.R. Holme, *The Extinction of the Christian Churches in North Africa* (Cambridge, 1898), 84-5; and Parsons, *The African Catholic Church*, 57.

[37] See now Ferguson, *Baptism in the Early Church*, 795-803.

[38] *CTh.* 16.6.4: Adversarios catholicae fidei exstirpare huius decreti auctoritate prospeximus. Ideoque intercidendam specialiter eam sectam nova constitutione censuimus, quae, ne haeresis vocaretur, appellationem schismatis praeferebat. In tantum enim sceleris progressi dicuntur hi, quos Donatistas, vocant, ut baptisma sacrosanctum […] repetitionis infecerint. Ita contigit, ut haeresis ex schismate nasceretur. On the difference between schism and heresy, see now M.A. Tilley, "When Schism Becomes Heresy in Late Antiquity: Developing Doctrinal Deviance in the Wounded Body of Christ," *JECS* 15.1 (2007), 1-21. In this context, it is especially puzzling to read Lancel's characterization (in *Victor*, 49) of the Vandal policy of rebaptism as a novelty, "unlike any other example from Late Antiquity."

between "Donatists"and Vandal Christians. As a heterogeneous coalition trying to cement its identity through religion and to assert its hegemony, first as federates following the treaty of 435 with Valentinian III,[39] and then as an independent African kingdom under a second treaty signed in 442,[40] it is not surprising that the Vandals would have particularly developed the components of their identity which had characteristics that allowed them to differentiate themselves from the identity of the former ruling authorities. By the same token, this differentiation with Catholics based on the use of rebaptism—also a strong local African tradition, by contrast with the Catholic tradition that constantly insisted on its universalism[41]—would also allow a substantial faction of the formerly oppressed population of "Donatists" to give their support to the Vandals.

In this regard, no tradition was more African than rebaptism. Cyprian, writing in the third century, had been one of the first theologians to defend the validity of a second baptism, initiating a nasty feud with the bishop of Rome on the matter.[42] Cyprian's view remained the official position of the African church until the council of Arles condemned it in 314, at which point it had become associated (for Catholics) with the schismatic followers of Donatus. But "Donatists"constituted the church of the majority in Africa, and Catholics only succeeded in imposing their views by their successful petitions to the imperial court.[43] And so it is more likely than not that the ritual of rebaptism remained alive uninterrupted from

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[39] C. Courtois, *Les Vandales et l'Afrique* (Paris, 1955), 242; cf. H. Wolfram, *The Roman Empire and its Germanic Peoples*, tr. T. Dunlap (Berkeley, 1997), 165-7.

[40] *HP* 1.13, on which see Lancel, *Victor*, 21, n. 42, and 279, n. 33; cf. P. Heather, *The Fall of the Roman Empire: A New History of Rome and the Barbarians* (Oxford, 2006), 292; and Wolfram, *Roman Empire and its Germanic Peoples*, 167-71. The fact that Vandal kings counted the years from the conquest of Carthage warrants the interpretation that they considered this event as the foundation of their kingdom: Courtois, *Vandales*, 405-7; F.M. Clover, "Timekeeping and Dyarchy in Vandal Africa," *AnTard* 11 (2003), 45-63; idem, "L'année de Carthage et les débuts du monnayage vandale," in *Carthage et son territoire dans l'Antiquité* (Paris, 1990), 215-20. Cf. J. Conant, *Staying Roman: Vandals, Moors, and Byzantines in Late Antique North Africa, 400-700* (diss. Harvard Univ., 2004), 183-4, for the observation that Victor did use Vandal regnal chronology in his narrative (*HP* 1.24 and 1.51, to which we should add 1.2). See Y. Modéran, "Les frontières mouvantes du royaume vandale," in C. Lepelley and X. Dupuis (eds), *Frontières et limites géographiques de l'Afrique du nord antique: Hommage à Pierre Salama* (Paris, 1999), 241-64, for the territorial implications of these treaties.

[41] See esp. J.-P. Brisson, *Autonomisme et Christianisme dans l'Afrique romaine* (Paris, 1958).

[42] Cyp. *Ep.* 70-73; cf. J.P. Burns, "On Rebaptism: Social Organization in the Third Century Church," *JECS* 1 (1993), 367-403; and J.E. Merdinger, *Rome and the African Church in the Time of Augustine* (New Haven, 1997), 43-9.

[43] Majority church: W.H.C. Frend, "Augustine and State Authority: The Example of the Donatists," in *Agostino d'Ippona, Quaestiones disputatae, Palermo, 3-4 dicembre 1987* (Palermo, 1989), 49-73, at 55; idem, "Donatus 'paene totam Africam decepit'. How?" *JEH*

Cyprian's time down to the end of the Vandal period. Robin Jensen noted the "regional character" of baptismal practices, which would explain the development of rebaptism as a specifically African practice—"Donatists"felt the need to repeat baptism when it had been performed by bishops considered unworthy of their position—as a ritual of African Christian identity.[44] In a region plagued by religious conflicts as much as North Africa was in this period, it is thus no surprise that the repetition of the rite of baptism became an important component for a tradition focused on the notion of purity.[45] Neither should it surprise us that the Vandals eventually took control of the *Cypriana*, the feast of St. Cyprian.[46] After "Donatists"and Catholics, it was now the Vandals' turn to claim the heritage of the African saint. Clearly, the religious aspect of their identity mattered to the Vandals.

At the end of the initial phase of conquest, around 435, after a 14-month assault on Hippo, the Vandals lifted the siege and left, before the inhabitants allegedly departed *en masse*.[47] Subsequently, the Vandals came back and settled in the town of the late Augustine, where they resided until the capture of Carthage almost four years later.[48] Hippo was situated in Numidia, had been an "Donatist" stronghold before Augustine's consecration, and the "Donatists" of the surrounding countryside resisted imperial laws that targeted them well into the fifth century.[49] Even if one might question Frend's unsupported assertion that "Donatists" "survived and prospered" until the seventh century, the work of Markus for the time of Gregory supports the idea of the endurance of "Donatists" beyond their official dismissal in 411.[50] The combination of this evidence points toward a certain influence of "Donatist" practices on Homoean Vandals desiring to reinforce the unity of their coalition through religion, which in turn emphasized the African components of this new identity. The use of rebaptism, already established in both religious traditions,

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48 (1997), 611-27, at 626; Maier, *Le Dossier*, 1.247. Catholic petitions: Hermanowicz, *Possidius of Calama*.

44 R.M. Jensen, "Baptismal Rites and Architecture," in V. Burrus (ed.), *A People's History of Christianity* 2: *Late Ancient Christianity* (Minneapolis, 2005), 117-44, at 117: "Despite a relatively high degree of coherence in its basic symbols, asserted origins, and explained significance, the rite of baptism always has a regional character, habitation, and language."

45 Gesta III 75, 225 and 258. Cf. Hermanowicz, *Possidius*, 213; and Brown, *Augustine*, 214-5.

46 Aug. *Ep.* 151.5-6; Proc. *BV* 1.21.17-9, under Huneric; cf. Modéran, "Une guerre de religion," 40.

47 Poss. *VAug* 28; cf. E.C. Howard, "A Note on the Vandal Occupation of Hippo Regius," *JRS* 14 (1924), 257-8; H.V.M. Dennis, "Another Note on the Vandal Occupation of Hippo Regius," *JRS* 15 (1925), 263-68; and Courtois, *Vandales*, 163.

48 Dennis, "Another Note"; Courtois, *Vandales*, 164.

49 Brown, *Augustine*, 237-8.

50 W.H.C. Frend, *The Donatist Church: A Movement of Protest in North Africa* (Oxford, 1952), 301; Markus, *Gregory*, 192-3.

provided just such a common ground between the form of Christianity "native" to Africa and its new masters. In addition to this common religious ritual, "Donatists" and Vandals also shared a common enemy in the Catholic establishment. The combination of political and religious motives might well have succeeded in sealing such an unexpected alliance. If our sources do not attest to it clearly, it might well be because they are overwhelmingly Catholic, and that from their point of view, the biggest threat was now Vandal Homoeans.

It is also an intriguing possibility that the policy of coerced rebaptism would have been a way for the Vandal king to avoid applying the harsher measures described in the edict and in Victor's hagiographic passage aforementioned (*HP* 3.46-8, 60). Confirmation of this hypothesis can be found in Victor's unwilling mention—he compared it to the sign of the Beast in *Revelation*—that certificates of rebaptism were issued to avoid repetition of the coerced baptism elsewhere.[51] More significant is Victor's comment (*HP* 3.31) to the effect that the Vandals tortured their own people as well, since it might indicate that here is an instance of an action taken for reasons other than those Victor presents.[52] Victor's laconic comment makes it seem so, and this would go along with the numerous mentions of other cases where violence was inflicted on Roman Homoeans or Nicene Vandals.[53] These actions seem to pertain to boundary maintenance rather than persecution. As Danuta Shanzer observed: "we have to imagine a much more porous border between Arian and Nicene and much more traffic across it than our sources are willing to disclose."[54] I suggest that we now add "Donatists" to this equation.

Following the account of Victor of Vita, most scholars have portrayed the use of rebaptism as a part of the Vandal persecution. But rebaptism has a long history in North Africa, and therefore can be seen as an instance where Vandals were attempting to ground their policy in local tradition. Sharing of this common ritual as part of their religious ceremonies is better seen as a way to provide ground for both groups—Vandals and "Donatists"—to consolidate their political hatred of Catholics.

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[51] *HP* 3.47: At ubi eos fallacis aquae gladio peremissent, indicium eis perditionis scriptura teste tradebant ne alibi simili uiolentia traherentur. Cf. the parallel with Decius' demand for similar certificates: J.R. Knipfing, "The Libelli of the Decian Persecution," *HThR* 16 (1923), 345-90.

[52] *HP* 3.31: Diuersitates poenarum quas ex iussu regis sui ipsi Wandali in suos homines exercuerunt.

[53] *HP* 1.19, 39, 43, 45-8; 2.9-10, 23, 46; 3.13, 26-7, 31, 33-4, 39, 60, 62, 65 and 71 all involve contacts across confessional boundaries, on which see Shanzer, "Intentions and Audiences," 286-7. Cf. Clover, "The Symbiosis of Romans and Vandals," 57-73; Dossey, "The Last Days of Vandal Africa," 122.

[54] Shanzer, "Intentions and Audiences," 287.

# Chapter 19
# Shifting Frontiers in the Causasus Mountains: The Suani[1]

Guido M. Berndt

## Introduction

Writing about the major wars of his time, Agathias of Myrina (531/2-582), an East Roman historian, poet and lawyer of the sixth century,[2] stated that the conflict between the Romans and the Persians, known as the Lazic War,[3] had a long prelude:

> The Romans and the Persians had been at war for a very long time and were continually ravaging each other's territory. Sometimes they resorted to a policy of sporadic fighting and undeclared hostility making frequent forays and incursions, on other occasions they engaged in open and full-scale warfare.[4]

In his *Histories* Agathias described this East Roman–Persian conflict in Lazica. He illustrated the commitments of the Sassanian general Mermeroes (Mihr-Mihroe),[5]

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[1] The theme of this chapter was first presented at the International Medieval Congress at Leeds in 2007. I would like to thank Edward Watts and Deborah Deliyannis for inviting me to the Bloomington meeting. Verena Berndt, Eric Fournier, and Jonathan Conant helped with the English, all remaining mistakes are of course my responsibility.

[2] Several works of Agathias are preserved: parts of his epigrammatic *Cycle* (κύκλος) in the *Greek Anthology* and his *Histories*. In what follows, text and translation are cited from: *Agathias Scholasticus: The Histories*, (trans. J.D. Frendo), Corpus fontium historiae Byzantinae, Vol. 2A Series Berolinensis, (Berlin and New York, 1975). See A. Cameron, *Agathias* (Oxford, 1970); A. Kaldellis, "The Historical and Religious Views of Agathias: A Reinterpretation", *Byzantion* 69 (1999), 206-52, and, recently, D. Brodka, *Die Geschichtsphilosophie in der spätantiken Historiographie: Studien zu Prokopios von Kaisareia, Agathias von Myrina und Theophylaktos Simokattes*, Studien und Texte zur Byzantinistik 5, (Frankfurt/Main et al. 2004).

[3] Alternative names are "The Great War of Egrisi", or in Georgian historiography: the "Colchian War". Good starting points in reading the Roman-Persian entanglements are G. Greatrex and S.N.C. Lieu (eds), *The Roman Eastern Frontier and the Persian Wars: AD 363-630* (London, 2002) and B. Dignas and E. Winter, *Rome and Persia in Late Antiquity: Neighbours and Rivals* (Cambridge, 2007).

[4] Agathias, Hist. 2.18.2.

[5] J.R. Martindale, The Prosopography of the Later Roman Empire: III: AD 527-641 (Cambridge, 1992), 884-5.

the Persian withdrawal after a Roman victory fought by the *magister militum per Armeniam* Dagisthaeus[6] at Phasis,[7] the peace treaty of the year 562, which for the time being should have concluded the open war, and some flare-ups of hostility afterwards. Agathias is not the only historian to describe this war; the eruption of the conflict is narrated in the *Persian War* of Procopius of Caesarea. Of course these writers have mostly reported the main lines of the conflict. However, through a careful reading of these sweeping narratives one can detect specific historical problems, as in this case the role of a *gens* called the Suani.[8]

The military quarrels between the two superpowers of late Antiquity lasted for decades. Major hostilities lasted from the 540s to the 560s and had varying results.[9] More than once a peace treaty should have brought an end to the war. For example, the treaty mentioned above stipulated that the whole region should be put under Roman control and influence. The *magister officiorum* Petrus Patricios[10] negotiated for Justinian I and obtained Roman control over Lazica in exchange for an annual subsidy paid to the Persians. The exact amount of these payments is not known. However, the treaty did not prevent further conflicts. This was especially true when, in the next generation, Emperor Justin II (565-78), the nephew and less brilliant successor of Justinian, was no longer willing to make the stipulated payments to the Persians. Justin had a very lofty conception of the dignity of the Roman Empire. He felt that a Roman emperor should neither pay foreign powers nor should he buy peace from barbarians in order to keep the *pax Romana* in the

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[6] PLRE "Dagisthaeus 2", 380-83.

[7] O. Lordkipanidze, *Phasis: The River and City in Colchis*, *Geographica Historica* 15 (Stuttgart, 2000).

[8] A. Hermann, "Suanoi", *RE* IV A1 (1931), 467. One preliminary note is necessary: Modern research quite often equates a people called the Tzani (who mainly settled in the east of Trebizond) and the Suani. Furthermore modern theories suggest that Colchian peoples were direct ancestors of the Lazi, Mingrelians and/or Svaneti, and had played a significant role in the creation of the modern Georgian and Abkhazian peoples. Maybe this confusion originates in the Georgian and Russian languages as they call the Lazi "Chani", and this term is phonetically quite close to Suani. But as Anthony Bryer has already stated in 1967 Lazi and Tzani as well as the Suani were different peoples. See A. Bryer, "Some Notes on the Laz and Tzan (Part I)", *Bedi Kartlisa, Revue de Kartvéologie* 21/22 (1966/7), 174-95 and A. Bryer, "Some Notes on the Laz and Tzan (Part II)", *Bedi Kartlisa, Revue de Kartvéologie* 23/24 (1969), 161-8. Only later sources brought them together, maybe influenced by the fact that both the Tzani and the Suani had from time to time been allies of the Lazi. These people were described as being warlike and for centuries their territories formed part of the disputed borders of greater powers like the Byzantine and Persian Empire and, later on, the Ottoman and Russian Empire. See W.E.D. Allen, *A History of the Georgian People: From the Beginning Down to the Russian Conquest in the Nineteenth Century* (London, 1932).

[9] H. Börm, *Prokop und die Perser: Untersuchungen zu den römisch-sasanidischen Kontakten in der ausgehenden Spätantike*, Oriens et Occidens 16 (Stuttgart, 2007).

[10] PLRE III, 994-8. 3.2

border regions of his territory. He should instead force the barbarians to submit to the Roman will, even if this necessitated the use of force.[11] This attitude is shown in Agathias' *Cycle*, in which he praised this intransigent imperial position. Agathias was most likely referring to Justin II's refusal to pay subsidies to the Persian Emperor. The passage provides an insight into Agathias' impressions of Roman power in the East:

> Let no barbarian, freeing himself from the yoke-strap that passes under his neck, dare to fix his gaze on our King, the mighty warrior; nor let any weak Persian woman raise her veil and look straight at him, but kneeling on the ground and bending the proud arch of her neck, let her come uncalled and submit to Roman justice. By the ridge of the Caucasus and on the Colchian shore, where once the hard back of the iron soil was broken by the resounding hoofs of the brazen bulls, let the Phasian bride, weaving a measure in company with the Hamadryads, wheel in the dance she loves, and casting away her dread of the race of giants, sing the labours of our many-sceptred prince.[12]

Already some decades before Agathias, in AD 507, Pseudo-Joshua the Stylite had composed a *Chronicle* that sheds some light on the modalities of the Roman-Persian wars and states that there occurred what would now be called "war crimes":

> The Roman generals [ … ] were going down on forays into the Persian territory, plundering and taking captive and destroying, and the Persians migrated before them [ … ]. They found the Persian cavalry, who were gathered together to come against the Romans. The Romans crossed after them, and destroyed all the Persian cavalry, who were about 10,000 men, and plundered the property of all the fugitives. They burned many villages, and killed every male that was in them from twelve years old and upwards, but the women and children they took prisoners. [ … ] They also cut down and destroyed the vines and olives and all the trees.[13]

This was therefore a conflict which was from the beginning waged with great vehemence and brutality.[14] The primary aim of the antagonists was dominance

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[11] An excellent overview of the social and economic aspects of these attempts is provided by A.D. Lee, *War in Late Antiquity: A Social History* (Malden and Oxford, 2007).

[12] Agathias, *Cycle* (*Greek Anthology*, [ed.] W.R. Paton *The Loeb Classical Library* [Cambridge, Mass. 1916]), 4.3.47-97. See A. and A. Cameron, "The *Cycle* of Agathias", *Journal of Hellenic Studies* 86 (1966), 6-25. On the dating of the work to "probably 567 or 568" see eadem, 6.

[13] Pseudo-Joshua the Stylite, *Chron*. 79 (tr. F.R. Trombley and J.W. Watt, Pseudo-Joshua the Stylite, *Chronicle*, [TTH 32, Liverpool, 2000]).

[14] J.B. Bury, *History of the Later Roman Empire: From the Death of Theodosius I to the Death of Justinian*, 2 vols (New York, 1886, 1958). G. Greatrex, *Rome and Persia*

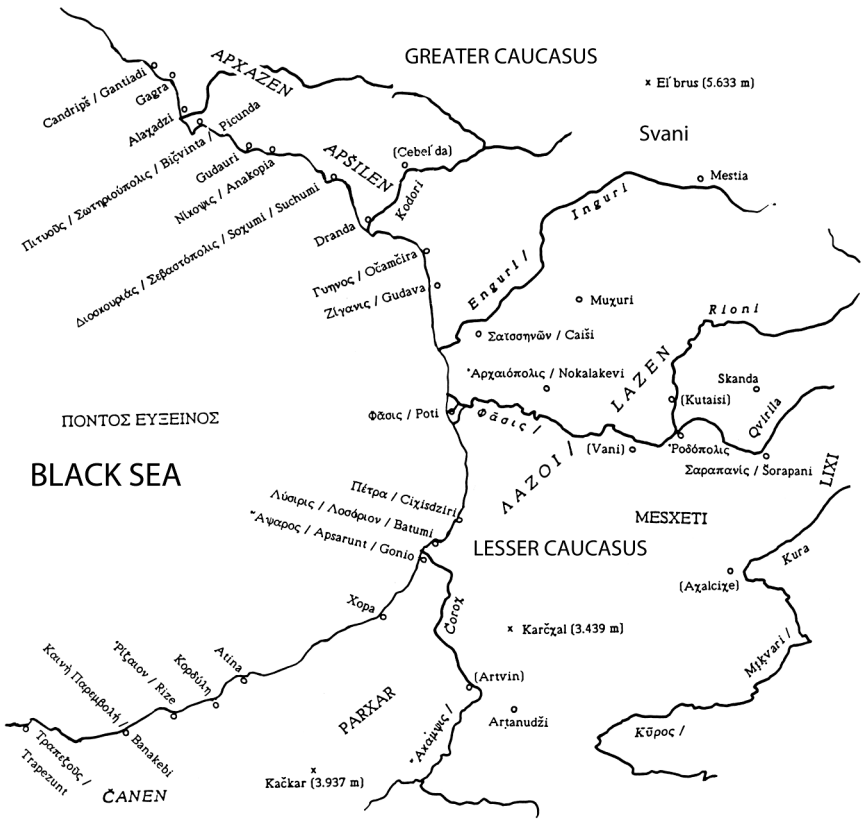



Figure 19.1 Peoples living in the Caucasus Mountains in late Antiquity [after Seibt 1992, pl. 36]

over the mountainous Caucasus region. This war is well documented and has quite often been analysed by modern scholars.

This article does not deal with the history of the Roman-Persian war in general but concentrates in particular on the Suani. This people, who had always lived in the shadow of more powerful sovereigns, became involved in the armed conflict between the Roman emperor and the Persian emperor, or king of kings. Their land, Suania, lay in the mountains of the North Caucasian promontory (see Figure 19.1). The Suani of late antiquity were under the permanent influence of a regional power,

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*at War, 502-32* (Leeds, 1998); S. Mitchell, *A History of the Later Roman Empire AD 284-641: The Transformation of the Ancient World* (Malden/ Oxford 2007), 131-4, 386-99. Many details are explained in D.C. Braund, *Georgia in Antiquity: A History of Colchis and Transcaucasian Iberia 550 BC–AD 562* (Oxford, 1994). See for instance Chapter 9 "War in Lazica", 268-314.

the kingdom of Lazica.[15] This kingdom not only included the *gens* of the Suani, but also the Scymni and other tribes, their neighbours in the mountains. Like the Suani, these *gentes* had rulers of their own. The Lazic kingdom was situated on the Black Sea coast, controlling important passes to the Caucasus Mountains, and it therefore had a key strategic importance for both empires. The rise of the Lazican kingdom took place in the fourth and the beginning of the fifth century. According to Procopius the capital was Archaeopolis.[16] Scholars have tried to identify it with the ruins of Nokalakevi which are situated in west Georgia.[17] For the Romans, the whole region was a barrier preventing a Sassanian advance through Iberia to the coasts of the Black Sea. The Romans also helped the Lazi in their attempt to keep control over Suania by establishing garrisons on their territory. The Svans living in the mountainous regions are generally regarded as direct descendants of the ancient and late antique Suani.[18] The purpose of this chapter is to analyse Greek and Roman passages concerning the Suani, and to discuss their role and their fate in the Roman-Persian wars of the sixth century.

## The Initial Situation: War in the Caucasus Mountains

In Classical and Hellenistic Antiquity the region of the eastern bank of the Black Sea was called Colchis. Already Greek geographers had mentioned numerous *gentes* there. Among them were, for example, the Moschi, Apsilae, Abasgi, Sagadae and Coraxi settling in Transcaucasian territories.[19] In the seventh century BC, maybe

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[15] Agathias used the archaic term "Colchian" to refer to Lazica and the Lazi.

[16] Procopius, *Wars* 2.29.18. Nokalakevi is one of the most important archaeological sites in West Georgia. See P. Zakaraia (ed.), *Nokalakevi-Archaeopolis: Archaeoligical Excavations I and II* (Tiblisi, 1981/1987). The fortified administrative centre was at various times capital of the west Georgian kingdoms of Colchis, and Egrisi-Lazika. Roman and Byzantine writers knew the ancient town as Archaeopolis, but in the medieval Georgian sources it is called Tsikhegoji, "the fortress of Kuji", after its eponymous and semi-legendary third-century BC founder.

[17] A. Plontke-Lüning, "Lazika, Lazike", DNP 6 (1999), 1202.

[18] W. Seibt, "Westgeorgien (Egrisi, Lazica) in frühchristlicher Zeit", in R. Pillinger, A. Pülz, and H. Vetters (eds), *Die Schwarzmeerküste in der Spätantike und im frühen Mittelalter* (Vienna, 1992), 137-44. However, that the settlement of the ancient Suani might have been more expansive can be concluded from some toponyms outside of the modern settlement area that are thought to be Svanish. See G. Rosen, *Ossetische Sprachlehre nebst einer Abhandlung über das Migrelische, Suanische und Abchasische* (Berlin, 1847). Probably the Suani came under pressure of other peoples and had to withdraw further into the mountains. See O. Lordkipanidze, *Das alte Kolchis und seine Beziehungen zur griechischen Welt vom 6. zum 4. Jahrhundert v. Chr.*, Xenia. Konstanzer Althistorische Vorträge und Forschungen 14 (Konstanz, 1985), 10

[19] M. Kazanski and A. Mastykova, *Le peuples du Caucase du Nord: Le début de histoire. I$^{er}$–VII$^{er}$ s. apr. J.C.* (Paris, 2003).

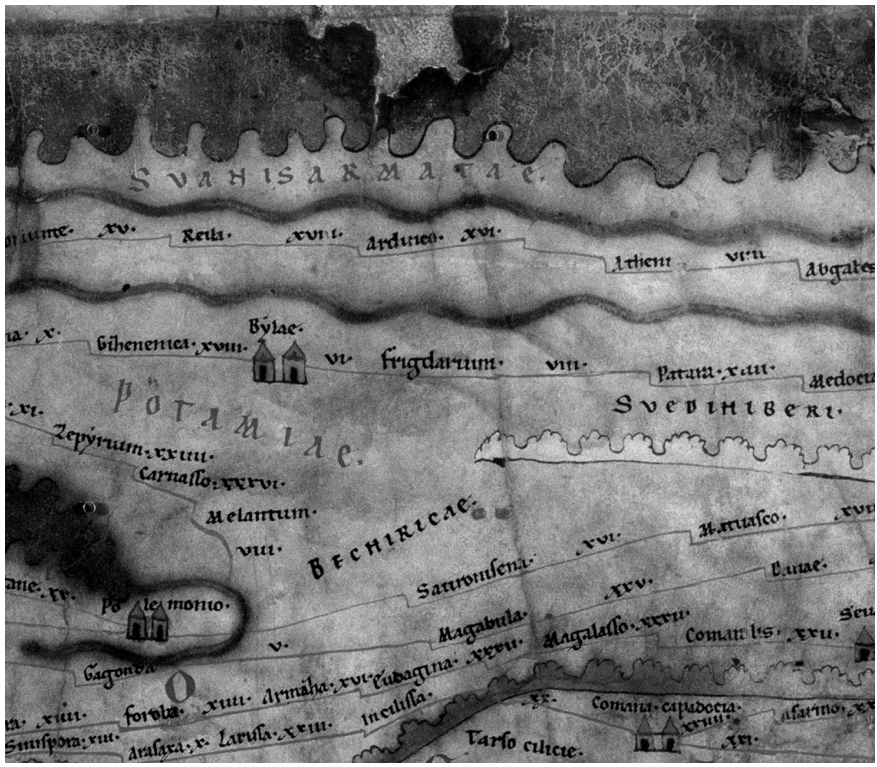



Figure 19.2 Segmentum IX of the *Tabula Peutingeriana. Codex Vindobonensis 324* (4th century): *Suani Sarmatae* [Österreichische Nationalbibliothek, Vienna]

even earlier, the Greeks had started their colonization and the establishment of trading places[20] on the eastcoast of the Black Sea, for example at Sinope, Trapezunt, Phasis (Poti), and Pithynt (Pizunda). Another important city was Dioscurias (re-founded in Roman times as Sebastopolis,[21] today Suchumi, Sukhum Kaleh), originally a colony of the Milesians. In ancient times there existed two important transit routes through the mountains, and a road that connected the Black Sea coast with the countries of the Near East. These trade routes also maintained their importance in late antiquity and the early Middle Ages. In the north this Roman border region was defined by the Caucasus Mountains, which limited the

[20] R. Drews, "The Earliest Greek Settlements on the Black Sea", *Journal of Hellenic Studies* 96 (1976), 18-31, here 18 and 29.

[21] J.G.F. Hind, "Greek and Barbarian Peoples on the Shores of the Black Sea", *Archaeological Reports* 30 (1983/84), 71-97, 92.

mountain peoples to the areas of the Sarmati.[22] This region was defined by various geographical features: high mountains and plateaus, seacoasts, valleys and steppe areas.[23] Certainly these natural constants had an influence on the formation of more differentiated social systems and their respective cultural developments. The course of conquest by and conflict with adjacent realms and neighbouring peoples had already shaped the region's history since early Antiquity. The "indigenous" peoples had to go to war again and again to fight for their independence.

In the course of the Roman Empire's expansion, Colchis came under Roman dominion too.[24] There were several attempts to resist this, however. So, for example, shortly after Pompey had passed away, Pharnaces, son of Mithridates, dared an open revolt against the Romans, although without success. Despite the fact that all major fortresses along the seacoast were occupied by the Romans,[25] their control over the hinterland was not as secure. Lowlands and coastal areas were quite frequently raided by the peoples of the mountains, with the Suani and a *gens* called the Heniochi being the most active of them. Paying nominal tribute to the Romans, they tried and sometimes succeeded in creating their own realms. From time to time they also enjoyed significant independence. Pliny the Elder, who had some knowledge about the Caucasian *gentes*, wrote in his *Naturalis historiae*:

> Beyond the Gates of Caucasus, in the Gordyæan Mountains, the Valli and the Suani, uncivilized tribes [*indomitae gentes*], are found; still, however, they work the mines of gold there.[26]

This is an illuminating statement because it reveals the Roman interest in the region as being due to its rich deposits of gold and other precious metals.

In the fourth century the Lazi subdued several neighbouring tribes, such as the Absilae, the Abasgi and the Suani. This was the beginning of the rise of a new

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[22] On the *Tabula Peutingeriana*, a world map of the 4th century AD there is the significant entry: *Suani Sarmatae*. See Figure 19.2.

[23] Braund, Georgia in Antiquity, 40.

[24] E. Dabrowa, "Roman Policy in Transcaucasia from Pompey to Domitian", in D.H. French and C.S. Lightfoot (eds), *The Eastern Frontier of the Roman Empire* (BAR Int. Ser. 553, I., Oxford, 1989), 67-76.

[25] D.C. Braund, "Coping with the Caucasus: Roman Responses to Local Conditions in Colchis", in D.H. French and C.S. Lightfoot (eds), *The Eastern Frontier of the Roman Empire*, BAR Int. Ser. 553, vol. I. (Oxford, 1989), 31-43.

[26] Pliny, *Nat. Hist*. 6.12.30. Pliny in *Nat. Hist* 33.52 reports that a large quantity of gold and silver was extracted in Suania: *talentum Aegyptium pondo LXXX patere M. Varro tradit. iam regnaverat in Colchis Saulaces Aetae suboles, qui terram virginem nactus plurimum auri argentique eruisse dicitur in Suanorum gente, et alioqui velleribus aureis incluto regno. et illius aureae camarae, argenteae trabes et columnae atque parastaticae narrantur vicate Sesostri, Aegypti regi tam superbo, ut prodatur annis quibusque sorte reges singulos e subiectis iungere ad currum solitus atque ita triumphare!*

ethno-political formation. Intermittently Lazica became a sovereign dominion which confederated with Rome through client kings,[27] but which formed alliances with the Sassanians when they offered better options. This latter tendency is seen between the end of the fifth century and 520 and again in the 540s. However, these alliances were obviously not binding for their client-rulers, as still in 535 a *novella* of Justinian points out that the Suani belong to those *gentes* who are friends of the Roman Empire:

> Then follows the region of the Tzani, now under the control of our sway for the first time, which too has some cities recently built and will have others to be built soon hereafter. Other nations further back are the Suani, Scymni, Apsilae, Abasgi, and others, now, by the grace of God, our friends, and belonging to us.[28]

On the eastern frontiers of the Roman Empire such claims were often problematic, as Thomas Sizgorich has pointed out: "The Tzani, Abasgi, Misimians, and Lazi claimed no ancestral links with Rome nor were they culturally Roman. Indeed, whatever claims to a shared ancestral or political heritage the Romans might advance in this region, the Persians might well answer with equally strong counter claims."[29] The Sassanians had once recognized the territories of Lazica as part of the East-Roman sphere of influence by a treaty agreed to in AD 532, but even this did not suggest a permanent resolution of its status. "Neither Byzantium nor Persia could have great confidence in the endlessness of the endless peace. Rather, it was breathing space, particularly convenient perhaps for Chosroes, who had just succeeded to the Sassanian throne in 531, while Justinian, himself only some five years emperor, had ambitions in the West, where he proceeded to wage war."[30] However, Roman efforts to establish their own administration resulted in a Lazic uprising in the years 541/2.[31]

The emperor had ordered the Lazic troops to protect the region against the expanding movements of the Persians. The *magister officiorum* Peter,[32] who had already participated in the Gothic wars of Justinian in Italy, was stationed there. John Tzibos[33] followed and convinced the emperor to found at the coast a city

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[27] R.C. Blockley, *East Roman Foreign Policy: Formation and Conduct from Diocletian to Anastasius* (Leeds, 1992).

[28] Nov. XXVIII (AD 535): *Deinde Tazannorum succedit provincia, nunc primum a nobis Romanis acquisita et civitates et ipsa alias quidem modo factas suscipiens, alias autem, quantum fuerit, faciendas susceptura; aliaeque post illam gentes sedent; Suani et Scymni et Absilae et Abasgi et aliae nunc deo dante amicae et nostrae*.

[29] T. Sizgorich, "Reasoned Violence and Shifty Frontiers: Shared Victory in the Late Roman East", in H.A. Drake (ed.) *Violence in Late Antiquity: Perceptions and Practices* (Aldershot, 2006), 167-76, 171.

[30] Braund, Georgia in Antiquity, 290.

[31] Seibt, "Westgeorgien", 140.

[32] See PLRE III, 994-8.

[33] See PLRE III, 638-9.

named Petra from which to control the Roman territories. Of course, this city became the base from which John wanted to administrate Lazica. In addition, he obviously took advantage of the poverty of the Lazi by establishing a Roman trade monopoly and by controlling all imports and exports. These actions induced the Lazic king Gubazes in the year 541 to call the Persian king Chosroes for help against the Romans. Gubazes allied with the Abasgi:

> He [Gubazes] proclaimed these sentiments openly and made them known not only to the Persian forces for whose benefit he was actively intriguing but messengers were at once despatched by him and carried the news to Iberia, to the Alans, the Suanians, the barbarians beyond the Caucasus, to more distant and still more distant peoples. Indeed if they could have travelled to the ends of the earth for him he would not have declined to send them. His message was: "The Romans are cowards in war and are being beaten by the barbarians."[34]

The Persian emperor Chosroes had already appropriated and occupied much of their territory including some of the most strategically important positions. Far from being satisfied with his successes he endeavoured to complete its subjugation.

Responding to the appeal for help from the Lazic king Gubazes, the Persian emperor Chosroes immediately invaded the land of the Lazi and conquered the city of Petra. He furthermore tried to establish a "protectorate" over the whole region. However, the attempt to establish direct Persian control and the flanking missionary efforts to establish Zoroastrianism as the main religious belief there failed shortly afterwards. Gubazes again revolted, this time against the Persians, in AD 548. His successor Gubazes II requested aid from Justinian. The emperor sent 7,000 Roman soldiers and 1,000 Sanni (Tzani?) as auxiliaries under the leadership of the aforementioned Dagisthaeus to help the Lazic king, and invested the Petra fortress. Persian reinforcements under Mermeroes defeated a small Roman force guarding the mountain passes and relieved the besieged Petra. Mermeroes now garrisoned 3,000 men in Petra and marched to Armenia, leaving 5,000 soldiers to plunder Lazica. In AD 550 his force was destroyed by Dagisthaeus at the Phasis River. Another Persian offensive proved to be unsuccessful after their commander Chorianes[35] was killed in a decisive battle at the River Ippi. The Roman commander Bessas quelled a pro-Persian revolt of the Abasgi, retook Petra and defeated Mermeroes at the Battle of Archaeopolis in AD 551. In short, the outcomes of battles and war changed quickly.

## What Role Did the Suani Play in the Roman-Persian-Lazican Conflicts?

The Suani appear in the course of the Roman-Persian-Lazican conflicts. The Caucasian peoples took advantage of the fact that the Eastern Roman Empire and

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[34] Agathias Hist. 4.9.1.

[35] PLRE III, 301-2.



Figure 19.3 The victorious emperor on the *Barbarini Ivory* [Département des Objets d'art, Louvre, Paris (OA 9063)]

Persia only cooperated when circumstances demanded that they do so. Though Persia might have wanted a firmer arrangement in Lazica, the Lazi and the Suani could continue to play both of them off against each other. This becomes very clear in the negotiations at the Persian court over the status of Suania. Menander Protector reports that Peter, envoy of the Romans, claimed that:

> The flame of war has been extinguished, and we breathe again. Yet one spark alone remains, I mean Suania, that spark of evil which threatens to become a mighty inferno of enmity … For there is one completely sure way to banish war and that is to resign Suania to us, since we are established as the masters of Lazica. For how can the master of the overlord be not master of the subject? Yet neither the Lazi nor the Suani themselves will seek to dispute that Suania was subject to the Lazi from the beginning and that the nominated ruler of the Suani received his authority by the will of the king of the Lazi.[36]

Peter was very well prepared for the negotiations and brought a document demonstrating that the Roman claims were justifiable. This list named all the kings of the Lazi who had appointed the rulers of the Suani:

> These are the kings of the Lazi who appointed the princes of the Suani from the time when Theodosius was ruler of the Romans and Varanes of the Persians to the reigns of Leo the Emperor and Perozes.[37]

Even Procopius shows an awareness of the strategic significance of Lazica when he lists the advantages which Chosroes of Persia could derive from the possession of the region:

> But most of all he hoped that the subjugation of Lazica would afford this advantage to the Persians, that starting from there they might overrun with no trouble both by land and by sea the countries along the Euxine Sea, as it is called, and thus win over the Cappadocians and the Galatians and Bithynians who adjoin them, and capture Byzantium by a sudden assault with no one opposing them.[38]

Procopius stresses here that access to the Black Sea was one of the most important advantages which the Persians could have gained. There is no reason to doubt Procopius' assessment of the vital strategic importance of the region where the Suani were dwelling. This helps to account for the special position they obtained through diplomacy and warfare in this period. By the fifth century the Lazi had emerged as the dominant people in western Transcaucasia. The other peoples of the region constituted the Lazican kingdom.

Already under Emperor Leo II the Romans had had difficulties with the Suani. In the reign of Leo, some Suanian forts had been seized by the Persians, and the Suani had sought help from the emperor.[39] However, since Leo was involved

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[36] Menander Protector, *fr*. 6.1 (*Exc. de Leg. Rom*. 3). Considerable fragments of his work are preserved in the excerpts of Constantine Porphyrogenitus and in the Suidas.

[37] Menander Protector, fr. 6.1.

[38] Procopius, Wars 2.28.18.

[39] Priscus, fr. 22.

in even more serious conflicts in the West, he withdrew his troops from these conflicts in order to send them to these more pressing affairs like his conflict with the Vandals.[40]

In the first half of the sixth century Justinian's (Figure 19.3) policy of "reconquista" led him to attacks on the Vandal kingdom in Africa and the Goths in Italy.[41] This required the emperor to come to terms with Chosroes in the east in order to avoid a war on two fronts. A side-effect of this conflict was that it offered an opportunity for the Caucasian peoples to take an independent political and military position. In his endeavours to expand, Justinian was confronted with two theatres of war, but despite occasional assumptions to the contrary, he did not neglect the defence of the eastern borders in favour of his conquests in the West. This presented the Suani in Transcaucasia with a choice: should they align themselves with the East Romans or with the Persians? With skilful political manoeuvring between these two powerful neighbours, the Suani at least occasionally succeeded in retaining their own identity as, in the words of Pliny the Elder, an "uncontrollable and invincible mountain people".[42]

Unfortunately, written sources have transmitted only a few names of Suanian individuals. Claiming to continue the work of Agathias, and therefore picking up where the latter left off in AD 557, Menander Protector named Tzathius as a Suanian ruler in one of his preserved fragments. It seems that this Tzathius had abandoned Christianity to aid his political ambitions in Persia but was later on rebaptized:

> Actually, when Tzath was chief of the Suani, a certain Ditatus was commander of the Roman troops there, and there were other Romans also living amongst the Suani. When ill feeling arose between the king of the Lazi and Martin, at that time the general of the Romans in Lazica, on account of this the Colchian did not send to the Suani the usual supply of grain (for grain was customarily sent by the king of the Colchians). The Suani, therefore, angry that they failed to receive what was customarily theirs, told the Persians that if they came to Suania, they would hand over the territory to them.[43]

This is one of the very few examples of an aristocrat of this *gens* in late antique sources. Indeed the title ἡγεμών which Menander used, points to a kinglike position for this man.[44] What becomes quite clear from the study of the scarce sources is that the Lazican king attempted to dominate his neighbours (Abasgi, Misimiani,

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[40] B. Croke, "The Imperial Reigns of Leo II", BZ 96 (2003), 559-75.

[41] J.W. Barker, Justinian and the Later Roman Empire (Madison, Wisconsin, 1966); W. Pohl, "Justinian and the barbarian kingdoms", in M. Maas (ed.), The Age of Justinian (Cambridge, 2005), 448-76.

[42] Pliny, Nat. Hist. 6.11.

[43] Menander Protector, fr. 6.1.

[44] Cf. Procopius Wars 8.2.23 and 8.3.12-15 for a slightly different view.

etc.) in a manner that he had adapted from Roman rulers. Obviously this kingdom was meant to function as a miniature Roman state, but of course there was also Persian influence on their royal practices following half a century of alliance.[45] This political structure, centred upon the Lazi, provided the means to manage the complex affairs and relations involving the various peoples of the entire area. The organization and administration of the region was greatly facilitated, both in peace and in war. The small inland district of Suania, situated in the hills of northern Lazica, had hitherto been a dependent of that kingdom.[46] Its rulers were nominated by the Lazic kings. The Suanians in AD 552 repudiated this connection and went over to the Persians, who sent troops to occupy the territory.[47] In the year 553 there were again fierce battles in Phasis. After the Persian commanding officer Mermeroes had been killed, Nachoragan[48] was determined to be the new commander of the Persian troops in Lazica. In the spring of 555 he prepared a wide-ranging campaign against the Romans for which he managed to mobilize 60,000 soldiers. Later on he besieged Phasis, but was overpowered by the Romans and had to flee after suffering heavy losses.[49] Agathias wrote that this failure caused the Persian king to execute Nachoragan cruelly by skinning him alive.[50] Priscus reports that from this time onwards Suania was mainly under the influence of the Persians (*fr*. 51). When the Persians finally accepted the alliances of Constantinople and Lazica in 561/2 the land of the Suani still remained an "apple of discord". The strategic position of Suania as a gateway to the eastern outposts of the Roman state was of such importance that the emperor could not ignore the Persian presence on their doorstep. However, the capacities of the Roman army were not sufficient to change the *status quo* in these years.

## The Conflict Flares Up

On the other side of the world the chronicler John of Biclaro was well aware of the new outbreak of violence between Romans and Persians. In an entry for the year 576 (written circa 590 in Hispania), he refers to the conflict, especially emphasizing the religious implications:

> When the Armenians and the Iberians, who had received the faith as a result of the preaching of the apostles of Christ, were compelled by Chosroes, the Emperor of the Persians, to worship idols, they rejected such an impious

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45 Braund, Georgia in Antiquity, 280.

46 Seibt, "Westgeorgien", 138 speaks about the Suani as "vassals" of the Lazic kingdom.

47 We learn this from the negotiations of AD 562; Menander, fr. 3.

48 PLRE III, 909-10.

49 Agathias, Hist. 3.19.8

50 Agathias, Hist. 4.23.2-3.

> command and handed themselves, along with their provinces, over to Rome. This broke the peace treaty between the Romans and the Persians.[51]

It is worth mentioning that John retrospectively blames Chosroes for starting the violence with his attempts to impose Zoroastrianism on his territories. This confrontation then had not only a political but also an ideological meaning. The expansion of the Sassanians, in geopolitical terms, meant the destruction of Roman power, as well as the creation of an additional forum for the expulsion of Rome from the Caucasus and, ultimately, from the East. The inclusion of these religious aspects could be regarded as an attempt to bring the whole of the Caucasus region under Persian domination through the rejection of Christianity.[52] That is why the Roman–Persian war included a religious component from its beginning. Roman attempts to strengthen their power in the Caucasus region are completely neglected by John.

Since Republican times, Rome had claimed formal recognition for their client-kings. This recognition was commonly accompanied by the award of symbols of power. Menander Protector reports on the Lazican dispatch of *regalia* to the Suani, by order of the Roman Emperor.[53] This practice seems to result from a treaty dating back to 422 in which the Persians had accepted Roman control of Lazica.

A fragment of the historian Priscus contains some data on the Suani. Unfortunately there is a corrupted part in the passage which describes the Roman-Lazican-Persian-Suanian conflict:

> A serious dispute existed between the Romans and Lazi and the nation of the Suani (*Souanon ethnos*). The Suanians were making war on [LACUNA] and the Persians wished to go to war with him because of the forts which had been captured by the Suani.[54]

It is not quite clear what hostilities and coalitions preceded these turmoils in Transcaucasia. However, it seems apparent that the Suanian *gens* tried to seize this opportunity to end the Lazican hegemony. Although the operations of the Persians in these years had met with no conspicuous success, they had gained one considerable advantage without suffering losses themselves. In the year 563 the Suanians once again went over to the Persians, who sent troops to occupy the territory. No agreement was reached by the diplomats, but this question was not allowed to interfere with the conclusion of a treaty, and was kept for further negotiation. To this end the aforementioned Peter went to the court of Chosroes in

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[51] John of Biclaro, ChronChron. 3.

[52] For the Christianization of the region see P. Peeters, "Les débuts du Christianisme en Géorgie. D'après les sources hagiographiques", Analecta Bollandiana 50 (1932), 5-58.

[53] Menander Protector fr. 6.1.

[54] Priscus fr. 51. On this passage, see D.C. Braund, "Priscus on the Suani", Phoenix 46/1 (1992), 62-5 with text and translation.

the following year, but he refused to give in to the king's argument that Suania was a part of Lazica. In the course of the conversation, Chosroes made it clear that this matter should be decided by no one else but himself.

One can change the perspective once again by consulting a second entry from the chronicle of John of Biclaro. He had spent some years in Constantinople between 560 and 576 and he apparently obtained his information during his sojourn there. After his return to the Visigothic kingdom he wrote a chronicle that was meant as a continuation of that of Victor of Tunnuna. This report covers a period of approximately 20 years. In addition to important information about the history of the Visigoths it contains a lot of information about a variety of different peoples. For the year AD 571 John of Biclaro reported in his chronicle:

> The emperor Justin defeated the Persians, making Armenia and Iberia Caucasi Roman provinces. The emperor of the Persians prepared for war through his generals.[55]

He then wrote that the Persians in AD 574 broke the peace treaty (*Chron*. 31) by sending their forces and attacking the city of Dara, killing many Roman soldiers. He also reported that the family of the Suanian ruler, who unfortunately remains anonymous, along with a treasure from Suanian residential areas, were brought to Constantinople.[56] The army master Romanus supervised this transport, which underlines the extraordinary meaning of this process:

> Romanus, son of the patrician Anagastus and magister militum, captured alive the king of the Suani [*Suanorum regem*]. He took him, along with his treasure, his wife, and his children, to Constantinople and brought his province under the dominion of the Romans.[57]

This passage illustrates two things. First, it shows that, in the sixth century, the Suani had been under the leadership of a king and had lost their independence in the course of the Lazican War. Second, the Suanian king was taken with his treasure to the Roman capital. Surely we would like to know what kind of treasure it was. Recent scholarship has shown the importance of treasures in the early medieval kingdoms. It is also astonishing that this information is recorded, so to speak, at the other end of the world, namely in Hispania. Obviously John was impressed by this occurrence.

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[55] John of Biclaro, Chron. 15.

[56] M. Hardt, *Gold und Herrschaft: Die Schätze europäischer Könige und Fürsten im ersten Jahrtausend* (Europa im Mittelalter 6) (Berlin, 2004), 39. See also M. Hardt, "Royal Treasures and Representation in the Early Middle Ages", in W. Pohl and H. Reimitz (eds), *Strategies of Distinction: The Construction of Ethnic Communities, 300-800*. The Transformation of the Roman World, vol. 2 (Leiden, Boston, and Cologne, 1998), 255-80.

[57] John of Biclaro, Chron. 39.

## Conclusion

Who were the Suani of late Antiquity? Were they a people led by a king or just mercenaries who changed sides between Persians, Romans and Lazi depending on the political situation? The character and politics of all the Caucasian peoples – and this is of course true for the Suanians – is hard to define.[58] It is important to notice that authors like Procopius and Agathias are mainly interested in writing about the wars of the Roman emperors. The Suanians, like almost all other *gentes* we hear about, only came to the attention of ancient writers when they entered the Roman orbit of the historian's study, and these moments usually involved war. This is what they have in common with many other Western barbarians in our late antique and early medieval sources. A distinct ethnic identity of the Suani should not be presupposed, but questions have to be asked about the *processes* of the formation of their identity. The negotiations at the Persian court ended with a statement of the Persian king when the Roman envoy Peter had stated: "My Lord, you will not ask the Suani under whom they wish to be? If they are given the option, they will choose independence;" the king replied: "Look, I do not wish to ask the Suani anything about Suania, since it is neither right nor just to leave the decision about that land to a slave."[59] The Suani were able to consolidate their position between the Roman and Persian superpowers[60] and against the Lazican kingdom for only a short period of time. Their inability to maintain a strong administrative system in their territories prevented the creation of a stable *regnum*. One consequence was that the local power structures in the shadows of two empires were not permitted to grow stronger. The Suani shared this fate with many others of the innumerable *gentes* of the Caucasian mountains.

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[58] G.L. Kavtaradze, "An Attempt to interpret some Anatolian and Caucasian Ethnonyms of the Classical Sources", *Sprache und Kultur* 3 (2002), 68-83.

[59] Menander Protector, fr. 6.1

[60] See in general J. Howard-Johnston, "The Two Great Powers in Late Antiquity: A Comparison", in J. Howard-Johnston (ed.) *East Rome, Sasanian Persia and the End of Antiquity: Historiographical and Historical Studies* (Aldershot, 2006) Text I.

Chapter 20

# The So-Called "Conquest of the Auvergne" (469-75) in the History of the Visigothic Kingdom. Relations between the Roman Elites of Southern Gaul, the Central Imperial Power in Rome and the Military Authority of the Federates on the Periphery

Christine Delaplace

Traditional historiography makes a clear distinction between the reigns of the Visigothic king Theodoric II (453-67) and the rule of his successor Euric (467-84). Historians have agreed that the Romanophile Theodoric II was succeeded by an aggressive king who was determined to put an end to the fiction of a federated kingdom, in order to impose firmly an independent kingdom on his Roman citizens and the Empire. Against this violent and uncultured king, Sidonius Apollinaris and a large part of the Roman aristocracy from Auvergne rebelled.

They were not rebelling against a discredited imperial power as they had, for example at the time of the usurpation of Constantine III in 407, or at the time of the *Marcellinae Conjuratio* after the emperor Avitus's murder in 457, but against an unlawful power who wanted to invade their country. In my opinion, introducing the personality of the Visigothic kings when we analyze a strategic change is unnecessary to explain large-scale transformations. This change needs to be reconsidered seriously, taking into account both the nature of that change and the contemporary context.

First of all, this directly follows from developments in the historical context, in which the years 465-75 were a turning point. The failure of the attempted invasion of Africa by Basiliscus's eastern fleet meant that any future aid from the East was doubtful, and his interest in Italy and the Western Empire became henceforth very uncertain. The Vandals, the Visigoths, and the Franks were able to notice the powerlessness of the Western Empire to deal with its difficulties because it had been abandoned by Constantinople, and they understood the implications of that for their own military strategies. But the weakness of the West in fact came from the imperial power itself, which was unable to avoid civil war and had problems with rival powers at the head of the imperial state. Since the restoration of imperial

power in 411 by the general Constantius and the emperor Honorius, the West had been protected from this threat. Despite difficult circumstances, this structure had lasted for nearly 60 years.

But the year 470 was a turning point. Let us look at this change before going into Gaul with Sidonius Apollinaris and discussing the following three points:

1. The civil war was a new situation because it divided the federated troops into two sides.
2. Traditional historiography has made an incorrect interpretation of the political position of Sidonius Apollinaris. His position was, in fact, pro-Burgundian and against the legitimate emperor, at least in 471 and perhaps even as early as 470.
3. The contradiction of Sidonius was that he wanted to be considered the champion of Roman civilization, while at the same time he did not support the legitimate imperial power.

This argument, however, is based on two premises:

1. We know about the events that took place in Auvergne thanks only to Sidonius's testimony, but we have been influenced by the historiographical and traditional portrait of Sidonius as the champion of Roman civilization against the Visigoths.
2. We need to distinguish between the imperial forces in Italy and in Gaul which were fighting on Anthemius's side and those which were supporting Ricimer during this civil war.

## A Radical Change in the Roman West from 470: The Civil War in Italy and its Consequences in Gaul

The attempted murder of the emperor Anthemius in 470, followed by the civil war that broke out between the emperor and Ricimer, radically transformed the situation in the Roman West. From that point, contemporary sources speak of the first military conflicts between the Goths and Italy. But it is essential to clarify this point because these sources give a wrong impression of the situation. In fact, the Visigoths clashed with the patrician Ricimer and, afterwards, with his successor and nephew Gundobad. That is to say, the Visigoths opposed the troops of the Burgundians who were in power in Italy and their puppet emperors, Olybrius and Glycerius, but were not fighting against the emperors Anthemius and Julius Nepos, who, unlike the others, had been recognized by the Eastern emperor.

Thus, Euric's strategic position does not correspond to some sort of personal plan for conquering Gaul and Italy which would have existed before the fatal eviction of King Theodoric II, but was rather a reaction to the circumstances of the dramatic events happening in Italy. Perhaps he was afraid that this new

situation of the East pulling back from western affairs would lead to a vacuum of power and that the Vandals in Africa or in Hispania, the Franks, and especially the Burgundians in Gaul would take advantage of it.[1] Now it would be interesting to reinterpret the events of the years 470-475 in Gaul in light of this Italian civil war situation.

## The "Visigothic Conquest of the Auvergne": A Historiographic Misunderstanding Arising from an Incorrect Interpretation of the Political Position of Sidonius Apollinaris

It is possible to propose this interpretation based on two premises presented in the introduction. Before going into more detail, it is necessary to explain the first premise: we know about the events that took place in Auvergne thanks only to Sidonius's testimony, but we have been influenced also by the historiographical and traditional portrait of Sidonius as the champion of Roman civilization against the Visigoths.

The letters of Sidonius that relate the events in Clermont between 472 and 475 are inevitably influenced by his desire to portray himself in the best light and in the role of *defensor civitatis* as the bishop of Clermont. In his letters, politics have been supplanted by a Christian rhetoric in which compassion, charity, the exemplary nature of a Christian, misery, and afflictions are more important than recounting the facts of events and the analysis of the balance of power between Visigoths or Burgundians and the central power. It follows that we cannot draw conclusions from this documentation without first critically examining its nature and the transformations that resulted because of this religious perspective. It seems that Sidonius consciously wanted to paint this perspective in his correspondence from 471, so much so that his attitude makes it difficult for us to understand correctly the events and his own political position during this time. With the accusation of high treason against a person who seems to have been a friend of Sidonius, Arvendus, who was taken straightaway to prison in Rome in 469 for his trial, we can see that Sidonius was a member of an aristocratic faction that until 469 was consistently on the side of the Visigoths.

During 469, Sidonius himself did not hesitate to explain his positions and assert them in the official publication of his poems and letters. As a legitimist, he supported the emperor Anthemius, and he was rewarded by him: Sidonius was granted the urban prefectory, the most prestigious office of Late Roman central

[1] John of Antioch proposed a correlation between this first attack from the Visigoths in Gaul and Theodomir's attack in Illyricum after the return from Constantinople of his nephew, Theodoric (*Frag*. 206, 2, R.C. Blockley (ed.), 1983, tome II, Priscus, 370); cf. A. Gillett, "The Accession of Euric," *Francia* 26 (1999), 25 n. 85, but I do not agree with the theory of a concerted and too early alliance between Visigoths and Ostrogoths because nothing here can explain it.

administration. Was he appointed because he was pro-Visigoth? And did this faction choose him so that he would promote the making of a treaty between Anthemius and Euric that would have reaffirmed the role of the federated Visigoths with the Emperor? On several occasions in his letters, Sidonius let it be understood that he is put in charge of a very important affair, notably in *Epist.* I, 5 and I, 9. This can explain his departure to Rome, in addition to his role as chief of the Arvernians' delegation, charged, in name of the Gallic assembly, to make contact with the new emperor coming from the Orient. But we can only speculate.

After Arvendus's trial and his own return to Gaul, Sidonius was confronted with the animosity of his friends, who were jealous of Sidonius's success: some of them perhaps disagreed with his political positions. It seems that at first he wanted to defend himself against their attacks, so that he could reclaim his place in the aristocracy of Gaul. But his political position was not the same afterward, and it is very difficult to understand why Sidonius decided, even before entering the episcopate, to renounce his first political faction, the camp of Anthemius and the Visigoths. Nevertheless, this is what is revealed in his call for help adressed to Ecdicius, the son of the emperor Avitus: "If the state has neither strength nor soldiers, if (as report has it) the emperor Anthemius has no resources, then our nobility has resolved under your guidance to give up either its country or its hair." As Frye has cleverly asserted, this does not mean "to take orders," that is, to become monks, as it has usually been understood, but means rather "to renounce freedom," that is, to become slaves, for slaves were recognizable by their shaven heads.[2]

What was Sidonius really saying here? Should we suppose that at this time Sidonius and Ecdicius intended to suggest that the aristocracy of Auvergne should defect to the Burgundians' camp, which would mean in fact renouncing all at the same time—their *patria*, the Roman Empire, and their liberty—and thereby becoming submissive to the barbarians? This letter is usually dated to late 469 or early 470,[3] and in general it concerns the treason of Seronatus, who had gone over to the Visigothic side, and the letter makes a strong indictment of him. The option proposed at the end of the letter, the alliance with the Burgundians, could be understood as an alternative to this collusion with the Visigoths, which Sidonius henceforth refused. Unfortunately, however, we do not know exactly why he joined the opposite party.

Seronatus was the governor of Aquitaine I, but in service with the Visigoths. According to Sidonius, Seronatus believed that the imperial authority had lost

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[2] Sid. Apol. *Ep.* II, 1, 4: *si nullae a republica vires, nulla praesidia, si nullae, quantum rumor est, Anthemii principis opes, statuit te auctore nobilitas seu patriam dimittere seu capillos*; D. Frye, "The Meaning of Sidonius, *Ep.* 2,1,4," *Eranos* 92 (1994), 60-61.

[3] I do not agree here with the revised dating suggested by Gillett, "Accession," 28 n. 98. He dates this letter after the defeat of Bilimer in 472 in front of Rome. But to my mind, Sidonius's call of help to Ecdicius would not be possible except before Sidonius has defended Clermont during the first blockade of the town in 471. After that it has no meaning, notably in 472.

control of the administrative circumscription of Clermont, which Sidonius accuses him of plaguing. Furthermore, we know from Sidonius's letter to the bishop Graecus, written after the treaty of 475 was signed, that Seronatus had been condemned to death after he had been arrested by the nobility of the Auvergne and sent to Rome. The procedure seems to have been the same as the one employed against Arvendus, but we do not have any precise information about his criminal proceedings.[4] The charges against him reveal a very different situation from that created by Arvendus's letter to Euric. Effectively Arvendus was accused of proposing to Euric some kind of political platform for a division of Gaul between Visigoths and Burgundians, but the charges against Seronatus concerned ordinary exactions from Roman administrators. According to Sidonius, Seronatus behaved like an official of the Visigothic power, introducing *hospitalitas* and a fiscal system in the country of Clermont, all the more unbearable given that they had no juridical or political legitimacy.[5] Did Seronatus have a stature at least as great as that of Arvendus? We doubt it. He was no doubt a simple administrator who took advantage of the anarchic situation to be a corrupt official and a tyrant. As Yver has quite rightly pointed out,[6] Seronatus was a secondary character, and for this reason, he was condemned to death because, unlike Arvendus, he did not have any support in the highest levels of power in Rome. This letter was written at the same time as Sidonius's election as bishop, which, as we know, did not seem to have been a voluntary decision for this politician, who was deeply involved in the events of his time. From the moment when Sidonius became bishop of Clermont and the *defensor civitatis* of his city, his political position seems to have changed radically. What happened so that we find him, in his letters, so fiercely hostile to the Visigoths? Few historians have paid attention to this transformation or have tried to explain it. The bishop of Clermont had certainly renounced having a political career, but in fact, what changed above all was his political camp.

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[4] Cf. F. Prévot, "Sidoine Apollinaire et l'Auvergne," Revue d'Histoire de l'Eglise de France 79 (1993), 249.

[5] Sid. Apol. *Ep.* II, 1, 3: *implet cotidie silvas fugientibus, villas hospitibus, altaria reis, carceres clericis; exsultans Gothis insultansque Romanis, inludens praefectis conludensque numerariis, leges Theudosianas calcans Theudoricianasque propnens veteres culpas, noua tributa perquirit*. For J.Harries, *Sidonius Apollinaris and the Fall of Rome AD 407-85* (Oxford, 1994), 126, there is no doubt that Sidonius is having fun playing a game of alternate sounding, but there is no proof of the existence of a *codex* of Theodoric. The entire section is an exercise in rhetoric and mental gymnastics, and it is very difficult not to be in great doubt about on the veracity of all the facts that Sidonius claims.

[6] G. Yver, "Euric, roi des Wisigoths (466-85)," *Etudes d'histoire du Moyen-Age dédiees à Gabriel Monod* (Paris, 1896), 23.

**Sidonius's Change of Political Camp**

From then on, Sidonius Apollinaris was a Burgundian supporter, although he did not openly reveal that position in his letters. Such a sudden reversal could be explained by the great part that the Burgundians had played in the defense of Clermont, but Sidonius thus agreed to support the party of Ricimer and Gundobad both in Southern Gaul and in Italy. Was he influenced by members of his family who had gone to live in Burgundy? Was he influenced by the bishops of Burgundian cities?

Alternatively, did Sidonius think that by supporting the Burgundian party he could make peace with his friends and the aristocracy of southern Gaul, who had given him the cold shoulder since 469? In doing so, he probably wanted to save the Auvergne by coming over to the side of the pro-Burgundian circles, and he hoped for their support during future diplomatic negotiations. Consequently, Sidonius ended up in the camp opposed to the legitimate emperors Anthemius and later Julius Nepos, who were helped on their side by their traditional allies, the legitimist federated Visigoths!

The logical conclusion is that the context of civil war and of struggle for imperial power was the real cause of the events arising in Gaul between 470 and 475. These events did not happen completely separately from this political clash. They are in fact the direct consequence of this civil war, as was the case with Constantine III and Jovinus's usurpations in the years 405-11 and the restoration of imperial power in Gaul, established by Constantius and Honorius.

This is my second premise: we need to distinguish between the imperial forces in Italy and Gaul that were fighting on Anthemius's side and those that were supporting Ricimer during this civil war. In this connection, it is important to realize that the first attempted assassination of Anthemius occurred in 470, and from that moment on, it is dangerous for us to confuse the respective positions of the emperor and his *patricius*. The political activity credited to Anthemius, in particular his search for political and military support in Gaul, which only comes down to us from later sources, should be, in my opinion, considered as the politics of Ricimer, which were directed against Anthemius. If we start from this premise, there is no doubt that the events in Gaul of the years 470-475 have to be decrypted in a very different manner than what traditionally has been proposed.[7]

The Visigothic attack on the Britons established on the Loire is not dated before 471.[8] This attack will doubtless correspond to a request for help lodged by Anthemius with the Visigothic federates. It would appear to have been a method to get rid of an ancient ally with 12,000 men who had defected to Ricimer's

[7] We are getting here radically away from the interpretations of J. Favrod, *Histoire politique du royaume burgonde* (Lausanne, 1997), 250-254.

[8] Sid.Apol. *Epist.* I, 7. Cf. the discussion concerning the different proposed dates in Gillett, "Accession," 25 n. 85.

party, perhaps with the help of Odoacer.[9] We know that Euric had defeated the king Riothamus at Deols near the city of Châteauroux. The victory was, for classical historiography, King Euric's first territorial advance to the Loire. Moreover Euric forced the king of the Britons to exile himself among the Burgundians. This king Riothamus seems to be well known to Sidonius, who could have made his acquaintance in Lyon and on top of that sent him a personal letter (*Epist.* III, 9). We might be surprised to find that the bishop of Clermont knew a barbarian who was so far removed from his world and maintained correspondence with him, unless we keep in mind Sidonius's new alliances with the Burgundians, which tends to support this original theory. Nevertheless, one event seems not to agree with this new interpretation of the alliances. In 471 the emperor Anthemius sent an army to Provence, under the command of his son Anthemiolus, with the order to fight against a Visigothic army. This is traditionally considered to be the first time that Euric's army fought against the Empire. The imperial army was defeated, and Anthemiolus was killed.[10] But it is always forgotten that Sidonius Apollinaris, in a letter dated to 471 by Loyen but which might have been written a bit later, hints at a diplomatic mission sent to the Visigoths, entrusted to the nephew of the emperor Avitus, who was also the cousin of the bishop of Clermont and named also Avitus.[11] It was perhaps a rather usual negotiation scenario between the Visigoths and the Roman power, the first wanting to obtain a new *foedus* from the second. To achieve this, military pressure was applied just south of Arles, as they used to do in the past when there were other negotiations.

This time the battle finished with the total defeat of the Roman forces. But the expected diplomatic achievement was obtained by the two parties: on the one hand, Arles was liberated and became Roman again in 472; on the other hand, the Visigoths were required officially to fight against the Burgundians and Ricimer in Auvergne and also in Italy. Anthemius could even call back from Gaul troops that he urgently needed against Ricimer. The siege of Rome in which he was locked up had lasted for five months now. Paul the Deacon tells us that the *rector Galliarum* Bilimer came quickly with his troops but that he was killed next to the Castel Sant'Angelo.[12] There can be no doubt that this character had a Gothic name and

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[9] We know the existence of this alliance thanks only to the account of Jordanes, *Getica* 237. Most historians do not make a distinction between Ricimer and Anthemius in this affair; cf. C.E. Stevens, *Sidonius Apollinaris and his Age* (Oxford, 1933), 94; J.M. O'Flynn, "A Greek on the Roman Throne: The Fate of Anthemius," *Historia* 40 (1991), 126.

[10] *Chron. gallica a. DXI*, *M.G.H., A.A.,* 9, *Chron. minora* I, 664: *649 XIIII Antimolus a patre Anthemio imperatore cum Thorisario, Everdingo et Hermiano com. Stabuli Arelate directus est: quibus rex Euricus trans Rhodanum occurrit occisisque ducibus omnia vastavit*.

[11] Sid. Apol. *Epist*. III, 1, 5: *Sed fas est praesule deo vobis inter eos et rempublicam mediis animo quietiora concipere …*

[12] Paul the Deacon, *Hist. romana*, XV, 4, 208-9: *Bilimer Galliarum rector congita adversus Anthemium conspiratione Ricimeris Anthemio ferre praesidium cupiens Romam properavit. Is cum Ricimere apud Hadriani pontem proelium committens continuo ab eo*

an important military function. Paul identifies Bilimer with the expression *rector Galliarum*, but some historians have viewed him in the same category of *magister militum*. They conclude that he was the successor of Gundobad, who had left Gaul for Italy, in the function of *magister militum per Gallias*.

Thus, if we could be absolutely certain of this Bilimer's Gallic office and transfer, it would corroborate the idea that the diplomatic accord between Euric and Anthemius was accompanied by a clause of alliance and military help. Some historians, however, want to see Bilimer as an Ostrogoth because of the onomastical proximity between his name and Vidimer or Valamer's Ostrogothic names.[13] But we should remember that during the investiture of the emperor Avitus in Toulouse, the Visigothic troops are called "*Galliarum exercitus*." The development of the battle of Arles, incomprehensible at first glance, turns out to be coherent with these arguments, but we have to confess that the Gallic identity of Bilimer is not certain.[14]

In the following years, Sidonius, who had become bishop of the city of Clermont, was especially concerned with his fellow citizens' situation during the four-year blockade of the city. It seems better to call this situation a blockade and not a siege because it was the suburbs that suffered more from destruction, even if the enclosed population suffered from the difficulties of provisioning and from the lack of land under cultivation in the hinterland.[15] In fact, we need to stop using the terms "conquest of the Auvergne" and "resistance" of the Arvernian people, because these phrases have been used by modern French historians who had been marked by three wars with Germany, an invading and occupying power correlated with its ancestors, the Germanic barbarians. The blockade of the city ceased during the period of military interruption for the Goths, who returned every autumn to where they were quartered and then launched another attack the following spring. The most dramatic events took place in 473 and especially in 474, when the population suffered famine. On the other hand, it seems that in 471 and 472 the city was merely subject to some small skirmishes.

As the events in Italy began to look more like a real civil war, the pressure was becoming more marked in Auvergne; Gundobad was defending in Italy the interests both of his uncle Ricimer, whom he would soon succeed, and of

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*superatus atque occisus est*; Cassiod., *Chronica*, a. 472, *M.G.H., A.A.,* 11*, Chron. minora*, II, 158: *Festus et Marcianus His conss. Patricius Ricimer Romae facto imperatore Olybrio Anthemium contra reverentiam principis et ius adfinitatis cum gravi clade civitatis extinguit*.

[13] J.R. Martingale, *PLRE* II, 230: "He was probably appointed *magister militum per Gallias* in place of Gundobadus 1 when the latter joined Ricimer against Anthemius … His name recalls those of Valamer and Vidimer 1 and 2 and he may have been like them an Ostrogoth."

[14] Harries, *Sidonius*, 225, seems to be quite sure of his Visigothic origin, and she thinks that he comes from Gaul.

[15] Same point of view in Stevens, Sidonius, 146-8; on the technical details and the military methods employed by the Visigoths and for the dates, cf. idem, Appendix E (The Chronology of the Sieges of Clermont), 197-207.

the Burgundians in the Gallic countryside, so much so that he probably had an appreciable role in the blockade of Clermont, thereby putting the Visigoths in a difficult situation. If we examine how Sidonius tried to warn Ecdicius about his highly visible commitment to the Burgundians, we can see that the bishop of Clermont was perfectly aware of the risk that Avitus's son and perhaps he himself also ran if the Visigoths were victorious.

As the *foedus* concluded with Anthemius in 472 must have stipulated, the Visigoths reacted against this Burgundian threat by dispatching an army led by the *dux* Vicentius into Italy in 473 and at the same time invaded Provence where the Burgundians had already reached Vaison. The raids probably continued after the incursion of Vicentius, although it is the only incursion mentioned by the sources, because that incursion brought into play the forces commanded in Italy by the Burgundian king Gundobad and directed by two *comites* who are mentioned in the *Chronica Gallica*. We have every reason to think that the Visigoths in this way also wanted to negotiate the slackening of the Burgundian pressure on Auvergne, in order to put the Burgundian army in Italy in a difficult position and so to eliminate this threat. Italy itself was not involved in the conflict. From then on, the problem was the balance of power between the two *regna*.

In March 473 Gundobad took it upon himself to nominate a personal emperor, Glycerius, who was not recognized by the Eastern Empire. Consequently, it was as legitimate federated troops that the Visigoths invaded Italy to fight against this illegitimate emperor. The next year, however, the Eastern Emperor managed to send Julius Nepos to Italy. Julius—son of Nepotianus, *comes* et *magister utriusque militiae*, sent to Spain in 460 by the emperor Majorianus, nephew of the count Marcellinus of Dalmatia, one of the most famous warlords of the time, and husband of emperor Leo's niece—symbolized in 474 the alliance between the two parts of the Empire, as had Anthemius before him. The Eastern Empire counted on retaking control of Western affairs thanks to this energetic person. Julius Nepos wanted probably to start up a plan for restoration of imperial authority in Gaul.[16] That is what Jordanes pretends (*Getica* 241), but for Ennodius of Pavia, he was only thinking to reduce the imperial frontiers on the other side of the Alps.[17] But perhaps Ennodius is talking here about the situation one year later, at the moment of the signing the agreement of 475. Gundobad left Italy and returned to Gaul. Julius Nepos probably sent an army into Provence, and this explains the

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[16] Proposed by Stevens, *Sidonius*, 210, on the strength of the Vaison episode in 474 mentioned by Sidonius, *Epist*. V, 16, 2. In this letter the bishop of Clermont says about the emperor: *Iulius Nepos, armis summus Augustus*. Stevens takes also the testimony of the *Anonymous Valesianus*, VII, 36, but I regret that this text does not speak of this. So the proofs are very tenuous. Despite everything, A. Gillett, *Envoys and Political Communication in the Late antique West, 411-533* (Cambridge, 2003), 167 n. 224, gives also to Julius Nepos this ambition because he replaced Ecdicius with Orestes.

[17] Ennodius, *Vita Epiphani*, *M.G.H., A.A*., VII, LXXX, 80, 94: *Fines italici imperii quas transgallicanas Alpes porrexat*.

reaction of Sidonius's family's members who took the side of the new emperor in Vaison in 474. Sidonius thus found himself in the uncomfortable situation of having to defend their cause and to apologize to the Burgundian king Hilperic for their wayward behavior, which, although short-lived, was a perfectly clear statement. Whereas he should have been very happy and agreed with them, as the champion of Roman civilization, in fact Sidonius reacted to this insurrection of Vaison, the last legitimist group of Romans in the Burgundian kingdom, in a very embarrassed and strange way. His reaction speaks volumes about his commitment to the Burgundian kingdom, probably because, as we have seen earlier, he had found the help he needed for the defense of his besieged city.

In a letter addressed to the sister of Ecdicius, Papianilla, he clumsily tried to justify himself when he praised Julius Nepos, who had just nominated Ecdicius as *patricius*. The entire letter, in fact, does not seem to be intended for this woman but rather for the legitimist party whom Sidonius wants obviously to mollify and to make forget his and Ecdicius's pro-Burgundian positions. Yet it seems that it was his compromising political position with the Burgundians which was the main reason, and perhaps the only one, for his exile to Livia after the conclusion of the treaty between the emperor and the Visigoths.

Before Sidonius, Ecdicius had already had to pay for the restoration of imperial power by Julius Nepos: he was exiled in Italy. Under the pretext that he had to give him the title of *patricius* promised three years earlier by his predecessor, the emperor Anthemius, Julius Nepos forced him into Italy[18] and wanted to replace him in Gaul with a Roman field officer, Orestes, with the title of *magister militum praesentalis*.

To tell the truth, the defeated son of Avitus was banished from Gaul because he had agreed to fight the Visigoths and, in a very emphatic way, to the help of the Burgundians.[19]

## Conclusion

The interpretation of the events in Gaul concerning the "Conquest of the Auvergne" proposed here would require us to reconsider the Visigoths' relations with the legitimate imperial power: that is, until 475 they were a standing army of

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[18] Cf. Harries, *Sidonius,* 238: "Instead, he resigned, or was dismissed, and disappears from the record, although Sidonius, through his own letters, would ensure he was not forgotten."

[19] R.W. Mathisen, *Roman Aristocrats in Barbarian Gaul: Strategies for Survival in an Age of Transition* (Austin, 1993), 190 n. 64, noted that, according to the testimony of Cassiodorus, *Variae*, II, 2, circa 507/511, the Ostrogothic king Theodoric ordered *ut Ecdicci filios, quos in urbe primitus residere censuimus, ad patriam cum genitoris sui funere ... remeare iubeatis*, that is, after the battle of Vouillé, when they no longer feared the Visigothic reprisals.

federates according to the terms of the treaty of 439, which was probably renewed during the reigns of Avitus and Majorianus and very likely during the rule of Anthemius in 471 or 472. Thus, Euric did not put an end the confederation's agreement, neither in 466 according to traditional historiography, nor in 471 according to a more recent conception of his rule. He simply took sides in a civil war that gave too much military power to the Burgundians and thus indirectly threatened him as well.

In 475 imperial power confirmed the territorial modifications in Gaul, which were the consequences of the events of the previous years. We know that the Provençal bishops agreed to hand over the Auvergne in exchange for the freedom of Provence. Sidonius flew into a rage and for once revealed his negative opinions in the letter he sent to Bishop Graecus of Marseille. He had two reasons to be angry: he received nothing that he had hoped for, and he felt betrayed by the Empire and by those whom he had rallied to the Burgundian alliance. The Auvergne became Visigothic without the protection of the *foedus*, as he states with insight.[20]

Sidonius really knew the clauses of the treaty of Toulouse that ended the *foedus* between the Empire and the Visigoths, but he does not give us the territorial content of these clauses delimiting the respective territories of the Burgundians and the Visigoths in 475. The Burgundians surely abandoned Viviers and all the territories at the south of the Durance that formed, along with the Rhône at the southwest, the new frontier with the kingdom of Euric. A new form of diplomatic relations was thus born between the regional powers of the Roman West and Constantinople. The Burgundian kingdom and the Visigothic kingdom were henceforth territorial *regna* and the system of the federates disappeared.

A new form of social and economic relations was born between the Roman elites and the barbarians. The choice made by one part of the Roman aristocracy during the "conquest of the Auvergne" shows us that they had clearly understood the new situation and that they had anticipated the necessity of blending with the federates because it was the only way in which they could continue to possess some social power. It would not be going too far to say that Roman elites consciously made political choices to maintain their social power. It was only afterward, when other all political choices were closed to them, that they turned toward the Church to be able to conserve some measure of authority.

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[20] Sid. Apol. *Epist.* VII, 6 to the bishop Basilius of Aix: *ut episcopali ordinatione permissa populos Galliarum, quos limes Gothicae sortis incluserit, teneamus ex fide, etsi non teneamus ex foedere*.

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